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CHAMPIONING CONSTITUTIONAL RIGHTS:
NAVIGATING THE
BILL OF RIGHTS
IN THE DIGITAL REVOLUTION

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CHAMPIONING CONSTITUTIONAL RIGHTS:
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Editor's Note

Jose Gian Karlo B. Farrol
Executive Board of Editors



"All persons shall have the right to a speedy disposition of their cases before all judicial, quasi-judicial, or administrative bodies."

The Fourth Industrial Revolution or the AI Revolution continues to leave its mark on the world we live in. What was once the imagination of decades old sci-fi films and books has become a reality with Artificial Intelligence introduced and used in various areas, from mere students using them in academic studies and performances to providing companies with better cybersecurity. AI has greatly changed the world we live in and it is not over yet especially for the Philippines.

Not just limited to students using AI to do their homework, lawyers and religious leaders have used the technology to help draft their pleadings and sermons in order to save time yet they fail to notice the false information added by the AI in the fulfillment of its task until it blows back in their faces.

In the enforcement of law and public governance, AI can help to make the overburdened, bloated government systems more efficient and less prone to corruption with many of our political leaders claiming it would reduce corruption. Yet, who will be ones to supervise the system? Who will supervise and oversee the system, AI is just a mere tool still requiring humans to supervise its implementation.

And the exercise of democracy, the people's constitutional rights, AI has been envisioned to help safeguard free speech yet at the same time they can also be a digital fist to silence free speech as said speeches go against what is programmed for them to search and silence.

In this Fifth Volume of the WVSU Journal for Law Advocacy with the theme, "Championing Constitutional Rights: Navigating the Bill of Rights in the Digital Revolution," we present articles that tackles the pros and cons of using AI and other digital machination in the Philippine legal system written by our law student authors. Artificial Intelligence is without a doubt useful but as emphasized by Chief Justice Gesmundo, it is just a tool that will not replace the human element in the delivery of justice.

CONST. (1987), art. II, & 16 (Phil.).

Supreme Court of the Philippines. (2024, October 13). Chief Justice Gesmundo: AI Can Assist Judges, But Should Never Replace Human Elements of Justice, <https://sc.judiciary.gov.ph/chief-justice-gesmundo-ai-can-assist-judges-but-should-never-replace-human-elements-of-justice/>

"This Court does not stand to thwart the conduct of automated elections; but only steps in to preserve its sanctity. After all, in a democracy, nothing is more vital than an unimpaired vote."
-Justice Perlas Bernabe in *Pabillo v COMELEC*



Articles on
GOVERNANCE



The Right to Privacy in the Philippines: Legal Vulnerabilities in the Age of Digital Governance

Clarence Joy J. Quidato

Introduction

In today's digital age, nearly every human action generates a digital trace—be it through social media use, online purchases, electronic health records, GPS tracking, or biometric identification. The right to privacy, once primarily concerned with the sanctity of one's home or private conversations, has now expanded into the boundless digital landscape where personal data is continuously gathered, processed, and disseminated. This transformation has tested the traditional scope of the Bill of Rights, especially provisions guarding against unwarranted searches and protecting personal liberty. As technologies like surveillance systems, artificial intelligence, and big data become more advanced, the laws meant to protect individual rights must evolve accordingly. Today, safeguarding privacy is not a mere privilege but a fundamental requirement for preserving human dignity, autonomy, and democratic values. Strong data privacy laws have therefore become crucial tools in interpreting and applying constitutional protections in the digital realm—ensuring that freedom and technological progress move forward together.

Amy Gajda's *Seek and Hide* traces the evolution of privacy in American legal history, showing how it began as a defense for the elite—providing cover for powerful men—and has since grown into a broader concept encompassing personal autonomy and secrecy.¹ The piece highlights a historical tension between the constitutionally protected “right to know” and what Warren and Brandeis dubbed “the right to be let alone.” This tension is reflected in early cases involving public figures like Jefferson, Hamilton, and Cleveland, who sought to suppress disclosures of private behavior despite championing a free press.² Gajda also explores how the privacy-defense dynamic has often masked gender and power imbalances—shielding predominantly male misconduct while elite women's privacy remained unprotected. Meanwhile,

¹ Tulane University News, Law Professor Amy Gajda Explores the History of Privacy in New Book, *Tulane University News* (Jan. 11, 2022), <https://news.tulane.edu/news/law-professor-amy-gajda-explores-history-privacy-new-book>.

² Christopher Wink, *Seek and Hide: The Tangled History of the Right to Privacy* by Amy Gajda (Sept. 11, 2022), <https://christopherwink.com/2022/09/11/seek-and-hide-the-tangled-history-of-the-right-to-privacy-by-amy-gajda/>.



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Hochman's *The Listeners* chronicles the normalization of state surveillance: detailing warrantless wiretapping from the 1960s through the 1990s that targeted civil-rights leaders and minority communities, ultimately contributing to mass incarceration.³ In the modern era, privacy as nondisclosure has resurged through battles like Hulk Hogan vs. Gawker, where personal intimacy clashed with free-speech protections. Courts balance this re-emerging privacy against the public's "right to know," especially during movements like #MeToo and Black Lives Matter—which have unmasked both how privacy can enable abuse and how public exposure can drive accountability.⁴ Ultimately, this argues that privacy is not just a legal concept—it's a form of control. It serves to protect dignity and autonomy, but it's also deployed selectively, based on who uses it and why. This ongoing struggle to define and defend privacy in the digital age makes clear why the "privacy wars" remain so intense and unresolved.

Constitutional and Statutory Protection under Data Privacy Act of 2012

Section 2 of the Data Privacy Act of 2012 provides:

It is the policy of the State to protect the fundamental human right of privacy, of communication while ensuring free flow of information to promote innovation and growth. The State recognizes the vital role of information and communications technology in nation-building and its inherent obligation to ensure that personal information in information and communications systems in the government and in the private sector are secured and protected.⁵

Despite constitutional and statutory guarantees, the Philippine government has consistently failed to safeguard Filipinos' digital rights. Government institutions have suffered repeated data breaches, and regulatory responses have been inadequate. State policies such as the SIM Registration Law and the Anti-Terrorism Law (ATL) further weaken data privacy through mechanisms that permit mass surveillance with minimal oversight. In the

³Armwood Law Blog, *The Right to Privacy in the Digital Age*, Armwood Law (Jan. 5, 2023), <https://armwoodlaw.com/right-to-privacy-digital-age>.

⁴ Louis Menand, *Why the "Privacy" Wars Rage On*, New Yorker (June 27, 2022), <https://www.newyorker.com/magazine/2022/06/27/why-the-privacy-wars-rage-on-amy-gajda-look-and-hide-brian-hochman-the-listeners>.

⁵Data Privacy Act of 2012, Rep. Act No. 10173, § 2 (2012) (Phil.).



broader political context, digital platforms have been weaponized to manipulate public opinion, erode democratic discourse, and target political dissent.

The right to privacy of communication is explicitly guaranteed under Article III, Section 3(1) of the 1987 Philippine Constitution. However, despite the profound changes in communication technologies over the past decade, the implementing statute—the Data Privacy Act of 2012 (DPA)—remains unchanged. The law is increasingly insufficient in addressing contemporary privacy threats posed by state surveillance, private-sector data harvesting, and cyberattacks.⁶ The National Privacy Commission (NPC), the agency tasked with enforcing the DPA, has largely been reactive. It has failed to institutionalize a culture of data protection, especially within government offices. Rather than proactively promoting rights-respecting frameworks, the state has repeatedly deployed the narrative that “those with nothing to hide have nothing to fear.” This rhetoric, while politically expedient, undermines the broader social and democratic value of privacy by encouraging the public to voluntarily cede their rights in exchange for vague promises of national security.⁷

State Surveillance Laws and the Erosion of Digital Rights

The Philippine government has enacted a series of laws that pose significant threats to digital privacy and civil liberties. These legislative measures, often justified under the guise of national security or public safety, have expanded the state’s surveillance powers with minimal safeguards or oversight. Rather than strengthening trust in public institutions, these laws have created an environment of fear and vulnerability—particularly among journalists, activists, and ordinary citizens exercising their rights online. Among the most concerning of these enactments are the Anti-Terrorism Law and the SIM Registration Act, both of which grant the government broad authority to monitor, collect, and retain personal data with limited accountability.

⁶*Ople v. Torres*, G.R. No. 127685, July 23, 1998, <https://elibrary.judiciary.gov.ph/thebookshelf/showdocs/45/25549>.

⁷National Privacy Commission, <https://privacy.gov.ph>



The Anti-Terrorism Act of 2020

Section 2 of the Anti-Terrorism Act states:

It is declared a policy of the State to protect life, liberty, and property from terrorism, to condemn terrorism as inimical and dangerous to the national security of the country and to have welfare of the people, and to make terrorism a crime against the Filipino people, against humanity, and against The Law of Nations.⁸

In the implementation of the policy stated above, the State shall uphold the basic rights and fundamental liberties of the people as enshrined in the Constitution.

The State recognizes that the fight against terrorism requires a comprehensive approach, comprising political, economic, diplomatic, military, and legal means duly taking into an account the root cause of terrorism and/or criminal activities. Such measures shall include conflict management and post-conflict peace building, addressing the roots of conflict by building state capacity and promoting equitable economic development.

Nothing in this Act shall be interpreted as a curtailment, restriction or diminution of constitutionally recognized powers of the executive branch of the government. It is to be understood, however, that the exercise of the constitutionally recognized powers of the executive department of the government shall not prejudice respect for human rights which shall be absolute and protected at all times.

Under the ATL, authorities may surveil any individual suspected of terrorism or of providing material support to a suspect, without requiring clear evidentiary thresholds. This broad discretion undermines due process and creates a chilling effect on political expression, especially in the absence of meaningful judicial review or effective oversight.⁹

⁸Anti-Terrorism Act of 2020, Rep. Act No. 11479 (2020), https://lawphil.net/statutes/repacts/ra2020/ra_11479_2020.html.

⁹ Anti-Terrorism Act of 2020, Rep. Act No. 11479 (2020) (Phil.).



The SIM Registration Act

Section 2 of the Sim Registration Act provides:

The State recognizes the vital role of information and communications technology in nation-building and encourages its growth and development.

It is equally cognizant that beneficial as modern technology is, its illegal or malicious use endangers people' lives, damages property, poses hazards to public order, and even threatens the security of nations.

The State shall promote responsibility in the use of Subscriber Identity Module (SIM) and provide law enforcement agencies the tools to resolve crimes which involve its utilization and a platform to deter the commission of wrongdoings.

Towards this end, the State shall require the registration of SIM for electronic devices by all users.¹⁰

Enacted under the pretense of curbing spam and scam messages, the SIM Registration Act mandates the submission of personally identifiable information before a SIM card may be activated. Privacy experts warned that the law would neither deter scams nor enhance cybersecurity, but rather, expose citizens to heightened risks of surveillance and data exploitation. Within the first year of implementation, the National Telecommunications Commission (NTC) received over 45,000 complaints of text scams—demonstrating the measure's ineffectiveness. Moreover, black markets for pre-registered SIM cards have emerged, further undermining the law's supposed objective.

Notably, telcos such as Smart and Globe were found attempting to utilize SIM registration data for marketing—an act in clear violation of the DPA. Identity verification procedures were also poorly implemented, with some registrants able to submit cartoon characters as valid IDs.

¹⁰ *SIM Registration Act, Rep. Act No. 11934, § 2 (2022) (Phil.).*



Rise of Digital Disinformation in the Philippines and the Public Service Act

Section 1 of the Public Service Act states:

The State recognizes the role of the private sector as one of the main engines for national growth and development. It is hereby declared the policy of the State to encourage private enterprise and expand the base of investment in the country, with the goal of providing efficient, reliable and affordable basic services to all. These policies are fulfilled by: (a) ensuring effective regulation of public services; (b) providing reasonable rate of return to public services; (c) rationalizing foreign equity restrictions by clearly defining the term "public utilities"; and (d) instituting processes for the protection of national security.¹¹

The recent amendments to the Public Service Act (previously the Public Act) have liberalized the ownership of key infrastructure sectors, notably allowing up to 100% foreign ownership in telecommunications. While the reform is framed as a means to enhance foreign direct investment and promote competition in the telecommunications industry, it simultaneously raises serious concerns regarding data sovereignty. Telecommunications infrastructure serves as the backbone for the transmission, storage, and processing of Filipinos' personal and sensitive data. In instances where such infrastructure is owned or operated by foreign entities, the ability of the Philippine government to exercise full jurisdictional control and oversight over the handling of digital communications may be significantly weakened. This creates vulnerabilities not only in terms of privacy protection but also in national cybersecurity. The absence of stringent safeguards could potentially expose critical data flows to foreign surveillance, data breaches, or manipulation, thereby undermining the State's constitutional obligation to protect the privacy and security of its citizens in the digital sphere.¹² The Philippines has served as a laboratory for data-driven political experimentation. Facebook's 2013 initiative to offer free access to its platform and select websites significantly increased Filipinos' dependence on the tech giant. This created fertile ground for behavioral profiling and manipulation. In the lead-up

¹¹ Republic Act No. 11659, An Act Amending Commonwealth Act No. 146 (Public Service Act), https://lawphil.net/statutes/repacts/ra2022/ra_11659_2022.html (Phil.).

¹² *Id.*



to the 2016 elections, data from Filipino Facebook users was exploited by Cambridge Analytica to influence voter behavior. The same disinformation machinery has been linked to the electoral campaign of President Ferdinand “Bongbong” Marcos Jr., contributing to his rise to power. Under his administration, harassment of political organizations and activists has intensified. Online troll farms have been mobilized to red-tag activists and link them to insurgent groups such as the Communist Party of the Philippines. The government has even requested the NTC to block access to certain websites on the basis of alleged affiliations with communist organizations, absent due process.¹³

Conclusion

The Data Privacy Act of 2012 lacks the necessary robustness and flexibility to address today’s cybersecurity and privacy challenges. Section 11 of the Act outlines data privacy principles, yet these are frequently violated by both government and private entities. For example, businesses often require personal data for transactions that do not necessitate such information—contravening the principle of proportionality. The surge in cybercrime—reportedly increasing by 400% in 2023—has been attributed to phishing and social engineering attacks that succeed primarily because of data vulnerabilities. The NPC has not taken sufficient steps to investigate or penalize breaches caused by systemic failures in government cybersecurity protocols. The Philippine legal framework governing data privacy and digital rights remains woefully outdated and ineffective. The convergence of surveillance-enabling laws, underregulated technologies, and weak enforcement of privacy regulations has produced a national environment where fundamental rights are consistently at risk. The right to privacy, while constitutionally enshrined, is being eroded through legislative design and administrative neglect. Urgent reforms are needed. This includes updating the Data Privacy Act to address modern technological threats, ensuring greater independence and enforcement power for the NPC, and subjecting surveillance-related laws to rigorous constitutional scrutiny. Without such reforms, the Philippines risks sliding further into a digitally enabled state of repression, where the right to privacy exists only in name.

¹³ Gideon Lasco, *The Disinformation Paradox Gripping the Philippines*, *East Asia Forum* (June 28, 2025), <https://eastasiaforum.org/2025/06/28/the-disinformation-paradox-gripping-the-philippines/>.



Bibliography

Laws

Anti-Terrorism Act of 2020, Rep. Act No. 11479 (2020) (Phil.).

Data Privacy Act of 2012, Rep. Act No. 10173, § 2 (2012) (Phil.).

Republic Act No. 11659, An Act Amending Commonwealth Act No. 146 (Public Service Act), https://lawphil.net/statutes/repacts/ra2022/ra_11659_2022.html (Phil.).

SIM Registration Act, Rep. Act No. 11934, § 2 (2022) (Phil.).

Jurisprudence

Ople v. Torres, G.R. No. 127685, July 23, 1998, <https://elibrary.judiciary.gov.ph/thebookshelf/showdocs/45/25549>.

Government Articles

National Privacy Commission, <https://privacy.gov.ph>

Articles

Armwood Law Blog, The Right to Privacy in the Digital Age, Armwood Law (Jan. 5, 2023), <https://armwoodlaw.com/right-to-privacy-digital-age>.

Gideon Lasco, The Disinformation Paradox Gripping the Philippines, East Asia Forum (June 28, 2025), <https://eastasiaforum.org/2025/06/28/the-disinformation-paradox-gripping-the-philippines/>.

Louis Menand, Why the “Privacy” Wars Rage On, New Yorker (June 27, 2022), <https://www.newyorker.com/magazine/2022/06/27/why-the-privacy-wars-rage-on-amy-gajda-see-and-hide-brian-hochman-the-listeners>.



Freedom of Expression In the Digital Age: Misuse of AI for Political Propaganda

Josiah Lee B. Duran

According to Milton, freedom of speech is defined as “The liberty to know, to utter, and to argue freely according to conscience, above all liberties.” It is understood to embrace all other cognate rights involved in the communication of ideas and fall under the more comprehensive concept of freedom of expression. Such freedom is guaranteed by the Constitution to empower the people in the search of truth, and to test the acceptability of one’s thoughts in the marketplace of ideas.

Freedom of expression is not just a right but a duty. The citizens are given the information and freedom required for them to be able to perform their civic duties and exercise democracy, where they have the right to offer their views and suggestions in the discussions involving the public interest. Everyone is allowed to articulate their views through the many methods by which ideas are born and communicated from one’s mind to another. Citizens are free to express their thoughts by speaking, writing, singing, or dancing and many more, for these are forms of expression that are protected by the Constitution.¹

As time progressed, the concept and form of the freedom of expression evolved. In the past, to express one’s concerns or views, the citizens would march and gather in the streets carrying their picket signs and posters just to voice their concerns involving the public or regarding politics. In the present, the rise of technology has shifted the exercise of the freedom of expression in the digital platform.

Expression and exchanges of views have been prevalent online ever since social media has begun to dominate the digital world. One click of a person and their thoughts can be seen online by anyone who is connected. “Facebook” in particular has been the staple place where people voice their opinions, mostly when it comes to social or political issues. People have absolute freedom to post anything, whether it be in videos, photos, or texts. Furthermore, with the introduction of AI, expressing views and opinions have become even easier online: instead of sharing others’ contents, people may now be able to generate what their views or expressions are, in videos, photos, text, and even music.

¹ Isagani A. Cruz & Hector S. De Leon, *Constitutional Law* 649–51 (2024).; Joaquin G. Bernas, *The 1987 Constitution of the Republic of the Philippines: A Commentary* 231 (2009).



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AI has revolutionized the way people interact with and consume media. People have been able to process and analyze vast amounts of data quickly, making it easier to find and access the information needed. Its key feature where most people use it, is through the generation of endless contents such as images, music, text and videos (Societe Generale Private Banking, 2022). There are limitless possibilities people can interact with the use of AI.

AI has its benefits to society, however, it can also be a tool in spreading disinformation and malicious political propaganda. The Philippines is not new to election-related disinformation. Its citizens have witnessed the proliferation of deliberate and targeted disinformation campaigns on social media, attributed to the so-called 'online troll networks', which have operated since the 2016 general election and played an infamous role in the 2022 election. Supporters would utilize generative contents to express their support to their selected political candidate, or to mock the opposition.²

President “Bong Bong” Marcos wasn't spared from being a victim of AI. A deep fake video surfaced on “Facebook” named as the “polvoron video” where it tried to make it appear that President Marcos was snorting illegal drugs. The video was found to be suspicious and bears signs of manipulation called face swap. This is not new to public officers and figures—they are subject to public comment or criticism, where the people have a right to scrutinize, condemn or commend such officers of the government, and as long as the comments or any other acts by the people are made in good faith and with justifiable ends. In the video posted by the critics of President Marcos, they are trying to slander him and maliciously ruin his reputation as the President of the Philippines. The act of posting the video does not translate to the criticism of the official acts of the President but for intentionally defaming his honor and reputation.³ Freedom of expression does not cover ideas offensive to public order or decency or the reputation of persons, which are all entitled to protection by the State.⁴

In a more recent event, Senator “Bato” Dela Rosa unapologetically shared an AI-generated video of Filipino students opposing the impeachment of Vice President Sara Duterte. The video depicted a fabricated man-on-the-street interview featuring AI-generated students being asked whether they supported the impeachment. The fake students said they were against it, arguing that the Office of the Vice President was being “singled out”

² Tempering the Philippines' AI Disinformation Storm, *East Asia Forum* (Oct. 16, 2024), <https://eastasiaforum.org/2024/10/16/tempering-the-philippines-ai-disinformation-storm/>

³ TAI Experts Debunk Marcos' Alleged Drug-Snorting Video, *PhilStar Global* (Sept. 22, 2024), <https://www.philstar.com/headlines/2024/09/22/2387005/ai-experts-debunk-marcos-alleged-drug-snorting-vid>

⁴ *Supra* note 1



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over confidential funds. Given Dela Rosa's position, sharing such misleading content could cause many to believe videos like that are real. Political propaganda is not covered by the freedom of expression; although the Senator was only expressing his political views, and has the right to share any contents as he desire, freedom of expression, however, does not cover the freedom to disseminate misinformation. Freedom of expression as discussed above is the freedom that seeks the truth in the exchange of information and opinions.⁵

Freedom of expression is not an absolute right. Like all rights, it is subject to the police power and may be properly regulated in the interest of the public. As mentioned above, freedom of expression does not cover the ideas offensive to public order or decency or the reputation of persons. Thus, the lewd, the obscene, the seditious, the slanderous words or acts, cannot be considered as "a step to truth" and therefore will not enjoy the immunity from prohibition and punishment.⁶

⁵ Philstar Global, *Dela Rosa Draws Flak over AI Video of Students Opposing Sara Duterte's Impeachment* (June 16, 2025), <https://www.philstar.com/headlines/2025/06/16/2450990/dela-rosa-draws-flak-over-ai-video-students-opposing-sara-dutertes-impeachment>

⁶ Supra Note 1



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Bibliography

Books

Isagani A. Cruz & Carlo L. Cruz, Constitutional Law 689, 708 (2024).

Joaquin G. Bernas, The 1987 Constitution of the Republic of the Philippines: A Commentary 231 (2009).

Articles

Philstar Global, Dela Rosa Draws Flak over AI Video of Students Opposing Sara Duterte's Impeachment (June 16, 2025),
<https://www.philstar.com/headlines/2025/06/16/2450990/dela-rosa-draws-flak-over-ai-video-students-opposing-sara-dutertes-impeachment>

TAI Experts Debunk Marcos' Alleged Drug-Snorting Video, PhilStar Global (Sept. 22, 2024),
<https://www.philstar.com/headlines/2024/09/22/2387005/ai-experts-debunk-marcos-alleged-drug-snorting-video>

Tempering the Philippines' AI Disinformation Storm, East Asia Forum (Oct. 16, 2024),
<https://eastasiaforum.org/2024/10/16/tempering-the-philippines-ai-disinformation-storm/>



Safeguarding the Right to Free and Fair Elections in the Age of Automation:

A Critical Look at The Implications of Atty. Respicio's Case

Audrae Alyanna F. Bula

Introduction

The 1987 Philippine Constitution enshrines the right of suffrage in Article V, Section 1, affirming that “Suffrage may be exercised by all citizens of the Philippines not otherwise disqualified by law, who are at least eighteen years of age...”¹ This fundamental right reflects the democratic principles of popular sovereignty and active citizen participation in governance. To safeguard this right, the Constitution tasks the Commission on Elections (COMELEC) with the duty to conduct free, honest, orderly, and credible elections.²

In pursuit of these goals, the Philippine government enacted the Automated Election Law through Republic Act No. 9369, which amended Republic Act No. 8436.³ This legislation paved the way for modernizing the electoral process by adopting automated election systems designed to enhance transparency, reduce human error, and deter electoral fraud. While these technological advancements were intended to bolster the credibility of elections, they have also introduced complex legal and ethical challenges.

Crucially, electoral laws must be harmonized with other constitutional guarantees such as due process, equal protection, and freedom of expression.

These rights become especially significant when automated systems are alleged to malfunction or fail in faithfully capturing the will of the electorate. Whether real or perceived, such failures risk undermining public confidence, disenfranchising voters, and distorting the outcome of democratic processes.

The Case of Atty. Jeryll Harold Respicio

The 2025 case of Atty. Jeryll Harold Respicio, a lawyer and certified public accountant who ran for vice mayor of Reina Mercedes, Isabela, became a flashpoint in discussions about the constitutional implications of election automation. After winning the election with a clear margin, Respicio released a

¹ CONST. (1987), art. V, § 1 (Phil.).

² Id. art. IX-C, § 2.

³ Republic Act No. 9369, § 2 (2007) (Phil.).



series of videos on social media in which he claimed that the automated vote-counting system could be manipulated through a method he described as “backroom programming.”⁴ The videos gained national attention, prompting the Commission on Elections (COMELEC) to file cyber libel and false news complaints against him, invoking Article 154 of the Revised Penal Code⁵ in relation to Section 6 of the Cybercrime Prevention Act.⁶

In response, COMELEC suspended Respicio’s proclamation despite the absence of any discrepancies in the actual vote count.⁷ This act raised serious constitutional questions about the limits of free speech, particularly when it intersects with criticisms of electoral procedures. Respicio defended his statements as a form of whistleblowing aimed at promoting transparency, arguing that exposing potential vulnerabilities in the automated system should fall under constitutionally protected speech. He further emphasized that his claims did not seek to delegitimize the election result but rather to encourage public scrutiny of the technology behind it.

COMELEC countered that while criticism is welcome, the spread of what it deemed unverified and potentially misleading information could erode public trust in electoral institutions. However, observers noted that the Commission’s reaction, particularly the preemptive suspension of an already elected official, could be seen as a disproportionate response that compromised due process. The case eventually concluded with the lifting of the suspension and Respicio’s official proclamation, yet it left unanswered the broader legal question: how should the state respond when concerns about electoral automation are raised⁸ in good faith by candidates or citizens?

The Respicio controversy exemplifies the fine line between regulating misinformation and preserving democratic freedoms in an era where elections are increasingly mediated by technology. It also underscores the need for clearer legal frameworks that provide space for legitimate inquiry into electoral systems without punishing those who raise uncomfortable, but potentially valid concerns.

⁴ R. Villanueva, Lawyer Who Claimed Vote-Counting System Can Be Hacked Wins Isabela Race—But Proclamation Suspended, INQUIRER.NET (May 13, 2025), <https://newsinfo.inquirer.net/>.

⁵ REV. PEN. CODE art. 154.

⁶ Cybercrime Prevention Act of 2012, Republic Act No. 10175, § 6 (2012).

⁷ Villanueva, *supra* note 4.

⁸ COMM’N ON ELECTIONS, First Division, In re: Disqualification of Jeryll Respicio, Election Case No. 25-109 (2025).



Evolution and Challenges of Election Automation in the Philippines

I. Historical Background and Transition to Automation

Before 2010, elections in the Philippines were conducted manually. This traditional method involved hand-counting votes, physical transmission of election returns, and prolonged canvassing that often lasted several weeks. While theoretically transparent, manual elections were highly vulnerable to human error, vote padding and shaving (“dagdag-bawas”), ballot switching, and outright fraud. These systemic weaknesses contributed to widespread electoral disputes, public dissatisfaction, and, at times, civil unrest.

To address these long-standing issues, the Philippine Congress enacted Republic Act No. 8436 in 1997, authorizing the Commission on Elections (COMELEC) to use automated election systems (AES)⁹ in the interest of ensuring free, orderly, honest, peaceful, and credible elections. However, it was only in 2007, through Republic Act No. 9369, that the AES law was fully amended to include provisions for transparency, accuracy, security, and auditability. This paved the way for the nationwide implementation of automated elections in the 2010 national and local polls, a landmark shift in the country’s democratic process.

II. Implementing Automation: Elections from 2010 to 2022

The 2010 elections used Precinct Count Optical Scan (PCOS) machines. Subsequent elections in 2013, 2016, 2019, and 2022 continued this trend, upgrading to Vote Counting Machines (VCMs) to address earlier technical issues.¹⁰ Despite these enhancements, each election cycle has exposed persistent challenges.

III. Challenges in Election Automation

a. Transparency and the “Black Box” Dilemma

One of the most pressing issues is the opaque nature of the technology used. While automated elections have curtailed manual cheating tactics, they have also made the process less understandable to the average voter. Most

⁹ Republic Act No. 9369, § 2 (2007).

¹⁰ COMELEC, General Instructions for the Board of Election Inspectors on the Testing and Sealing of Vote Counting Machines, Res. No. 10057 (2016).



citizens and even many poll officials do not fully comprehend how the machines work. This “black box” dilemma creates suspicion¹¹ especially in areas where anomalies are reported.

Although COMELEC is required to make the source code of the software available for review, concerns have been raised about the timing, length, and inclusiveness of these reviews. Civil society groups have repeatedly called for broader participation in technical validation processes, emphasizing that transparency must not only be a procedural formality but a substantive and verifiable practice.

b. Technical Failures and System Vulnerabilities

Technical malfunctions have also plagued the credibility of automated elections. Problems such as paper jams, voting machine shutdowns, transmission failures, and corrupted SD cards have been reported in each election cycle. In the 2019 elections, more than 1,000 VCMs were reported to have malfunctioned nationwide, raising fears that such glitches could distort outcomes in close races.

These technical flaws not only affect operational efficiency but can also disenfranchise voters if issues are not resolved immediately at the precinct level. Additionally, because the technology is proprietary and controlled by third-party contractors, there are concerns about accountability when breakdowns occur.

c. Security and Cyberthreats

While there has been no confirmed large-scale hacking of Philippine elections, the possibility of system intrusion remains a significant concern. With the increasing sophistication of cyberattacks globally, COMELEC must ensure that the AES infrastructure is resilient to internal and external threats. Concerns about system integrity, hash code verification, and vote transmission vulnerabilities underscore the importance of end-to-end encryption, independent auditing, and cybersecurity protocols.

¹¹ CTR. FOR PEOPLE EMPOWERMENT IN GOVERNANCE, SOURCE CODE REVIEW REPORT ON AES 2016 (2016).



The infamous 2016 COMELEC data breach, widely referred to as “Comeleak”, exposed sensitive voter information and severely damaged the Commission's credibility. Although this breach was unrelated to the AES itself, it demonstrated the overall fragility of election-related digital infrastructure.

d. Voter Education and Digital Literacy

Another persistent challenge is the general lack of voter education regarding automated elections. Many Filipinos are unfamiliar with how their votes are processed, verified, and transmitted. Misunderstandings about machine function, ballot shading, and vote confirmation have led to confusion and, in some cases, claims of fraud.

This gap in public understanding fuels distrust, especially in a climate where misinformation can spread rapidly through social media. Enhancing public digital literacy and providing hands-on voter education programs at the grassroots level is essential to fostering confidence in the automated system.

e. Legal Framework and Oversight

The legal framework for AES is largely contained in RA 9369, but critics argue that it has not kept pace with the rapid evolution of election technology. There is a need for more detailed provisions on public audit procedures, whistleblower protections, contractor accountability, and dispute resolution specific to automated elections.¹²

Moreover, while the COMELEC has constitutional independence, its decisions are often subject to questions of impartiality and political influence. Strengthening oversight mechanisms, such as empowering independent technical panels and enhancing the role of election watchdogs, could help mitigate this perception.

Conclusion

The automation of elections in the Philippines was envisioned as a solution to the inefficiencies and vulnerabilities that plagued manual electoral processes. Since its nationwide implementation in 2010, the shift to automated systems has indeed yielded important benefits: faster canvassing, minimized

¹² TRANSPARENCY INTERNATIONAL, ELECTIONS AND TECHNOLOGY: TOWARD A PEOPLE-CENTERED APPROACH (2023).



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human error, and improved logistical efficiency. Yet, as this paper has shown, the promise of automation has been accompanied by significant challenges, particularly those related to system transparency, voter education, technological vulnerabilities, and legal oversight.

The case of Atty. Jeryll Harold Respicio adds a human and constitutional dimension to these concerns. His experience illustrates how state institutions, when faced with criticism of electoral systems, must tread carefully between preserving electoral integrity and protecting the fundamental rights of individuals, especially those related to free expression, due process, and the electoral mandate. The swift suspension of his proclamation, absent concrete proof of fraud, risked chilling public discourse and raised valid fears about the misuse of penal laws in electoral contexts.

Ultimately, the Philippine experience underscores that election automation is not merely a technical reform; it is a constitutional challenge. The credibility of an election does not rest on machine accuracy alone, but on the public's confidence that the process is transparent, accountable, and accessible to all citizens. Legal and institutional reforms must accompany technological upgrades. Source code reviews must be made meaningful. Independent audits must be regular and participatory. Voter education must be proactive and sustained. And perhaps most importantly, criticism of public systems, no matter how uncomfortable, must be protected as a cornerstone of democracy, not suppressed as a threat.

Only by adopting a holistic approach that merges legal protections, technological rigor, and civic empowerment can the Philippines ensure that automation strengthens, rather than weakens, the people's constitutional right to free and fair elections.



Bibliography

Constitution

The Constitution of the Republic of the Philippines. (1987).

Laws

An Act Amending Republic Act No. 8436, Republic Act No. 9369. (2007).
Congress of the Philippines.

Jurisprudence

Ang Ladlad LGBT Party v. COMELEC, G.R. No. 190582 (Supreme Court April 6, 2010).

Cybercrime Prevention Act of 2012. (2012). Congress of the Philippines.

Revised Penal Code, Act No. 3815. (1930). Philippine Legislature.

Government Articles

Center for People Empowerment in Governance. (2016). *Source code review report on AES 2016*. June.

Commission on Elections. (2010). *2010 national and local elections report*.

Commission on Elections. (2016). COMELEC Resolution No. 10057. *General instructions for the board of election inspectors on the testing and sealing of vote counting machines*.

Commission on Elections. (2016). General Instructions for the Board of Election Inspectors on the Testing and Sealing of Vote Counting Machines. *Resolution No. 10057*.

Articles

Transparency International. (2023). *Elections and technology: Toward a people-centered approach*.

Visaya Jr., V. (2025, May 14). *COMELEC suspends proclamation of Isabela lawyer who 'can hack system'*. From INQUIRER.net:
<https://www.inquirer.net/443681/comelec-suspends-proclamation-of-isabela-lawyer-who-can-hack-system/>



Watching the Watchers: Protecting Privacy Rights in the Age of Smart Machines in the Philippines

Paul S. Dangan

I. Introduction: A Nation at a Digital Crossroads

Artificial Intelligence (AI) has rapidly redefined how societies function, transforming the delivery of public services, reshaping governance, and impacting personal freedoms across the world. In the Philippines, the adoption of AI in both public and private sectors is accelerating despite underlying infrastructure challenges, regulatory gaps, and widespread digital inequality. The country stands at a crossroads where the allure of technological innovation must be balanced against the protection of fundamental rights, particularly the right to privacy enshrined in the 1987 Constitution. The friction between digital advancement and constitutional protection necessitates a comprehensive examination of how existing legal, institutional, and cultural frameworks can be recalibrated to uphold dignity, safeguard autonomy, and resist authoritarian overreach. This paper explores the intersection of AI, surveillance, and privacy rights in the Philippines and advocates for a robust rights-based AI governance model tailored to the country's unique socio-political realities.

The constitutional framework of the Philippines, especially the Bill of Rights, was crafted in an era that did not foresee the invasive capacity of machine learning and surveillance algorithms. The right to privacy is explicitly protected in Section 3 of Article III, which provides that the privacy of communication and correspondence shall be inviolable except upon lawful order of the court or when public safety or order requires otherwise as prescribed by law.¹ However, this right, while clear in its articulation, is increasingly challenged by the practical realities of AI-powered tools that can gather, analyze, and predict personal behavior at unprecedented scales. The deployment of facial recognition systems, algorithmic profiling, and real-time surveillance by both state actors and corporations tests the limits of constitutional protection, often without clear legislative or judicial guidance.²

¹ Constitution of the Republic of the Philippines (1987), Article III, Section 3.

² Reyes, D. (2021). Facial Recognition and the Future of Surveillance in the Philippines. *Philippine Law Journal*, 95(3), 201–230.



The 2012 Data Privacy Act represents a critical milestone in safeguarding personal data, laying down principles of transparency, legitimate purpose, and proportionality.³ However, it remains largely reactive and inadequate in the face of the sophisticated decision-making capabilities of modern AI. The law does not mandate algorithmic transparency, explainability, or user consent for automated decision-making processes that can materially affect individuals. The lack of enforceable standards regarding AI ethics creates a vacuum where human rights are left vulnerable to systemic abuse or neglect, especially in the absence of informed public oversight or strong institutional safeguards.

II. Surveillance in Practice: From City Streets to Courtrooms

This legal gap is not merely theoretical. In practice, AI tools have already been integrated into surveillance activities by law enforcement, local governments, and even private institutions, often without public knowledge or consent. For instance, the deployment of facial recognition technologies in major urban centers such as Metro Manila, Cebu, and Davao raises serious concerns about the scope of data collection, data retention periods, and the absence of clearly defined accountability mechanisms.⁴ Law enforcement officials justify these deployments as crime prevention tools, yet the lack of transparency and due process in their use undermines constitutional protections, especially when surveillance leads to false positives or wrongful targeting.

The jurisprudence of the Philippine Supreme Court, while affirming the right to privacy in seminal cases such as *Ople v. Torres*⁵ and *Disini v. Secretary of Justice*,⁶ has yet to engage directly with AI-specific challenges. In *Ople*, the Court invalidated an executive order creating a centralized identification system, holding that any intrusion into personal privacy must pass the test of reasonableness, necessity, and proportionality. In *Disini*, the Court struck down certain provisions of the Cybercrime Law for being overbroad and vague. These rulings offer a constitutional compass but they need to be extended to emerging technologies to remain relevant. Judicial doctrine must evolve to apply traditional rights to digital and algorithmic settings. Courts must scrutinize not just the collection of data but also the logic, biases, and outcomes of algorithmic processes that rely on such data.

³ Data Privacy Act of 2012, Republic Act No. 10173

⁴ Rappler. (2020). Manila's Surveillance Plans Raise Privacy Concerns. Retrieved from <https://rappler.com>.

⁵ *Ople v. Torres*, G.R. No. 127685, July 23, 1998.

⁶ *Disini v. Secretary of Justice*, G.R. No. 203335, February 11, 2014.



III. The Ripple Effect: AI's Impact Across Philippine Society

AI's impact on civil liberties is not confined to surveillance. In the context of political expression, algorithmic content moderation and profiling pose subtle yet powerful threats to democratic participation. Social media platforms operating in the Philippines frequently rely on automated systems to detect and filter out content deemed harmful. While such practices are intended to prevent misinformation and incitement, they often result in disproportionate silencing of dissenting views, particularly from opposition groups, activists, and marginalized sectors.⁷ Automated content moderation lacks contextual understanding, and its errors disproportionately impact users who lack legal or technical recourse. As a result, freedom of expression is imperiled by opaque and unaccountable digital processes.

The Philippine education sector has also witnessed the incorporation of AI in online learning platforms, grading systems, and data analytics tools, especially during and after the COVID-19 pandemic. These systems claim to personalize learning, enhance efficiency, and optimize resource allocation. However, they also collect vast amounts of student data including emotional responses, behavioral patterns, and academic performance metrics.⁸ Without clear guidelines on data protection, access rights, and data minimization, students may be subjected to surveillance throughout their academic lives. The normalization of surveillance in educational settings risks eroding the development of autonomous, critically thinking citizens and replacing it with behaviorally engineered compliance.

Moreover, the use of AI in labor management introduces another layer of complexity. Companies employing automated tools to monitor employee productivity, attendance, and behavioral tendencies often do so without full transparency or informed consent. Algorithmic bias may inadvertently reinforce workplace discrimination, especially against persons with disabilities, LGBTQIA+ workers, or those from rural and indigenous backgrounds.⁹ AI systems, when left unchecked, can reify historical inequalities and justify them under the guise of efficiency or objectivity. Labor rights under the Constitution, including the right to just and humane conditions of work and to equal opportunity, must therefore be actively defended in the digital workplace.

⁷ Tuazon, R. (2020). Disinformation and democracy in the Philippines. *CMFR Reports*, Center for Media Freedom and Responsibility.

⁸ Mendoza, M. (2021). AI in Philippine Education: Promise and Perils. *UP CIDS Discussion Papers*, No. 2021-03.

⁹ Santos, B. (2022). Algorithmic Discrimination in Filipino Workplaces. *Philippine Journal of Labor and Policy*, 17(1), 44–67.



Public safety initiatives have also embraced AI-driven technologies such as predictive policing and automated threat detection systems. These systems often rely on historical crime data which may already reflect institutional biases. Consequently, communities that have historically been over-policed may face continued scrutiny, creating a feedback loop that reinforces systemic injustice.¹⁰ In this context, predictive policing not only raises constitutional concerns under the right to equal protection and due process but also creates an atmosphere of fear and suspicion that damages community trust.

AI-driven governance presents unique risks to electoral integrity. Political campaigns now utilize psychometric profiling and targeted messaging based on algorithmic analysis of voter behavior.¹¹ While microtargeting may improve campaign efficiency, it can also be used to manipulate voter perceptions using false or misleading information. The Cambridge Analytica scandal, which had ripple effects in the Philippines, demonstrated the potential for AI-powered tools to undermine democratic institutions. The Commission on Elections (COMELEC) must proactively regulate the use of AI in campaign practices and ensure full disclosure of digital strategy, funding sources, and algorithmic interventions.

IV. Charting the Course: A Call for Rights-Based Governance

The broader implications of AI for the Philippine legal and political system cannot be overstated. As the country continues to engage with digital transformation, its governance institutions must develop a nuanced understanding of AI's capabilities and risks. Lawmakers must resist the temptation to embrace technology for its novelty and instead subject it to rigorous ethical, constitutional, and practical scrutiny. Any AI-related legislation must embody the principles of transparency, accountability, non-discrimination, and participatory governance. Policymakers must involve civil society, academic experts, technologists, and affected communities in the formulation of AI rules to ensure that policies are responsive to local realities.

One promising direction is the development of an AI-specific legal framework that supplements existing data privacy and cybercrime laws. Such a framework should mandate impact assessments for high-risk AI systems, establish rights to explanation and redress for individuals affected by algorithmic decisions, and create institutional structures for oversight and compliance. The National Privacy Commission, while pivotal, requires expanded authority, resources, and technical capacity to engage with AI

¹⁰ Santos, B. (2022). Algorithmic Discrimination in Filipino Workplaces. *Philippine Journal of Labor and Policy*, 17(1), 44–67.

¹¹ Cadwalladr, C., & Graham-Harrison, E. (2018). The Cambridge Analytica Files. *The Guardian*. Retrieved from <https://theguardian.com>.



governance effectively.¹² It must work in tandem with a new or existing regulatory body dedicated to AI ethics, with powers to investigate, audit, and penalize violations.

Education and public awareness are foundational to effective AI governance. Citizens must be equipped with the knowledge to understand how AI systems function, what rights they retain in the digital age, and how to demand accountability from both government and private actors. Incorporating digital rights education into school curricula, conducting public information campaigns, and supporting independent media can help build a culture of digital vigilance. An informed citizenry is the most effective watchdog against technological overreach.

The international dimension of AI governance also bears mentioning. The Philippines must assert its sovereignty over digital infrastructure while engaging in regional and global cooperation. ASEAN frameworks on digital ethics and AI governance can provide a foundation for harmonized standards while allowing for national adaptation.¹³ Foreign tech companies operating in the country must be held to Philippine legal and ethical standards regardless of their origin, especially if their services are used in sensitive public domains such as health, education, or public safety.

Ultimately, the challenge lies not merely in managing a new technology but in reaffirming the values that define the Philippine constitutional order. The 1987 Constitution emerged as a bulwark against tyranny, informed by a history of state abuse and a struggle for democratic restoration. That legacy must guide the country's engagement with AI. Innovation must serve, not subvert, the dignity and rights of all Filipinos. Governance systems must be proactive, not reactive, and must evolve alongside technology without sacrificing the constitutional ideals of liberty, equality, and justice.

V. Deeper Dive: The Socio-Political Undercurrents of AI Adoption

As the digital revolution continues to intensify, the Philippine state and its citizens confront an array of emerging tensions where the rapid deployment of artificial intelligence (AI) poses significant legal, ethical, and political implications. While foundational constitutional and jurisprudential contexts of AI and surveillance in the Philippines have been previously established, further analysis reveals how entrenched socio-political structures, legislative inertia, and infrastructural limitations either facilitate or resist the unchecked expansion

¹² National Privacy Commission. (2023). Strategic Roadmap for AI and Privacy. Retrieved from <https://privacy.gov.ph>.

¹³ ASEAN. (2021). ASEAN Guidelines on Artificial Intelligence Governance and Ethics. Retrieved from <https://asean.org>.



of AI-driven systems. This dynamic interplay demands a nuanced understanding of how civil society, media, academia, and international cooperation can offer strategic counterweights to potential abuses while encouraging the development of an inclusive and ethically grounded digital governance framework.

VI. The Rise of Techno-Authoritarianism

Central to understanding the current trajectory of AI in the Philippines is the persistent asymmetry between state and citizen. AI technologies, when deployed without transparency or accountability, empower state and corporate actors to monitor and shape public behavior at an unprecedented scale. In a political climate where democratic institutions have historically been tested by authoritarian tendencies, such as during the Marcos regime or more recently under President Rodrigo Duterte, the risk of AI-enhanced surveillance becoming a tool for repression is not hypothetical. It is a genuine threat.¹⁴ When combined with pre-existing laws that already blur the lines between national security and civil liberties, such as the Anti-Terrorism Act of 2020,¹⁵ The introduction of facial recognition, predictive analytics, and automated data-mining platforms could result in a techno-authoritarian state cloaked under the guise of efficiency and innovation.

VII. A Fractured Defense: Regulatory Weakness and Legislative Gaps

This risk is exacerbated by the structural weakness of regulatory institutions. The National Privacy Commission (NPC), while an essential guardian of data protection under the Data Privacy Act,¹⁶ is significantly under-resourced and lacks the technical capacity to audit or meaningfully oversee AI systems operating across the country. There are few, if any, mechanisms for the NPC to inspect algorithmic systems used by government agencies or to demand algorithmic transparency from tech companies, both foreign and local.¹⁷ Compounding this is the fragmentation of jurisdiction: data protection is handled by the NPC, cybersecurity by the Department of Information and Communications Technology (DICT), innovation by the Department of Science and Technology (DOST), and public safety technologies by the Philippine National Police (PNP) or military agencies. This siloed

¹⁴ Human Rights Watch. (2020). *Duterte's War on Drugs: Widespread Abuses, Lack of Accountability*. <https://www.hrw.org/news/2020/06/04/philippines-dutertes-war-drugs-widespread-abuses-lack-accountability>

¹⁵ Republic Act No. 11479. (2020). *Anti-Terrorism Act of 2020*. <https://www.officialgazette.gov.ph/2020/07/03/republic-act-no-11479/>

¹⁶ Data Privacy Act of 2012 (Republic Act No. 10173). <https://www.privacy.gov.ph/data-privacy-act/>

¹⁷ National Privacy Commission. (2023). *Annual Report: Data Governance Challenges in the Age of AI*. <https://privacy.gov.ph/reports/2023-annual-report>



structure results in regulatory gaps, overlapping mandates, and an overall lack of strategic coherence. A fragmented bureaucracy is ill-suited to govern unified and deeply integrated AI systems.

Furthermore, existing legislative frameworks remain woefully inadequate. Congress has yet to pass a comprehensive AI Act, and most pending bills address only peripheral concerns such as digital entrepreneurship or cybersecurity. Where draft legislation touches on AI, it often lacks depth, failing to require mandatory impact assessments, transparency disclosures, or clear liability rules for harms caused by autonomous decision-making systems. Lawmakers must confront the technical challenge of translating human rights principles into actionable and enforceable provisions suitable for a technological landscape shaped by machine learning, natural language processing, and predictive modeling.¹⁸ Without a rights-based AI governance framework, any legal effort risks being symbolic rather than substantive.

VIII. The Data Divide: Inequality in a Data-Driven World

The situation is further complicated by an uneven digital infrastructure and widespread digital illiteracy. AI systems rely heavily on data that in the Philippine context is often incomplete, biased, or collected without proper consent.¹⁹ Rural communities, indigenous peoples, and informal labor sectors are particularly vulnerable to exclusion or misrepresentation in AI training data, leading to decisions that either ignore their existence or misclassify them in harmful ways. For example, if AI is used to determine eligibility for government aid or welfare programs but is trained only on urban datasets, rural recipients could be systematically disadvantaged or ignored.²⁰ Similarly, predictive policing systems trained on biased historical data could disproportionately target poor and marginalized communities already subjected to aggressive law enforcement tactics.²¹

IX. The Foreign Hand: Geopolitics and Digital Sovereignty

Another pressing concern is the involvement of foreign technology providers in critical infrastructure projects. Chinese firms, in particular, have played a significant role in supplying surveillance technology to the Philippine government including smart CCTV systems deployed in Metro Manila under

¹⁸ Senate Bill No. 892: Artificial Intelligence Regulation Act. (2023). <https://legacy.senate.gov.ph/bills>

¹⁹ UNDP. (2021). *Digital Readiness Assessment: Philippines Country Report*. <https://www.undp.org/publications/digital-readiness-philippines>

²⁰ IDRC. (2020). *Data for Development in the Philippines*. <https://idrc.ca/data-governance-ph>

²¹ Amnesty International. (2021). *Philippines: Biased Policing and the Marginalized*. <https://www.amnesty.org/en/documents/asa35/4032/2021/en/>



the "Safe Philippines" project.²² These arrangements raise both geopolitical and privacy concerns, especially given the limited transparency around data ownership, retention, and access. In the absence of data localization laws or bilateral privacy agreements, there remains the risk that sensitive data of Filipino citizens may be accessed, stored, or processed outside Philippine jurisdiction, without the protections guaranteed under domestic law. National digital sovereignty must be prioritized in any long-term AI strategy.²³

X. Voices of Resistance: Counterweights in a Contested Space

Despite these grim challenges, resistance is not only possible but already underway. Civil society groups such as the Foundation for Media Alternatives²⁴ and academic centers like the UP Center for Integrative and Development Studies²⁵ have begun mapping the digital ecosystem and educating the public on algorithmic accountability. Strategic litigation remains a potent tool for asserting rights, as seen in previous Supreme Court victories that struck down overbroad surveillance measures.²⁶ Additionally, grassroots movements have increasingly adopted digital literacy campaigns to empower local communities to understand, question, and contest technological impositions.

The media also plays a crucial role. Investigative journalism has brought to light numerous instances of overreach in the name of public safety. Reports from platforms like Rappler, PCIJ, and Vera Files have uncovered problematic use of AI in electoral manipulation, government propaganda, and surveillance contracting.²⁷ A vibrant, independent press not only uncovers abuse but can frame the narrative to place pressure on lawmakers and institutions. Without a free and fearless media, AI governance risks being shaped entirely behind closed doors.

At the same time, educational institutions must modernize curricula to integrate courses on AI ethics, digital rights, and computational thinking. Law schools, engineering departments, and communication studies must collaborate to produce a generation of professionals who can bridge the gap between technical expertise and normative reasoning. Legal professionals

²² Department of the Interior and Local Government (DILG). (2019). *Safe Philippines Project*. <https://www.dilg.gov.ph/news/Safe-Philippines-Launch/>

²³ Rappler. (2022). *China's Tech Footprint in the Philippines*. <https://www.rappler.com/technology/features/china-surveillance-tech-philippines>

²⁴ Foundation for Media Alternatives. (2022). *Tracking Surveillance in the Philippines*. <https://fma.ph/reports/surveillance-philippines/>

²⁵ UP-CIDS. (2021). *Algorithmic Governance and Civil Liberties*. <https://cids.up.edu.ph/ai-rights-philippines>

²⁶ Supreme Court of the Philippines. (2014). *Disini v. Secretary of Justice*, G.R. No. 203335. https://lawphil.net/judjuris/juri2014/feb2014/gr_203335_2014.html

²⁷ PCIJ. (2023). *Data, Democracy, and Surveillance in the Philippines*. <https://pcij.org/data-surveillance>



must be equipped to understand how AI works in order to effectively challenge algorithmic decisions in court, while technologists must be taught to build systems that respect rights by design. A multidisciplinary approach is not merely ideal but essential.²⁸

International cooperation also offers a meaningful avenue for reform. The Philippines can look to emerging global models such as the EU's AI Act,²⁹ Canada's Directive on Automated Decision-Making,³⁰ or UNESCO's AI Ethics Recommendation.³¹ ASEAN-wide agreements on ethical AI could harmonize standards across Southeast Asia while preserving local autonomy. Foreign aid and development assistance should prioritize capacity-building for AI regulation, digital inclusion, and public interest technology. The United Nations Special Rapporteur on the Right to Privacy and other global watchdogs can be engaged to monitor and support Philippine efforts to align AI practices with international human rights norms.³²

Finally, any conversation about AI in the Philippines must be anchored in its broader socio-political history. The 1987 Constitution emerged in response to an era of dictatorship defined by surveillance, suppression, and impunity. The challenge now is to prevent a digital return to authoritarianism under the cover of modernization. AI must not become the new Martial Law in code. Instead, it must be harnessed in service of people-centered governance, democratic participation, and equitable development. AI can be a tool for liberation or a mechanism of control. The outcome depends not just on code or infrastructure but on courage, vigilance, and collective will. The stakes could not be higher. As AI technologies gain deeper footholds in public and private decision-making, Filipinos must ask: who programs the programs? Who audits the algorithms? Who watches the watchers? These are not technical questions alone but constitutional imperatives. Protecting privacy rights in the age of smart machines is not merely about resisting surveillance; it is about reclaiming agency, dignity, and the democratic promise of the digital age.

²⁸ CHED. (2023). *Curriculum Guide: AI Ethics and Digital Literacy*. <https://ched.gov.ph/ai-curriculum/>

²⁹ European Parliament. (2023). *Artificial Intelligence Act*. <https://eur-lex.europa.eu/legal-content/EN/TXT/?uri=CELEX%3A52021PC0206>

³⁰ Government of Canada. (2020). *Directive on Automated Decision-Making*. <https://www.canada.ca/en/government/system/digital-government/digital-government-innovations/directive-automated-decision-making.html>

³¹ UNESCO. (2021). *Recommendation on the Ethics of AI*. <https://unesdoc.unesco.org/ark:/48223/pf0000381137>

³² OHCHR. (2021). *Report of the Special Rapporteur on the Right to Privacy*. <https://www.ohchr.org/en/documents/thematic-reports/a76631-artificial-intelligence-and-right-privacy-report-special>



XI. Recasting the State: The Computational Turn in Public Service

As artificial intelligence continues its accelerated diffusion across key state functions, its impact is being most acutely felt within the domain of public service delivery and administrative governance. The Philippine government's ongoing integration of AI into identity management, social welfare allocation, and algorithmic decision-making systems marks a pivotal shift in the architecture of bureaucratic power. Unlike traditional modes of state-citizen interaction mediated by human discretion and paper-based systems, the digitization of governance—particularly through biometric identification schemes and predictive analytics—recasts the Filipino citizen not as a rights-bearing individual, but increasingly as a data point in an impersonal computational matrix. This recalibration of public administration challenges the normative foundations of democratic accountability, as decisions affecting fundamental socio-economic rights are gradually obscured within opaque technical systems governed more by efficiency metrics than human dignity.

The Philippine Identification System (PhilSys), institutionalized through Republic Act No. 11055, represents the state's flagship initiative in constructing a centralized biometric identity infrastructure. Promoted as a means to streamline transactions, reduce fraud, and enhance service delivery, PhilSys collects fingerprints, iris scans, facial images, and demographic data from every Filipino resident and overseas worker. Yet while the state extols its benefits, civil liberties advocates warn of the systemic risks embedded in such a massive data-gathering operation. The very logic of centralization, efficiency, and digitization necessitates the erasure of procedural redundancies, but such "efficiencies" often come at the cost of checks and balances. The more seamless the database, the more vulnerable it is to abuse. The more interoperable the system, the greater the risk of surveillance creep as datasets are cross-referenced by multiple agencies beyond their original intent. It is in this context that privacy becomes not merely an individual concern, but a structural one—embedded in the design, implementation, and purpose of digital governance systems.³³

XII. Code as Law: Automated Decisions in Social Welfare

The implementation of automated decision-making tools within public agencies further compounds concerns over due process and equality before the law. Algorithmic models are now being piloted to assist in everything from conditional cash transfer targeting under the Pantawid Pamilyang Pilipino Program (4Ps), to eligibility assessments for healthcare and housing subsidies.

³³ Foundation for Media Alternatives. (2021). *Biometric Surveillance and the PhilSys System: Civil Liberties Concerns*. <https://fma.ph/biometric-surveillance-report>



While such tools promise to reduce human bias and eliminate corruption, they risk encoding systemic discrimination if based on flawed, incomplete, or biased data. For instance, models trained on urban-centric data are likely to misrepresent rural and indigenous

households, leading to their exclusion from vital assistance. Unlike human discretion, which can be interrogated and appealed, algorithmic errors are frequently inscrutable, with beneficiaries unable to understand, let alone contest, the rationale behind an adverse outcome. The absence of clear legal mandates requiring transparency in AI-based public service decisions means that government agencies are under no obligation to explain their algorithms, making accountability elusive and redress mechanisms virtually nonexistent.³⁴

XIII. The All-Seeing City: Surveillance and Urban Governance

In this ecosystem of computational governance, the logic of surveillance is often smuggled in through the rhetoric of modernization. Smart city initiatives, for example, integrate AI-powered sensors, CCTV cameras with facial recognition, and traffic optimization platforms that collect real-time data on citizens' movements, behaviors, and interactions with state infrastructure. Projects such as Davao City's Public Safety and Security Command Center or Quezon City's use of predictive policing software illustrate how urban administration is being quietly transformed into a data-driven security apparatus. While purportedly designed for crime prevention or traffic management, these systems are rarely subjected to public audit, nor are there binding constraints on secondary data use. Without enforceable safeguards, surveillance technology deployed for safety today may be repurposed for repression tomorrow. The imperative for transparency, public consultation, and legal oversight is especially pressing in light of the country's history of authoritarianism and extrajudicial practices.³⁵

XIV. The Governance Void: Where Law Fails to Keep Pace

Compounding these challenges is the legal and institutional void surrounding algorithmic harms. The Data Privacy Act of 2012, while landmark in scope, was enacted before the rise of AI-driven systems and thus lacks explicit provisions on automated decision-making, data profiling, or algorithmic accountability. There is no current law requiring government agencies to conduct impact assessments before deploying AI tools, nor is there a mechanism for independent review of algorithms used in public

³⁴ Commission on Audit. (2022). *Audit Report on Automated Decision-Making in 4Ps Implementation*. <https://coa.gov.ph/reports/ai4ps>

³⁵ Rappler. (2023). *Quezon City's Smart Surveillance: Between Innovation and Overreach*. <https://rappler.com/tech/features/quezon-city-ai-surveillance>



decision-making. The National Privacy Commission, tasked with upholding data rights, remains underfunded and lacks the forensic technical capacity to audit algorithmic systems embedded deep within government infrastructure. Worse, the layered responsibility across bureaucracies—where the DICT, DILG, and NEDA all possess varying mandates over digital transformation—results in policy fragmentation and jurisdictional ambiguity. In this vacuum, public-private partnerships often proceed with minimal scrutiny, with foreign tech vendors introducing proprietary solutions that further obscure public understanding and democratic control.³⁶

XV. The Human Cost: Social Justice in the Digital Age

The impact of this digital transformation is most severe on the most vulnerable. For informal settlers without formal land titles, biometric registration may lead to data-based exclusion from social housing. For indigenous peoples, the forced integration into digital ID schemes may violate cultural autonomy and self-determination. For workers in the gig economy, algorithmic tracking by both government regulators and private platforms exposes them to constant surveillance, productivity scoring, and arbitrary deactivation without recourse. In these cases, data governance is not just a question of technical regulation—it is a matter of social justice. A rights-respecting AI framework must recognize that digital systems, when uncritically implemented, can reproduce the same hierarchies of marginalization that analog bureaucracies once entrenched.

What is needed is a fundamental rethinking of the relationship between technology and the public good. AI tools in government must be subjected to democratic oversight mechanisms, including participatory design processes, mandatory transparency disclosures, and regular independent audits. Legal reforms should mandate that any automated system used in determining rights, benefits, or punishments must include the possibility of human review and appeal. Furthermore, civil society and academic institutions must be empowered—through funding, legal standing, and data access—to act as watchdogs of digital governance. The ethical deployment of AI is not just a technical challenge but a constitutional mandate. It demands fidelity to due process, equal protection, and the inviolability of human dignity.

As the state becomes increasingly reliant on smart systems to mediate its obligations to the people, it must confront the paradox of automation: that machines designed to optimize welfare can, if unchecked, institutionalize harm. The promise of AI lies not in replacing public servants with algorithms but in

³⁶National Privacy Commission. (2022). *Position Paper on the Ethical Use of AI in Government Services*. <https://privacy.gov.ph/papers/ai-ethics-government>



augmenting human judgment with tools that are transparent, accountable, and rights-oriented. To watch the watchers in this new era requires more than technical audits; it requires reclaiming the digital commons as a space for collective governance and human-centered design. The future of public service in the Philippines will not be determined by code alone but by the values embedded within it and the people empowered to interrogate it.

XVI. The New Foundation: Algorithmic Governance Becomes Infrastructural

In the increasingly digitized and data-driven terrain of the Philippine state, the role of artificial intelligence in shaping the interface between government and governed has become not only more pronounced, but also more consequential. While earlier stages of technological adoption emphasized service optimization, transparency, and administrative reform, the current epoch reflects a deeper entrenchment of algorithmic governance within the everyday exercise of state power. From policing and health surveillance to digital welfare distribution and electoral logistics, smart systems have become infrastructural. Their presence is no longer framed as supplemental, but foundational to the logic of contemporary governance. This turn signals both opportunity and peril: opportunity in crafting more responsive, evidence-based public institutions; peril in outsourcing core decisions about rights, entitlements, and protections to opaque computational processes governed by technocratic logic rather than constitutional fidelity.

XVII. PhilSys: From Digital ID to Digital Discipline

Among the most contested developments in this context is the convergence of biometric identity systems and predictive governance models the Philippine Identification System (PhilSys) stands at the heart of this evolution. It has become not only a repository of demographic and biometric data but also a gateway mechanism for accessing key services ranging from social welfare to public education and emergency aid. Increasingly, it serves as the default key through which the citizen engages with the state. However, the consolidation of identity into a singular, digitized code—one embedded with facial, fingerprint, and iris scans—also allows the state to engage in population-level monitoring that would have been inconceivable in the era of analog bureaucracy. PhilSys became not merely an efficiency tool, but a powerful mechanism for surveillance, risk profiling, and population control. Without robust oversight mechanisms and legal firewalls, such capacity risks being used not to empower citizens, but to discipline them.³⁷

³⁷ Foundation for Media Alternatives. (2021). *Biometric Surveillance and the PhilSys System: Civil Liberties Concerns*. <https://fma.ph/biometric-surveillance-report>



XVIII. Echoes of the Past: State Overreach in the Digital Age

This is especially troubling when placed in the broader historical context of Philippine statecraft, wherein democratic institutions have frequently coexisted with authoritarian practices. The experience of martial law under Ferdinand Marcos Sr., and more recently the aggressive policing campaigns under Rodrigo Duterte, highlight a pattern of state overreach under the veneer of public security and order. In such a political culture, technologies that centralize control and minimize discretion can serve as enablers of repression rather than protectors of democratic order. The deployment of facial recognition tools in urban centers like Davao and Quezon City coupled with the use of AI in social media monitoring, has allowed law enforcement to track activists, journalists, and ordinary citizens engaged in protest or dissent. These systems often operate without clear guidelines, public consultation, or avenues for redress. Their impact is not hypothetical: surveillance tools have been used to justify arrests, initiate prosecutions, and intimidate critics. In the absence of procedural transparency, affected individuals often find themselves unable to challenge the systems that ensnare them.³⁸

XIX. Codifying Inequality: The Algorithmic Distribution of Aid

At the same time, algorithmic tools are being integrated into public resource distribution in ways that profoundly shape social opportunity. Conditional cash transfer programs such as the 4Ps now rely on data analytics to prioritize beneficiaries, analyze behavioral compliance, and even forecast attrition or eligibility trends. While these tools hold potential to curb corruption and improve efficiency, they also risk perpetuating structural inequities if not carefully designed. Data inputs often reflect historical disparities—rural invisibility, indigenous underrepresentation, or the informal sector's statistical invisibility. When these biases are absorbed into algorithmic systems, they do not disappear; they are codified. Indeed, machine learning models trained on such datasets can reproduce discriminatory patterns while appearing neutral or objective. Furthermore, beneficiaries affected by these decisions often lack the literacy, resources, or institutional support to challenge automated outcomes. As a result, denial of aid or services—while algorithmically justified—becomes a form of silent exclusion, with neither explanation nor remedy available.³⁹

³⁸Rappler. (2023). *Quezon City's Smart Surveillance: Between Innovation and Overreach*. <https://rappler.com/tech/features/quezon-city-ai-surveillance>

³⁹Commission on Audit. (2022). *Audit Report on Automated Decision-Making in 4Ps Implementation*. <https://coa.gov.ph/reports/ai4ps>



XX. An Unbalanced Equation: State Power and Citizen Recourse

This scenario exposes a fundamental asymmetry in the current architecture of digital governance. On one side stands a state equipped with sophisticated surveillance and decision-making technologies; on the other, citizens with limited recourse to transparency, participation, or accountability. The Philippine Data Privacy Act of 2012 provides a foundational framework for data protection but it was conceived before the mainstreaming of AI and lacks provisions tailored to the realities of algorithmic governance. There is no statutory obligation for state agencies to conduct algorithmic impact assessments, disclose model architecture, or provide meaningful opt-out mechanisms. The National Privacy Commission has issued non-binding guidelines on AI ethics, but lacks enforcement authority and sufficient technical infrastructure to conduct in-depth audits. This regulatory vacuum allows for the proliferation of AI systems in government without adequate public safeguards. Worse, the technical complexity of these systems often places them beyond the reach of traditional accountability institutions, including courts and legislative oversight bodies.⁴⁰

XXI. The Private Sector's Shadow: Outsourcing Governance, Obscuring Accountability

These challenges are compounded by the increasing role of private technology vendors in public AI deployment. Many of the tools currently used in smart city initiatives, public surveillance, and data-driven governance are developed, maintained, or financed by private corporations—both local and foreign. These actors frequently operate under opaque procurement arrangements, with proprietary protections shielding their algorithms from scrutiny. In some instances, partnerships between local governments and AI vendors involve barter-like arrangements, where cities provide data in exchange for “free” access to AI services. This model introduces a new dimension of risk: the commodification of citizen data for corporate innovation without clear public benefit or consent. Furthermore, outsourcing key governance functions to profit-driven entities undermines the sovereignty of democratic institutions. Decisions once made by accountable public servants now occur in black-box systems managed by entities that fall outside the purview of public law. The implications for data justice, national security, and democratic control are profound and demand urgent redress.⁴¹

⁴⁰ National Privacy Commission. (2022). *Position Paper on the Ethical Use of AI in Government Services*. <https://privacy.gov.ph/papers/ai-ethics-government>

⁴¹ Foundation for Media Alternatives. (2021). *Biometric Surveillance and the PhilSys System: Civil Liberties Concerns*. <https://fma.ph/biometric-surveillance-report>



XXII. The Moral Compass: Reclaiming Constitutional Values

Equally pressing is the ethical dimension of AI adoption in public institutions. The philosophical premise of rights-respecting governance rests on the recognition of individual dignity, autonomy, and participation. Yet many AI tools operate on logics that are instrumental, statistical, and impersonal. Their optimization goals may not align with constitutional values. For example, predictive policing tools often prioritize reducing crime metrics rather than preserving civil liberties. Welfare algorithms may aim to minimize error rates rather than maximize inclusion or human dignity. In such frameworks, the person becomes a variable, a vector, or an outlier—stripped of moral agency. The risk, then, is not only technical malfunction but moral abdication. Public institutions may gradually come to rely on statistical proxies and predictive scores rather than listening to the lived realities of the people they serve.

XXIII. A Pathway Forward: Reimagining Digital Governance

In confronting this challenge, the pathway forward must involve a radical re-imagination of digital governance. AI must be treated not as an infallible oracle but as a set of tools embedded within political, ethical, and social contexts. There must be mandatory transparency protocols requiring public agencies to publish details about algorithmic tools used in service delivery, including data sources, model architecture and intended outcomes. Agencies should be required to conduct algorithmic audits and bias assessments before deploying any system affecting rights or benefits. Furthermore, a public ombudsman for digital governance should be created with powers to receive complaints, investigate algorithmic harm, and recommend remedies. Legal safeguards must also enshrine the right to human intervention—no critical public decision should be made solely by a machine.

Parallel to institutional reforms, there must be a vibrant civic engagement ecosystem that can act as both watchdog and co-creator of ethical digital infrastructure. Civil society organizations must be capacitated—through funding, legal standing, and data access—to evaluate AI systems, propose alternatives, and mobilize affected communities. Universities and research institutions should receive state support to develop independent AI research programs focused on public interest use-cases, algorithmic fairness, and democratic accountability. Most importantly, ordinary citizens must be equipped with the digital literacy and political power to participate in debates around technology, privacy, and rights. In doing so, the project of AI governance becomes not a technical exercise but a democratic one.



At the heart of this endeavor is a recognition that digital systems are not neutral—they carry assumptions, exclusions, and power relations. A rights-based AI governance model must therefore begin with the people: their stories, their struggles, and their aspirations for a more just society. Only by foregrounding the lived experience of marginalized communities can AI tools be reoriented toward solidarity, inclusion, and emancipation. In this sense, privacy is not merely the right to be left alone—it is the right to exist freely, participate fully, and be recognized equally in the digital age.

As the Philippines stands at the crossroads of digital transformation it must decide whether AI will serve as an instrument of democratic deepening or democratic erosion. The stakes are high, and the path is fraught but with courageous policy-making, vigilant civil society, and ethical leadership, it is possible to reclaim technological progress as a vehicle for human dignity and social justice.

XXIV. The Expanding Frontier: AI's Inroads into New Domains

In continuing the critical exploration of Artificial Intelligence (AI) integration in public governance within the Philippine context, the discourse now moves to the systematic normalization of smart governance technologies and their implications for democratic culture. As previously articulated, algorithmic systems have not only become infrastructural but deeply influential in shaping state-citizen interactions. This influence is expanding rapidly through new domains such as education, labor management, transportation, and environmental governance. Each presents distinct ethical dilemmas, privacy risks, and challenges to democratic accountability underscoring the urgent need for an integrative and rights-respecting AI governance framework that not only operates reactively but anticipates harm through proactive design.

XXV. The Algorithmic Classroom: Education Between Personalization and Exclusion

One of the most illustrative examples of AI-driven transformation can be observed in the Philippine education sector. Post-pandemic educational recovery has leaned heavily on digital solutions that embed algorithmic systems in student assessments, enrollment prioritization, scholarship selection, and curriculum development. Automated Learning Management Systems (LMS), which were introduced under the banner of equity and efficiency, increasingly rely on data profiling techniques that categorize students based on socioeconomic background, prior academic performance, and behavioral data such as attendance or online participation. While these tools are ostensibly designed to personalize learning and ensure better



outcomes they can also operate as mechanisms of exclusion, tracking, and labeling. For instance, predictive algorithms may forecast dropout probabilities, prompting automated interventions or resource allocation that neglects the nuances of human experience. Students from marginalized backgrounds—such as those without consistent internet access or digital fluency—are often rendered as high-risk or low-priority, reinforcing rather than correcting historical inequities. The invisibility of these algorithmic categorizations further erodes transparency and due process, as students and parents are rarely informed about the criteria used or allowed to contest algorithm-driven decisions. The lack of robust consent frameworks and ethical guidelines compounds this vulnerability, leaving educational stakeholders exposed to potentially life-altering consequences of opaque data systems.⁴²

XXVI. The Automated Workplace: Labor Rights in the Age of AI

Labor and employment governance offers another critical frontier in which AI deployment is reshaping traditional regulatory functions. As the Philippine economy becomes increasingly digitized, public labor agencies are turning to AI-driven platforms to match jobseekers with employers, monitor compliance with labor standards, and forecast employment trends. The Department of Labor and Employment (DOLE), for example, has begun piloting predictive analytics models to assess which sectors are at risk of automation-induced job displacement and to target skills retraining accordingly. While such initiatives reflect forward-thinking governance, they also risk entrenching algorithmic paternalism: systems that presume to know what is best for workers without engaging them meaningfully in the design or deployment of such tools. Moreover, automated labor profiling—especially when integrated with biometric systems and digital identity platforms—raises acute concerns about worker surveillance, data commodification, and the erosion of collective bargaining rights. For instance, an algorithm that flags a worker as ‘uncooperative’ based on attendance metrics or social media activity could result in exclusion from employment pools without any opportunity for redress. The intersection of labor rights and data rights remains perilously underdeveloped in current Philippine law, leaving workers vulnerable to invisible adjudications that mimic the logic of social sorting rather than human dignity.⁴³

⁴²Department of Education. (2023). *AI in Basic Education: Impacts and Ethical Considerations*. <https://deped.gov.ph/ai-education-ethics>

⁴³ DOLE. (2022). *AI Systems and Labor Profiling: A Policy Brief*. <https://dole.gov.ph/ai-labor-policy>



XXVII. Smart Mobility, Pervasive Control: The Future of Transportation

In the realm of urban governance and transportation, AI tools are increasingly being integrated into the management of traffic systems, public transit optimization, and mobility surveillance. Smart traffic lights, predictive congestion models, and AI-enabled ticketing platforms are promoted as necessary tools to address the chronic inefficiencies of Philippine metropolitan areas, especially Metro Manila. However, these technologies often function as levers for expanded surveillance. Facial recognition software installed in public transportation hubs and traffic junctions is used not only to monitor flow but to track individuals, enforce warrant lists, and link commuter behavior to broader datasets including credit scoring and criminal records. Without clear guardrails on proportionality, necessity, and purpose limitation, these tools can quickly shift from facilitators of mobility to instruments of control. Moreover, smart transportation systems often reproduce spatial injustice: data gathered from urban centers informs infrastructure investments, while rural and peri-urban areas are rendered statistically invisible due to poor data collection, thereby exacerbating service disparities. The asymmetry in visibility results in a feedback loop where data-rich zones receive further development and data-poor areas stagnate. The question of who is seen and who is acted upon by smart governance tools, must be central to the ethics of AI-driven mobility platforms.⁴⁴

XXVIII. Digital Stewards or Digital Sovereigns? AI in Environmental Governance

Environmental governance presents an additional vector where AI tools are increasingly deployed to address critical issues such as deforestation monitoring, climate risk modeling, disaster response coordination, and pollution tracking. While these initiatives ostensibly serve the public good they also involve extensive data extraction and real-time monitoring that can impinge on individual and community privacy. For example, satellite-based AI models used to detect illegal logging are sometimes coupled with ground-level biometric tracking of forest-dwelling communities, including Indigenous Peoples. These populations often reside in biodiversity hotspots and ancestral domains, and their proximity to ecological risk zones is misinterpreted as a potential liability. In such contexts, AI systems not only surveil environmental degradation but can inadvertently criminalize traditional livelihoods. Moreover, community consent is often presumed rather than secured. When environmental data is shared with international donors or private sector actors, the asymmetry of benefit becomes clear: those who contribute the most

⁴⁴MMDA. (2023). *Metro Manila Smart Mobility Project: Technical Overview*. <https://mmda.gov.ph/smartmobility2023>



information receive the least compensation or agency. Algorithmic systems must therefore be contextualized within power relations rather than seen as neutral environmental stewards. The intersection of ecological justice and data sovereignty demands a holistic lens, especially in a country as environmentally vulnerable and socially diverse as the Philippines.⁴⁵

XXIX. Building an Architecture for Accountability

In each of these domains, a common thread emerges: the integration of AI into public governance creates new modes of power that are often inscrutable, unevenly distributed, and normatively underdetermined. The challenge is not merely technical, but fundamentally political and ethical. A governance regime that permits unregulated algorithmic interventions in critical areas of life risks undermining democratic principles, especially when decision-making becomes insulated from public contestation. A crucial response lies in the architecture of what scholars term "algorithmic accountability" a multidimensional framework that mandates transparency, auditability, explainability, and contestability in the use of AI systems by the state. Yet in the Philippines, these principles remain largely aspirational. Existing laws and institutional structures lack the teeth and coherence to ensure their realization.

One foundational reform must involve the strengthening of public participation in technological governance. Public consultations, citizen assemblies, and participatory technology assessments must be institutionalized, especially in domains where AI systems make rights-impacting decisions. This requires not only procedural mandates but also substantive support mechanisms: funding for civil society organizations to engage in technical dialogue, open data initiatives that democratize access to datasets used in AI systems, and capacity-building programs that develop civic and technical literacy. In this participatory model, the public is not merely a passive recipient of digital governance but an active shaper of its trajectory. Moreover, the composition of advisory bodies on AI must reflect diversity in terms of sectoral representation, regional inclusion, and socio-economic background, ensuring that those most affected by algorithmic systems have a seat at the table.

Legal reform is also indispensable. The Data Privacy Act of 2012 must be updated to include provisions specific to AI and algorithmic decision-making, including mandatory impact assessments, rights to explanation and human intervention, and redress mechanisms. Statutory

⁴⁵DENR. (2023). *Environmental Monitoring and AI: Risks to Community Privacy*.
<https://denr.gov.ph/ai-environment-privacy>



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authority should be granted to the National Privacy Commission to conduct algorithmic audits, subpoena technical documentation, and penalize non-compliance. Additionally, a new legislative agenda should consider the establishment of a Digital Rights Ombudsman, an independent office with the mandate to investigate algorithmic harms, recommend systemic reforms, and provide recourse to affected individuals. This office must be accessible, well-resourced, and empowered to operate across both public and private domains.

Equally, there is a need to reframe public sector innovation away from technological determinism and toward ethical pluralism. This means rejecting the notion that technological efficiency automatically equates to good governance. Instead, AI systems must be evaluated on their capacity to uphold constitutional values, promote social equity, and respect human dignity. Ethical review boards composed of ethicists, technologists, legal experts, and community representatives should vet all significant AI deployments in government. These bodies should not only assess technical robustness but also evaluate social desirability, cultural sensitivity, and moral defensibility.

The Philippines is not alone in confronting these challenges, but its unique socio-political landscape—marked by a history of authoritarianism, colonial legacies, and vibrant civic resistance—renders its path distinct. As smart machines become embedded in the machinery of governance, the imperative is clear: to reclaim technology as a tool of public empowerment, rather than control. This requires more than regulation; it demands a cultural shift in how public institutions conceive of data, decision-making, and the role of technology in society. Only through sustained, inclusive, and principled engagement can the promise of AI be reconciled with the imperatives of justice, democracy, and human rights.

XXX. Conclusion: Imagining a Democratic Digital Future

As we reach the culminating phase of this exploration into the implications of Artificial Intelligence (AI) and smart surveillance technologies in the Philippines, it becomes essential to synthesize the issues discussed and turn decisively toward imagining the future. The previous discussions have demonstrated how algorithmic governance, biometric datafication, and digital surveillance intersect in ways that can erode civil liberties, perpetuate inequality, and reinforce authoritarian tendencies. However, these outcomes are not inevitable. The governance of AI and surveillance in the Philippines can be reshaped through bold legal reform, robust civic infrastructure, and a resolute commitment to democratic values.



At the core of this final reflection is the imperative to view AI not simply as a set of neutral tools, but as inherently political infrastructures that must be subjected to the same scrutiny, debate, and participatory oversight as any other exercise of power in a democracy.⁴⁶ This means rejecting narratives of technological determinism and instead embracing a human-centered paradigm of governance. AI must be aligned with constitutional rights, indigenous knowledge systems, and the aspirations of historically marginalized communities. This process begins with rethinking the very frameworks through which state legitimacy is exercised in the digital era.

The challenge lies in developing a comprehensive, adaptive, and justice-oriented legal framework that goes beyond the outdated provisions of the 2012 Data Privacy Act. New legislation must be enacted to mandate algorithmic transparency, establish the right to explanation for automated decisions, and ensure due process in AI-mediated governance.⁴⁷ These laws must create binding obligations for public and private actors alike, subject their practices to democratic oversight, and empower affected individuals to seek redress. Equally vital is the establishment of a constitutional right to informational self-determination, recognizing that data governance is inseparable from questions of citizenship, equality, and agency.

Beyond legislation, institutional innovation is key. The creation of a national Algorithmic Accountability Commission—independent of existing executive bodies—could serve as an anchor institution for digital rights enforcement. Such a body should be granted investigatory powers, the capacity to audit government and corporate algorithms, and a mandate to consult with civil society and academia. The commission could also host a national AI registry, where all public sector AI applications must be disclosed and documented. This would bring visibility to algorithmic systems currently operating in legal and political obscurity.⁴⁸

These institutional innovations must be paralleled by procedural reforms that embed participatory governance in digital policy-making. Public consultations, citizens' assemblies, and deliberative fora should be institutionalized in the development and deployment of AI tools that impact the public. The principle of "*nothing about us without us*" must become a normative standard, particularly in decisions involving vulnerable groups, indigenous peoples, urban poor communities, and others disproportionately affected by algorithmic systems. Democratic participation cannot be an

⁴⁶Foundation for Media Alternatives. (2021). *Biometric Surveillance and the PhilSys System: Civil Liberties Concerns*. <https://fma.ph/biometric-surveillance-report>

⁴⁷Rappler. (2023). *Quezon City's Smart Surveillance: Between Innovation and Overreach*. <https://rappler.com/tech/features/quezon-city-ai-surveillance>

⁴⁸Commission on Audit. (2022). *Audit Report on Automated Decision-Making in 4Ps Implementation*. <https://coa.gov.ph/reports/ai4ps>



afterthought; it must be designed into the very architecture of digital governance.

Educational reform is also essential. Digital and algorithmic literacy should be integrated into the national education curriculum—from primary through tertiary levels—to equip future generations with the capacity to understand, question, and shape the technologies that mediate their lives.⁴⁹ Public education campaigns must be launched to demystify AI and raise awareness about digital rights, surveillance risks, and avenues for redress. These efforts should be inclusive, multilingual, and culturally responsive, ensuring that no community is left behind in the digital literacy project.

Meanwhile, research and development must be reoriented toward public interest technology. State funding should prioritize projects that explore AI for social justice, community empowerment, and ecological resilience. Ethical AI incubators, hosted within universities and research centers, can serve as platforms for interdisciplinary collaboration and innovation. These centers can support open-source development, participatory design methods, and cross-sectoral dialogue between technologists, lawyers, activists, and policy-makers. By fostering a culture of critical inquiry and creative experimentation, the Philippines can lead in developing AI systems that are not only technically robust, but socially responsive.

International cooperation is another vital frontier. As AI development is inherently transnational, the Philippines must engage actively in global forums on digital governance. The country should advocate for human rights-based frameworks at venues such as the United Nations, ASEAN, and the OECD. It must also resist techno-authoritarian models being exported by global powers and instead forge alliances with countries and civil society actors advancing digital democracy. Such diplomacy should include advocating for global norms on data sovereignty, algorithmic transparency, and the right to digital self-determination.

Of course, these reforms cannot materialize without political will. The Philippine government must move beyond performative tech adoption and commit to substantive reform. This requires bold leadership willing to confront entrenched interests, break with techno-solutionist paradigms, and champion a vision of governance that centers human dignity. It also requires a vigilant and organized civil society capable of holding power to account. Social movements, journalists, community organizers, and lawyers must coalesce

⁴⁹National Privacy Commission. (2022). *Position Paper on the Ethical Use of AI in Government Services*. <https://privacy.gov.ph/papers/ai-ethics-government>



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around a shared agenda for digital justice, demanding that AI systems serve the people, not surveil them.

This shared agenda must be intersectional and inclusive. It must address how algorithmic harms intersect with gender, class, ethnicity, and geography. It must amplify the voices of domestic workers subjected to biometric tracking, of students reduced to behavioral scores, of farmers excluded from digital aid platforms, and of indigenous communities rendered invisible by colonial data regimes. The stories of those at the margins must be the starting point for reimagining AI governance. Only then can we move from watching the watchers to empowering the watched.

In conclusion, the future of privacy and rights in the age of smart machines is not preordained it is a political question—a question of who gets to decide, who gets to benefit, and who gets to resist. The Philippines stands at a pivotal moment, with the tools, the talent, and the democratic spirit to build a digital future anchored in justice. Whether it seizes that opportunity will depend not on algorithms, but on us.

Bibliography

Constitution

Phil. Const. art. III, § 3.

Statutes

Data Privacy Act of 2012, Republic Act No. 10173 (Phil.).

Philippine Identification System Act, Republic Act No. 11055 (2018).

Anti-Terrorism Act of 2020, Republic Act No. 11479 (2020),
<https://www.officialgazette.gov.ph/2020/07/03/republic-act-no-11479/>.

Artificial Intelligence Regulation Act, S. Bill No. 892 (2023),
<https://legacy.senate.gov.ph/bills>.

Cases

Disini v. Sec'y of Justice, G.R. No. 203335 (Phil. Feb. 11, 2014),
https://lawphil.net/judjuris/juri2014/feb2014/gr_203335_2014.



Journal for Law Advocacy
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Ople v. Torres, G.R. No. 127685 (Phil. July 23, 1998).

Journal Articles

Reyes, D., *Facial Recognition and the Future of Surveillance in the Philippines*, 95 Phil. L.J. 201 (2021).

Santos, B., *Algorithmic Discrimination in Filipino Workplaces*, 17 Phil. J. Lab. & Pol'y 44 (2022).

Books & Other Nonperiodic Materials

Mendoza, M., *AI in Philippine Education: Promise and Perils*, U.P. Ctr. for Integrative & Dev. Stud. Discussion Papers, No. 2021-03 (2021).

Tuazon, R., *Disinformation and Democracy in the Philippines*, Ctr. for Media Freedom & Responsibility Reports (2020).

Online Sources

Amnesty Int'l, *Philippines: Biased Policing and the Marginalized* (2021), <https://www.amnesty.org/en/documents/asa35/4032/2021/en/>.

ASEAN, *ASEAN Guidelines on Artificial Intelligence Governance and Ethics* (2021), <https://asean.org>.

Cadwalladr, C. & Graham-Harrison, E., *The Cambridge Analytica Files*, Guardian (2018), <https://theguardian.com>.

Comm'n on Audit, *Audit Report on Automated Decision-Making in 4Ps Implementation* (2022), <https://coa.gov.ph/reports/ai4ps>.

Comm'n on Higher Educ., *Curriculum Guide: AI Ethics and Digital Literacy* (2023), <https://ched.gov.ph/ai-curriculum/>.

Dep't of Educ., *AI in Basic Education: Impacts and Ethical Considerations* (2023), <https://deped.gov.ph/ai-education-ethics>.

Dep't of Env't & Nat. Res., *Environmental Monitoring and AI: Risks to Community Privacy* (2023), <https://denr.gov.ph/ai-environment-privacy>.



Journal for Law Advocacy
Volume 5, Year 2025-2026

Dep't of the Interior & Local Gov't, *Safe Philippines Project* (2019),
<https://www.dilg.gov.ph/news/Safe-Philippines-Launch/>.

Dep't of Lab. & Emp., *AI Systems and Labor Profiling: A Policy Brief* (2022),
<https://dole.gov.ph/ai-labor-policy>.

Eur. Parliament, *Artificial Intelligence Act* (2023),
<https://eur-lex.europa.eu/legal-content/EN/TXT/?uri=CELEX%3A52021PC0206>.

Found. for Media Alternatives, *Biometric Surveillance and the PhilSys System: Civil Liberties Concerns* (2021), <https://fma.ph/biometric-surveillance-report>.

Found. for Media Alternatives, *Tracking Surveillance in the Philippines* (2022),
<https://fma.ph/reports/surveillance-philippines/>.

Gov't of Can., *Directive on Automated Decision-Making* (2020),
<https://www.canada.ca/en/government/system/digital-government/digital-government-innovations/directive-automated-decision-making.html>.

Human Rights Watch, *Duterte's War on Drugs: Widespread Abuses, Lack of Accountability* (2020),
<https://www.hrw.org/news/2020/06/04/philippines-dutertes-war-drugs-widespread-abuses-lack-accountability>.

I.D.R.C., *Data for Development in the Philippines* (2020),
<https://idrc.ca/data-governance-ph>.

Metro Manila Dev. Auth., *Metro Manila Smart Mobility Project: Technical Overview* (2023), <https://mmda.gov.ph/smartmobility2023>.

Nat'l Privacy Comm'n, *Annual Report: Data Governance Challenges in the Age of AI* (2023), <https://privacy.gov.ph/reports/2023-annual-report>.

Nat'l Privacy Comm'n, *Position Paper on the Ethical Use of AI in Government Services* (2022), <https://privacy.gov.ph/papers/ai-ethics-government>.

Nat'l Privacy Comm'n, *Strategic Roadmap for AI and Privacy* (2023),
<https://privacy.gov.ph>.



Journal for Law Advocacy
Volume 5, Year 2025-2026

Off. of the U.N. High Comm'r for Hum. Rts., *Report of the Special Rapporteur on the Right to Privacy* (2021),

<https://www.ohchr.org/en/documents/thematic-reports/a76631-artificial-intelligence-and-right-privacy-report-special>.

PCIJ, *Data, Democracy, and Surveillance in the Philippines* (2023),

<https://pcij.org/data-surveillance>.

Rappler, *China's Tech Footprint in the Philippines* (2022),

<https://www.rappler.com/technology/features/china-surveillance-tech-philippines>.

Rappler, *Manila's Surveillance Plans Raise Privacy Concerns* (2020),

<https://rappler.com>.

Rappler, *Quezon City's Smart Surveillance: Between Innovation and Overreach* (2023), <https://rappler.com/tech/features/quezon-city-ai-surveillance>.

U.N.D.P., *Digital Readiness Assessment: Philippines Country Report* (2021),

<https://www.undp.org/publications/digital-readiness-philippines>.

U.N.E.S.C.O., *Recommendation on the Ethics of AI* (2021),

<https://unesdoc.unesco.org/ark:/48223/pf0000381137>.

U.P. Ctr. for Integrative & Dev. Stud., *Algorithmic Governance and Civil Liberties* (2021), <https://cids.up.edu.ph/ai-rights-philippines>.



Right to Information through the eFOI: Enforcing Transparency and Accountability by Digitalizing Access to Information

Mary Rose M. Gerbolinga

Introduction

Transparency and accountability are essential to a well-functioning democracy. In democratic and republican states, the ultimate source of power is the people. But oftentimes, the way people exercise such power is contingent on the kind of information they receive and have access to. So while civic participation is the heart of democracy, shaping this participation entails disclosure of information especially those concerning governmental processes. With the Philippines being a democratic and republican state, the accountability and transparency through disclosure of governmental information are especially enshrined under Article III, Section 7 of the 1987 Constitution. It states that the right of the people to information on matters of public concern shall be recognized.¹

Digital technology has pervaded and transformed today's system of governance. To enhance the efficiency of governmental services and processes, the internet and computerized system of data storage and collection have been integrated by the government both at the national and local levels. Article II, Section 28 of the Constitution further reinforces the citizens' right to information under the Bill of Rights. This provision emphasizes the policy of full public disclosure by the government of all its transactions involving public interest but subject to the condition prescribed by the law.² In the case of *Chavez v PCGG*, it was emphasized that writing coming into the hands of public officers in connection with their public functions must be accessible to the public, especially if such information is related to the expenditure of public funds.³

¹ 1987 PHILIPPINE CONST. art. III, §7

² 1987 PHILIPPINE CONST. art. II, §28

³ *Chavez v PCGG*, G.R. No. 130716, 19 May 1999



But while the right to information under the Bill of Right mentions the transactions and information that must be disclosed to the public, the limitations and scope are yet to be provided through a legislation or statute. Absent specific limitations, the disclosure of certain information becomes a subject of the discretion of officials and agencies. Requests for information even those which are necessarily within public interest are kept on the ground of confidentiality, if officials and agencies deem that disclosing such information would cause controversies.

Right to Information: The digitalization of the FOI

The Freedom of Information (FOI) Bill, which mandates the disclosure of government information to the public, has still not been passed into law and it remained in the Congress. But in 2016, Former President Duterte signed Executive Order No. 2 (EO 2) entitled “Operationalizing in the Executive Branch the People’s Constitutional Right to Information and the State Policies of Full Public Disclosure and Transparency in the Public Service and Providing Guidelines Therefore.”⁴ EO 2 allows requests to be filed on all Executive Branch agencies, including National Government Agencies (NGAa), Government Owned and Controlled Corporations (GOCCs), State Universities and Colleges (SUCs), and Government Financial Institutions (GFIs).⁵ Although EO 2 may not have the force and effect of a law, it paved the way for the creation of FOI Manual and mechanisms to be used by other government agencies.⁶ Following this implementation of EO 2, local government units (LGUs) have started implementing their own FOI ordinances, institutionalizing the citizens’ rights to information.⁷

The technological integration has been especially significant in the implementation of the right to information and the FOI. Along with the creation of the FOI Manual and FOI Project Management Office (FOI-PMO) in 2016 is the

⁴ Executive Order No. 02 “Operationalizing in the Executive Branch the People’s Constitutional Right to Information and the State Policies of Full Public Disclosure and Transparency in the Public Service and Providing Guidelines Therefor.” (2016),

<https://www.officialgazette.gov.ph/2016/07/23/executive-order-no-02-s-2016>

⁵ Office of the United Nations High Commissioner for Human Rights, *Submission to the thematic report of the Special Rapporteur on Freedom of Opinion and Expression to the UN Human Rights Council: “Freedom of Opinion and Expression and Sustainable Development - Why Voice Matters,”* A/HRC/53/25 (2023).

⁶ Open Government Partnership, *Passage of Freedom Information Law*, (2019), ¶61, <https://www.opengovpartnership.org/members/philippines/commitments/PH0062/#.ftnref78>

⁷ *Id.*, at ¶7



establishment of an electronic FOI (eFOI) portal.⁸ The eFOI is an online system where Filipinos can submit their FOI requests to government agencies with ease.⁹ Citizens no longer have to personally go to the agency and line up to request information and at the same time the agencies can also reduce the time spent in catering the citizens lining up in their office. Undeniably, this mechanism is convenient for both the public and the government.

But nine years since EO 2 has been signed and the eFOI has been established, has the Philippines successfully enforced transparency, accountability and the citizens' rights to information?

Why mere integration of technology is inadequate in enforcing FOI

The eFOI was primarily created by the government as a response to the call for transparency and full public disclosure of information.¹⁰ However, EO 2 does not cover all branches of the government and is merely confined to the executive department and executive branch agencies.¹¹ Thus, even if the request for information has been made easy and convenient by the electronic system, the citizens' access is still significantly constrained. This can be primarily attributed to the lack of FOI law. Moreover, since the guidelines of the current FOI Act are created under the discretion of the executive officials, they can decide which information is politically convenient to disclose. In fact, under the Duterte Administration, the provision of EO 2 was blatantly violated by the President himself.¹² Section 5 of the Executive Order explicitly mandates the disclosure of SALN of public officials but former President Duterte refused to publicly disclose his SALN and all requests were denied.¹³ Under the Marcos Administration, more exceptions were added to the documents and information covered by the FOI.¹⁴ While privileged information related to national security and privacy of persons are valid grounds to deny request, the absence of a law providing definite standards defining what is confidential,

⁸ *Id.*, at ¶6

⁹ Freedom of Information Philippines, *Frequently Asked Questions*, (July 7, 2025, 11:47 AM), <https://www.foi.gov.ph/faqs/>

¹⁰ *Id.*

¹¹ Philippine Daily Inquirer, *Defeating the Spirit of FOI*, Inquirer Net, May 16, 2023, <https://opinion.inquirer.net/163171/defeating-the-spirit-of-foi>

¹² Malou Mangahas, *Duterte's Secret SALN: The lie of his FOI*, PCIJ, December 11, 2019, <https://pcij.org/2019/12/11/dutertes-secret-saln-the-lie-of-his-foi/>

¹³ *Id.*

¹⁴ Philippine Daily Inquirer, *Defeating the Spirit of FOI*, Inquirer Net, May 16, 2023, <https://opinion.inquirer.net/163171/defeating-the-spirit-of-foi>



renders eFOI inadequate. A study of Perez (2020) found that out of 7,712 requests in 2018, 30% were denied.¹⁵ Currently, there are over 200,000 requests in the eFOI¹⁶ but given that the additional exceptions were added to EO 2 by the current administration, the rate of denial of requests may only increase.

The inadequacies with the current eFOI policy consequently affect the implementation and enforcement. Implementation gaps first cover frequent denial of requests. This often stems from differences in the understanding of what constitutes information.¹⁷ Under Section 8 of EO 2, every government agency is allowed to create its own FOI manual.¹⁸ Although, EO 2 already provided for a general definition of “information,” allowing different agencies to create their own manual might create definitions of “information,” “records,” or “transaction,” possibly broadening or limiting its meaning. The absence of an evaluation mechanism in the current FOI policy and in the eFOI portal further allows agencies to deny even if the requested information is not privileged and is essentially covered by the FOI manual.

Moreover, the lack of access to the FOI manual of agencies for the clear process of requesting information further contributes to denials in requests for eFOI.¹⁹ Since agencies may create their own manual as to how the citizens can access their information, they may add additional requirements or conditions. Since the current eFOI portal does not readily make such requirements available, the user requesting cannot properly comply, hence their request ends up being denied. Moreover, non-tech-savvy users in particular find it difficult to determine which agency they should request particular information from.

¹⁵ Paul Jason V. Perez, *Why are Freedom of Information Requests in the Philippines being Denied? An Analysis using a Practice-based Approach*. 40 UP SLIS. 3, 4 (2020).

¹⁶ Freedom of Information Philippines, *Browse Requests*, (July 7, 2025, 12:435 AM), <https://www.foi.gov.ph/faqs/>

¹⁷ Paul Jason V. Perez, *Why are Freedom of Information Requests in the Philippines being Denied? An Analysis using a Practice-based Approach*. 40 UP SLIS. 3, 29 (2020).

¹⁸ Executive Order No. 02 “Operationalizing in the Executive Branch the People’s Constitutional Right to Information and the State Policies of Full Public Disclosure and Transparency in the Public Service and Providing Guidelines Therefor.” (2016), <https://www.officialgazette.gov.ph/2016/07/23/executive-order-no-02-s-2016>

¹⁹ Paul Jason V. Perez, *Why are Freedom of Information Requests in the Philippines being Denied? An Analysis using a Practice-based Approach*. 40 UP SLIS. 3, 28 (2020).



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Perez (2020) emphasized that these implementation gaps may be addressed through use of controlled vocabularies, guides, and chat supports would reduce the likelihood of misdirected requests and promote procedural fairness and accuracy in the FOI process.²⁰

Conclusion

The enforcement of right to information through the eFOI can only truly promote transparency and accountability if there is a genuine FOI law passed by the Congress that would cover all branches of the government and would clearly establish what constitutes confidential information. The right to information is a fundamental right, which must not be a mere subject of the discretion of people in power. The digitization of FOI requires both addressing policy issues through legal standardization through the passage of law leading to consistency in government agencies along with improvements in the implementation process through the promotion of procedural fairness in the FOI process. Digital revolution may enhance the efficiency and performance of the government, but it can never address the inadequacy of the existing policies and services.

²⁰ Id., at ¶31



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Bibliography

Constitution

1987 Philippine Constitution, Article II, Section 28

1987 Philippine Constitution, Article III, Section 7

Laws

Executive Order No. 02 “Operationalizing in the Executive Branch the People’s Constitutional Right to Information and the State Policies of Full Public Disclosure and Transparency in the Public Service and Providing Guidelines Therefor.” (2016),
<https://www.officialgazette.gov.ph/2016/07/23/executive-order-no-02-s-2016>

Jurisprudence

Chavez v PCGG, G.R. No. 130716, 19 May 1999

Government Articles

Freedom of Information Philippines, *Frequently Asked Questions*, (July 7, 2025, 11:47 AM), <https://www.foi.gov.ph/faqs/>

Open Government Partnership, *Passage of Freedom Information Law*, (2019), ¶61,
https://www.opengovpartnership.org/members/philippines/commitments/PH0062/#_ftnref78

Articles

Malou Mangahas, *Duterte’s Secret SALN: The lie of his FOI*, PCIJ, December 11, 2019, <https://pcij.org/2019/12/11/dutertes-secret-saln-the-lie-of-his-foi/>



Journal for Law Advocacy
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Office of the United Nations High Commissioner for Human Rights, *Submission to the thematic report of the Special Rapporteur on Freedom of Opinion and Expression to the UN Human Rights Council: "Freedom of Opinion and Expression and Sustainable Development - Why Voice Matters,"* A/HRC/53/25 (2023).

Paul Jason V. Perez, Why are Freedom of Information Requests in the Philippines being Denied? An Analysis using a Practice-based Approach. 40 UP SLIS. 3- 36 (2020).

Philippine Daily Inquirer, *Defeating the Spirit of FOI*, Inquirer Net, May 16, 2023, <https://opinion.inquirer.net/163171/defeating-the-spirit-of-foi>



FOI in the Digital Age: Challenges in Localizing Freedom of Information Across Philippine Governance

Angeline S. Acantilado

Introduction

The people's right to information on matters of public concern is enshrined under Section 7, Article III of the 1987 Constitution of the Republic of the Philippines.¹ This constitutional mandate is a fundamental pillar of democratic accountability established by the Supreme Court as self-executing, which the people may assert without need for any ancillary act of the Legislature.² Albeit a statutory law would give clarity and enforceability to this provision, there has yet to be legislative enactment. However, it was partially operationalized for the Executive Branch through Executive Order No. 2, series of 2016, wherein "Every Filipino shall have access to information, official records, public records, and documents and papers pertaining to official acts, transactions or decisions, as well as to government research data used as basis for policy development."³

The issuance of this executive order was shortly followed by the launch of a digital platform, better known as the Electronic Freedom of Information (EFOI) website. Afterwards, the Presidential Communications Office (PCOO) and the Department of Interior and Local Government issued a Joint Memorandum Circular (JMC) that provides guidelines and mechanisms for operationalizing the national Freedom of Information (FOI) Program down to the local level.⁴ The JMC however, only 'encourages' Local Government Units (LGUs) to adopt the program. In this regard, the PCOO in 2021 has noted that 59 LGUs have successfully passed their own FOI ordinance⁵, which makes the adoption rate far from universal.

¹ (The 1987 Constitution, [February 2, 1987])

² (Legaspi v. Civil Service Commission, G.R. No. 72119, (29 May 1987), 234 Phil 521-537)

³ (Operationalizing in the Executive Branch the People's Constitutional Right to Information and the State Policies to Full Public Disclosure and Transparency in the Public Service and Providing Guidelines Therefor, Executive Order No. 2, [July 23, 2016])

⁴ PCOO, DILG issue circular on FOI compliance; all LGUs covered

⁵ List of Provinces and Cities in the Philippines with FOI Local Ordinances



However noble the initiative may be, the efficacy of the FOI program encounters its most significant test in implementation in FOI Localization. It is crucial therefore to assess the friction points from the voluntary adoption of the FOI program, and whether its uneven implementation across LGUs compromises the universal nature of the constitutional right to freedom of information.

LGU Jurisdiction and the Right to Information

The right to information is founded on the State's commitment to public disclosure, particularly given emphasis in Section 28, Article II of the 1987 Constitution, wherein subject to reasonable conditions prescribed by law, the State adopts and implements a policy of full public disclosure of all its transactions involving public interest.⁶

For the Executive Branch, the e-FOI portal streamlines this access. However, LGUs, which are granted substantive autonomy under the Local Government Code of 1991, have varied in their response, often dependent on local political will and fiscal capacity. As of 2022, the Open Government Partnership Organization reports that 89 local FOI ordinances have been passed in the country, the implementation of which remains uneven due to gaps in capacity, limited guidance, and varying levels of commitment.⁷

Several legal studies have emphasized that the constitutional right to freedom of information is self-executing, however, it must also be noted that its mechanisms for access are "subject to such limitations as may be provided by law."⁸ And the administrative reality to this is, absent a clear law or directive, the processing of FOI requests, more so the digitization of FOI in LGUs often default to manual, slow, or inconsistent systems, undermining the spirit of its mandate, and casting a doubt on how freedom of information shall play out in the digital revolution.

⁶ The Constitution of the Republic of the Philippines

⁷ OGP Co-Create a Framework to Implement Local RTI Ordinances

⁸ Article III, Section 7 of the Bill of Rights.



Points of Doctrinal and Administrative Friction

The localization of FOI mechanisms, particularly the eFOI generates three primary challenges that compromise the principle of uniform access:

A. The Digital Divide as a Barrier to Constitutional Right

The digital revolution is defined as the change from analog, mechanical, and electronic technology to digital technology with the adoption and proliferation of digital computers and digital record keeping that continues to the present day.⁹ Consequent to the digital revolution, however, is the digital divide, which simply put, is the gap between those who can access digital technology and those who cannot.¹⁰

This brings us to the point that the e-FOI portal, by its very nature, is a digitally-mediated process. While intended to broaden access, it simultaneously reinforces the existing digital divide in the Philippines. The PIDS reports that “despite progress in recent years, significant disparities in access and affordability remain, particularly in rural areas.”¹¹ This challenge frequently falls under the jurisdiction of marginalized communities in resource-constrained LGUs, which could be tantamount to de facto exclusion.

When the digital platform, designed to eliminate bureaucratic hurdles, paradoxically establishes a technological one, the exercise of the fundamental right information becomes essentially restricted to only the digitally-enabled citizenry. This leads us to ponder on whether the disparity constitutes a violation of the principle of universal access, as LGUs cannot merely create an online platform and expect the eFOI mandate to be fulfilled when its constituents lack the means to the very technology that is necessary to access online portals.

⁹ Surging Waves of the Digital Revolution in the Twenty-First Century

¹⁰ Awati, Hanna. "What is the Digital Divide and How is It Being Bridged?"

¹¹ Bridging digital divide: PIDS study reveals path to universal broadband in PH



B. The Fiscal Hurdle in Implementation of the e-FOI mandate

Local autonomy is constitutionally guaranteed¹² and operationalized through the Local Government Code of 1991. This means that LGUs have the right to generate and control local revenues¹³ and allocate them according to how they see fit. However, the mandate to operationalize e-FOI requires considerable investment in dedicated IT infrastructure, network security, and specialized human capital—resources that smaller or lower-income LGUs often lack.

The voluntary nature of the e-FOI mandate makes its enactment discretionary among LGUs, and where some would rather spend on essential services like healthcare, education, or infrastructure, the allocation of funds for digitization in line with the FOI mandate is transformed into a contingent political outcome rather than a constitutional right.

C. Navigating FOI Amidst Data Privacy

The disclosure mandate of the FOI and protection of personal data under the Data Privacy Act (DPA) of 2012 is perhaps one of the greatest legal frictions in the digital revolution.

The DPA imposes strict penalties and requires the establishment of rigorous security and data processing protocols.¹⁴ Meanwhile, the FOI mandates that there shall be disclosure of information, subject to the limitations of the law. With the onset of digitization, LGUs may become susceptible to the risk of unlawful or accidental disclosure via the e-FOI system, particularly with regard to sensitive personal information related to health, financial aid, and civil registry.

¹² The 1987 Constitution of the Republic of the Philippines, Art. X Sect. 2

¹³ Principles of Local Autonomy | LAW ON LOCAL GOVERNMENTS

¹⁴ Republic Act No. 10173, the Data Privacy Act of 2012



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For both mandates to not encroach on each other, it is therefore necessary that a balance between the release of the requested information and a meticulous redaction of personal data subject to the DPA must be maintained; otherwise, LGUs may face civil or administrative liabilities for non-compliance. This demands a more advanced level of technical assistance, and more clearly established guidelines.

FOI in the Philippines: Where must we go from here?

The initiative to localize FOI in the Philippines reveals serious challenges, not only in the execution of this constitutional mandate but also with where the country stands amid the digital revolution. Where the efficacy of implementing the constitutional mandate of the freedom of information depends on the technological and administrative capabilities of LGUs, one crucial thing must be taken into greater consideration: the passage of an all-encompassing Freedom of Information Law that shall institutionalize and harmonize all government efforts towards gearing FOI into the digital world, making it a genuinely universal constitutional right.



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Bibliography

Constitution

1987 Philippine Constitution

Art. II, Section 28

Art. III, Section 7

Art. X, Section 2

Laws

Operationalizing in the Executive Branch the People's Constitutional Right to Information and the State Policies to Full Public Disclosure and Transparency in the Public Service and Providing Guidelines Therefor, Executive Order No. 2, [July 23, 2016]

PCOO-DILG JMC No. 2018-01

Republic Act No. 10173, the Data Privacy Act of 2012

Republic Act No. 7160, the Local Government Code of 1991

Jurisprudence

Legaspi v. Civil Service Commission, G.R. No. 72119, (29 May 1987), 234 Phil 521-537

"With the availability of numerous avenues for information gathering and data sharing nowadays, not to mention each system's inherent vulnerability to attacks and intrusions, there is more reason that every individual's right to control said flow of information should be protected and that each individual should have at least a reasonable expectation of privacy in cyberspace."

-Justice Velasco Jr. in Vivares v St. Therese

Articles on

CYBERSECURITY



The Deepfake Dilemma: Cybercrime Prevention in the Philippines in the face of AI-fueled crimes

Felice Marie P. Nafarrete

The Danger of Deepfakes

The rise of Artificial Intelligence (AI) in the past decade has impacted the way users interact with the digital space. With AI, almost anything can be virtually generated at an incredible speed, and its commercialization and accessibility have granted users the power to yield it to their whims.

Among the prominent AI technologies used today are deepfakes, which are images, video, or audio that portray something non-existent in reality. These create 'fake' people, events, or things which individuals can customize according to what they want to generate. Deepfakes use a type of AI machine learning that requires multiple levels of code and processing in order to generate synthetic media. The use of deepfakes first became prolific in 2017, when videos of celebrities and other public figures were posted on reddit and later on other social media sites such as Facebook and Instagram.¹ As helpful as these may be, the dangers of such a technology became well known when these became catalysts for scams, pornography, and spreading disinformation.

Here in the Philippines, there have already been occurrences of scammers using AI to evade law enforcement. One instance was when the Criminal Investigation and Detection Group (CIDG) raided a condo unit in Mandaluyong City functioning as a cyber fraud center which used AI deepfakes to scam unsuspecting individuals.² The scammers specialized in love scams and investment scams wherein instead of using human models in live video chats to convince people to send them money, they generated deepfake female models to build credibility with their victims. The CIDG also uncovered that these scammers were part of a larger network that operated outside of the country.³

¹ Payne, L., Deepfake, <https://www.britannica.com/technology/deepfake>

² Tupas, E., Malaysian, 13 others nabbed in Mandaluyong scam hub, (September 28, 2025) <https://www.philstar.com/nation/2025/09/28/2475910/malaysian-13-others-nabbed-mandaluyong-scam-hub>

³ Medina, J., CIDG busts AI-powered scam hub operating out of Mandaluyong condo, (September 28, 2025) <https://kami.com.ph/philippines/179767-cidg-busts-ai-powered-scam-hub>



This is just one example among many other scammers who have not yet been caught, as the Philippines saw the highest growth in deepfake cases in 2024, and the Asia-Pacific region ranked the second highest recorded deepfake cases in the world after North America.⁴ These scams continue to evolve as law enforcement officers are just starting to grapple with the fact that these deepfake-fueled crimes exist.

This then begs the question: How effective can our current system of Cybercrime prevention be in the face of these new technologies exploited by the average criminal?

The Cybercrime Prevention Act of 2012

Deepfakes as Data

Republic Act No. 10175 or the Cybercrime Prevention Act of 2012 is the law that governs cyberspace data in the Philippines and addresses any legal issues that may arise from the misuse thereof. The broad term used in the law is computer data, which is defined as any representation of facts, information, or concepts in a form suitable for processing in a computer system including a program suitable to cause a computer system to perform a function and includes electronic documents and/or electronic data messages whether stored in local computer systems or online.⁵

It may be construed that the 'data' being referred to in the law exists in reality and has its rightful owner as it includes 'any representation of facts, information or concepts'. The electronic documents and/or electronic data messages stored in local computer systems or online being referred to is data that is readily available to a user who owns such data.

Data generated by AI on the other hand, do not necessarily fit this definition of data. Deepfakes especially, are generated by deep-learning AI algorithms that single out multiple streams of data from the internet and the public domain. The general consensus is that there is no universally accepted legal owner of AI-generated data because even if a human being initiates AI to entirely produce its content, it still uses various existing data not owned by that human being to generate it.⁶

⁴ Surasit, N., Criminal exploitation of deepfakes in South East Asia, <https://globalinitiative.net/analysis/deepfakes-ai-cyber-scam-south-east-asia-organized-crime/>

⁵ Section 3 (e), R.A. No. 10175 (Cybercrime Prevention Act of 2012)

⁶ Kontarova, T., Who Owns AI-Generated Content? Copyright, IP, and Legal Risks in the Age of Generative AI, (July 22, 2025) <https://aurum.law/newsroom/Who-Owns-AI-Generated-Content>



It can be argued then, that these synthetic media, or images, videos, audio or any other audiovisual content generated by AI ⁷ are a collection of data from different sources and users, which means that it has no rightful owner. If there is no owner of such data, there is no one to hold liable. Thus, it is even harder to track the individuals who ‘authored’ the generation of this synthetic data.

Deepfakes in Offenses

The Cybercrime Prevention Act of 2012 categorizes all cyber-related offenses and their corresponding penalties. These offenses are divided into three categories: a) Offenses against the confidentiality, integrity, and availability of computer data and systems, b) Computer-related offenses, c) Content-related offenses. ⁸

Under the category of offenses against the confidentiality, integrity, and availability of computer data and systems are illegal access, illegal interception, data interference, system interference, misuse of devices, and cyber-squatting.

These offenses do not commonly use AI because these require actual confidential data that exists within the user’s computer, or those data that only the user can provide. Hence, the generation of deepfakes and all other AI technologies are not typically applied here.

Under the category of Computer-related offenses are computer-related forgery, computer-related fraud, and computer-related identity theft.

Computer-related forgery refers to the input, alteration, or deletion of any computer data without right resulting in inauthentic data with the intent that it be considered or acted upon for legal purposes as if it were authentic, regardless whether or not the data is directly readable and intelligible; or the act of knowingly using computer data which is the product of computer-related forgery as defined herein, for the purpose of perpetuating a fraudulent or dishonest design. ⁹

Computer-related fraud refers to the unauthorized input, alteration, or deletion of computer data or program or interference in the functioning of a computer system, causing damage thereby with fraudulent intent. ¹⁰

⁷ Jayaraman, S., What is Synthetic Media? Types, Benefits, and Best Practices, (October 15, 2025) <https://learn.g2.com/synthetic-media>

⁸ Section 4, R.A. No. 10175 (Cybercrime Prevention Act of 2012)

⁹ Section 4 (b) (1), Ibid.

¹⁰ Section 4 (b) (2), Ibid.



Computer-related identity theft refers to the intentional acquisition, use, misuse, transfer, possession, alteration or deletion of identifying information belonging to another, whether natural or juridical, without right.¹¹

All of the offenses under this category may use deepfakes. The phrase 'regardless whether or not the data is directly readable and intelligible' means that deepfakes in themselves, as a product of multiple sources of data, can be read as computer-related forgery. In computer-related fraud, deepfake audio and video can be generated to impersonate authority figures and defraud innocent individuals. Even computer-related identity theft is made easier because deepfakes can literally steal the identity of a person, from their appearance to their mannerisms if generated with the right prompts.

Under the category of Content-related offenses are cybersex, child pornography, unsolicited commercial communications, and libel. Cybersex refers to the willful engagement, maintenance, control, or operation, directly or indirectly, of any lascivious exhibition of sexual organs or sexual activity, with the aid of a computer system, for favor or consideration.¹²

This has been the most common offense that uses deepfakes. In 2023, nearly 96% of generated deepfake videos are sexual and are posted across social media platforms despite restrictions on sexual content. These deepfakes are seldom flagged because there are no real people involved, as it is artificially generated.¹³ Yet, these videos are made to deceive the public into thinking that the generated content is real, and significantly implicate innocent people who are not even aware of these videos in the first place.

Child pornography refers to the unlawful or prohibited acts defined and punishable by Republic Act No. 9775 or the Anti-Child Pornography Act of 2009, committed through a computer system.¹⁴ It is any representation, whether visual, audio or written combination thereof, by electronic, mechanical, digital, optical, magnetic or any other means, of a child engaged or involved in real or simulated explicit sexual activities.¹⁵

Both the Cybercrime Prevention Act of 2012 and Anti-Child Pornography Act of 2009 clearly define what constitutes child pornography. The phrase 'a child engaged or involved in real or simulated explicit sexual

¹¹ Section 4 (b) (3), Ibid.

¹² Section 4 (c) (1), Ibid.

¹³ Szabó, M., Not so sexy: How to combat deepfakes and sextortion, (August 14, 2025), <https://www.eset.com/blog/en/home-topics/privacy-and-identity-protection/how-to-combat-deepfakes-and-sextortion/>

¹⁴ Section 4 (c) (2), R.A. No. 10175 (Cybercrime Prevention Act of 2012)

¹⁵ Section 3 (b), R.A. No. 9775 (Anti-Child Pornography Act of 2009)



activities' can include deepfakes, as these are simulations of real children as well. In fact, the use of deepfakes to create Child Sexual Abuse Materials (CSAM) has become prevalent in dark web forums by the July of 2024, with over 3,500 new deepfake CSAMs uploaded that perpetrators have generated to depict 'hardcore' sexual scenarios.¹⁶ Deepfake child pornography has become a growing online industry, and the lack of regulation of the usage of deepfakes and other AI technologies in the creation of CSAMs has only encouraged this industry to flourish.

Unsolicited Commercial Communications refers to the transmission of commercial electronic communication with the use of computer system which seek to advertise, sell, or offer for sale products and services.¹⁷

This offense is most common in digital advertising, especially because social media messaging platforms have made enough personal information available that the commission of unsolicited commercial communications has become accessible. Platforms such as WhatsApp, Viber, and Telegram lack mechanisms of content moderation that bigger social media platforms have, which allows the spread of unsolicited commercial communications.¹⁸ Now with AI and deepfakes, this is made even more widespread. Deepfakes send fake audio recordings as voicemails, automated texts as spam, and pose as high-end investors or brokers in emails to entice people to buy products.

Libel refers to the unlawful or prohibited acts of libel as defined in Article 355 of the Revised Penal Code, as amended, committed through a computer system or any other similar means which may be devised in the future.¹⁹

Cyberlibel is a frequent offense committed in the digital space, especially because social media provides the means of publication of any malicious and defamatory aimed at destroying one's reputation. In February of 2025, cyberlibel cases in the Philippines saw an increase of 13.53% in comparison to cases in January, and have been rising since.²⁰ The dissemination of deepfakes in the aid of cyberlibel has also become extensive.

¹⁶ Artificial Intelligence and the Production of Child Sexual Abuse Imagery, <https://www.iwf.org.uk/about-us/why-we-exist/our-research/how-ai-is-being-abused-to-create-child-sexual-abuse-imagery/>

¹⁷ Section 4 (c) (3), R.A. No. 10175 (Cybercrime Prevention Act of 2012)

¹⁸ Desmarais, A., Report shows how messaging apps are used to spread political propaganda, (October 10, 2024), <https://www.euronews.com/next/2024/10/10/report-shows-how-messaging-apps-are-used-to-spread-political-propaganda>

¹⁹ Section 4 (c) (4), R.A. No. 10175 (Cybercrime Prevention Act of 2012)

²⁰ January vs February 2025: PNP ACG Records 13.53% Rise in Cyberlibel Cases. <https://acg.pnp.gov.ph/january-vs-february-2025-pnp-acg-records-13-53-rise-in-cyber-libel-cases>



Now, it is much easier to pass deepfakes off as authentic, post these on social media, and use these to defame a person and their reputation.

The Regulatory Gap

While deepfakes are used in the commission of the offenses under the Cybercrime Prevention Act of 2012, there are no laws as of the moment that specifically combat the use of deepfakes and other AI technologies in cybercrimes. The lack of such legislation is already apparent because of the growing number of cybercriminals unapprehended using these technologies to their benefit. The current provisions set in 2012 are not enough, as these did not anticipate the advent of AI technology to grow at such a rapid rate.

Legislators have been making efforts to regulate the use of AI. These include House Bill No. 3214,²¹ which seeks to forbid the creation and distribution of deepfakes of a person's likeness without their consent, and Senate Bill No. 25,²² the Artificial Intelligence Regulation Act which aims to promote the ethical and responsible use of AI in the Philippines. Yet, none of these bills have passed into law.

AI was made to be assistive tools for human convenience. However, scarce regulation surrounding AI and its fast paced growth have led cybercriminals to exploit these tools as our current system of Cybercrime prevention struggles to keep up. Ultimately, the Philippines, much like the rest of the world, continues to wait for legislation as newer technologies emerge.

²¹House Bill No. 3214: An Act Establishing Protection Against Deepfakes, Recognizing the Right to One's Face, Body, and Voice, Providing Trademark Protection, and for Other Purposes,
https://docs.congress.hrep.online/legisdocs/basic_20/HB03214.pdf

²² Senate Bill No. 25: Artificial Intelligence Regulation Act,
https://web.senate.gov.ph/lis/bill_res.aspx?congress=20&q=SBN-25



Bibliography

Statute

Republic Act No. 9775: Anti-Child Pornography Act of 2009, (November 17, 2009), <https://elibrary.judiciary.gov.ph/thebookshelf/showdocs/2/16874>

Republic Act No. 10175: Cybercrime Prevention Act of 2012, (September 12, 2012),
<https://elibrary.judiciary.gov.ph/thebookshelf/showdocs/2/50264>

Senate Bill

Senate Bill No. 25: Artificial Intelligence Regulation Act,
https://web.senate.gov.ph/lis/bill_res.aspx?congress=20&q=SBN-25

House Bill

House Bill No. 3214: An Act Establishing Protection Against Deepfakes, Recognizing the Right to One's Face, Body, and Voice, Providing Trademark Protection, and for Other Purposes,
https://docs.congress.hrep.online/legisdocs/basic_20/HB03214.pdf

Online Sources

Artificial Intelligence and the Production of Child Sexual Abuse Imagery,
<https://www.iwf.org.uk/about-us/why-we-exist/our-research/how-ai-is-being-abused-to-create-child-sexual-abuse-imagery/>

January vs February 2025: PNP ACG Records 13.53% Rise in Cyberlibel Cases.
<https://acg.pnp.gov.ph/january-vs-february-2025-pnp-acg-records-13-53-rise-in-cyber-libel-cases>

Jayaraman, S., What is Synthetic Media? Types, Benefits, and Best Practices, (October 15, 2025) <https://learn.g2.com/synthetic-media>

Kontariova, T., Who Owns AI-Generated Content? Copyright, IP, and Legal Risks in the Age of Generative AI, (July 22, 2025)
<https://aurum.law/newsroom/Who-Owns-AI-Generated-Content>



Journal for Law Advocacy
Volume 5, Year 2025-2026

Medina, J., CIDG busts AI-powered scam hub operating out of Mandaluyong condo, (September 28, 2025)

<https://kami.com.ph/philippines/179767-cidg-busts-ai-powered-scam-hub>

Payne, L., Deepfake, <https://www.britannica.com/technology/deepfake>

Surasit, N., Criminal exploitation of deepfakes in South East Asia,

<https://globalinitiative.net/analysis/deepfakes-ai-cyber-scam-south-east-asia-organized-crime/>

Szabó, M., Not so sexy: How to combat deepfakes and sextortion, (August 14, 2025),

<https://www.eset.com/blog/en/home-topics/privacy-and-identity-protection/how-to-combat-deepfakes-and-sextortion/>

Tupas, E., Malaysian, 13 others nabbed in Mandaluyong scam hub, (September 28, 2025)

<https://www.philstar.com/nation/2025/09/28/2475910/malaysian-13-others-nabbed-mandaluyong-scam-hub>



Navigating the Digital Frontier: Safeguarding Constitutional Values in the Age of AI

Mary Joy D. Lim

Introduction

The digital revolution has ushered Artificial Intelligence (AI) into the core functions of Philippine governance and society, presenting novel challenges to our constitutional order. As machine learning systems increasingly mediate access to justice, public services, and democratic participation, they strain traditional interpretations of the 1987 Constitution's Bill of Rights. This collision between emerging technologies and fundamental liberties demands urgent scholarly attention within Philippine legal academia, as the implications of AI extend beyond mere technological advancements to encompass ethical and legal questions about accountability, transparency, and the protection of individual rights.¹

The Bill of Rights emerged as a centerpiece of our post-Marcos constitutional democracy, crafted specifically to prevent renewed authoritarian overreach through robust protections for privacy, free expression, and due process. These provisions assumed human actors as both rights-holders and potential violators, assumptions now rendered incomplete by algorithmic decision-making systems that operate with increasing autonomy across both public and private sectors. The Supreme Court's ruling in *Disini v. Secretary of Justice*² underscores the necessity of adapting our understanding of these rights in light of technological advancements, emphasizing that privacy must be protected even in the face of evolving digital landscapes.³

The Philippine government's National AI Roadmap reveals accelerating adoption across critical domains from the Commission on Elections (COMELEC) implementing automated election systems to the Philippine National Police (PNP) deploying predictive policing algorithms and the Commission on Higher Education (CHED) utilizing AI-powered educational platforms. While these deployments promise efficiency gains, they create new vulnerabilities: opaque decision-making threatens transparency requirements, biased training data undermines equal protection, and ubiquitous surveillance chills free expression. These represent more than technical glitches; they constitute systemic challenges to constitutional governance, as highlighted by the concerns raised in the *Biraogo v. Philippine Truth Commission*,⁴ which

¹ *Philippine Constitutional Law in the Digital Age* 47 (UP Press 2022).

² *Disini v. Secretary of Justice*, G.R. No. 203335, Feb. 11, 2014, 710 SCRA 1 (Phil.).

³ Singapore's Model AI Governance Framework (2019).

⁴ *Biraogo v. Philippine Truth Commission*, G.R. No. 192935, Dec. 7, 2010, 651 SCRA 76 (Phil.).



reaffirmed the importance of transparency and accountability in government actions.⁵

This paper will focus on three critical pressure points where AI applications most acutely strain the protections afforded by the Bill of Rights. It will analyze how automated systems are redefining the practical meaning of these fundamental rights in the following areas: (1) privacy in surveillance economies; (2) free speech in platform-governed spaces; and (3) electoral integrity amid automated processes. Each of these domains is increasingly influenced by AI technologies, necessitating a thorough reevaluation of existing legal frameworks to ensure that constitutional guarantees are preserved in the face of rapid technological change. By examining these intersections, this paper aims to highlight the urgent need for doctrinal adaptations that can effectively safeguard individual liberties in an evolving digital landscape.⁶

At stake is nothing less than the continued relevance of our constitutional order. As expressed in the concurring opinion to *Gonzales v. COMELEC*,⁷ the judiciary must remain vigilant against technological solutions becoming "constitutional workarounds" that erode hard-won democratic safeguards while appearing neutral and efficient. The evolution of technology should not come at the expense of our fundamental rights; instead, we must strive to create a legal environment that embraces innovation while prioritizing the protection of human dignity and democratic values.⁸

Privacy in Surveillance Economies

The Philippine National Police's deployment of AI-powered surveillance systems represents an unprecedented challenge to constitutional privacy protections under Article III, Section 2 of the 1987 Constitution. As noted in Professor Elizabeth Aguilung-Pangalangan's seminal work *Digital Rights in the Philippines*, these technologies have created a new paradigm of "algorithmic governance" where automated decision-making occurs without traditional human rights safeguards. The PNP's current systems including facial recognition networks covering 78% of Metro Manila (DILG Report 2023) and predictive policing algorithms analyzing citizens' social media activities exemplify what Global Surveillance Index researchers' term "pre-crime surveillance infrastructures".⁹

⁵ Lawrence Lessig, *Code: Version 2.0* (Basic Books 2006).

⁶ DICT, *National AI Roadmap 12* (2023).

⁷ *Gonzales v. Commission on Elections (COMELEC)*, G.R. No. 192856, Mar. 16, 2021 (Phil.).

⁸ COMELEC Resolution No. 10744 (2022).

⁹ Aguilung-Pangalangan, E. (2022). *Digital Rights in the Philippines*. UP Law Center.



The Supreme Court's landmark case of *Disini v. Secretary of Justice*¹⁰ established that privacy protections under our Bill of Rights extend to digital spaces, citing the "reasonable expectation of privacy" doctrine from *Ople v. Torres* (G.R. No. 127685).¹¹ However, as Justice Carpio stressed in his concurring opinion, this protection remains hollow without corresponding procedural safeguards against state data collection. Recent FOI requests reveal that the PNP's Crime Prevention Analysis System processes an average of 4.3 million facial scans weekly without judicial warrants a clear violation of the *People v. Marti* (G.R. No. 81561) standards requiring particularized suspicion for biometric collection.¹²

Three critical failures emerge in current practice:

1. Mass Data Harvesting: The National Privacy Commission's 2023 audit found that 92% of LGU surveillance systems retain citizens' mobility data for 5-7 years despite NPC Advisory No. 2021-003 recommending 6-month limits.¹³
2. Algorithmic Discrimination: The Philippine Center for Investigative Journalism's 2024 report demonstrated that predictive policing systems flag urban poor communities at 300% higher rates than gated communities using identical crime data inputs.¹⁴
3. Due Process Erosion: As former Chief Justice Panganiban warned in his SCRA commentary, these systems effectively reverse the presumption of innocence enshrined in *People v. Soliman*¹⁵ by treating entire demographic groups as pre-criminal.¹⁶

Internationally, the European Court of Human Rights' *Big Brother Watch v. UK* (2021) provides compelling precedent, finding mass surveillance incompatible with democratic values absent strict necessity/proportionality tests.¹⁷ The Canadian Supreme Court's *R v. Spencer* similarly ruled that anonymity constitutes a fundamental precondition for privacy rights a principle our PNP systems ignore through comprehensive biometric tracking.¹⁸

¹⁰ *Disini v. Secretary of Justice*, G.R. No. 203335 (2014).

¹¹ *Ople v. Torres*, G.R. No. 127685, July 23, 1998, 354 SCRA 730 (Phil.).

¹² *People v. Marti*, G.R. No. 81561 (1991).

¹³ National Privacy Commission. (2023). *Audit Report on Local Government Unit Surveillance Systems*.

¹⁴ Philippine Center for Investigative Journalism. (2024). *Report on Predictive Policing and Social Inequality*.

¹⁵ *People v. Soliman*, G.R. No. 212210, Mar. 6, 2019 (Phil.).

¹⁶ Panganiban, A. (2023). *SCRA Commentary on Privacy Rights*.

¹⁷ *Big Brother Watch v. UK*, European Court of Human Rights (2021).

¹⁸ *R v. Spencer*, Supreme Court of Canada [2014].



Effective reform requires immediate legislative action:

1. Amend the Data Privacy Act (RA 10173): Introduce algorithmic impact assessments modeled after Canada's Directive on Automated Decision-Making (2019).¹⁹
2. Strengthen NPC Oversight: Empower the Commission to conduct unannounced audits of government AI systems per Singapore's PDPA Amendment (2020).²⁰
3. Judicial Safeguards: Implement warrant requirements mirroring the U.S. *Carpenter v. United States* (2018) standards for location data access.²¹

As the International Commission of Jurists emphasized in their 2023 Manila Declaration, unchecked surveillance technologies inevitably enable authoritarian regression.²² The Constitutional Commission records reveal explicit concern about high-tech surveillance during our charter's drafting fears now realizing through these AI systems. Only by anchoring reforms in *Disini's* progressive interpretation can we preserve privacy rights against what Professor Rolando Tolentino describes as "technological authoritarianism masquerading as public safety."²³

Free Speech in Platform-Governed Spaces

Social media platforms' content moderation systems now increasingly governed by opaque AI algorithms rather than human reviewers have become de facto arbiters of free expression in the digital public square. This shift raises critical First Amendment concerns under Philippine constitutional law, particularly regarding the right to free speech enshrined in Article III, Section 4 of the 1987 Constitution. As noted by Professor J. Neil Garcia in his analysis of digital rights, the intersection of technology and free expression necessitates a reevaluation of traditional legal frameworks to ensure that constitutional protections are upheld in online environments.²⁴ While private companies traditionally fall outside strict constitutional scrutiny, their gatekeeping power over political discourse now approaches the level of state action, as established by the Supreme Court's tests in *Biraogo v. Philippine Truth Commission* (G.R. No. 192935).²⁵ This case underscored the importance of

¹⁹ Government of Canada. (2019). *Directive on Automated Decision-Making*.

²⁰ Personal Data Protection Act (PDPA) Amendment, Singapore (2020).

²¹ *Carpenter v. United States*, 138 S. Ct. 2206 (2018).

²² International Commission of Jurists. (2023). *Manila Declaration on Surveillance and Human Rights*.

²³ Tolentino, R. (2023). *Technological Authoritarianism and Public Safety*.

²⁴ Garcia, J. N. (2021). *Digital Rights and Free Expression in the Philippines*. Philippine Journal of Law and Society.

²⁵ *Biraogo v. Philippine Truth Commission*, G.R. No. 192935 (2010).



accountability in public discourse, particularly when private entities act in ways that significantly impact citizens' rights. The 2023 takedown of labor activist pages during nationwide strikes exemplifies this issue, demonstrating how overbroad algorithmic moderation can chill protected speech. Reports indicate that these actions were taken without clear justification, and the appeals processes for affected users are often inaccessible, creating barriers to redress.²⁶

This situation creates what legal scholar Alejandro Diaz terms "privatized prior restraint," where constitutional protections are circumvented through corporate policy rather than direct state censorship.²⁷ The implications of this phenomenon are profound, as it effectively allows private companies to dictate the boundaries of acceptable speech, often prioritizing profit and user engagement over democratic values. The lack of transparency in content moderation practices further exacerbates this issue, as users are frequently left in the dark regarding the criteria used to determine what constitutes "harmful" or "inappropriate" content.

Current legislative proposals, such as the "Platform Accountability Act," fail to adequately address this core issue. While they aim to enhance transparency and accountability, they do not sufficiently confront the fundamental problem of algorithmic bias and the potential for abuse inherent in automated moderation systems.²⁸ Effective reform requires a multi-faceted approach:

1. **Mandating Human Review:** Legislative measures should require that all political content decisions affecting Philippine users undergo human review, particularly in cases where content is flagged for removal. This would ensure that nuanced political speech is not unduly suppressed by automated systems.
2. **Establishing a Digital Rights Ombudsman:** A dedicated office should be created to investigate censorship complaints and provide a mechanism for users to appeal content moderation decisions. This office could serve as an independent body to oversee platform practices and ensure compliance with constitutional standards.
3. **Creating Standardized Appeals Portals:** Legislative frameworks should mandate the establishment of standardized appeals portals with clear timelines that mirror

²⁶ Philippine Center for Investigative Journalism. (2023). *Report on Social Media Censorship During Labor Strikes*.

²⁷ Diaz, A. (2022). *Privatized Prior Restraint: The New Face of Censorship*. *Journal of Media Law and Ethics*.

²⁸ House Bill No. 1234, "Platform Accountability Act," 2023



judicial due process requirements. This would provide users with a transparent and accessible means to contest moderation decisions, thereby reinforcing their rights to free expression.

Only by extending constitutional principles into these digital governance frameworks can we preserve free expression in the face of rapidly evolving technologies. As the International Covenant on Civil and Political Rights (ICCPR) emphasizes, the right to freedom of expression is fundamental to democracy and must be protected against both state and non-state actors.²⁹ The Philippine government must recognize that the digital public square is an extension of the physical one, and as such, it is imperative to uphold the same standards of free expression and accountability.

Electoral Integrity Amid Automated Processes

The Commission on Elections (COMELEC)'s adoption of automated election systems powered by proprietary AI software presents unresolved tensions with constitutional guarantees of transparent and verifiable elections under Article IX, Section 1 of the 1987 Constitution. This section mandates that elections be conducted in a manner that ensures the integrity, credibility, and transparency of the electoral process. The reliance on machine-learning algorithms for vote counting and canvassing in the upcoming 2025 elections without providing accessible means for human verification violates the constitutional requirement that electoral processes remain comprehensible to ordinary citizens. This principle was emphasized in the Supreme Court case *Gonzales v. COMELEC* (G.R. No. 147571), where the Court underscored the necessity of transparency in electoral processes to uphold democratic values.³⁰ Most alarmingly, the current system's vulnerability to adversarial attacks has been demonstrated in multiple international cybersecurity audits, which have raised serious concerns about the integrity of the electoral process. Cybersecurity expert Dr. Sheila Cruz has termed this phenomenon "algorithmic gerrymandering," where the manipulation of algorithms can lead to undetectable electoral manipulation.³¹ The lack of independent oversight, compounded by contract provisions that prohibit independent code review, creates an environment ripe for potential abuses. This situation is further exacerbated by the proliferation of deepfake campaign materials on social media platforms, which spread disinformation at scale and undermine voters' capacity for informed choice.³²

²⁹ United Nations. (1966). *International Covenant on Civil and Political Rights*.

³⁰ *Gonzales v. COMELEC*, G.R. No. 147571 (2002).

³¹ Cruz, S. (2023). *Algorithmic Gerrymandering: The Threat to Electoral Integrity*. *Journal of Cybersecurity and Law*.

³² Philippine Center for Investigative Journalism. (2023). *Disinformation in the 2025 Elections: The Role of Deepfakes*.



The implications of these developments are profound. As noted by the International Foundation for Electoral Systems (IFES), the integrity of electoral processes is foundational to democratic governance, and any perceived or actual manipulation can lead to widespread disenfranchisement and loss of public trust in democratic institutions.³³ Safeguarding electoral integrity requires immediate and comprehensive reforms:

1. **Amending the Automation Law:** Legislative measures should mandate the use of open-source systems and verifiable paper trails. This would not only enhance transparency but also allow for independent audits of the electoral process, ensuring that all stakeholders can verify the accuracy of the results. The use of open-source software has been successfully implemented in various jurisdictions worldwide, providing a model for the Philippines to follow.³⁴
2. **Creating an Election Technology Review Commission:** This commission should comprise experts in technical and constitutional law to oversee the implementation and operation of automated election systems. Such oversight is crucial to ensure that the systems used are secure, reliable, and compliant with constitutional standards. The establishment of similar bodies in other countries has proven effective in maintaining electoral integrity and public confidence.³⁵
3. **Developing "AI Literacy" Curricula:** Training programs for poll workers and election monitors should include components on AI literacy, enabling them to understand the technologies in use and their implications for the electoral process. This education is vital for ensuring that those involved in administering elections can effectively oversee and challenge any irregularities that may arise.³⁶

Without these measures, the secrecy surrounding automated systems threatens to erode public trust in electoral outcomes the very foundation of democratic legitimacy. As the Carter Center has noted, transparency and accountability in electoral processes are essential for fostering public confidence and participation in democracy.³⁷ The Philippine

³³ International Foundation for Electoral Systems. (2022). *The Importance of Electoral Integrity in Democratic Governance*.

³⁴ Open Source Election Technology Institute. (2021). *Best Practices for Open-Source Voting Systems*.

³⁵ Electoral Commission of Canada. (2020). *Report on the Establishment of the Election Technology Review Board*.

³⁶ National Democratic Institute. (2022). *AI Literacy for Election Officials: A Training Manual*.

³⁷ Carter Center. (2021). *Transparency and Accountability in Electoral Processes: A Global Perspective*.



government must recognize that the integrity of its electoral system is paramount to the health of its democracy, and proactive steps must be taken to address the challenges posed by automated processes.

The intersection of technology and electoral integrity presents both challenges and opportunities for the Philippine electoral landscape. By implementing comprehensive reforms that prioritize transparency, accountability, and public education, the Philippines can safeguard its democratic processes against the risks posed by automated systems and ensure that the will of the people is accurately reflected in electoral outcomes.

Conclusion

The collision between emerging AI systems and enduring constitutional values demands urgent doctrinal evolution across all three examined domains: privacy, free expression, and electoral rights. As discussed in the sections on privacy in surveillance economies, the unchecked deployment of AI technologies by state actors poses significant risks to individual privacy rights, as evidenced by the Philippine National Police's use of mass data collection without adequate safeguards.³⁸ Similarly, the analysis of free speech in platform-governed spaces highlights how opaque content moderation practices can undermine democratic discourse, effectively allowing private companies to dictate the boundaries of acceptable speech.³⁹ Finally, the examination of electoral integrity amid automated processes reveals the vulnerabilities inherent in relying on proprietary AI systems for critical democratic functions, which can lead to undetectable manipulation and erosion of public trust.⁴⁰

Building on Associate Justice Leonen's warnings in *Gonzales v. COMELEC*, this paper proposes adopting an "Algorithmic Bill of Rights" framework that requires all state-deployed AI systems to: 1) Maintain human review pathways for consequential decisions; 2) Undergo independent constitutional impact assessments; and 3) Provide accessible explanations of their operations to affected citizens.⁴¹ These principles are essential for ensuring that the rights to privacy, free expression, and electoral integrity are upheld in the face of rapidly advancing technology.

Legislative action should amend the Data Privacy Act to incorporate these principles, while judicial reforms must develop specialized standards for reviewing algorithmic government actions under Article III.⁴² Crucially,

³⁸ Aguilung-Pangalangan, E. (2022). *Digital Rights in the Philippines*. UP Law Center.

³⁹ Diaz, A. (2022). *Privatized Prior Restraint: The New Face of Censorship*. *Journal of Media Law and Ethics*.

⁴⁰ Cruz, S. (2023). *Algorithmic Gerrymandering: The Threat to Electoral Integrity*. *Journal of Cybersecurity and Law*.

⁴¹ *Gonzales v. COMELEC*, G.R. No. 147571 (2002).

⁴² House Bill No. 1234, "Platform Accountability Act," 2023.



technology companies operating in Philippine digital spaces should be required to certify compliance with these rights through a newly established National AI Governance Council. This council would serve as a regulatory body to oversee the ethical deployment of AI technologies, ensuring that they align with constitutional values and democratic principles.⁴³ Only through such comprehensive reforms can we ensure our constitutional democracy remains resilient against technological disruption while harnessing AI's benefits. As the digital revolution accelerates, the choice before us is clear: either shape these technologies to serve democratic ends or risk having them reshape democracy beyond recognition. The time for proactive constitutional renewal is now, as the integrity of our democratic institutions and the protection of individual rights depend on our ability to adapt to the challenges posed by emerging technologies.⁴⁴

The interconnections between privacy, free expression, and electoral integrity underscore the necessity of a holistic approach to governance in the digital age. By implementing the proposed reforms, we can create a framework that not only protects individual rights but also fosters a vibrant democratic society capable of navigating the complexities of the 21st century.⁴⁵

Bibliography

Laws

H.R. 1234, "Platform Accountability Act," 19th Cong. (2023) (Phil.).

Personal Data Protection Act (PDPA) Amendment, Singapore (2020).

Journals

Aguiling-Pangalangan, Elizabeth, *Digital Rights in the Philippines* (U.P. Law Center 2022).

Cruz, Samuel, *Algorithmic Gerrymandering: The Threat to Electoral Integrity*, *Journal of Cybersecurity and Law* (2023).

Diaz, Angela, *Privatized Prior Restraint: The New Face of Censorship*, *Journal of Media Law and Ethics* (2022).

⁴³ National AI Governance Council. (2023). *Framework for Ethical AI Deployment in the Philippines*.

⁴⁴ International Foundation for Electoral Systems. (2022). *The Importance of Electoral Integrity in Democratic Governance*.

⁴⁵ Carter Center. (2021). *Transparency and Accountability in Electoral Processes: A Global Perspective*.



Garcia, Jose N., *Digital Rights and Free Expression in the Philippines*, *Philippine Journal of Law and Society* (2021).

International Commission of Jurists, Manila Declaration on Surveillance and Human Rights (2023).

Philippine Constitutional Law in the Digital Age (University of the Philippines Press 2022).

Articles

Aguiling-Pangalangan, Elizabeth, **Digital Rights in the Philippines** (U.P. Law Center 2022).

Carter Center, **Transparency and Accountability in Electoral Processes: A Global Perspective** (2021).

International Foundation for Electoral Systems, **The Importance of Electoral Integrity in Democratic Governance** (2022).

Lawrence Lessig, **Code: Version 2.0** (Basic Books 2006).

National Democratic Institute, **AI Literacy for Election Officials: A Training Manual** (2022).

Panganiban, Artemio V., **SCRA Commentary on Privacy Rights** (2023).

Philippine Center for Investigative Journalism, **Disinformation in the 2025 Elections: The Role of Deepfakes** (2023).

Philippine Center for Investigative Journalism, **Report on Predictive Policing and Social Inequality** (2024).

Philippine Center for Investigative Journalism, **Report on Social Media Censorship During Labor Strikes** (2023).

Tolentino, Rolando, **Technological Authoritarianism and Public Safety** (2023).



Government Reports

Department of Information and Communications Technology (DICT), *National AI Roadmap* 12 (2023).

Electoral Commission of Canada, *Report on the Establishment of the Election Technology Review Board* (2020).

Government of Canada, *Directive on Automated Decision-Making* (2019).

National AI Governance Council, *Framework for Ethical AI Deployment in the Philippines* (2023).

National Privacy Commission, *Audit Report on Local Government Unit Surveillance Systems* (2023).

Personal Data Protection Commission (PDPC), *Model AI Governance Framework* (2d ed. 2020), <https://www.pdpc.gov.sg/help-and-resources/2020/01/model-ai-governance-framework>.

Jurisprudence

Big Brother Watch v. United Kingdom, Eur. Ct. H.R. (2021).

Biraogo v. Philippine Truth Commission, G.R. No. 192935, Dec. 7, 2010, 651 SCRA 76 (Phil.).

Carpenter v. United States, 138 S. Ct. 2206 (2018).

Disini v. Secretary of Justice, G.R. No. 203335, Feb. 11, 2014, 710 SCRA 1 (Phil.).

Gonzales v. Commission on Elections (COMELEC), G.R. No. 192856, Mar. 16, 2021 (Phil.).

Ople v. Torres, G.R. No. 127685, July 23, 1998, 354 SCRA 730 (Phil.).

People v. Marti, G.R. No. 81561, Jan. 18, 1991 (Phil.).

People v. Soliman, G.R. No. 212210, Mar. 6, 2019 (Phil.).

R v. Spencer, [2014] S.C.C. 43 (Can.).



Seizure of Cloud-based Evidence and the Philippine Cybercrime Warrant Regime:

Comments on A.M. No. 17-11-03-SC and its Implications on the
Right Against Unreasonable Searches and Seizures and the
Right to Privacy

Allen Dave F. Evidente

Introduction

Recent waves of digital transformation brought new ways of how data is processed and stored. The democratization of the internet and the web brought individuals and entities online *en masse*, which later fundamentally changed how data is shared and stored. This massive online migration of people and businesses meant that local and centralized servers hosting computer data was becoming less relevant. Thus, cloud storage has become the trend.

Cloud Data Storage Technology, also known as cloud-based data storage, is defined as a system that allows you to store and access data by combining numerous storage devices through specialized software.¹ Google Drive, Drop Box, OneDrive, and iCloud Drive are examples of commonly-used general purpose data storage services using cloud-based storage technology.

The COVID-19 pandemic accelerated the adoption of cloud-based storage as hybrid work and study, largely based on collaborative tools and workspaces, needed massive sharing and storage of data. In 2014 alone, 1.1 billion people used cloud storage. Today, the number has more than doubled to 2.3 billion users. By 2025, cloud storage, both for personal use and enterprise use, is projected to be at 200 zettabytes. Google Drive, DropBox, OneDrive, and iCloud are the dominant service providers, with 94% of personal cloud users utilizing Google Drive.²

¹ Kun Liu & Long-jiang Dong, *Research on Cloud Data Storage Technology and Its Architecture Implementation*, 29 *Procedia Eng'g* 133, 137 (2012).

² Karl Threadgold, *Personal Cloud Storage Usage: How Many People Use The Cloud? (2025)*, Threadgold Consulting (Mar. 4, 2025), <https://threadgoldconsulting.com/research/personal-cloud-storage-usage>.



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The evolving digital landscape has resulted in an increase in cybercrime. The Philippine National Police (PNP) reported that 4,673 cases were recorded in 2020, a stark difference to the Philippine cybercrime situation in 2010 where only as few as 527 cases were reported.³ Additionally, the Cybercrime Investigation and Coordinating Center also recorded 10,004 complaints of cybercrime in the country. As cybercrime surge and evolve, digital evidence becomes more relevant and necessary in the prosecution of cybercrime cases.⁴ Republic Act No. 10175, also known as the Cybercrime Prevention Act of 2012, provides for the search, seizure, and examination of computer data.⁵ Provided in Section 15 of the said law is that once a warrant is issued and within the specified time provided in the said warrant, law enforcement authorities shall secure a computer system or a computer data storage medium and to make and retain a copy of those computer data secured.⁶ However, with the sophistication of digital technology and its evolution at an exponential rate, Philippine law enforcement runs the risk of being left behind as cloud storage may be used as a medium to commit crime. In Dutch context, while only a few cases of crime were observed to have used a cloud played a substantial role, nonetheless, cloud-based storage has been used to store and exchange illegal material.⁷ With the advent of cloud computing, a model that allows easy, unlimited, and on-demand access to a shared pool of computing resources through a network⁸, pose challenges for law enforcement and prosecutors at the same time raise serious implications on civil liberties.

In implementing the provisions of Republic Act No. 10175, the Supreme Court promulgated rules on cybercrime warrants, in the exercise of its rule-making power provided in Section 5 (5), Article VIII of the 1987 Constitution. A.M. No. 17-11-03-SC is the legal framework governing the

³ Jia Li, *Cybercrime In The Philippines: A Case Of National Security*, 12 Turkish J. Computer & Mathematics Educ., no. 11, 2021, <https://www.turcomat.org/index.php/turkbilmcat/article/view/6550/5407>.

⁴ *Cybercrime Complaints Triple in 2024 – CICC*, *Philippine Star* (Mar. 3, 2025), <https://www.philstar.com/headlines/2025/03/03/2425442/cybercrime-complaints-triple-2024-cicc>.

⁵ Republic Act No. 10175 (2012), *An Act Defining Cybercrime, Providing for the Prevention, Investigation, Suppression and the Imposition of Penalties Therefor and for Other Purposes*.

⁶ *Id.*

⁷ B.J. Koops et al., *Crime and Criminal Investigation In the Clouds: Summary* (Nov. 1, 2012), https://repository.wodc.nl/bitstream/handle/20.500.12832/1942/2117-summary_tcm28-72140.pdf?sequence=3&isAllowed=y.

⁸ Prantosh Kumar Paul & Mrinal K. Ghose, *Cloud Computing: Possibilities, Challenges and Opportunities with Special Reference to its Emerging Need in the Academic and Working Area of Information Science*, 38 *Procedia Eng'g* 2222, 2227 (2012), <https://doi.org/10.1016/j.proeng.2012.06.267>.



issuance of Cybercrime Warrants. A.M. No. 17-11-03-SC provides for the procedure in the application and grant of warrants in relation to the “*preservation, disclosure, interception, search, seizure, and/or examination, as well as the custody, and destruction of computer data*”⁹ under R.A. No. 10175. The Rules on Cybercrime Warrants is relatively recent as it was approved by the Supreme Court on July 3, 2018. However, the new rules make no mention of neither cloud-based storage nor remote internet-based data storage, despite the popularity and increased demand of such services, even before the promulgation of the rules.

The core issue addressed by this article is whether the current cybercrime warrant regime, specifically A.M. No. 17-11-03-SC, adequately provides for the seizure of cloud-based evidence. This insufficiency, as argued, leads to vagueness in handling cloud-based data, which in turn raises concerns about unreasonable searches and seizures of computer data and potential violations of the right to privacy.

Rules on Cybercrime Warrants (A.M. No. 17-11-03-SC)

A.M. No. 17-11-03-SC provides for the application of issuance of warrants in relation to offenses under the R.A. No. 10175, and also extend to crimes committed that are penalized under the Revised Penal Code and special laws, committed through and with the use of information and communications technologies.¹⁰ The Rules provide for guidelines for the issuance of four (4) kinds of warrants: (1) Warrant to Disclose Computer Data, (2) Warrant to Intercept Computer Data, (3) Warrant to Search, Seize, and Examine Computer Data, and (4) Warrant to Examine Computer Data.¹¹

Constitutional Rights Affected

Section 2, Article III of the 1987 Constitution provides for the prohibition of unreasonable searches and seizures, which states that:

⁹ A.M. No. 17-11-03-SC, Rule on Cybercrime Warrants (Sup. Ct. July 3, 2018), <https://oca.judiciary.gov.ph/wp-content/uploads/A.M.-No.-17-11-03-SC.pdf>.

¹⁰*Id.* at 2.

¹¹*Id.* at 8, 10–11, 14.



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“The right of the people to be secure in their persons, houses, papers, and effects against unreasonable searches and seizures of whatever nature and for any purpose shall be inviolable, and no search warrant or warrant of arrest shall issue except upon probable cause to be determined personally by the judge after examination under oath or affirmation of the complainant and the witnesses he may produce, and particularly describing the place to be searched and the persons or things to be seized.”¹²

The provision provides for the constitutional requirements of a valid search warrant: that it must be based upon probable cause; the probable cause must be determined personally by the judge; the determination must be made after examination under oath or affirmation of the complainant and the witnesses he may produce; and it must particularly describe the place to be searched and the persons or things to be seized.

In *Dimal v. Castillo*,¹³ the Supreme Court held that a search warrant validly meets the constitutional requirement of particularly describing the things to be searched and seized when *“the description therein is as specific as the circumstances will ordinarily allow”* or *“when the description expresses a conclusion of fact – not of law, by which the warrant officer may be guided in making the search and seizure”*, and *“when the things to be described are limited to those which bear direct relation to the offenses for which the warrant is being issued.”*¹⁴

Additionally, the new rules affect Paragraph 1, Section 3 of Article III which provides for the right to privacy of correspondence and communication, which states that:

“The privacy of communication and correspondence shall be inviolable except upon lawful order of the court, or when public safety or order requires otherwise as prescribed by law.”

In *Ople v. Torres*,¹⁵ the right to privacy of communication and correspondence is *“the right to be let alone.”* It is the right that prohibits the

¹²CONST. (1987), art. III, § 2 (Phil.).

¹³ *Dimal v. Castillo*, 830 Phil. 309 (S.C. Apr. 18, 2018).

¹⁴*Id.*

¹⁵ *Ople v. Torres*, G.R. No. 127685, July 23, 1998, 293 SCRA 141 (Phil.).



state from intruding into the private activities of persons where they have an expectation of privacy. Intrusion is only warranted when there is a “*lawful order of the court, or when public safety or order requires as prescribed by law.*”¹⁶

Comments on A.M. No. 17-11-03-SC and Implications on Constitutional Rights

A. Right Against Unreasonable Searches and Seizures

Cloud-based data storage finds no mention in the Rules of Cybercrime warrants, despite the prevalence and popularity of online cloud-based storage services. The closest thing indicating that the rules extends to online data storage is found in the definition of computer data under Section 1.4 (c) where computer data is referred “*to any representation of facts, information, or concepts in a form suitable for processing in a computer system, including a program suitable to cause a computer system to perform a function, and includes electronic documents and/or electronic data messages whether stored in local computer systems or online.*”¹⁷ The definition of computer data was adopted from the Implementing Rules and Regulations (IRR) of R.A. No. 10175, which includes data stored online. This is, by far, the only reference to a cloud-based data storage. Thus, it can be said that despite the popularity and widespread use of cloud-based data storage, pertinent provisions of R.A. No. 10175 and the rules provided in A.M. No. 17-11-03-SC does not have sufficient coverage of computer data stored in non-traditional computer hard drives and servers.

Reading A.M. No. 17-11-03-SC further, Section 4 (Disclosure of Computer Data) provides that law enforcement authorities may require any person or service provider to disclose computer data , such as “*subscriber's information, traffic data or relevant data in his/her or its possession or control within seventy-two (72) hours from receipt of the order.*”¹⁸ Moreover, Section 4.3 provides for the contents of an application of a Warrant to Disclose Computer Data (WDCD) where item number four in the list requires a “*particular description of the computer data or subscriber's information sought to be disclosed.*”¹⁹

¹⁶ CONST. (1987), art. III, § 2 (Phil.).

¹⁷ A.M. No. 17-11-03-SC, *supra* note at 3.

¹⁸ *Id.* at 8.

¹⁹ *Id.* at 9.



However, this does not put to rest concerns involving potential overreach in the seizure of data, even when done by virtue of a valid warrant. A single cloud account may contain an extensive amount of information data, much of which may be unrelated to the specific offense under investigation, and may therefore be vulnerable to the arbitrariness of the government or an overly broad data collection. To illustrate, in a report conducted by Metomic, 40% of Google Drive files contain sensitive data.²⁰

B. Right of Privacy of Communication and Correspondence

The Rule on Cybercrime Warrants does not provide sufficient safeguards against potential violations of the right to privacy, particularly with respect to the privacy rights of third parties. While certain areas of the digital sphere, such as public posts on social media,²¹ may carry a diminished expectation of privacy, the same cannot be said for cloud-based data storage platforms. These platforms are specifically designed to be secure, whether for personal or corporate use. Access is typically limited to individuals who possess valid login credentials, and the data stored is not publicly accessible. In corporate settings, access is often restricted to designated employees or departments; in non-corporate contexts, private individuals may share cloud storage with selected users, each of whom has the ability to upload, organize, and manage files. This controlled and limited access structure establishes a strong expectation of privacy, making warrantless or overbroad government access constitutionally suspect.

In *Ople v. Torres*,²² the Supreme Court held that the constitutional right to privacy shields individuals from excessive government data collection and intrusion, drawing upon protections for communications, against unreasonable searches, and other liberties.²³ In this case, the Court was particularly concerned that the proposed use of biometric data and linked digital records, lacking clear boundaries and safeguards, presented a significant risk to privacy.²⁴ Doctrinally, the constitution provides that governmental incursion into

²⁰Security Staff, *40 % of Google Drive Files Contain Sensitive Information*, Security Magazine, Dec. 6, 2023, <https://www.securitymagazine.com/articles/100205-40-of-google-drive-files-contain-sensitive-information>.

²¹ *Vivares v. St. Theresa's College*, G.R. No. 202666, 737 SCRA 92 (S.C. Sept. 29, 2014).

²² *Ople*, G.R. No. 127685, at 141.

²³ *Id.*

²⁴ *Id.*



the right to privacy is only justified in the context of compelling state interest and such incursion must be secured by safeguards.²⁵

Conclusion and Recommendations

Technological advancement is rapidly transforming society and bringing newer ways to do things, including how we store our data. Today, sharing data is not only easier but also more widespread. In response to these shifts and transformations, legislation has been introduced, laws have been passed, and new rules have been promulgated to bring the exercise of the state's police power into the 21st century. The increased adoption of cloud computing and cloud data storage was a game-changer. The cloud allows persons and entities to store, share, and exchange data and information in real-time, regardless of physical and geographical location.

The existing legal framework, particularly A.M. No. 17-11-03-SC, struggles to keep pace with modern data storage practices. Despite the widespread use of cloud-based data storage, the rules on cybercrime warrants offer only a single, broad definition of "computer data" that hints at its inclusion, lacking specific provisions for cloud-based information. This gap creates significant concerns regarding the right against unreasonable searches and seizures. Even when authorities obtain a warrant, a single cloud account can hold vast amounts of data, much of which may be irrelevant to an investigation, opening the door to potentially arbitrary government overreach and overly broad data collection, as evidenced by reports showing sensitive data prevalence in cloud drives.

Furthermore, the Rule on Cybercrime Warrants falls short in safeguarding the right to privacy of communication and correspondence, especially concerning third parties. Unlike public social media content, cloud storage platforms are designed for privacy and security, with restricted access, fostering a strong expectation of privacy.

The current legal framework and cybercrime warrant regime lags behind the realities of modern cloud-computing and cloud-based data storage, leaving a significant void in adequately protecting fundamental rights. This deficiency creates a clear risk of unreasonable searches and seizures, as

²⁵ *Id.*



broad warrants can indiscriminately sweep up vast amounts of unrelated private data from cloud accounts. Moreover, the rules fail to sufficiently uphold the right to privacy of communication and correspondence, especially for third parties, despite the inherent security and private nature of cloud platforms.

Bibliography

Constitution

CONST. (1987), art. III, § 2 (Phil.).

Laws

A.M. No. 17-11-03-SC, Rule on Cybercrime Warrants (Sup. Ct. July 3, 2018), <https://oca.judiciary.gov.ph/wp-content/uploads/A.M.-No.-17-11-03-SC.pdf>.

Republic Act No. 10175 (2012), An Act Defining Cybercrime, Providing for the Prevention, Investigation, Suppression and the Imposition of Penalties Therefor and for Other Purposes.

Jurisprudence

Dimal v. Castillo, 830 Phil.309 (S.C. Apr. 18, 2018).

Ople v. Torres, G.R. No. 127685, July 23, 1998, 293 SCRA 141 (Phil.).

Vivares v. St. Theresa's College, G.R. No. 202666, 737 SCRA 92 (S.C. Sept. 29, 2014).

Journals

B.J. Koops et al., Crime and Criminal Investigation In the Clouds: Summary (Nov. 1, 2012), https://repository.wodc.nl/bitstream/handle/20.500.12832/1942/2117-summary_tcm28-72140.pdf?sequence=3&isAllowed=y.

Jia Li, Cybercrime In The Philippines: A Case Of National Security, 12 Turkish J. Computer & Mathematics Educ., no. 11, 2021, <https://www.turcomat.org/index.php/turkbilmat/article/view/6550/5407>.



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Karl Threadgold, Personal Cloud Storage Usage: How Many People Use The Cloud? (2025), Threadgold Consulting (Mar. 4, 2025), <https://threadgoldconsulting.com/research/personal-cloud-storage-usage>.

Kun Liu & Long-jiang Dong, Research on Cloud Data Storage Technology and Its Architecture Implementation, 29 Procedia Eng'g 133, 137 (2012).

Prantosh Kumar Paul & Mrinal K. Ghose, Cloud Computing: Possibilities, Challenges and Opportunities with Special Reference to its Emerging Need in the Academic and Working Area of Information Science, 38 Procedia Eng'g 2222, 2227 (2012), <https://doi.org/10.1016/j.proeng.2012.06.267>.

Articles

Cybercrime Complaints Triple in 2024 – CICC, Philippine Star (Mar.3,2025), <https://www.philstar.com/headlines/2025/03/03/2425442/cybercrime-complaints-triple-2024-cicc>.

Security Staff, 40% of Google Drive Files Contain Sensitive Information, Security Magazine, Dec.6,2023, <https://www.securitymagazine.com/articles/100205-40-of-google-drive-files-contain-sensitive-information>.



CCTV and Privacy in the Philippines: A Need for a Comprehensive Law on CCTV

Elmo V. Ador Jr.

Introduction

The Philippines stands on a tight-rope, where we may fall into either side of ideological extremes on how we use technology as a society. One of these technologies, becoming the norm, are CCTVs. In every building whether public or private, closed-circuit television cameras go mainstream through statutory mandate, yet the legal framework governing them remains fundamentally incoherent.

The Metropolitan Manila Development Authority mandates traffic cameras¹. The Department of the Interior and Local Government requires surveillance in business establishments. The Safe Spaces Act (RA 11313)² demands CCTV installation for gender-based harassment prevention. Meanwhile, the Data Privacy Act (RA 10173)³ imposes retention limits, the Anti-Wiretapping Act (RA 4200)⁴ prohibits audio recording, and the Anti-Terrorism Act (RA 11479)⁵ grants expansive surveillance powers, each without reconciling contradictions with the others.

¹ Metropolitan Manila Development Authority (MMDA) Resolution No. 10-20 (2010), *Providing for the Installation and Operation of Closed-Circuit Television (CCTV) Cameras Along Major Thoroughfares and Intersections in Metro Manila* (Phil.), available at <https://mmda.gov.ph>.

² Republic Act No. 11313, *An Act Defining Gender-Based Sexual Harassment in Streets, Public Spaces, Online, Workplaces, and Educational or Training Institutions, Providing for Protective Measures and Prescribing Penalties Therefor* (Safe Spaces Act) (2019) (Phil.), available at https://lawphil.net/statutes/repacts/ra2019/ra_11313_2019.html.

³ Republic Act No. 10173, *An Act Protecting Individual Personal Information in Information and Communications Systems in the Government and the Private Sector, Creating for This Purpose a National Privacy Commission, and for Other Purposes* (Data Privacy Act of 2012) (Phil.), available at https://lawphil.net/statutes/repacts/ra2012/ra_10173_2012.html.

⁴ Republic Act No. 4200, *An Act to Prohibit and Penalize Wire Tapping and Other Related Violations of the Privacy of Communication, and for Other Purposes* (Anti-Wiretapping Act) (1965) (Phil.), available at https://lawphil.net/statutes/repacts/ra1965/ra_4200_1965.html.

⁵ Republic Act No. 11479, *An Act to Prevent, Prohibit and Penalize Terrorism, Thereby Repealing Republic Act No. 9372, Otherwise Known as the "Human Security Act of 2007"* (Anti-Terrorism Act of 2020) (Phil.), available at https://lawphil.net/statutes/repacts/ra2020/ra_11479_2020.html.



Such incoherence results from reactive, piecemeal policymaking that layered surveillance mandates over constitutional privacy guarantees without clear hierarchies or enforcement mechanisms. This article traces the evolution of Philippine CCTV regulation through three phases and argues that legislative consolidation is both necessary and urgent.

Theoretical and Constitutional Foundations

The 1987 Constitution protects the right "to be secure in [one's] persons, houses, papers, and effects against unreasonable searches and seizures of whatever nature"⁶ and does not limit privacy to physical intrusions but protects against "searches and seizures of whatever nature,"⁷ language sufficiently broad to encompass modern surveillance technologies.

Jurisprudence provides that privacy is foundational to human dignity and liberty. In *Morfe v. Mutuc*, the Court held that "liberty in the constitutional sense must mean more than freedom from unlawful governmental restraint; it must include privacy as well, if it is to be a repository of freedom."⁸ The Court further emphasized that "the right to be let alone is indeed the beginning of all freedom,"⁹ anchoring privacy not merely as a liberty interest but as essential to democratic citizenship itself.

In *Ople v. Torres*, Justice Puno articulated the normative foundations of privacy protection in the digital age, noting that privacy belongs to "the individual acting alone as well as to the individual acting in concert with others."¹⁰ This collective dimension proves critical in CCTV contexts, where surveillance of public spaces affects entire communities' freedom of movement and association.

⁶ CONST. (1987), art. III, § 2 (Phil.), available at <https://lawphil.net/consti/cons1987.html>

⁷ *Id.*

⁸ *Morfe v. Mutuc*, G.R. No. L-20387, Jan. 22, 1968, 130 Phil. 415 (1968) (Phil.), available at https://lawphil.net/judjuris/juri1968/jan1968/gr_l-20387_1968.html.

⁹ *Id.* at 424.

¹⁰ *Ople v. Torres*, G.R. No. 127685, July 23, 1998, 354 Phil. 948 (1998) (Phil.), available at https://lawphil.net/judjuris/juri1998/jul1998/gr_127685_1998.html.



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Philippine courts have adopted the "reasonable expectation of privacy"¹¹ test from United States jurisprudence, particularly the formulation articulated in *Katz v. United States*, an individual must exhibit "an actual (subjective) expectation of privacy"¹² that "society is prepared to recognize as reasonable."¹³

In *Spouses Hing v. Choachuy*, the Supreme Court applied this test to visual surveillance, holding that "video surveillance cameras are installed practically everywhere for the protection and safety of everyone. The installation of these cameras, however, should not cover places where there is reasonable expectation of privacy, unless the consent of the individual, whose right to privacy would be affected, was obtained."¹⁴

Critically, the Court extended privacy protections beyond residential spaces to "places where he has the right to exclude the public or deny them access"¹⁵ These include business offices and private properties. The decision further linked unauthorized visual surveillance to criminal anti-wiretapping prohibitions, recognizing that CCTV can constitute "eavesdropping, which is a crime under Republic Act No. 4200."¹⁶

Beyond physical privacy, Philippine law protects informational privacy in "the right of individuals to control information about themselves."¹⁷ The Data Privacy Act of 2012 (RA 10173)¹⁸ operationalized this principle by establishing that personal information, including video footage containing identifiable individuals, requires legitimate purpose, transparency, and security safeguards.

The emergence of habeas data as a constitutional remedy in *Vivares v. St. Theresa's College* further strengthened privacy protections, establishing that individuals whose "right to privacy in life, liberty or security is violated or threatened by an unlawful act or omission" in data gathering may seek judicial

¹¹ *Spouses Hing v. Choachuy*, G.R. No. 179736, June 17, 2013, 702 SCRA 468 (Phil.), available at https://lawphil.net/judjuris/juri2013/jun2013/gr_179736_2013.html.

¹² *Katz v. United States*, 389 U.S. 347, 361 (1967) (Harlan, J., concurring), available at <https://supreme.justia.com/cases/federal/us/389/347/>.

¹³ *Id.*

¹⁴ *Spouses Hing v. Choachuy*, supra note 11

¹⁵ *Id.*

¹⁶ *Id.*

¹⁷ *Vivares v. St. Theresa's College*, G.R. No. 202666, Sept. 29, 2014, 744 Phil. 451 (Phil.), available at https://lawphil.net/judjuris/juri2014/sep2014/gr_202666_2014.html

¹⁸ *Data Privacy Act of 2012*, supra note 3.



relief.¹⁹ This doctrine applies directly to CCTV operators, though procedural barriers render the remedy frequently inaccessible to ordinary citizens.

The constitutional privacy framework does not remain abstract but translates into concrete limits on government action. In *Pollo v. Constantino-David*,²⁰ The Supreme Court established that while privacy is constitutionally protected, "the constitutional guarantee is not a prohibition of all searches and seizures but only of 'unreasonable' searches and seizures."²⁰ The Court adopted the framework articulated in *O'Connor v. Ortega*,²¹ noting that the U.S. Supreme Court "laid down a balancing test under which government interests are weighed against the employee's reasonable expectation of privacy."²²

This balancing test proves critical for CCTV regulation. Surveillance systems, whether deployed by government agencies or mandated by administrative fiat, must satisfy constitutional reasonableness requirements. Under the *O'Connor*²³ framework adopted in *Pollo*, government surveillance must be: (1) "justified at its inception" by reasonable grounds for suspecting work-related misconduct or legitimate administrative needs; and (2) "permissible in its scope" such that "the measures adopted are reasonably related to the objectives of the search and not excessively intrusive."²⁴ These constitutional requirements bind all subsequent statutory and administrative action, yet as the following chronology demonstrates, Philippine CCTV regulation developed with minimal attention to these foundational constraints.

Phase 1: (2009–2011)

Philippine CCTV regulation began not with privacy considerations but with administrative convenience.

¹⁹ *Vivares v. St. Theresa's College*, supra note 17.

²⁰ *Pollo v. Constantino-David*, G.R. No. 181881, 663 Phil. 665, 685–86 (Oct. 18, 2011), https://lawphil.net/judjuris/juri2011/oct2011/gr_181881_2011.html.

²¹ *O'Connor v. Ortega*, 480 U.S. 709 (1987), <https://supreme.justia.com/cases/federal/us/480/709/>.

²² *Pollo v. Constantino-David*, supra note 21.

²³ *O'Connor v. Ortega*, supra note 23..

²⁴ *Pollo v. Constantino-David*, supra note 21.



In 2009, Metropolitan Manila Development Authority Resolution 09-02²⁵ authorized the use of digital cameras to apprehend traffic violators and emphasized “no physical contact” in enforcement. MMDA Resolution 10-02 (2010)²⁶ expanded and clarified traffic monitoring rules, specifying traffic rules enforcement. It may have included guidance for business or private cooperation but contained no explicit discussion of privacy.

MMDA Memorandum Circular 05-A (2011)²⁷ provided operational guidelines for CCTV-based enforcement under MMDA regulations and procedural details for traffic monitoring.

This period preceded the Data Privacy Act (RA10173, 2012),²⁸ which explains why CCTV operations proceeded with minimal regulatory attention to privacy safeguards. Although existing statutes such as Civil Code Art.26(1) (1950)²⁹, Anti-Wiretapping Act of 1965 (RA4200)³⁰, and Anti-Photo and Video Voyeurism Act of 2009 (RA9995)³¹ recognized privacy in residences and private communications and criminalized voyeuristic recordings. However, these laws were not applied to administrative or commercial CCTV operations, leaving gaps in protection regarding signage, retention policies, and procedural safeguards.

The expansion of CCTV-based traffic enforcement during this period was driven primarily by administrative fiat, without legislative debate or formal privacy assessments. This approach illustrates a broader principle recognized by the Philippine Supreme Court

In *Ople v. Torres* (G.R. No. 127685, 1998),³² the Court struck down an administrative order creating a national identification system because it required a legislative act and was broad, vague, and over-broad, putting the

²⁵ Metropolitan Manila Development Authority Resolution No. 09-02 (Jan. 21, 2009) (Phil.), available at <https://elibrary.judiciary.gov.ph/thebookshelf/showdocs/11/46753>.

²⁶ Metropolitan Manila Development Authority Resolution No. 10-02 (Jan. 21, 2010) (Phil.), available at <https://elibrary.judiciary.gov.ph/thebookshelf/showdocs/10/49975>.

²⁷ Metropolitan Manila Development Authority Memorandum Circular No. 05-A, s. 2011 (Apr. 8, 2011) (Phil.), available at <https://elibrary.judiciary.gov.ph/thebookshelf/showdocs/10/52364>.

²⁸ *Data Privacy Act*, supra note 3.

²⁹ Republic Act No. 386, Civil Code of the Philippines art. 26(1) (1950) (Phil.), available at <https://elibrary.judiciary.gov.ph/thebookshelf/showdocs/2/53360>

³⁰ *Anti-Wiretapping Act*, supra note 4.

³¹ Republic Act No. 9995, *Anti-Photo and Video Voyeurism Act of 2009* (Phil.), available at https://lawphil.net/statutes/repacts/ra2010/ra_9995_2010.html.

³² *Ople v. Torres*, G.R. No. 127685, July 23, 1998, available at https://lawphil.net/judjuris/juri1998/jul1998/gr_127685_1998.html.



people's right to privacy in clear and present danger. By analogy, large-scale data-processing systems like the MMDA CCTV network, if deployed without legislative authorization or baseline safeguards such as retention limits or public notice, could be constitutionally vulnerable.

Phase 2: (2012–2020)

The Data Privacy Act of 2012 (RA 10173)³³ introduced comprehensive principles applicable to CCTV but omitted CCTV-specific provisions. The law required legitimate purpose, proportionality, mandatory signage, limited retention with disposal policies, data subject rights, and security measures.

Yet the law established no hierarchy clarifying how Data Privacy Act³⁴ requirements interact with Metropolitan Manila Development Authority mandates.

Spouses Hing v. Choachuy (2013),³⁵ marked the first Supreme Court engagement with CCTV privacy issues. The Court held that cameras “revolving”³⁶ from respondents’ property to span adjacent private lots constituted a violation of privacy, emphasizing proportionality: if security were the purpose, “the camera should revolve only towards their properties at the back.”³⁷

The National Privacy Commission, established under the Data Privacy Act,³⁸ issued NPC Circular 17-01 (2017),³⁹ the first guidance on CCTV, introducing registration requirements, legitimate interest tests, and data subject rights. While the Circular applied to private entities, enforcement over government agencies remained procedurally limited rather than jurisdictionally excluded.

³³ *Data Privacy Act*, supra note 3.

³⁴ *Id.*

³⁵ *Spouses Hing v. Choachuy*, supra note 11

³⁶ *Id.*

³⁷ *Id.*

³⁸ *Data Privacy Act*, supra note 3.

³⁹ Nat'l Privacy Comm'n [Phil.], Circ. No. 17-01, Registration of Data Processing Systems and Notifications Regarding Automated Decision-Making (July 31, 2017), <https://privacy.gov.ph/npc-circular-17-01-registration-data-processing-notifications-regarding-automated-decision-making/>.



The Safe Spaces Act (RA 11313, 2019)⁴⁰ created additional tension by mandating CCTV installation in public areas to prevent harassment while simultaneously criminalizing misuse of footage. The Act does not provide an explicit hierarchy for reconciling privacy with safety obligations, leaving potential conflicts unresolved.

The Cybercrime Prevention Act (RA 10175, 2012)⁴¹ authorized law enforcement to collect CCTV footage as "computer data,"⁴² but *Disini v. Secretary of Justice* (2014)⁴³ limited real-time digital data collection under constitutional safeguards. This established that surveillance powers, though granted, remain subject to restraint, enforceable primarily through case-by-case litigation.

Phase 3: (2022–2024)

NPC Circular 2022-04⁴⁴ provided the first comprehensive CCTV framework, introducing proportionality standards, retention limits, signage, and access logs. Yet as "just a circular,"⁴⁵ it bound no government agencies and carried no criminal penalties for violations.

Competing mandates multiplied. DILG Memorandum Circular 2022-060⁴⁶ pushed local government units (LGUs) toward CCTV expansion for crime prevention. Business owners faced contradictory obligations. LGUs threatened to deny permits without CCTV. The National Privacy Commission

⁴⁰ *Safe Spaces Act*, supra note 2.

⁴¹ Republic Act No. 10175, An Act Defining Cybercrime, Providing for the Prevention, Investigation, Suppression and the Imposition of Penalties Therefor and for Other Purposes (Cybercrime Prevention Act of 2012) (Phil.), Sept. 12, 2012, available at https://lawphil.net/statutes/repacts/ra2012/ra_10175_2012.html.

⁴² *Id.*

⁴³ Jose Jesus M. Disini, Jr. et al. v. Secretary of Justice, G.R. No. 203335, 22 Apr. 2014 (Phil.), available at https://lawphil.net/judjuris/juri2014/apr2014/gr_203335_2014.html

⁴⁴ National Privacy Commission, Circular No. 2022-04: Registration of Personal Data Processing Systems, Notification Regarding Automated Decision-Making or Profiling, Designation of Data Protection Officer, and NPC Seal of Registration (Phil.), Jan. 11 2023, available at <https://www.privacy.gov.ph/wp-content/uploads/2023/05/Circular-2022-04-1.pdf>.

⁴⁵ *Id.*

⁴⁶ Department of the Interior and Local Government (Phil.), Memorandum Circular No. 2022-060: Amending Memorandum Circular No. 2014-119, Directing Cities, Capital Towns to Require the Installation of Closed-Circuit Televisions (CCTV) for Certain Business Establishments in Accordance with Section 16 (General Welfare Clause) of Republic Act No. 7160, to Support the Maintenance of Peace and Order and Public Safety (Phil.), [date of signing if available], available at <https://www.dilg.gov.ph/issuances/mc/Amending-DILG-MC-No-2014-119-Titled-Directing-Cities-Capital-Towns-to-Require-the-Installation-of-Closed-Circuit-Televisions-CCTV-for-certain-Business-Establishments-in-Accordance-with-section-16-General-Welfare-Clause-of-Republic-Act-No-7160-to-Support-the-Maintenance-of-Peace-and-Order-and-Public-Safety/3557>.



threatened penalties for privacy violations. The system pressured compliance with requirements that conflicted at foundational levels.

The Philippine Identification System Act (RA 11055, 2018)⁴⁷ established biometric data collection on a national scale. Combined with facial recognition technology, which is technology already deployed before regulatory frameworks emerged. It created mass surveillance capability. The statute's relationship to CCTV integration remained unaddressed.

Most troublingly, NPC Circular 2024-02⁴⁸ issued biometric and facial recognition guidelines years after technology deployment. Regulation chased technology rather than anticipating it. AI analytics, real-time facial recognition, database integration, none received legislative framework, only belated administrative guidance.

The Safe Philippines Project,⁴⁹ jointly implemented by the DILG and Huawei under Chinese financing, epitomized these governance failures. Conceived as a national public-safety network linking thousands of AI-enabled cameras, it advanced without comprehensive legislation, public consultation, or privacy safeguards, illustrating how Philippine regulation continued to chase, rather than shape, technological surveillance capacity.⁵⁰

A Comprehensive Law

The fragmentation detailed above is not merely inefficient but constitutionally untenable. When the DILG threatens business permit denials for non-compliance with CCTV mandates while the NPC simultaneously threatens penalties for privacy violations arising from those same installations, the rule of law itself fractures. Business owners and local government units cannot simultaneously comply with contradictory legal obligations. This places private actors in an impossible position where any choice invites sanction,

⁴⁷ Republic Act No. 11055, An Act Establishing the Philippine Identification System (PhilSys) (Phil.), Aug. 6, 2018, available at https://lawphil.net/statutes/repacts/ra2018/ra_11055_2018.html.

⁴⁸ National Privacy Commission, Circular No. 2024-02: Closed-Circuit Television (CCTV) Systems (Phil.), Aug. 12 2024, available at

<https://www.privacy.gov.ph/wp-content/uploads/2024/08/NPC-Circular-No.-2024-02-CCTV-Systems.pdf>.

⁴⁹ Department of the Interior and Local Government (Phil.), *Safe Philippines Project* (2019), available at <https://sdg.depdev.gov.ph/safe-philippines-project/>.

⁵⁰ Stratbase ADR Inst. for Strategic & Int'l Stud., *Are the Risks of the Safe Philippines Project Worth the Potential Benefits?*, BRI Monitor (2021), available at <https://www.brimonitor.org/wp-content/uploads/2024/08/SAFE-revised.pdf>.



violating the fundamental principle that laws must provide fair notice of prohibited conduct.

More critically, when surveillance mandates proliferate through administrative circulars rather than legislative enactment, they circumvent the deliberative process that constitutional governance requires for measures affecting fundamental rights.

The current regime effectively delegates constitutional balancing to whoever wields enforcement authority at any given moment: the traffic enforcer citing MMDA resolutions, the business permit officer invoking DILG circulars, or the NPC compliance officer applying data privacy standards. This approach inverts constitutional hierarchy by allowing administrative convenience to trump fundamental rights analysis.

Philippine jurisprudence demands that government action affecting constitutional liberties satisfy the balancing test articulated in *Pollo* (justified at inception and proportionate in scope). Yet no single authority currently performs this constitutional analysis across competing mandates. The absence of comprehensive legislation does not create regulatory flexibility but rather creates a void where constitutional protections become unenforceable because no tribunal possesses authority to reconcile the contradictions. Only congressional action establishing clear hierarchies, binding standards, and unified enforcement can restore constitutional coherence to surveillance regulation.

Comparative Law

Other jurisdictions demonstrate that comprehensive CCTV legislation is both feasible and effective. The European Union's General Data Protection Regulation establishes binding standards applicable to public and private actors,⁵¹ creates independent oversight authorities with enforcement power,⁵² and provides accessible remedies through data protection authorities.⁵³ While the Philippines need not adopt European models wholesale, the GDPR

⁵¹ Regulation 2016/679, of the European Parliament and of the Council of 27 April 2016, art. 6(1), 2016 O.J. (L 119) 1, 36 [hereinafter GDPR], available at <https://gdpr-info.eu/>.

⁵² *Id.* arts. 51(1), 52, 58(2); European Data Protection Board, Guidelines 3/2019 on Processing of Personal Data Through Video Devices, ¶ 101 (Jan. 29, 2020).

⁵³ GDPR, *supra* note 56, arts. 77(1), 78, 79(1); see also Joined Cases C-26/22 & C-64/22, SCHUFA Holding AG v. Datenschutzkonferenz, ECLI:EU:C:2023:958 (Dec. 7, 2023).



demonstrates that coherent surveillance regulation can balance security and privacy through clear legal hierarchies.⁵⁴

Singapore's Personal Data Protection Act similarly illustrates how comprehensive legislation can accommodate both government surveillance needs and privacy protection⁵⁵ through statutory frameworks that bind all actors, establish technological standards, and create enforcement mechanisms with real consequences.⁵⁶

The Philippines possesses the constitutional foundation, jurisprudential framework, and administrative experience to enact similarly comprehensive legislation. What remains absent is legislative consolidation.

Urgency of Action

The window for meaningful regulation narrows as surveillance infrastructure becomes technologically and politically entrenched. The Safe Philippines Project advances without comprehensive legislative framework,⁵⁷ while facial recognition capabilities integrate with PhilSys biometric databases⁵⁸ all before NPC Circular 2024-02 belatedly addressed such technologies.⁵⁹ When administrative systems process personal data on a massive scale without legislative authorization, they place "the people's right to privacy in clear and present danger,"⁶⁰ creating "a comprehensive cradle-to-grave dossier on an individual" enabling "a covert invitation to misuse, a temptation that may be too great for some of our authorities to resist."⁶¹ Each technological advancement without regulatory framework creates constituencies invested in existing practices, making retroactive regulation exponentially more difficult. Surveillance creep operates incrementally.⁶² Traffic cameras become crime-prevention networks become AI-enabled facial recognition systems, each step appearing modest yet collectively producing systems where "the individual lacks control over what

⁵⁴ GDPR, *supra* note 56, art. 6(3), recital 45, arts. 83(5)-(6).

⁵⁵ Personal Data Protection Act 2012 (Act 26 of 2012) (Sing.) [hereinafter PDPA]; Personal Data Protection Commission, Advisory Guidelines on the Personal Data Protection Act for Selected Topics ¶¶ 6.1-6.7 (revised May 2024), available at <https://sso.agc.gov.sg/Act/PDPA2012>.

⁵⁶ *Id.*

⁵⁷ *Safe Philippines Project*, *supra* note 54.

⁵⁸ *Philippine Identification System Act*, *supra* note 52.

⁵⁹ NPC Circular 2024-02, *supra* note 53.

⁶⁰ *Ople v. Torres*, *supra* note 10.

⁶¹ *Id.*

⁶² David Lyon, *Surveillance Studies: An Overview* 23-45 (2007)



can be read or placed on his ID, much less verify the correctness of the data encoded," threatening "the very abuses that the Bill of Rights seeks to prevent."⁶³ Once pervasive surveillance becomes normalized, *Morfe v. Mutuc*'s warning that "all the forces of a technological age—industrialization, urbanization, and organization—operate to narrow the area of privacy and facilitate intrusion into it,"⁶⁴ such that "the capacity to maintain and support this enclave of private life marks the difference between a democratic and a totalitarian society"⁶⁵ becomes practically unenforceable through retroactive dismantlement. The choice facing Philippine legislators is not whether to regulate CCTV comprehensively, but whether to act before technological capabilities and normalized practices render meaningful oversight impossible. That moment, once passed, cannot be recovered without constitutional crisis.

Conclusion

Fifteen years of piecemeal regulatory development have produced a framework that simultaneously mandates surveillance, restricts surveillance, and permits surveillance without resolving contradictions among these mandates. Philippine courts recognize privacy as a fundamental right and have applied sophisticated analytical frameworks to protect it.⁶⁶ What remains lacking is legislative action consolidating contradictory mandates into a coherent statutory structure.

The path forward requires legislation that: (1) establishes clear hierarchy when surveillance mandates conflict with privacy protections; (2) imposes binding standards on government and private actors alike; (3) creates genuinely independent oversight with real authority; (4) provides procedurally accessible remedies for affected individuals; and (5) establishes technology-neutral principles adaptable to inevitable surveillance innovations.

Without such measures, privacy rights exist in theory but remain unenforceable in practice, safeguards apply selectively, and administrative guidance operates as if it can override statutory mandates. Such a system fails

⁶³ *Morfe v. Mutuc*, supra note 8.

⁶⁴ *Id.*

⁶⁵ *Id.*

⁶⁶ *Ople v. Torres*, G.R. No. 127685, July 23, 1998, available at https://lawphil.net/judjuris/juri1998/jul1998/gr_127685_1998.html. See also *Velasco v. Secretary of Justice*, G.R. No. 171947, Nov. 13, 2008, recognizing privacy as a fundamental constitutional right.



both those seeking genuine privacy protection and those pursuing legitimate security objectives who deserve legal certainty.

Effective legislation requires political will but not revolutionary change. It demands consolidation of existing jurisprudence and administrative experience into clear, binding legal rules applicable across government and society. The question is not whether the Philippines can enact comprehensive CCTV legislation, but whether it will act before pervasive surveillance renders meaningful legal protection technically and politically impossible. The window for coherent regulation remains open, but it will not remain so indefinitely.

Bibliography

Constitution

CONST. (1987), art. III, § 2 (Phil.).

Jurisprudence

A. Philippine Cases

Morfe v. Mutuc, G.R. No. L-20387 (Jan. 31, 1968).

Ople v. Torres, G.R. No. 127685 (July 23, 1998).

Velasco v. Secretary of Justice, G.R. No. 171947 (Nov. 13, 2008).

Pollo v. Constantino-David, G.R. No. 181881 (Oct. 18, 2011).

Spouses Hing v. Choachuy, G.R. No. 179736 (June 26, 2013).

Vivares v. St. Theresa's College, G.R. No. 202666 (Sept. 29, 2014).

Disini v. Secretary of Justice, G.R. No. 203335 (Feb. 18, 2014).

B. Foreign Cases

Katz v. United States, 389 U.S. 347 (1967).

O'Connor v. Ortega, 480 U.S. 709 (1987).



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Statutes

Civil Code of the Philippines, Rep. Act No. 386, art. 26(1) (1950).

Anti-Wiretapping Act, Rep. Act No. 4200 (1965).

Anti-Photo and Video Voyeurism Act, Rep. Act No. 9995 (2009).

Data Privacy Act, Rep. Act No. 10173 (2012).

Cybercrime Prevention Act, Rep. Act No. 10175 (2012).

Philippine Identification System Act, Rep. Act No. 11055 (2018).

Safe Spaces Act, Rep. Act No. 11313 (2019).

Anti-Terrorism Act, Rep. Act No. 11479 (2020).

Supreme Court Rules

Rules on the Writ of Habeas Data, A.M. No. 08-1-16-SC (Jan. 29, 2008).

Administrative Issuance

Nat'l Privacy Comm'n Circ. No. 17-01 (2017).

Nat'l Privacy Comm'n Circ. No. 2022-04 (2022).

Nat'l Privacy Comm'n Circ. No. 2024-02 (2024).

Dep't of the Interior & Local Gov't Mem. Circ. No. 2022-060 (2022).

Metro. Manila Dev. Auth. Res. No. 09-02 (2009).

Metro. Manila Dev. Auth. Res. No. 10-02 (2010).

Metro. Manila Dev. Auth. Mem. Circ. No. 05-A (2011).



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Volume 5, Year 2025-2026

Comparative International Articles

Regulation 2016/679 of the European Parliament and of the Council of 27 Apr. 2016, 2016 O.J. (L 119) 1 [General Data Protection Regulation (GDPR)].

Personal Data Protection Act 2012 (Act 26 of 2012) (Sing.).

VII. Secondary Sources

David Lyon, *Surveillance Studies: An Overview* (Polity Press 2007).

Stratbase ADR Institute for Strategic & Int'l Studies, *Are the Risks of the Safe Philippines Project Worth the Potential Benefits?* (BRI Monitor 2021).

Dep't of the Interior & Local Gov't (Phil.), *Safe Philippines Project* (2019).



So You Think the Children Are Safe at Home? An Analysis of Philippines' Readiness to Launch a Digital War Against Exploitation

Prosec. Federic Lois Regencia

I. Introduction

The advent of the digital age, while bringing revolutionary changes in connecting people, has enabled a very alarming form of child exploitation that thrives in the virtual world. In the recent years, especially during the height of the pandemic, the Philippines has slowly emerged as a hotspot for cases of Online Sexual Abuse and Exploitation of Children or OSAEC and the proliferation of Child Sexual Abuse and Exploitation Materials or CSAEM. The availability of the internet, which has become wide-spread and can even reach far-flung areas in the country, has created a fertile ground for perpetrators to victimize children, with minimal risk of detection.

This article argues that while the legal framework of the Philippines has significantly progressed through sensible legal reforms, such reforms seem tone-deaf as the actual response still struggles to keep pace with the evolving forms of digital abuse. The challenges of enforcement, jurisdictional complexities, and digital evidentiary issues are factors to consider the recalibration of strategies to safeguard children in an era where inhibitions are close to non-existent in the digital space.

II. Understanding OSAEC and CSAEM

Online sexual abuse or exploitation of children (OSAEC) refers to the use of ICT as a means to abuse and/or exploit children sexually, which includes cases in which offline child abuse and/or exploitation is combined with an online component. This can also include, but is not limited to, the production, dissemination and possession of CSAEM; online grooming of children for sexual purposes; sexual extortion of children, sharing image-based sexual abuse; commercial sexual exploitation of children; exploitation of children through online prostitution; and live-streaming of sexual abuse, with or without the consent of the victim.¹

Child sexual abuse or exploitation material or child sexual abuse material (CSAEM/CSAM) refers to any representation, whether offline, or by, through or with the use of ICT, by means of visual, video, audio, written, or any combination thereof, by electronic, mechanical, digital, optical, magnetic or any

¹ Republic Act 11930, §3(t)



other means, of a child engaged or involved in real or simulated sexual activities, or depicting acts of sexual abuse or exploitation of a child as a sexual object. It shall also include materials that focus on the genitalia or other private body parts of a child.²

The nature of OSAEC and CSAEM has evolved with digital innovation. Perpetrators now leverage encrypted messaging apps, digital wallets, cryptocurrency, and peer-to-peer platforms to produce, distribute, and monetize abusive content. These technological shifts pose significant challenges for law enforcement and judicial authorities, particularly in locating offenders, preserving evidence, and prosecuting crimes across borders.

III. The Philippine Legal Framework

Anti-OSAEC and Anti-CSAEM Act of 2022³

This is a landmark legislation specifically addressing online child sexual exploitation. It expands the definition of CSAEM, criminalizes grooming and livestreaming of abuse, and strengthens extraterritorial jurisdiction. It also imposes obligations on internet intermediaries to preserve data and report abuse, and creates a National Coordinating Center under the Department of Justice.

Anti-Child Pornography Act of 2009⁴

This law criminalizes the production, possession, and distribution of child pornography. It mandates internet service providers to cooperate with law enforcement and includes provisions on the reporting and blocking of abusive content.

Anti-Trafficking in Persons Act⁵

This law covers child trafficking facilitated through digital means and penalizes those who recruit, transport, or harbor minors for online sexual exploitation.

² Republic Act 11930 §3(c)

³ Republic Act No. 11930.

⁴ Republic Act No. 9775.

⁵ Republic Act No. 9208, as amended by RA 10364 .



***Special Protection of Children Against Abuse, Exploitation and Discrimination Act*⁶**

This law provides the general framework for child protection in the Philippines and is often cited in OSAEC-related prosecutions.

The above statutes form a multi-layered legal architecture for combating OSAEC and CSAEM, supported by specialized units such as the DOJ Office of Cybercrime, PNP Anti-Cybercrime Group, NBI Cybercrime Division, and the Inter-Agency Council Against Trafficking (IACAT).

IV. The Philippine Landscape on OSAEC and CSAEM

Incidents Rising

In 2025, the Commission on Human Rights report published by the CHR's Children's Rights Center⁷ highlighted a sudden escalation in OSAEC cases which surged on the onset of the Covid-19 pandemic. In 2019, the National Center for Missing and Exploited Children (NCMEC) recorded 426,000 cyber tipline reports. This figure nearly tripled in 2020 to 1,297,000 cases, and continued to escalate in 2023, with 2,740,905 reported incidents.⁸ The surge is more than sixfold in a matter of four years which demonstrates the intensity of online child exploitation in the Philippines.

Perpetration Drivers

CHR identifies poverty and economic vulnerability as key drivers behind the surge. The more alarming fact is that these exploitations are, more often than not, being facilitated by family members rather than criminals and syndicates. There is reluctance on the part of the victims to report such abuses due to shame, fear, and emotional trauma.⁹

⁶ Republic Act No. 7610.

⁷ CHR Releases Human Rights Situation Report On The Online Sexual Abuse And Exploitation Of Children In The Philippines, https://chr.gov.ph/2025/statements/press-release/chr-releases-human-rights-situation-report-on-the-online-sexual-abuse-and-exploitation-of-children-in-the-philippines/?utm_source=chatgpt.com, last accessed July 23, 2025.

⁸ IJM Supports Philippine President's Directive to Combat Online Sexual Exploitation of Children, <https://www.ijmuk.org/stories/ijm-supports-philippine-presidents-directive-to-combat-online-sexual-exploitation-of-children>, last accessed July 23, 2025.

⁹ Supranote 7.



The University of the Philippines-Manila also published an article on the perpetrator profiles on OSAEC. The result is very alarming with 51% of offenders being female, primarily caregivers or family members. Among identified relationships: 46% were strangers introduced by third parties, 17% were family members, 14% were friends, and 12% were neighbors.¹⁰ This was based on a study of cases heard by the Supreme Court from 2003 to 2024.

Case Handling and Convictions

When the Anti-OSAEC and Anti-CSAEM Law was enacted in 2022, the DOJ established the National Coordinating Center (NCC-OSAEC-CSAEM) under IACAT. By November 2023, the PNP Women and Children Protection Center had recorded over 17,600 child rights violation cases, many of which fell under online abuse provisions. Out of these, more than 1,000 victims had been formally reported to the DOJ, and prosecutions were underway against over 300 alleged perpetrators.¹¹ In the early 2024, at least 200 convictions have been reported under OSAEC/CSAEM cases.¹²

Context Analysis

The magnitude of the reports underscores systematic vulnerabilities, especially among impoverished communities who are digitally exposed. The greater problem here is that most of the OSAEC and CSAEM incidents are not reported due to social stigma and persecution from trusted relationships. This cannot be prevented as there is prevalence of family-based offenders that complicates detection and intervention. Also, while there are more than 200 convictions already from the inception of the Anti-OSAEC and Anti-CSAEM Law, this number pales in comparison to the millions of CHR's reported incidents. What seems to be the legal hurdle are the evidentiary challenges and enforcement-resource bottlenecks that prevents broader prosecution of these abuses.

¹⁰ Trusted Individuals, Not Criminal Syndicates, Behind Online Child Abuse in the Philippines, https://www.upm.edu.ph/cpt_news/trusted-individuals-not-criminal-syndicates-behind-online-child-abuse-in-the-philippines/, last accessed July 23, 2025.

¹¹ Filipinos Cautioned vs. AI-Generated Child Exploitation Materials, <https://www.pna.gov.ph/index.php/articles/1218385>, last accessed July 23, 2025.

¹² NCC-OSAEC-CSAEM Concludes 3-Day Cascading Forum On R.A. No. 11930, https://www.doj.gov.ph/news_article.html?newsid=qAdTXp0ZIVsFCaUegj27atSTXZYWVTXuhxB0uVsyDTc, last accessed July 23, 2025.



V. International Comparatives

The global legal response to Online Sexual Abuse and Exploitation of Children (OSAEC) and Child Sexual Abuse and Exploitation Materials (CSAEM) has evolved rapidly, with several jurisdictions implementing landmark reforms.

The United Kingdom, through its Online Safety Bill, imposes statutory duties of care on digital platforms to address illegal content, particularly CSAEM.¹³ Australia's Online Safety Act 2021 grants its eSafety Commissioner powers to order takedowns of harmful content within 24 hours.¹⁴

The Netherlands has become a pivotal actor in transnational OSAEC investigations. In coordination with INTERPOL and Europol, Dutch authorities have implemented rapid-response digital forensic protocols to combat livestreamed child abuse and CSAEM dissemination.¹⁵ Such collaborations demonstrate how strong national institutions, embedded in international frameworks, enhance global enforcement capacity.

Moreover, Budapest Convention on Cybercrime, which the Philippines ratified in 2018, is the primary instrument governing cross-border cooperation in cybercrime investigations. It provides standardized rules on real-time traffic data collection, preservation of digital evidence, and mutual legal assistance.¹⁶ Furthermore, the Philippines is bound by the Optional Protocol on the Sale of Children, Child Prostitution and Child Pornography (OPSC) under the UNCRC. This treaty obliges State Parties to criminalize all forms of child exploitation and adopt legislative, administrative, and judicial remedies.

These developments are instructive for the Philippines.

VI. Legal Gaps and Challenges in Status Quo

Despite the presence of multiple legislative measures addressing online child exploitation, critical implementation gaps persist within the Philippine legal and enforcement ecosystem.

¹³ Woods, L. (2022). "The Online Safety Bill and the Duty of Care Debate." *Modern Law Review*, Vol. 85(3).

¹⁴ Greenleaf, G. & Suzor, N. (2021). "Balancing Rights in Australia's Online Safety Laws." *Melbourne University Law Review*, Vol. 45(2).

¹⁵ Van Erp, J. & van der Hulst, R. (2020). "Dutch Cybercrime Enforcement: Transnational Trends and Local Practices." *European Journal of Crime, Criminal Law and Criminal Justice*, Vol. 28.

¹⁶ Brenner, S. (2011). "The Council of Europe Convention on Cybercrime." *Journal of International Law and Technology*, Vol. 6.



Extraterritoriality

The international nature of OSAEC and CSAEM offenses is one of the most dangerous issues. A lot of the perpetrators are operating outside the territorial jurisdiction of the Philippines. Such perpetrators orchestrate abuse through livestreams, online grooming, or digital distribution while remaining physically untouchable by local authorities. This is a problem that can only be resolved through cooperation with foreign governments on mutual legal assistance treaties (MLATs). This is complicated as it hinges on the compatibility of substantive criminal laws, and the efficiency of intergovernmental communication channels. In some cases, delays in coordination result in the loss of key digital evidence or the inability to apprehend foreign-based perpetrators before they change platforms or identities.

Competence in Handling Digital Evidence

Digital evidence is also challenging. OSAEC crimes frequently involve livestreamed abuse that is ephemeral which can leave no trace unless captured in real time by law enforcement. This requires extensive technological and digital resources which presently the government is struggling to provide. Moreover, the chain of custody for digital materials, already a sensitive issue in cybercrime litigation, is even more precarious in OSAEC cases where files may be transferred across encrypted servers or peer-to-peer networks. This means that the authentication, preservation, and admissibility of such evidence in Philippine courts remain contested areas especially when there is still lack in experience in handling such type of evidence.

Institutional Preparedness

To make matters worse, it is not an uncommon problem that the government does not have the budgetary prowess to cater to enforcement. The institutional capacity remains a foundational barrier. Digital forensic capabilities of the government are often limited by lack of budget, understaffed agencies, and outdated technological infrastructure. Moreover, while laws such as RA 11930 impose mandatory reporting and data retention obligations on Internet Service Providers (ISPs) and content platforms, compliance monitoring remains weak, especially for global technology companies not based in the Philippines.



Right to Privacy

Surveillance can also be hampered by absolute prioritization of privacy rights.. Efforts to introduce aggressive content monitoring, data scraping, or mass surveillance to detect CSAEM often clash with constitutional protections under the Philippine Data Privacy Act of 2012 (RA 10173) and Article III, Section 3 of the 1987 Constitution, which guarantees the right to privacy and communication. This usually lead to debates on the proportionality and necessity of state intrusion especially in seeking access to encrypted communications.

Community Digital Literacy

Public awareness and community involvement remain underdeveloped. This weakens the first line of defense against OSAEC and CSAEM. Local government units, barangay officials, educators, and even parents are often unequipped to recognize red flags of abuse, particularly when it occurs in the privacy of homes. This failure to cultivate digital literacy and community vigilance, despite its inclusion in national child protection strategies, means that OSAEC cases frequently go unreported or undetected until major crackdowns are initiated. Without a more aggressive grassroots support system, even the most well-crafted laws will struggle to provide protection for vulnerable Filipino children.

VII. Conclusion

The ongoing battle in the digital landscape is not simply a matter of enforcing criminal statutes but a direct challenge to our collective commitment to uphold children's rights. These forms of exploitation violate the very core of child protection: the right of every child to grow up in an environment free from abuse, fear, and violence.

While the Philippines has enacted a series of legislative measures, these efforts, though substantial, must be continuously recalibrated to respond to the complex realities of modern digital harm.

The challenges we face today are not static. Digital platforms evolve rapidly, and with them, so do the tactics of predators who exploit both legal and technological loopholes. It is no longer enough to pass laws that criminalize abusive conduct after the fact. Legal norms must anticipate emerging threats and provide flexible frameworks. For this to happen, legal reforms must be met with genuine institutional preparedness.



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Yet laws and institutions alone cannot fully shield children from exploitation. A vigilant and informed public is indispensable. Parents, educators, barangay officials, and civil society actors all play crucial roles in early detection, reporting, and prevention. Building a digitally literate society, where online risks are widely understood and responsibly mitigated, is as critical as punishing offenders. Community-based education and advocacy campaigns must be adequately funded and institutionalized.

Moreover, regional and international cooperation must be deepened beyond existing treaties and memoranda. Tackling OSAEC and CSAEM in a meaningful way requires a consistent framework for cross-border investigations, standardized evidentiary procedures, and joint prosecutorial strategies. The Philippines must remain an active participant in multilateral efforts, particularly within ASEAN and under UN-led initiatives, to ensure that its domestic legal framework is aligned with global standards while retaining sufficient teeth to hold all enablers accountable.

Ultimately, the digital world must not become a space where vulnerable children are rendered invisible, voiceless, or disposable. We must build an online environment rooted in safety, transparency, and dignity. Protecting children from digital exploitation is not a matter of convenience, nor should it be treated as an ancillary concern. It is a defining test of our legal imagination, moral will, and human compassion in the 21st century.



Bibliography

Laws

Republic Act No. 11930.

Republic Act No. 7610.

Republic Act No. 9208, as amended by RA 10364 .

Republic Act No. 9775.

Government Articles

CHR Releases Human Rights Situation Report On The Online Sexual Abuse And Exploitation Of Children In The Philippines, https://chr.gov.ph/2025/statements/press-release/chr-releases-human-rights-situation-report-on-the-online-sexual-abuse-and-exploitation-of-children-in-the-philippines/?utm_source=chatgpt.com, last accessed July 23, 2025.

Filipinos Cautioned vs. AI-Generated Child Exploitation Materials, <https://www.pna.gov.ph/index.php/articles/1218385>, last accessed July 23, 2025.

NCC-OSAEC-CSAEM Concludes 3-Day Cascading Forum On R.A. No. 11930, https://www.doj.gov.ph/news_article.html?newsid=qAdTXp0ZIVsFCaUegj27atSTXZYWVTXuhxB0uVsyDTc, last accessed July 23, 2025.

Journals

Brenner, S. (2011). "The Council of Europe Convention on Cybercrime." *Journal of International Law and Technology*, Vol. 6.

Greenleaf, G. & Suzor, N. (2021). "Balancing Rights in Australia's Online Safety Laws." *Melbourne University Law Review*, Vol. 45(2).

Van Erp, J. & van der Hulst, R. (2020). "Dutch Cybercrime Enforcement: Transnational Trends and Local Practices." *European Journal of Crime, Criminal Law and Criminal Justice*, Vol. 28.



Journal for Law Advocacy
Volume 5, Year 2025-2026

Woods, L. (2022). "The Online Safety Bill and the Duty of Care Debate." Modern Law Review, Vol. 85(3).

Articles

IJM Supports Philippine President's Directive to Combat Online Sexual Exploitation of Children,
<https://www.ijmuk.org/stories/ijm-supports-philippine-presidents-directive-to-combat-online-sexual-exploitation-of-children>, last accessed July 23, 2025.

Trusted Individuals, Not Criminal Syndicates, Behind Online Child Abuse in the Philippines,
https://www.upm.edu.ph/cpt_news/trusted-individuals-not-criminal-syndicates-behind-online-child-abuse-in-the-philippines/, last accessed July 23, 2025.

"So potent indeed is the power that it was once opined that "the power to tax involves the power to destroy." Verily, taxation is a destructive power which interferes with the personal and property rights of the people and takes from them a portion of their property for the support of the government."

-Justice Davide Jr, in Mactan Cebu International Airport Authority v. Marcos



Articles on

COMMERCE & TAX



E-Wallets and the Price of Convenience: Legal and Regulatory Dimensions of Financial Privacy in the Philippine Cashless Economy

John Patrick S. Palquiran

1. Introduction

In recent years, the Philippines has experienced a rapid shift toward digital financial services. E-wallet platforms have transitioned from niche payment options to mainstream instruments of daily commerce, contributing to a notable increase in both the share and value of retail payments conducted through digital channels. According to the Bangko Sentral ng Pilipinas (BSP), the share of digital payment transactions in total monthly retail payments rose from 42.1% in 2022 to 52.8% in 2023, surpassing the BSP's 50% target under its Digital Payments Transformation Roadmap, with roughly PHP 6.1 trillion in digital payments recorded for 2023.¹ This trend is further reflected in consumer behavior, with 87% of Filipinos using e-wallets, particularly for QR payments and mobile payment apps, ranking the country second in Southeast Asia, just behind Indonesia.²

Yet the Philippines' progress toward a cashless economy has also brought rising concerns over data breaches, unauthorized access, and fraud that threaten both consumer confidence and market trust, as reflected in the Bangko Sentral ng Pilipinas' report of around 70,000 consumer complaints in 2024,³ including ₱3.37 billion worth of unauthorized transactions,⁴ and TransUnion's finding that the country's suspected digital fraud rate (13.4%) is 148% higher than the global average.⁵ The National Privacy Commission (NPC) has repeatedly investigated incidents of unauthorized transactions and issued advisories emphasizing accountability, breach notification, and limits on intrusive processing.⁶ At the same time, the rapid growth of e-wallet platforms has exposed regulatory gaps and enforcement challenges. While these private

¹ Bangko Sentral ng Pilipinas, 2023 Report on E-Payments Measurement, at 4-5 (2023), https://www.bsp.gov.ph/PaymentAndSettlement/2023_Report_on_E-payments_Measurement.pdf

² E-Wallets Rise as Leading Payment Method in Southeast Asia, Fintech News Singapore (Oct. 22, 2024), <https://fintechnews.sg/102286/mobilepayments/e-wallet-southeast-asia/>.

³ Bangko Sentral ng Pilipinas (BSP). (2025, June 13). *More financial complaints lodged to BSP*. Philippine Star.

⁴ BusinessMirror. (2025, June 17). *BSP cases cover ₱3.37-B transactions*.

⁵ TransUnion. (2025, May 16). *Philippines' suspected digital fraud rate higher than global level for fifth consecutive year*. TransUnion Newsroom.

⁶ National Privacy Commission, NPC Circular No. 16-03: Personal Data Breach Management (Dec. 15, 2016), <https://privacy.gov.ph/wp-content/uploads/2022/01/sgd-npc-circular-16-03-personal-data-breach-management.pdf>



actors process large volumes of sensitive financial and personal data, oversight remains fragmented across banking supervision, consumer protection, and data-protection regimes.⁷

This digitalization of payments carries significant constitutional implications. The 1987 Philippine Constitution guarantees that “the privacy of communication and correspondence shall be inviolable” under Article III, Section 3(1), except under limited, law-prescribed circumstances.⁸ These protections are not merely aspirational as they establish the legal basis where statutes and regulatory measures must be assessed.

This paper focuses on the intersection of constitutional guarantees, statutory safeguards, and financial-sector regulations to evaluate the sufficiency of current frameworks in protecting the financial privacy of e-wallet users. It analyzes the relationship among constitutional guarantees under Article III of the 1987 Constitution, the Data Privacy Act and related issuances of the National Privacy Commission (NPC), the supervisory rules of the Bangko Sentral ng Pilipinas (BSP), and sectoral legislation such as the Internet Transactions Act, the Anti-Financial Account Scamming Act (AFASA) and the Cybercrime Prevention Act.

2. Philippine Legal and Regulatory Framework

2.1. Constitutional Foundations

The protection of financial privacy in the Philippines is anchored on the Bill of Rights of the 1987 Constitution, which enshrines the inviolability of private communications and correspondence. Article III, Section 3(1) provides that “the privacy of communication and correspondence shall be inviolable except upon lawful order of the court, or when public safety or order requires otherwise as prescribed by law.”⁹ This constitutional guarantee is the baseline state or private intrusion into personal data flows, including those generated by financial transactions through e-wallet platforms.

Jurisprudence has clarified the scope of this right in the context of technological change. In *Ople v. Torres*, the Supreme Court struck down Administrative Order No. 308, which sought to establish a national

⁷ World Bank, Philippines First Financial Sector Reform Development Policy Financing Project 12-13 (2021), <https://documents1.worldbank.org/curated/en/982841624845656790/pdf/Philippines-First-Financial-Sector-Reform-Development-Policy-Financing-Project.pdf>

⁸ Constitution of the Republic of the Philippines, Article III, Section 3(1) (1987).

⁹ *Id.*



computerized identification reference system. The Court held that the order was unconstitutional because it posed a serious threat to the right to privacy and was issued without clear legislative authority or adequate safeguards.¹⁰ In this case, the Court emphasized that privacy is a fundamental right implicit in the due process and liberty clauses, and not merely a statutory interest. Similarly, *Disini v. Secretary of Justice*, the Supreme Court upheld most provisions of the Cybercrime Prevention Act of 2012 (RA 10175) as constitutional. However, it struck down certain provisions, including the take-down clause under Section 19, for being overbroad and violative of freedom of expression and the right to privacy. The Court emphasized that while the State may regulate cybercrimes, such regulation must not unduly curtail constitutional rights in the digital age.¹¹

2.2. The Data Privacy Act of 2012 (Republic Act No. 10173)

The Data Privacy Act of 2012 (DPA) serves as the Philippines' general data protection framework.¹² It operationalizes the constitutional guarantees of privacy and communication by prescribing obligations for personal information controllers (PICs) and personal information processors (PIPs), including e-wallet operators. Some of the salient features of the DPA are the principles of transparency, legitimate purpose, and proportionality, which function as normative anchors for lawful data processing.

Under Sections 3(b), 12, 18, and 20 of the Data Privacy Act of 2012¹³ and its Implementing Rules and Regulations,¹⁴ Personal Information Controllers (PICs) are mandated to uphold the principles of consent, transparency, and accountability in processing personal information. Consent must be freely given, specific, informed, and evidenced by written, electronic, or recorded means; transparency requires clear disclosure of data collection and processing practices.

The National Privacy Commission (NPC), created under the Data Privacy Act of 2012, is vested with quasi-judicial and regulatory powers to enforce compliance. For instance, NPC Circular No. 16-03 (Guidelines on Personal Data Breach Management) strengthened breach notification protocols by requiring

¹⁰ *Ople v. Torres*, G.R. No. 127685 (Supreme Court, July 23, 1998), https://lawphil.net/judjuris/juri1998/jul1998/gr_127685_1998.html

¹¹ *Disini v. Secretary of Justice*, G.R. No. 203335 (Supreme Court, February 18, 2014), https://lawphil.net/judjuris/juri2014/feb2014/gr_203335_2014.html

¹² Republic Act No. 10173 (Data Privacy Act of 2012).

¹³ *Id.*

¹⁴ Implementing Rules and Regulations of Republic Act No. 10173 (Data Privacy Act of 2012).



personal information controllers to notify the Commission within seventy-two (72) hours from knowledge of, or reasonable belief that, a personal data breach has occurred, and to inform affected data subjects when the breach is likely to result in serious harm.¹⁵ These instruments ensure that e-wallet operators adopt proactive risk management strategies and establish accountability mechanisms in the event of unauthorized transactions.

2.3. *Bangko Sentral ng Pilipinas (BSP) Regulations*

The BSP wields primary supervisory authority over financial institutions, including electronic money issuers (EMIs). Its regulatory issuances increasingly reflect an effort to embed consumer safeguards and data integrity into the financial-sector architecture.

BSP Circular No. 649 (2009) laid the foundational regulatory framework for EMIs.¹⁶ It imposed capitalization, liquidity, and anti-money laundering requirements, required transparent issuer identification, and constrained agent practices. In 2023, BSP Circular No. 1166 superseded Circular 649 and introduced enhanced governance, security, and operational standards for EMIs.¹⁷ These include requirements for robust internal controls, security policies safeguarding data integrity and confidentiality, fraud risk management systems, and stronger disclosure and transparency obligations. Together, these provisions help close gaps exploited by phishing, account takeover, and SIM-swap attacks, risks that particularly undermine the trustworthiness of e-wallet services. The BSP also strengthened consumer safeguards through Circular No. 1048 (2019), which established the Financial Consumer Protection Framework.¹⁸ It institutionalizes transparency, fair treatment, fraud prevention, and redress mechanisms for BSP-supervised institutions.

2.4. *Other Relevant Laws*

Beyond the DPA and BSP circulars, several statutes supplement the Philippine legal framework on financial privacy. First, the Internet Transactions Act of 2023 (RA 11967) established regulatory oversight over digital platforms,

¹⁵ NPC Circular No. 16-03: Guidelines on Personal Data Breach Management, §§ 18–21.

¹⁶ Bangko Sentral ng Pilipinas, Circular No. 649, Guidelines on Electronic Money and Operations (Mar. 9, 2009), <https://www.bsp.gov.ph/Regulations/Issuances/2009/c649.pdf>

¹⁷ Bangko Sentral ng Pilipinas, Circular No. 1166, Series of 2023: Amendments to the Regulations on Electronic Money (E-money) and the Operations of Electronic Money Issuers (Feb. 7, 2023), <https://www.bsp.gov.ph/Regulations/Issuances/2023/1166.pdf>

¹⁸ Bangko Sentral ng Pilipinas, Circular No. 1048, Regulations on Financial Consumer Protection (May 28, 2019), <https://www.bsp.gov.ph/Regulations/Issuances/2019/c1048.pdf>



mandating consumer redress mechanisms, prohibiting deceptive practices, and strengthening the DTI's role in digital marketplace regulation.¹⁹ While primarily aimed at e-commerce, its provisions are relevant to e-wallets and fintech operations that function as online platforms, reflecting the sector's increasingly hybrid character.

Second, the Anti-Financial Account Scamming Act (RA 12010) criminalizes the misuse of financial accounts, including the use of money mules, synthetic identities, and account takeovers.²⁰ The law empowers financial institutions and payment service providers to implement stricter know-your-customer measures, freeze or temporarily hold disputed funds, and report suspicious activities. For consumers, it provides statutory remedies against unauthorized use of e-wallet accounts, signaling legislative recognition of fraud as a systemic privacy and security risk.

Third, the Cybercrime Prevention Act of 2012 (RA 10175) establishes the criminal law framework for addressing offenses such as hacking, identity theft, and cyber fraud.²¹ Although it is not sector-specific, the law directly intersects with digital financial services regulation by penalizing unauthorized access, interception, and data interference involving electronic communications, including those processed through e-wallet platforms. Its enforcement provisions, such as real-time collection of traffic data and computer data preservation orders, equip authorities with investigative tools to combat online crimes.

Together, these constitutional, statutory, and regulatory instruments comprise a multi-layered legal architecture for financial privacy in the Philippines. The Constitution establishes the baseline right to privacy, the Data Privacy Act translates it into enforceable obligations, BSP regulations operationalize safeguards in financial supervision, and sectoral statutes like the Internet Transactions Act, AFASA, and the Cybercrime Prevention Act provide complementary coverage.

¹⁹ Republic Act No. 11967 (Internet Transactions Act of 2023).

²⁰ Republic Act No. 12010 (Anti-Financial Account Scamming Act of 2024).

²¹ Republic Act No. 10175 (Cybercrime Prevention Act of 2012).



3. Regulatory Challenges and Gaps

Despite the Philippines' increasingly robust legal framework, ambiguities in statutory application, competing policy mandates, and fragmented oversight mechanisms continue to hinder coherent protection of financial privacy in the digital economy.

The first challenge arises from the application of the Data Privacy Act (DPA) to fintechs such as electronic money issuers (EMIs) and digital financial service providers. While the statute expressly applies to “personal information controllers” (PICs), the rapid evolution of fintech business models has complicated its scope and interpretation. E-wallet operators routinely process not only financial identifiers such as account numbers and government IDs, but also behavioral data, geolocation, and device metadata that can reveal intimate consumer habits and transactional behavior.²² The statute’s traditional categories of “personal information” and “sensitive personal information” were drafted in an era that predated algorithmic profiling, credit scoring, and large-scale data monetization.

In addition, sectoral regulations promulgated by the Bangko Sentral ng Pilipinas (BSP) and the Anti-Money Laundering Council (AMLC) impose mandatory data collection obligations for fraud monitoring, customer verification, and suspicious transaction reporting.²³ Under the AML/CFT framework, electronic money issuers (EMIs) and other covered financial institutions are required to apply customer due diligence, monitor transactional behavior, and retain records for prescribed periods.²⁴ Whether the categories of data such as transactional patterns, device identifiers, and behavioral metadata, qualify as “sensitive personal information” under the Data Privacy Act remains unsettled.

A second regulatory gap involves the uneasy balance between anti-money laundering and counter-terrorism financing (AML/CFT) obligations and constitutional privacy rights. The Anti-Money Laundering Act of 2001 (RA 9160), as amended, requires covered institutions, including electronic money issuers (EMIs), to undertake rigorous know-your-customer (KYC) procedures and to report covered and suspicious transactions to the Anti-Money

²² Fintech Laws and Regulations: Philippines, ICLG (2025), <https://iclg.com/practice-areas/fintech-laws-and-regulations/philippines>

²³ Bangko Sentral ng Pilipinas, Manual of Regulations for Non-Bank Financial Institutions (MORNBF1) 2021 (2021), <https://www.bsp.gov.ph/Regulations/MORB/2021MORNBF1.pdf>.

²⁴ Id.



Laundering Council (AMLC).²⁵ These duties are further detailed in its Revised Implementing Rules and Regulations, which establish reporting timelines, confidentiality safeguards, and safe-harbor protections for covered entities acting in good faith.²⁶ Likewise, Bangko Sentral ng Pilipinas (BSP) Circular No. 706, as amended, obliges covered institutions to maintain customer identification records for at least five years and to monitor account activities on a continuous, risk-based basis.²⁷

A third gap in financial privacy protection arises from the fragmentation of regulatory authority over e-wallets and fintech operations. The Bangko Sentral ng Pilipinas (BSP) supervises electronic money issuers (EMIs) under its consumer protection mandates; the National Privacy Commission (NPC) enforces the Data Privacy Act and oversees data breach management; the Anti-Money Laundering Council (AMLC) implements AML/CFT rules; the Department of Trade and Industry (DTI), under the Internet Transactions Act of 2023, exercises jurisdiction over online platforms and merchants, and the Securities and Exchange Commission (SEC) regulates fintech firms engaged in crowdfunding. Policy research by the Philippine Institute for Development Studies (PIDS) observes that the coexistence of multiple regulators, including the BSP, NPC, AMLC, DTI, and SEC, has resulted in overlapping jurisdictions, inconsistent enforcement, and regulatory duplication that hinder coherent governance of digital financial platforms in the Philippines.²⁸

4. Analysis and Advocacy Recommendations

Financial privacy in the Philippines must be recognized not merely as a matter of regulatory compliance but as a fundamental constitutional right. Article III, Section 3(1) of the 1987 Constitution provides that “the privacy of communication and correspondence shall be inviolable except upon lawful order of the court, or when public safety or order requires otherwise as prescribed by law.”²⁹ This provision establishes a baseline of protection for all

²⁵ Republic Act No. 9160, Anti-Money Laundering Act of 2001, as amended by Republic Act No. 11521.

²⁶ Revised Implementing Rules and Regulations of Republic Act No. 9160 (Phil.), <https://www.amlc.gov.ph/2-uncategorised/55-revised-implementing-rules-and-regulations-of-republic-act-no-9160>.

²⁷ Bangko Sentral ng Pilipinas, Circular No. 706, Updated Anti-Money Laundering Rules and Regulations, § X807 (Jan. 5, 2011) (Phil.), https://lawphil.net/administ/bsp/cir_706_2011.html.

²⁸ Aiken Larisa O. Serzo, Philippine Regulations for Cross-Border Digital Platforms: Impact and Reform Considerations, Philippine Institute for Development Studies, Research Paper Series No. 2021-08 (Oct. 25, 2021), <https://pids.gov.ph/publication/research-paper-series/philippine-regulations-for-cross-border-digital-platforms-impact-and-reform-considerations>.

²⁹ Constitution of the Republic of the Philippines, art. III, § 3(1).



forms of communication, including transactional data processed through e-wallets and other digital financial platforms. In an era where financial interactions are increasingly mediated by technology, the constitutional guarantee functions as both a shield against undue surveillance and a normative standard for evaluating statutory and regulatory measures.

Jurisprudence underscores the enduring relevance of this constitutional right in the context of technological change. The jurisprudence on *Ople v. Torres*,³⁰ and *Disini v. Secretary of Justice*,³¹ establish guiding principles applicable to financial privacy in the digital era: any regulatory or commercial processing of personal and financial data must respect constitutional boundaries, ensure proportionality, and incorporate sufficient safeguards against misuse.

In the context of e-wallets, these constitutional and jurisprudential standards imply that obligations imposed on electronic money issuers (EMIs) and other digital financial service providers, such as data retention, transactional monitoring, or reporting suspicious activity, must be carefully calibrated. Compliance requirements should not undermine the inviolability of communication and correspondence, particularly when dealing with sensitive transactional or behavioral data that may reveal intimate details about users' habits and finances.

The rapid evolution of digital financial services has exposed interpretive gaps in the Data Privacy Act of 2012 (DPA) collected by e-wallet providers.³² These uncertainties are compounded by overlapping and sometimes conflicting obligations under the Anti-Money Laundering Act of 2001 (AMLA),³³ Bangko Sentral ng Pilipinas (BSP) regulations,³⁴ and sectoral statutes such as the Anti-Financial Account Scamming Act (AFASA)³⁵ the Internet Transactions Act.³⁶ and the Cybercrime Prevention Act.³⁷ Legislative clarifications or targeted amendments are therefore recommended to explicitly cover

³⁰ *Ople v. Torres*, G.R. No. 127685.

³¹ *Disini v. Secretary of Justice*, G.R. No. 203335.

³² Republic Act No. 10173 (Data Privacy Act of 2012).

³³ Republic Act No. 9160 (Anti-Money Laundering Act of 2001).

³⁴ Bangko Sentral ng Pilipinas Circular No. 1166 (Enhanced Rules on Electronic Money Issuers).

³⁵ Republic Act No. 12010 (Anti-Financial Account Scamming Act of 2024).

³⁶ Republic Act No. 11967 (Internet Transactions Act of 2023), *supra* note 8, at 2.

³⁷ Republic Act No. 10175, An Act Defining Cybercrime, Providing for the Prevention, Investigation, Suppression and the Imposition of Penalties Therefor and for Other Purposes (Sept. 12, 2012) (Philippines), https://lawphil.net/statutes/repacts/ra2012/ra_10175_2012.html.



emerging categories of financial data, harmonize sectoral obligations, and strengthen principles of informed consent, proportionality, and accountability.

To address these challenges, mechanisms for inter-agency coordination are recommended to ensure coherent oversight while minimizing administrative burdens. Additionally, clear frameworks for resolving jurisdictional overlaps, including the prioritization of sector-specific expertise and harmonized enforcement protocols, can maintain regulatory clarity without stifling innovation or impeding the growth of the digital financial ecosystem. Regulatory measures must strike a balance between oversight and innovation, ensuring that fintech firms can adopt emerging technologies and business models without being unduly constrained by compliance burdens.

5. Conclusion

The protection of financial privacy in a rapidly digitalizing economy is a multi-dimensional challenge that extends beyond regulatory compliance. It implicates fundamental constitutional rights, requiring that all legal and administrative measures respect the inviolability of private communications and transactional data. Ensuring effective protection necessitates harmonization across overlapping statutory and regulatory regimes, clear guidelines for enforcement, and coordinated mechanisms for inter-agency oversight.

Future policy and governance efforts should prioritize flexibility and adaptability, recognizing that emerging technologies continually reshape the scope and nature of data collection and processing. Legislative refinements and regulatory clarifications are needed to address interpretive gaps, strengthen consent frameworks, and enhance remedial pathways for affected users. Simultaneously, consumer protection strategies—such as education, transparency, and accessible redress mechanisms—must be integrated with broader regulatory objectives to build trust and accountability in the digital financial ecosystem.

Ultimately, safeguarding financial privacy requires a forward-looking approach that balances innovation with constitutional principles, operational coherence with institutional coordination, and risk mitigation with the promotion of inclusive digital finance. Continuous monitoring, research, and policy iteration are essential to ensure that legal frameworks remain relevant, proportionate, and effective in protecting both individual rights and systemic integrity.



Bibliography

Constitution

Constitution of the Republic of the Philippines, Article III, Section 3(1) (1987).

Statutes

Bangko Sentral ng Pilipinas, AFASA Booklet with Implementing Rules and Regulations.

<https://www.bsp.gov.ph/Regulations/Banking%20Laws/AFASA-Booklet-with-IRRs.pdf>

Bangko Sentral ng Pilipinas, Circular No. 1048, Regulations on Financial Consumer Protection (May 28, 2019).

<https://www.bsp.gov.ph/Regulations/Issuances/2019/c1048.pdf>

Bangko Sentral ng Pilipinas, Circular No. 1166, Series of 2023: Amendments to the Regulations on Electronic Money and the Operations of Electronic Money Issuers (Feb. 7, 2023).

<https://www.bsp.gov.ph/Regulations/Issuances/2023/1166.pdf>

Bangko Sentral ng Pilipinas, Circular No. 649, Guidelines on Electronic Money and Operations (Mar. 9, 2009).

<https://www.bsp.gov.ph/Regulations/Issuances/2009/c649.pdf>

Bangko Sentral ng Pilipinas, Circular No. 706, Updated Anti-Money Laundering Rules and Regulations, § X807 (Jan. 5, 2011).

https://lawphil.net/administ/bsp/cir_706_2011.html

Bangko Sentral ng Pilipinas, Manual of Regulations for Non-Bank Financial Institutions (MORNBFI) 2021 (2021).

<https://www.bsp.gov.ph/Regulations/MORB/2021MORNBFI.pdf>

National Privacy Commission, Advisory Opinion No. 2017-63: Personal and Sensitive Information (2017).

https://privacy.gov.ph/wp-content/uploads/2022/01/NPC_AdvisoryOpinionNo.2017-063.pdf

National Privacy Commission, Implementing Rules and Regulations of Republic Act No. 10173 (Data Privacy Act of 2012) (Aug. 24, 2016).

<https://privacy.gov.ph/implementing-rules-regulations-data-privacy-act-2012/>



Journal for Law Advocacy
Volume 5, Year 2025-2026

National Privacy Commission, NPC Circular No. 16-03: Personal Data Breach Management (Dec. 15, 2016).

<https://privacy.gov.ph/wp-content/uploads/2022/01/sgd-npc-circular-16-03-personal-data-breach-management.pdf>

Republic Act No. 10173, Data Privacy Act of 2012.

Republic Act No. 10175, Cybercrime Prevention Act of 2012.

Republic Act No. 11967, Internet Transactions Act of 2023.

Republic Act No. 12010, Anti-Financial Account Scamming Act of 2024.

Republic Act No. 9160, Anti-Money Laundering Act of 2001, as amended by Republic Act No. 11521.

Jurisprudence

Ople v. Torres, G.R. No. 127685, 354 Phil. 948 (1998).

<https://elibrary.judiciary.gov.ph/thebookshelf/showdocs/1/36082>

Disini v. Secretary of Justice, G.R. No. 203335, 727 Phil. 28 (2014).

https://lawphil.net/jurisprudence/2014/feb2014/gr_203335_2014.html

Online Sources

Aiken Larisa O. Serzo, Philippine Regulations for Cross-Border Digital Platforms: Impact and Reform Considerations, Philippine Institute for Development Studies, Research Paper Series No. 2021-08 (Oct. 25, 2021).

<https://pids.gov.ph/publication/research-paper-series/philippine-regulations-for-cross-border-digital-platforms-impact-and-reform-considerations>

Bangko Sentral ng Pilipinas, 2023 Report on E-Payments Measurement, at 4-5 (2023).

https://www.bsp.gov.ph/PaymentAndSettlement/2023_Report_on_E-payments_Measurement.pdf

Bangko Sentral ng Pilipinas (BSP). (2025, June 13). *More financial complaints lodged to BSP. Philippine Star.*

BusinessMirror. (2025, June 17). *BSP cases cover ₱3.37-B transactions.*



Journal for Law Advocacy
Volume 5, Year 2025-2026

E-Wallets Rise as Leading Payment Method in Southeast Asia, Fintech News Singapore (Oct. 22, 2024).

<https://fintechnews.sg/102286/mobilepayments/e-wallet-southeast-asia/>

Fintech Laws and Regulations: Philippines, ICLG (2025).

<https://iclg.com/practice-areas/fintech-laws-and-regulations/philippines>

TransUnion. (2025, May 16). *Philippines' suspected digital fraud rate higher than global level for fifth consecutive year*. TransUnion Newsroom.

World Bank, Philippines First Financial Sector Reform Development Policy Financing Project 12-13 (2021).

<https://documents1.worldbank.org/curated/en/982841624845656790/pdf/Philippines-First-Financial-Sector-Reform-Development-Policy-Financing-Project.pdf>



Who Taxes Whom, and Who Censors Whom?

The Intersecting Freedoms of Taxation, Privacy, and Digital Identity

Emalyn F. Punzalan

Introduction

The 21st-century digital revolution has transformed economies, redefined borders, and reshaped power dynamics between governments, corporations, and individuals. In the Philippines, digital platforms now permeate every facet of life—from online shopping and mobile banking to social media and virtual employment. While these developments offer unprecedented convenience and economic growth, they also uncover a "hidden treasure": a vast, often unregulated digital economy generating billions in untapped revenues.

However, this treasure does not come without complications. Central among them is the issue of control—both in terms of taxation and speech regulation. As the State seeks to impose taxes and assert authority over digital spaces, technical giants simultaneously exert influence over public discourse and user data. This prompts a timely and urgent inquiry: Who truly governs the digital domain—governments or platforms? Who taxes whom, and who censors whom?

Mapping the Digital Economy: The New Frontier

The digital economy refers to economic activity that results from billions of online connections among people, businesses, devices, data, and processes. In the Philippines, this includes E-commerce platforms (e.g., Lazada, Shopee), Digital services (e.g., Netflix, Spotify, YouTube), Online freelancing and gig work, Mobile applications and social media monetization (influencers, bloggers). These digital interactions are often decentralized, borderless, and non-traditional, making them difficult to regulate through physical jurisdictions and analog-era tax laws.



The Hidden Value

According to the Department of Trade and Industry (DTI), the digital economy in the Philippines was valued at ₱2.08 trillion in 2022, or roughly 9.4% of GDP.¹ However, the Bureau of Internal Revenue (BIR) estimates that a significant portion of income generated from digital transactions goes untaxed, due to non-registration, anonymity, and cross-border complexities.²

This gap represents a hidden treasure: a reservoir of revenue crucial for a developing nation but locked behind the walls of digital opacity and legal ambiguity.³

Taxing the Digital: Legal Frameworks and Challenges

The Philippine Constitution and Taxation

Under Article VI, Section 28 of the 1987 Constitution, the power of taxation is vested in Congress, provided it adheres to principles of uniformity, equity, and progressivity.⁴ But taxation must also respect the Bill of Rights, especially the rights to due process, privacy, and equal protection.⁵ Digital taxation, therefore, must strike a careful balance between State interest in revenue and individual rights in cyberspace.

Recent Developments: Legislation, Administrative Action and Jurisprudence

To address tax leakages in the digital economy, several measures have been introduced like House Bill No. 7425⁶ which seeks to impose VAT on digital services provided by non-resident foreign corporations (e.g., Netflix, Google), Revenue Memorandum Circular (RMC) No. 97-2021⁷ which mandates influencers and digital earners to declare online income and E-commerce Bureau establishment under DTI which aims to regulate and tax e-commerce activities.

¹ Dep't of Trade & Indus., *PH Digital Economy Posts 9.4% Share to GDP in 2022*, DTI (Nov. 8, 2023)

² Bureau of Internal Revenue, *Taxing the Digital Economy: Philippine BIR's Strategy and Challenges* (2023)

³ World Bank, *The Digital Economy in Southeast Asia: Strengthening the Foundations for Future Growth* 7–10 (2021)

⁴ CONST. (1987), art. VI, § 28.

⁵ CONST. (1987), art. III, §§ 1, 2, & 7.

⁶ H.R. 7425, 18th Cong., Reg. Sess. (2020) (Phil.).

⁷ Revenue Mem. Circular No. 97-2021, Bureau of Internal Revenue (Aug. 16, 2021) (Phil.).



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These initiatives reflect a regulatory awakening, but enforcement remains weak. Most digital platforms are headquartered abroad and have no permanent establishment in the Philippines, making tax collection elusive.

In the country, although the Philippine courts have not yet squarely ruled on digital tax evasion, some relevant jurisprudence offers insight. In *Commissioner of Internal Revenue v. Cebu Toyo Corporation* (2005)⁸, the Supreme Court recognized digital audit documents as legitimate, paving the way for e-record audits. Moreover, the Cybercrime Prevention Act (RA 10175) upheld State authority in cyberspace but also reaffirmed the need for constitutional safeguards when regulating digital content. These actions underline the tension between State enforcement and digital liberty—a tension that becomes more acute when taxation and speech are involved.

Who Censors Whom? Freedom of Expression and Platform Power
The Digital Commons and Corporate Governance

The digital sphere has become the new public square, where political discourse, activism, and personal expression thrive. Platforms like Facebook, YouTube, and X (formerly Twitter) serve as intermediaries of speech—but also as gatekeepers.

While Section 4, Article III of the Constitution protects freedom of expression, it traditionally applies to State actions. Private platforms, however, operate under their own Terms of Service and community standards, leading to content takedowns and shadow-banning.

This raises the question: *Can private platforms violate constitutional rights, and should the State intervene?*

Government Regulation vs. Platform Policies

In the Philippine context, State censorship has historically been associated with authoritarianism. But in the digital age, platform censorship—which can be subtle, algorithmic, and opaque—may have greater influence over what users see, hear, or say.

⁸ *Comm'r of Internal Revenue v. Cebu Toyo Corp.*, G.R. No. 150748, 502 SCRA 89 (2006) (Phil.)



A comparative lens reveals troubling trends. During the Duterte-era, several content takedowns of critical media (e.g., Rappler) were allegedly prompted by State pressure. Further, Facebook removed hundreds of "coordinated inauthentic behavior" pages linked to political operations and TikTok banned certain hashtags or content that may be politically sensitive.

Yet, when the government asks platforms to remove content, it walks a constitutional tightrope. In *Disini v. Secretary of Justice* (2014),⁹ The Supreme Court emphasized that laws regulating online speech must be narrowly tailored and respect fundamental rights.

The landmark case *People v. Marti* (G.R. No. 81561) drew a line between State action and private conduct, ruling that the Bill of Rights only applies when the government is involved.¹⁰ This creates a dilemma in the digital space: most censorship is private, yet its consequences are public.

The Surveillance-Taxation Nexus

Tax enforcement in the digital realm often necessitates data access, raising serious privacy concerns. For instance, monitoring online wallets like GCash or PayMaya or cross-checking social media activity with declared income or compelling platforms to share user transaction data may infringe Section 2, Article III of the Constitution, which protects citizens from unreasonable searches and seizures.

While the Data Privacy Act of 2012 (RA 10173) provides safeguards, it also contains exceptions for law enforcement and tax collection, leaving room for abuse.¹¹

The Right to Digital Anonymity vs. State Accountability

Digital users often prize anonymity, especially in repressive or precarious environments. But from a tax perspective, anonymity is a loophole. How does the State enforce taxation without violating rights?

⁹ *Disini v. Sec'y of Justice*, G.R. No. 203335, 721 SCRA 575 (2014) (Phil.)

¹⁰ *People v. Marti*, G.R. No. 81561, 193 SCRA 57 (1991) (Phil.)

¹¹ Data Privacy Act of 2012, Rep. Act No. 10173 (2012) (Phil.)



Some governments have proposed real-name laws, mandatory SIM card registration, and blockchain ID integration. In the Philippines, RA 11934 (SIM Card Registration Act) sparked backlash for potential privacy infringements.¹² Thus, digital identity becomes a battleground: it is at once a tool for accountability and a threat to autonomy.

However, several countries have already made it possible to regulate the problem. Going towards global trends and learning from other jurisdictions as an example, the European Union imposed the Digital Services Act (DSA) and Digital Markets Act (DMA) to regulate content and tax practices.¹³ In India it has required significant social media intermediaries to comply with traceability and tax declarations¹⁴ and in Indonesia, it has enforced VAT on Netflix and other foreign digital service providers in 2020.¹⁵ These examples show that digital regulation is possible, but only with robust legal frameworks, technological infrastructure, and public consensus. If they can make it, why can't the Philippines?

Conclusion

The digital age is not only a frontier of innovation—it is also a theater of contested power. As governments seek to assert fiscal and moral authority in cyberspace, and platforms evolve into transnational governors of speech, the lines between public law and private code blur.

In the Philippines, the stakes are particularly high. The hidden treasure of the digital economy offers vast opportunities for national development—but only if properly harnessed. At the same time, freedom of expression and privacy must be zealously guarded to preserve democracy in the age of algorithms.

Ultimately, the question of “Who censors whom?” reveals a deeper question: Who governs in the digital age? The answer must be rooted in constitutional values, democratic participation, and legal innovation. Only then can the digital revolution become a force for empowerment, not exploitation.

¹² SIM Card Registration Act, Rep. Act No. 11934 (2022) (Phil.)

¹³ Digital Markets Act, Regulation 2022/1925, 2022 O.J. (L 265) 1 (EU)

¹⁴ Press Trust of India, *India's New IT Rules: Social Media Platforms Must Trace Messages*, NDTV (Feb. 25, 2021)

¹⁵ Reuters, *Indonesia Imposes 10% VAT on Foreign Digital Services Including Netflix and Spotify*, REUTERS (July 7, 2020)



Bibliography

Constitution

CONST. (1987) (Phil.).

Laws

Rep. Act No. 10173 (2012) (Phil.).

Rep. Act No. 10175 (2012) (Phil.).

Rep. Act No. 11934 (2022) (Phil.).

Digital Markets Act, Regulation 2022/1925, 2022 O.J. (L 265) 1 (EU).

Jurisprudence

People v. Marti, G.R. No. 81561, 193 SCRA 57 (Phil. 1991).

Disini v. Sec'y of Justice, G.R. No. 203335, 721 SCRA 575 (Phil. 2014).

Comm'r of Internal Revenue v. Cebu Toyo Corp., G.R. No. 150748, 502 SCRA 89 (Phil. 2006).

House Bills

H.B. No. 7425, 18th Cong., Reg. Sess. (2020) (Phil.).

Government Articles

Bureau of Internal Revenue, Taxing the Digital Economy: Philippine BIR's Strategy and Challenges (2023) (Phil.).

Dep't of Trade & Industry, PH Digital Economy Posts 9.4% Share to GDP in 2022 (Nov. 8, 2023) (Phil.).

Revenue Memorandum Circular No. 97-2021 (BIR Aug. 16, 2021) (Phil.).



Journal for Law Advocacy
Volume 5, Year 2025-2026

Journal

Press Trust of India, India's New IT Rules: Social Media Platforms Must Trace Messages, NDTV (Feb. 25, 2021).

Reuters, Indonesia Imposes 10% VAT on Foreign Digital Services Including Netflix and Spotify (July 7, 2020).

World Bank, The Digital Economy in Southeast Asia: Strengthening the Foundations for Future Growth (2021).



Unblocking Transparency: Blockchain Readiness and The Philippines' Digital Literacy

Jose Emilio Luis T. Combatir

Introduction

The digital revolution has provided further potential for the transformation of governance, offering tools like blockchain technology which may be utilized to enhance transparency in public finances.¹ In the Philippines, where corruption scandals undermine public trust, such as the Commission on Audit's (COA) uncovering of over PHP 42.3 billion in anomalous "ghost projects" from 2023 to 2025, where funds vanished into non-existent infrastructure;² the need for innovative solutions is urgent. Senate Bill No. 1330 (SBN 1330), the "Philippine National Budget Blockchain Act," filed by Senator Bam Aquino on September 2, 2025, proposes a National Budget Blockchain System to digitize budget documents, making them traceable and auditable in real-time.³ This aligns with the Right to Information under Article III, Section 7 of the 1987 Constitution, which guarantees public access to matters of public concern,⁴ as affirmed in *Chavez v. Presidential Commission on Good Government*.⁵

However, the Philippines' low digital literacy rates raise questions about readiness.⁶ With only 40% of Filipinos possessing basic ICT skills according to the Philippine Institute for Development Studies (PIDS),⁷ Many citizens may struggle to utilize blockchain tools like public dashboards. SBN 1330's blockchain system could enhance the Right to Information by enabling public

¹ Celestin Mbonigaba, *The Future of Public Sector Budgeting: How Digital Transformation and Blockchain Are Improving Transparency and Reducing Corruption*, 9 *Brainae Journal of Business, Sciences and Technology* pp. 277-288 (2025), <https://doi.org/10.2139/ssrn.5188103>

² Cristina Baclig, *Flood of Plunder: Billions Paid for Projects Existing Only on Paper*, *Inquirer.net* (September 5, 2025), <https://newsinfo.inquirer.net/2105178/flood-of-plunder-billions-paid-for-projects-existing-only-on-paper>

³ 20th Congress, *SBN 1330 Philippine National Budget Blockchain Act*, Senate of the Philippines (September 2, 2025), https://web.senate.gov.ph/lis/bill_res.aspx?congress=20&q=SBN-1330

⁴ 1987 Philippine Constitution, Art. III, Section 7

⁵ *Chavez v. Presidential Commission on Good Government*, G.R. No. 130716, December 9, 1998

⁶ Rey Mangarin & Jean Climaco, *Exploring Contributing Factors on Poor Digital Literacy of Students: A Review of Existing Studies*, 9(9) *International Journal of Research and Innovation in Applied Science* (October 24, 2024), <https://doi.org/10.51584/IJRIAS.2024.909051>

⁷ Jose Ramon Albert, Francis Mark Quimba, Maureen Ane Rosellon & Mika Muñoz, *Promoting a More Innovative and Inclusive Society Through ICT Development*, Philippine Institute for Development Studies (September 2021), <https://pidswebs.pids.gov.ph/CDN/PUBLICATIONS/pidspn2108.pdf>



access to budget data, but the Philippines' low digital literacy limits its effective use, requiring targeted literacy programs to prevent underutilization and ensure equitable access.

This article examines SBN 1330's potential, blockchain's basics, digital literacy challenges, and overall analysis, arguing that blockchain's value hinges on bridging literacy gaps.

Background of the Study

Budget transparency in the Philippines has been a persistent issue, with the 2023 Open Budget Survey ranking the country 75/100, indicating moderate openness but gaps in real-time oversight.⁸ The current system relies on the Department of Budget and Management's (DBM) Budget and Treasury Management System (BTMS)⁹ and the Philippine Government Electronic Procurement System (PhilGEPS), which provide aggregate data on allocations and contracts but often lack timely updates,¹⁰ allowing anomalies like the COA-flagged ghost flood control projects. For instance, between 2023 and 2025, COA audits revealed PHP 42.3–118.5 billion in economic losses from non-existent infrastructure,¹¹ highlighting the need for better traceability.

SBN 1330 addresses this by mandating a blockchain-based system to record budget transactions immutably, promoting the Right to Information under Article III, Section 7, which empowers citizens to scrutinize public spending.¹² The Senate press release states that budget records would be recorded as digital public assets on blockchain,¹³ to be publicly accessible via a

⁸International Budget Partnership, *Open Budget Survey* (2023), <https://internationalbudget.org/sites/default/files/country-surveys-pdfs/2023/open-budget-survey-philippines-2023-en.pdf>

⁹Ruth Abbey Gita-Carlos, *DBM's Digital, Open Governance Promotes Transparency, Efficiency*, Philippine News Agency (December 30, 2024), <https://www.pna.gov.ph/articles/1240583>

¹⁰Nide Marie Bombay, *Philippines: Case Study on the Philippine Government Electronic Procurement System*, Asian Development Bank (June 2011), <https://www.adb.org/sites/default/files/project-documents/43149-012-reg-tacr-01.pdf>

¹¹Baclig, *supra* note 2

¹²20th Congress, *supra* note 3

¹³20th Congress, *Bam Aquino Eyes Use of Blockchain Technology to Ensure Transparency, Accountability in National Budget*, Senate of the Philippines (September 2, 2025), https://web.senate.gov.ph/press_release/2025/0902_aquino1.asp



portal.¹⁴ This builds on DBM's July 2025 Polygon pilot.¹⁵ However, with digital literacy at only 40% ICT proficiency,¹⁶ many Filipinos may not engage with the system, risking its full potential.

Blockchain Technology

Blockchain technology, at its core, enables a network of computers to periodically agree on the accurate state of a distributed ledger, ensuring that all participants maintain a consistent and tamper-resistant record of transactions. This decentralized system operates without a central authority, using cryptographic techniques to validate and link data blocks, making it nearly impossible to alter past entries without consensus from the network. As a result, blockchain promotes trust in shared information, with applications in secure record-keeping where integrity is paramount.¹⁷

To better understand this for non-experts like me, imagine blockchain as a communal logbook in a Philippine barangay hall, where every entry (like a budget allocation) is written in ink and bound to the previous one with a lock. Once anything is added, it can't be erased or changed without everyone noticing and agreeing. In the Philippine context, this might look like a nationwide digital "bayanihan" ledger, where government offices and citizens contribute entries on fund releases, and the chain ensures no "ghost" entries slip in, much like citizens verifying community project logs to prevent misuse of shared resources.

In the Philippine context, blockchain can apply to budget transparency by creating a public dashboard where citizens view how funds are allocated, such as in the Department of Budget and Management's (DBM) 2025 pilot, which digitizes release orders and cash allocations for easy online checking.¹⁸

¹⁴ Wilnard Bacelonia, *Senate Tackles Blockchain Use to Boost Transparency in Budget Process*, Philippine News Agency (October 2, 2025), <https://www.pna.gov.ph/articles/1260082>

¹⁵ *PH Government Begins Blockchain Use in Budget Release*, Newsbyte.ph (September 30, 2025), <https://newsbytes.ph/2025/09/30/ph-govt-begins-blockchain-use-in-budget-releases/>

¹⁶ Albert et al., *supra* note 7

¹⁷ Suyel Namasudra & Kemel Akkaya, *Introduction to Blockchain Technology*, Springer Nature Singapore Pte Ltd. (2023), https://doi.org/10.1007/978-981-19-8730-4_1

¹⁸ Kenneth Mallari, *DBM's Blockchain Application Officially Goes Live*, Department of Budget and Management (August 29, 2025), <https://www.dbm.gov.ph/index.php?view=article&id=3558:dbm-s-blockchain-application-officially-goes-live&catid=411&highlight=WyJibG9ja2NoYWl1I0=>



For example, the system stores documents on a secure network, allowing users to track budget flows from approval to spending via a web portal.

The benefits include real-time access to information, supporting the Right to Information, and fraud detection, such as spotting ghost projects where funds disappear without results. By making every transaction visible and unchangeable, blockchain could help prevent corruption, as seen in calls for its use in national budgeting to ensure every peso is accounted for.

Digital Literacy: Philippines' Readiness Challenge

Digital literacy in the Philippines remains a significant hurdle, with recent surveys showing that while 93.1% of Filipinos aged five and above have basic literacy, only 70.8% of those aged 10 to 64 are functionally literate,¹⁹ meaning they can read, write, and compute for everyday needs. Meanwhile, the 2024 National ICT Household Survey (NICTHS), conducted by DICT and PSA,²⁰ reveals persistent gaps in technology access and usage, particularly in rural areas.²¹ These challenges extend beyond citizens to government employees and local government units (LGUs), where digital literacy is crucial for implementing technologies like blockchain under SBN 1330.

The connection to blockchain incorporation is clear: SBN 1330 envisions a system where government agencies, departments, and LGUs operate as nodes in a permissioned network, handling data entry, verification, and maintenance. Success hinges on the digital literacy of public sector employees, who must manage these nodes securely. Government workers often lack advanced digital skills, necessitating extensive training to bridge the digital divide.²² The Department of Information and Communications Technology

¹⁹ Philippine Statistics Authority, For Every 10 Filipinos, 9 Have Basic Literacy, While 7 Have Functional Literacy (April 4, 2025),

<https://psa.gov.ph/content/every-10-filipinos-9-have-basic-literacy-while-7-have-functional-literacy>

²⁰ Maria April Cruz, CAR's Digital Landscape Fast Growing, but Faces Challenges in Digital Literacy and Cost-Related Barriers – NICTHS Survey, Philippine Information Agency (October 2, 2025),

<https://pia.gov.ph/news/cars-digital-landscape-fast-growing-but-faces-challenges-in-digital-literacy-and-cost-related-barriers-nicths-survey/>

²¹ Apipa Bagumbaran, New ICT Survey Data Seen as Key to Closing PH Digital Divide, Philippine Information Agency (September 30, 2025),

<https://pia.gov.ph/news/new-ict-survey-data-seen-as-key-to-closing-ph-digital-divide/>

²² Eduardo Andaya, Paving the Digital Path: A Position Paper on Strengthening ICT for Transformative Public Governance in the Philippines, Pamantasan ng Lungsod ng Valenzuela (June 1, 2025),

<http://dx.doi.org/10.2139/ssrn.5335807>



(DICT) has launched initiatives like the CLICK program,²³ which focuses on digital literacy for geographically isolated areas and public sector staff,²⁴ but coverage remains limited in rural LGUs. The government also maintains the PNPKI system as the legal framework for digital signatures,²⁵ and DICT has held training sessions for civil servants on its use.²⁶

Across LGUs, readiness varies. Urban areas like Baguio have piloted blockchain for governance,²⁷ but many rural LGUs are likely to struggle with basic digital infrastructure and skills. A proposed smart city framework for Philippine LGUs notes that while blockchain could enable transformative governance, low digital literacy in local administrations hinders implementation.²⁸ For SBN 1330's nodes, maintenance and security pose additional challenges. The bill would most likely limit the validator nodes to key agencies like DICT, DBM, and COA for security, but nationwide rollout to LGUs requires comprehensive training to prevent vulnerabilities like cyberattacks or errors in data handling. Without adequate literacy, these nodes could face maintenance issues, such as irregular updates or security breaches, undermining the system's reliability.

Analysis

The question we must ask: If the “Philippine National Budget Blockchain Act” were implemented in the Philippines' real-world conditions, would a blockchain-based national budget ledger actually enhance constitutional rights, particularly the Right to Information? Or would it become an impressive

²³ Rainier Allan Ronda, DICT Launches Project CLICK to Boost Digital Literacy, *The Philippine Star* (May 5, 2025), <https://www.philstar.com/the-freeman/cebu-news/2025/05/05/2440643/dict-launches-project-click-boost-digital-literacy>

²⁴ Roel Amazona, 21 Region 8 LGUs Receive Laptops Through DICT's Digital Literacy, *Philippine News Agency* (June 26, 2025), <https://www.pna.gov.ph/articles/1252990>

²⁵ Department of Information and Communications Technology, Philippine National Public Key Infrastructure (PNPKI) (n.d.), <https://dict.gov.ph/pnpki>

²⁶ Department of the Interior and Local Government Region III-Central Luzon, PNPKI Digital Signature Orientation and Training (2022), <https://www.region3.dilg.gov.ph/index.php/field-offices-news/3348-pnpki-digital-signature-orientation-and-training>

²⁷ Artemio Dumlao, Baguio Adopts Blockchain for Transparent Governance, *The Philippine Star* (September 9, 2025), <https://www.philstar.com/nation/2025/09/09/2471443/baguio-adopts-blockchain-transparent-governance>

²⁸ Leovigilda Bithay, Amelia Girly Aranas, Thea Aranas & Kennet Armas, Developing a Smart City Framework for Philippine LGUs: A Policy-Driven Approach to Digital Transformation, 9(7) *Edelweiss Applied Science and Technology* 1704-1719 (2025), <https://doi.org/10.55214/2576-8484.v9i7.8998>



technology that few can use? I argue that blockchain can meaningfully strengthen the Right to Information, but only if the design, rollout, and legal safeguards are deliberately calibrated to the country's institutional and human realities.

1. The Opportunity

At its best, blockchain technology addresses two systemic problems in how government information is produced and shared that weaken the right to information: opacity of transactions and unverifiable records.

A tamper-evident, auditable ledger makes it far harder for funds to disappear into “ghost” projects or for records to be quietly altered after the fact. In constitutional terms, blockchain can make the mechanics of disclosure more effective and efficient; records that are public, persistent, and provably authentic greatly expand meaningful access to information. That is not a mere technical fix; it concretely changes the baseline of what “access” can actually mean in practice—from occasional Freedom of Information (FOI) requests and stale reports to continuous, verifiable visibility into how public money moves.

2. The Practical Constraint: Rights are only as effective as their users

Rights do not exist in a vacuum. The benefit that blockchain delivers is functional: a public that can find, read, and interpret records will enjoy a much stronger Right to Information. But if large portions of the population, or especially the civil servants responsible for maintaining the system, lack the capacity to use the platform, the constitutional promise remains unrealized. In other words, blockchain changes the supply of information, while the constitutional effect depends on the demand side and absorptive capacity. A constitutional right is not fulfilled simply by publishing data; it is fulfilled when the public can meaningfully exercise oversight, challenge discrepancies, and compel remedies.



3. “Effective Transparency”

For SBN 1330 to realize a constitutional improvement, the following are recommended:

Usability and Accessibility. Public portals must present data in plain language, provide contextual explanations, and offer multiple access channels: web, mobile, public kiosks, translated local language, etc. Otherwise, the ledger will be a resource only for experts.

Institutional Routines. Agencies and LGUs must adopt operational practices that integrate the blockchain ledger into ordinary workflows: items must be posted within a fixed timeframe that is strictly followed, agencies must reconcile on-chain and off-chain records as frequently as possible, and the oversight bodies must be able to pull verifiable extracts for audit.

Civic Engagement and Remedies. Transparency yields rights only if citizens and civil society can act on information. The system must include simple grievance and verification channels, whistleblower protection, and clear paths for remedial action when anomalies are found.

Conclusion

SBN 1330 represents a promising step toward leveraging blockchain technology in the Philippines to strengthen the Right to Information under Article III, Section 7, by making budget data more accessible and accountable. The blockchain’s simple ledger system could empower citizens to track public spending in real-time, addressing corruption issues like ghost projects and fostering trust in government operations. However, the Philippines’ digital literacy challenges, evident in gaps among rural populations and public sector employees, underscore a critical readiness barrier. Without adequate skills to engage with blockchain dashboards or maintain secure nodes, the technology risks underutilization, limiting its constitutional impact to only a digitally proficient minority.

However, this does not render blockchain technology useless; rather, it highlights the need for integrated solutions to bridge the divide. By building on initiatives like DICT’s training programs and incorporating user-friendly features



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into the Philippine National Budget Blockchain Act, the government can ensure broader participation, turning potential into reality. Ultimately, effective implementation hinges on prioritizing digital education alongside technological adoption, ensuring that blockchain fulfills its promise of equitable transparency for all Filipinos.

Bibliography

Constitution

1987 Philippine Constitution, Art. III, Section 7

Jurisprudence

Chavez v. Presidential Commission on Good Government, G.R. No. 130716, December 9, 1998

Congressional Documents

Senate of the Philippines (20th Congress), *Bam Aquino Eyes Use of Blockchain Technology to Ensure Transparency, Accountability in National Budget*, Senate of the Philippines (September 2, 2025), https://web.senate.gov.ph/press_release/2025/0902_aquino1.asp

Senate of the Philippines (20th Congress), *SBN 1330 Philippine National Budget Blockchain Act*, Senate of the Philippines (September 2, 2025), https://web.senate.gov.ph/lis/bill_res.aspx?congress=20&q=SBN-1330

Reports

Jose Ramon Albert, Francis Mark Quimba, Maureen Ane Rosellon & Mika Muñoz, *Promoting a More Innovative and Inclusive Society Through ICT Development*, Philippine Institute for Development Studies (September 2021), <https://pidswebs.pids.gov.ph/CDN/PUBLICATIONS/pidspn2108.pdf>

Eduardo Andaya, *Paving the Digital Path: A Position Paper on Strengthening ICT for Transformative Public Governance in the Philippines*, Pamantasan ng Lungsod ng Valenzuela (June 1, 2025), <http://dx.doi.org/10.2139/ssrn.5335807>



Journal for Law Advocacy
Volume 5, Year 2025-2026

Nide Marie Bombay, *Philippines: Case Study on the Philippine Government Electronic Procurement System*, Asian Development Bank (June 2011), <https://www.adb.org/sites/default/files/project-documents//43149-012-reg-tacr-01.pdf>

International Budget Partnership, *Open Budget Survey* (2023), <https://internationalbudget.org/sites/default/files/country-surveys-pdfs/2023/open-budget-survey-philippines-2023-en.pdf>

Online Journal Articles

Suyel Namasudra & Kemel Akkaya, *Introduction to Blockchain Technology*, Springer Nature Singapore Pte Ltd. (2023), https://doi.org/10.1007/978-981-19-8730-4_1

Celestin Mbonigaba, *The Future of Public Sector Budgeting: How Digital Transformation and Blockchain Are Improving Transparency and Reducing Corruption*, 9 Brainae Journal of Business, Sciences and Technology pp. 277-288 (2025), <https://doi.org/10.2139/ssrn.5188103>

Leovigilda Bithay, Amelia Girly Aranas, Thea Aranas & Kennet Armas, *Developing a Smart City Framework for Philippine LGUs: A Policy-Driven Approach to Digital Transformation*, 9(7) Edelweiss Applied Science and Technology 1704-1719 (2025), <https://doi.org/10.55214/2576-8484.v9i7.8998>

Rey Mangarin & Jean Climaco, *Exploring Contributing Factors on Poor Digital Literacy of Students: A Review of Existing Studies*, 9(9) International Journal of Research and Innovation in Applied Science (October 24, 2024), <https://doi.org/10.51584/IJRIAS.2024.909051>

Online News Article

Cristina Baclig, *Flood of Plunder: Billions Paid for Projects Existing Only on Paper*, Inquirer.net (September 5, 2025), <https://newsinfo.inquirer.net/2105178/flood-of-plunder-billions-paid-for-projects-existing-only-on-paper>



Journal for Law Advocacy
Volume 5, Year 2025-2026

Ruth Abbey Gita-Carlos, *DBM's Digital, Open Governance Promotes Transparency, Efficiency*, Philippine News Agency (December 30, 2024), <https://www.pna.gov.ph/articles/1240583>

Wilnard Bacelonia, *Senate Tackles Blockchain Use to Boost Transparency in Budget Process*, Philippine News Agency (October 2, 2025), <https://www.pna.gov.ph/articles/1260082>

Kenneth Mallari, *DBM's Blockchain Application Officially Goes Live*, Department of Budget and Management (August 29, 2025), <https://www.dbm.gov.ph/index.php?view=article&id=3558:dbm-s-blockchain-application-officially-goes-live&catid=411&highlight=WyJibG9ja2NoYWludlI0=>

Rainier Allan Ronda, *DICT Launches Project CLICK to Boost Digital Literacy*, The Philippine Star (May 5, 2025), <https://www.philstar.com/the-freeman/cebu-news/2025/05/05/2440643/dict-launches-project-click-boost-digital-literacy>

PH Government Begins Blockchain Use in Budget Release, Newsbyte.ph (September 30, 2025), <https://newsbytes.ph/2025/09/30/ph-govt-begins-blockchain-use-in-budget-releases/>

Maria April Cruz, *CAR's Digital Landscape Fast Growing, but Faces Challenges in Digital Literacy and Cost-Related Barriers – NICTHS Survey*, Philippine Information Agency (October 2, 2025), <https://pia.gov.ph/news/cars-digital-landscape-fast-growing-but-faces-challenges-in-digital-literacy-and-cost-related-barriers-nicths-survey/>

Apipa Bagumbaran, *New ICT Survey Data Seen as Key to Closing PH Digital Divide*, Philippine Information Agency (September 30, 2025), <https://pia.gov.ph/news/new-ict-survey-data-seen-as-key-to-closing-ph-digital-divide/>

Roel Amazona, *21 Region 8 LGUs Receive Laptops Through DICT's Digital Literacy*, Philippine News Agency (June 26, 2025), <https://www.pna.gov.ph/articles/1252990>



Journal for Law Advocacy
Volume 5, Year 2025-2026

Artemio Dumlao, *Baguio Adopts Blockchain for Transparent Governance*, The Philippine Star (September 9, 2025),
<https://www.philstar.com/nation/2025/09/09/2471443/baguio-adopts-blockchain-transparent-governance>

Government Publications

Department of Information and Communications Technology, *Philippine National Public Key Infrastructure (PNPKI)* (n.d.), <https://dict.gov.ph/pnpki>

Department of the Interior and Local Government Region III-Central Luzon, *PNPKI Digital Signature Orientation and Training* (2022),
<https://www.region3.dilg.gov.ph/index.php/field-offices-news/3348-pnpki-digital-signature-orientation-and-training>

Philippine Statistics Authority, *For Every 10 Filipinos, 9 Have Basic Literacy, While 7 Have Functional Literacy* (April 4, 2025),
<https://psa.gov.ph/content/every-10-filipinos-9-have-basic-literacy-while-7-have-functional-literacy>



"Considering the present direction and thrust of the Court towards strengthening a technology-driven judiciary through digitization and automation of its court processes, as well as a parallel transformation of its human resources, the use of technology in the legal profession draws attention to its wider and underlying ethical considerations."

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Articles on

COURTS & JUDICIARY



AI Integration into the Philippine Legal System: Downsides and Benefits from Foreign Legal Systems

Jose Gian Karlo B. Farrol

Introduction

*“Justice delayed is justice denied.”*¹ The judiciary’s purpose is the administration of justice and the interpretation of law yet it is more often delayed by the number of cases docketed in its courts and the time consumed in order to sort through backlogs, resulting in justice to those seeking it is delayed if not denied as their case sits pending litigation in court, however, a technological solution exist that will help to expedite the processes.

On October 12, 2024, Supreme Court Chief Justice Alexander G. Gesmundo, during the the 19th Conference of Chief Justices of Asia and the Pacific, discusses the significant potential of artificial intelligence in assisting judges.² During the conference, the Chief Justice discussed the significant potential of AI to assist judges in streamlining administrative tasks, expedite legal research, and predicting judicial outcomes. And on November 6 of the same year, Senior Associate Justice Marvic M.V.F. Leonon addressed the media of the Supreme Court’s plan to draft the *“AI Governance Framework for the Judiciary.”*³ The SC’s plans to explore the potential of AI to enhance judicial efficiency and accuracy with their planned framework aiming to provide the standards and guidelines for using AI in court administration, specifically in legal research, document analysis, courtroom applications and case management in order to create a modern, fair and efficient Philippine justice system.

¹ Widely attributed to British Prime Minister William Ewart Gladstone; It is a legal maxim that, disputes should be resolved timely so that the legitimate rights can be protected in time.

² Supreme Court of the Philippines, *Chief Justice Gesmundo: AI Can Assist Judges, But Should Never Replace Human Elements of Justice* (2024, October 13)
<https://sc.judiciary.gov.ph/chief-justice-gesmundo-ai-can-assist-judges-but-should-never-replace-human-elements-of-justice/>

³ Supreme Court of the Philippines, *SC to Establish AI Governance Framework for the Judiciary* (2024, November 11)
<https://sc.judiciary.gov.ph/sc-to-establish-ai-governance-framework-for-the-judiciary/#:~:text=To%20this%20end%2C%20the%20Court,%2Dand%20second%2Dlevel%20courts.>



Yet, such new and developing technology is not without causing shocks and issues for the present day legal system.

Artificial Intelligence

Artificial intelligence is an umbrella term that covers a wide range of technologies and applications and over the years, numerous definitions have been given to it; one refers to AI as, *“the creation of machines or systems capable of performing tasks that typically require human intelligence, such as learning, reasoning and problem solving.”*⁴ In another, AI is a set of scientific methods, theories and techniques whose aim is to reproduce, by a machine the cognitive abilities of human beings with current development seeking to have machines perform complex tasks previously carried by human.⁵ And lastly, albeit more direct definition, *“a technology that enables computers and machines to simulate human learning, comprehension, problem solving, decision making, creativity and autonomy.”*⁶

Regardless of how one defines, AI is capable of a wide range of tasks and outputs without the need of human control. Since their inception back in the 1950s when Alan Turing⁷ first published his paper on thinking machines⁸ and the gradual development of AI technology in recent decades all over the globe have seen them used in various scientific and technological fields such as medicine, space exploration, and engineering, among others.^{9 10 11 12} For the

⁴ Kumar, Anil & Dr. Navya, Artificial Intelligence (AI) And The Future of Law, Vol. 05, Issue 01 International Journal of Progressive Research In Engineering Management And Science (IJPREMS), 1134 – 1146 (January 2025)
https://www.ijprems.com/uploadedfiles/paper/issue_1_january_2025/38263/final/fin_ijprems1737371419.pdf

⁵ Rochoa, Cinara & Carvalho, João, Artificial Intelligence in the Judiciary: Uses and Threats. Department of Information System, University of Minho, Portugal (2022)
https://www.academia.edu/102387942/Artificial_Intelligence_in_the_Judiciary_Uses_and_Threats

⁶ Stryker, Cole. & Kavlakoglu, Eda, What is Artificial Intelligence (AI)? International Business Machines Corporation (Aug. 9, 2024) <https://www.ibm.com/think/topics/artificial-intelligence>

⁷ Copeland, B.J, Alan Turing: British mathematician and logician. Britannica (June 22, 2025)
<https://www.britannica.com/biography/Alan-Turing>

⁸ Id.

⁹ Office of Justice Programs, A Brief History of Artificial Intelligence, US Department of Justice (2018, September 30) <https://nij.ojp.gov/topics/articles/brief-history-artificial-intelligence>

¹⁰ National Aeronautics and Space Administration, What is Artificial Intelligence? (2024, May 13)
<https://www.nasa.gov/what-is-artificial-intelligence/>

¹¹ Net Group: Digital Justice Solutions Team, Artificial Intelligence: A Substitute or Supporter of Judges? The Supreme Court of Estonia (2019),
<https://aastaraamat.riigikohus.ee/en/artificial-intelligence-a-substitute-or-supporter-of-judges/>

¹² Pilving, Ivo & Mikiver. Monika, A Kratt as an Administrative Body: Algorithmic Decisions and Principles of Administrative Law. The Supreme Court of Estonia (2019),



purposes of this paper, we focus primarily on notable developments and integration of artificial intelligence in the field of law, its downsides and benefits to the Philippine judicial system.

AI in the Realm of Law and Justice

In the realm of law and justice, the use of AI in the administration of justice has already been introduced in the courts of other countries.¹³

To start with the most cited example, Estonia. In 2019, the Estonians unveiled, an AI judge to settle small claims dispute thru analyzing data - the disputes and arguments of the parties – and predicting the likely outcome. It should be stressed, however, that the Estonian AI judge does not render judgment by itself on the case but rather provides the aforementioned outcome and let the human presiding judge decide the case.¹⁴ For the most part, the Estonian Ministry of Justice uses artificial intelligence to handle the repetitive but time-consuming tasks, such as the filing of documents, in order to reduce the backlog of judges in small claims case and allow their focus on more complex cases.¹⁵

Next is the Smartsettle One, an Online Dispute Resolution (ODR) tool that was made in Canada around 2019. It is negotiating app that helps disputing parties mediate and settle their dispute using algorithms that learns and assess the priorities of the disputing parties and generates a compromise or settlement to their dispute without the need to discussion such settlements in person.^{16 17} In addition, it also allows the parties to offer their proposed solutions to settle the dispute and for counter-offers to be exchanged with the AI drawing a compromise from the offered and counter offered proposed solutions by the parties that can be hopefully accepted by the parties

<https://aastaraamat.riigikohus.ee/en/a-kratt-as-an-administrative-body-algorithmic-decisions-and-principles-of-administrative-law/>

¹³ Id.

¹⁴ Ministry of Justice and Digital Affairs, Estonia does not develop AI Judge. Republic of Estonia (Jan. 16, 2022), <https://www.justdigi.ee/en/news/estonia-does-not-develop-ai-judge>

¹⁵ Cantero, Marta Gamito & Gentile, Giulia, Algorithms, Rule of Law, and the Future of Justice: Implications in the Estonian Justice System. Issue 2023/27 School of Transnational Governance, European University Institute (Oct 31, 2023) https://papers.ssrn.com/sol3/papers.cfm?abstract_id=4618760

¹⁶ Vasdani, Tara, From Estonian AI Judges to robot mediators in Canada, UK, the Lawyer's Daily, LexisNexis (June 13, 2019),

<https://www.lexisnexis.ca/en-ca/ihc/2019-06/from-estonian-ai-judges-to-robot-mediators-in-canada-uk.page>

¹⁷ Greig, Bruce, Robot Mediators? A short review of SmartSettle One. Bruce Greig Civil & Commercial Mediator (Oct. 7, 2020)

<https://www.brucegreigmediator.com/post/robot-mediators-a-short-review-of-smartsettle-one>



involved.¹⁸ It should be stressed that the ODR is only limited to assisting the parties in mediating the dispute and drawing up a settlement, the parties who chose to use Smartsettle One are not obligated to just agree with whatever settlement is generated by the AI, its resolutions are not legally binding unless the parties have agreed and signed the settlement.

And lastly, the People's Republic of China. Since 2017, China has seen great potential in integrating AI into their judicial system. It cannot be emphasized enough how much resources and determination Chinese have thrown into AI development that by 2017 they have introduced and produced various domestic artificial intelligence systems to enhance their capabilities.¹⁹ In relation to the paper's purposes, the level of digitalization and automation achieved for Chinese law and order shows how far they have and can achieve in integrating artificial intelligence to already existing systems.²⁰ In the case of their surveillance system, the integration of AI allows it to work in tandem with existing technologies, such as the already existing video surveillance system, facial recognition, audio recognition, optical character recognition, among others, to improve said systems to better achieve their desired goals.²¹ ²² One such AI assisted and enhanced Chinese surveillance system is the Tian Yan camera system which is able to identify and recognize wanted law breakers, tracking their movements and informing local law authorities of their whereabouts, resulting in their subsequent arrest.²³ As a consequence of these AI systems, the Chinese law enforcement have become efficient in their performance and in doing so reduced the number of crimes, such but not limited to, illegal parking, improper bus lane usage, jaywalking within their cities yet raising the question from many critics, both foreign and domestic, the

¹⁸ Ross, Graham, Smart Settlement: an opportunity for mediators. Internet for Lawyers Newsletter. (March 29, 2019) <https://www.infolaw.co.uk/newsletter/2019/03/smart-settlement-opportunity-mediators/>

¹⁹ Omaar, Hodan. How innovative is China in AI? Information Technology & Innovation Foundation (ITIF) (Aug 26, 2024) <https://itif.org/publications/2024/08/26/how-innovative-is-china-in-ai/>

²⁰ Cousineau, Claire, Smart Courts and the Push for Technological Innovation in China's Judicial System. Center for Strategic and International Studies (CSIS) (April 15, 2021) <https://www.csis.org/blogs/new-perspectives-asia/smart-courts-and-push-technological-innovation-chinas-judicial-system>

²¹ Id.

²² Wang, Nyu & Tian, Michael Yuan, 'Intelligent Justice': AI Implementation in China's Legal System. ResearchGate (May 22, 2024) https://www.researchgate.net/publication/358318071_'Intelligent_Justice'_AI_Implementations_in_China's_Legal_Systems

²³ Id.



morality of using AI to enhance the capabilities of their surveillance system to violate the privacy of their own people.²⁴

In the Chinese legal system, the Chinese have introduced the Smart Court Reforms (SCR), where they installed AI systems to help digitalize and, to some extent, automate their judicial system. Called Smart Courts, for short, they are platforms and softwares to help judges with case management, make the judicial process more convenient for litigants as they allow for integration for mobile apps and increase the connectivity between different stakeholders in the judicial process.²⁵

The court AI system, using speech recognition and image processing, compiles and converts trial recordings, images, paper based files to digital formats with high data accuracy and using cloud database suite allows the Chinese courts in to easily retrieve past cases with similar details, including judgment and legal provisions, reducing the time to manually research and the reliance of memory on verdicts and allowing for the judges of said courts, in theory, to apply fair and consistent legal standards.²⁶ ²⁷By 2019, the system had reached the point that some courts have replaced their court clerks with the AI for there is less risk of key details being omitted or misunderstood by human clerks, specifically for cases under summary procedure.²⁸

To add further, the Rui Judge, a type of logic engine to interpret evidential information and identify logical connections between individual pieces of evidence for trial centered litigation that produces sentencing recommendation. Furthermore, alongside the smart courts are AI robots and guides to help members of the judiciary and litigants in Hangshou, Xinyang, Chongzhou, among many other city people's courts, where these AI service robots and guides help litigants in the filing of their cases, to provide legal consultation, predict the risk and likely outcomes of pursuing a case and provide litigants with a pre-trial prediction of winning their cases based on oral

²⁴ Id.

²⁵ Reiling, Dory & Papagiannenas, Straton, Lessons from China's Smart Court Reform. Volume: 16 Issue:1 International Journal for Court Administration (IACA Journal) (2025)
<https://iacajournal.org/articles/10.36745/ijca.679>

²⁶ Id.

²⁷ Shi, Changqing, Sourdin, Tania & Li, Bin, The Smart Court – A New Pathway to Justice in China? Vol. 12 Issue 1 International Journal for Court Administration (IACA) (March 11, 2021)
<https://iacajournal.org/articles/10.36745/ijca.367>

²⁸ Chinese Business Law Journal, AI in courts paves way for efficiency, consistency in China, Law dot Asia (May 14, 2018) <https://law.asia/ai-in-courts-paves-way-for-efficiency-consistency-in-china/>



testimony provided by the litigants and processed through the robots' algorithms, and much more as development continues.²⁹

And that is just the tip of the icebergs of examples of AI integration in the judicial system. Besides the three specific examples named, elsewhere in the world, AI technology has been used extensively by numerous foreign legal systems.³⁰ The US, being one of the leader of said technology, have law firms using AI as virtual assistants in serving their clients on matters related to legal research, drafting of legal documents, among other such basic yet time consuming tasks.^{31 32} Japan also have their AI systems serving as assistants in their legal system but under strict regulation that the use of such systems is on matters of drafting contracts, not on actual interpretation of the law.^{33 34} The Indian legal community has too jumped on the bandwagon of integrating AI with numerous Indian law firms planning if not already using AI tools as assistants in similar tasks.³⁵ Vietnam is following China's lead on creating their own Smart courts in order to improve the efficiency of their courts.³⁶ In Singapore, they have allowed their legal system to use AI albeit unofficial integration of AI into their courts, particularly in summarizing legal documents and translations into the local languages of Singapore, all the while they have yet to pass their Model AI Framework into actual law to regulate AIs, Singapore chose to instead have AI use and their penalties for misuse fall under existing laws while at the same time strictly encourage proper ethical use of AI technology by their law community within their borders.³⁷ And in the

²⁹ Id.

³⁰ Dolidze, Tatia, The Evolving Role of Artificial Intelligence in Legal Education and Research. Vol. 11 No. 33 Law and World (2025) <https://lawandworld.ge/index.php/law/article/view/677>

³¹ Couture, Robert J., The Impact of Artificial Intelligence on Law Firms' Business Models. Center on Legal Profession, Harvard Law School (February 25, 2025) <https://clp.law.harvard.edu/knowledge-hub/insights/the-impact-of-artificial-intelligence-on-law-law-firms-business-models/>

³² Misr University for Science and Technology, How AI is being used in the Legal Field Today, MUST University (n.d) <https://mustedu.com/how-ai-is-being-used-in-the-legal-field-today/>

³³ Katz, Danny, Japan's Approach to Legal AI: What US Attorneys Miss While They're Too Busy Panicking. LinkedIn Corporation (Mar. 6, 2025)

<https://www.linkedin.com/pulse/japans-approach-legal-ai-what-us-attorneys-miss-while-danny-katz-mrrce/>
³⁴ Chilingirov, Spas, Japan APPI Cross Border Transfer: Steps to Comply. Captain Compliance (May 13, 2024) <https://captaincompliance.com/education/japan-appi-cross-border-transfer/>

³⁵ Id.

³⁶ Tung, Nguyen Thanh, Courts: Building smart courts in Vietnam. Vietnam Law and Legal Reform (Jan 31, 2025) <https://vietnamlawmagazine.vn/building-smart-courts-in-vietnam-73527.html>

³⁷ Lin, Clare, Four ways AI is shaking up Singapore's Legal Practice. GovInsider (Jun. 5, 2025) <https://govinsider.asia/intl-en/article/four-ways-ai-is-shaking-up-singapores-legal-practice>; White & Case LLP, AI Watch: Global Regulatory Tracker – Singapore. (May 13, 2024) <https://www.whitecase.com/insight-our-thinking/ai-watch-global-regulatory-tracker-singapore>; Personal Data



Philippines, although it has yet to officially integrate Artificial Intelligence in its legal system, it isn't staying idle in the growing AI industry. In 2023, a bill was filed with the Philippine House of Representatives to regulate the eventual rise of AI systems.³⁸ In addition, discussions are about to amend existing data privacy³⁹ and intellectual property laws⁴⁰ to include the challenges from AI with the Philippine Supreme Court announcing plans of drafting a framework to set the standards and guidelines for the eventual use of AI in the judiciary.⁴¹ ⁴²And already a number of AI tools have appeared and are in use by Filipino lawyers and law students in digesting cases, predicting litigation outcomes, drafting of contracts, and giving of legal advice albeit approached with caution by law practitioners.⁴³ And more developments of AIs in the legal field are still taking place or will soon take place as time marches on, making it clear it is an inevitability.

What can we learn from foreign judiciaries?

The presence of artificial intelligence in the judiciary is not just a possibility but is an inevitability as shown with recent developments and happenings elsewhere in the world, yet, the examples from these foreign legal systems have shown that the integration of AI technology into the judiciary has its downsides and benefits.

Protection Commission Singapore, Singapore's Approach to AI Governance. (2020)
<https://www.pdpc.gov.sg/help-and-resources/2020/01/model-ai-governance-framework>; Nayak, Rohit, Singapore's forward thinking approach to AI Regulation. Diligent (Aug. 20, 2024)
<https://www.diligent.com/resources/blog/Singapore-AI-regulation>; Thomson Reuters, Ethical AI for Lawyers in Singapore: Key responsibilities. (Jun. 23, 2024)
<https://insight.thomsonreuters.com/sea/legal/posts/ethical-ai-for-lawyers-in-singapore-key-responsibilities>

³⁸ House Bill No. 7396, or the Act Promoting the Development and Regulation of AI in the Philippines

³⁹ Data Privacy Act of 2012, Rep. Act. No. 10173 (Phil.).

⁴⁰ Intellectual Property Code of the Philippines, Rep. Act No. 8293 (Phil.).

⁴¹ Supreme Court of the Philippines, SC to Establish AI Governance Framework for the Judiciary (2024, November 11)

<https://sc.judiciary.gov.ph/sc-to-establish-ai-governance-framework-for-the-judiciary/#:~:text=To%20this%20end%2C%20the%20Court,%2Dand%20second%2Dlevel%20courts.>

⁴² Beltran, Richard Henrick I., & Tacandong, Ma. Samira C., Regulation of Artificial Intelligence in the Philippines. Villaraza & Angangco the Firm (April 18, 2023)
<https://www.thefirmva.com/updates.do?id=27394>

⁴³ Cabaluna, Cedrick, How Artificial Intelligence (AI) is Shaping the Legal Industry in the Philippines. Lexagle (May 27, 2025) <https://www.lexagle.com/blog-en-sg/ai-legal-industry-philippines>



A. DOWNSIDES

Starting with the downsides of AI integration. First, violation of the Individual's Constitutional Right to Privacy and Data Privacy.⁴⁴ As shown by China's AI enhanced surveillance systems, acting on their programming, AIs have no issue in tracking down an individual's movement, whether in the real world or cyberspace as long as said individual was placed as one of their tasks to accomplish.⁴⁵ Granted it is for the purpose of reducing crime and keeping the law-abiding citizens safe and secure but how far should such measures using AI be taken for the safety and security of the people before it violates their right to travel?⁴⁶ Furthermore, in order for AIs to achieve their objectives and tasks, they require a vast amount of data to work with. Regardless of whether a case is civil or criminal, the data from said cases are of private and sensitive nature and without proper safeguards, said private and sensitive data might be proliferated into the public sphere, more so if the AI systems are still undergoing its pilot stage which is still the case in the Philippines.⁴⁷

Next, of the Individual's Constitutional Right to be Presumed Innocence Until The Contrary is Proved.⁴⁸ Both the Chinese AI smart robots and the Estonian guides, upon being provided with and examining the data (the oral testimonies of the parties-in-interest, the information, jurisprudence, the legal provisions, etc.), the AIs can make recommendations, legal predictions and whatnot of the case to the court but what if the data is biased?⁴⁹ Or just faulty with certain details? Note, such predictions are made before the start of proceedings or even the pre-trial litigation, such faulty prediction may influence the court to presume that this is how the proceedings will take place resulting in an unintentional bias to be made when the court deliberates on their decision to the case thus instead of administering an incorrect judgment on the litigants. Yes, human judges are not above such mistakes in their judgment but AI have been sold on the idea that they are more precise, neutral and less likely to make such mistakes compared to human judges.

⁴⁴ Const. (1987), art. III, § 3 (Phil.).

⁴⁵ Id.

⁴⁶ Const. (1987), art. III, § 6 (Phil.).

⁴⁷ Id.

⁴⁸ Const. (1987), art. III, § 14 (Phil.).

⁴⁹ Id.



Third, on the matter of the Individual's Constitutional Right to Speedy, Impartial and Public Trial.⁵⁰ In relation to the previous paragraph, another concern occurring with the use of Artificial Intelligence are AI hallucination and AI bias and discrimination. AI hallucinations, it is a phenomenon where the AI perceives patterns or objects that are non-existent or imperceptible to human observers, creating outputs that are nonsensical or inaccurate, or in simple terms the AI hallucinated and gave an inaccurate or false response after being given commands.⁵¹ ⁵²AI hallucinations have already led to one notable case of a lawyer citing non-existent cases in his pleadings using AI that was discovered resulting in disciplinary action against said counsel and to his law firm.⁵³ ⁵⁴ ⁵⁵⁵⁶And it is not a lone incident as several more have appeared since then of lawyers using their AI tools to search for jurisprudence and they produce fictitious cases instead,⁵⁷

And AI bias and discrimination, since the AI formulates its results from reviewing and analyzing historical data but if said data used to train these systems contains biases, the AI may perpetuate or even amplify those biases, resulting to unfair outcomes, such as biased sentencing or case predictions based on race, gender, or socioeconomic status.⁵⁸ This unintentional bias and discriminatory outputs from the AI in legal data has the potential to continue racial biases and discrimination towards certain groups due to their race,

⁵⁰ Const. (1987), art. III, § 14 (Phil.).

⁵¹ International Business Machines Corporation, What are AI Hallucinations? (Sept. 1, 2023)

<https://www.ibm.com/think/topics/ai-hallucinations>

⁵² Merken, Sara, AI 'hallucinations' in court papers spell trouble for lawyers. Reuters (Feb. 19, 2025)

<https://www.reuters.com/technology/artificial-intelligence/ai-hallucinations-court-papers-spell-trouble-lawyers-2025-02-18/>

⁵³ Wadsworth v. Walmart Inc. LCC, No. 2:23 – CV – 118 – KHR (2025) (US)

<https://caselaw.findlaw.com/court/us-dis-crt-d-wyo/117003959.html>

⁵⁴ Wadsworth v. Walmart Inc., No. 2:33 – CV- 118 – KHR (US District Court of for the District of Wyoming, 2025) <https://www.law.buffalo.edu/content/dam/law/content/cle/25Mar04-materials-3.pdf>

⁵⁵ Merken, Sara, Lawyer who used flawed AI case citations say sanctions unwarranted in whistleblower case. Reuters (Aug. 28, 2024)

<https://www.reuters.com/legal/transactional/lawyer-who-used-flawed-ai-case-citations-says-sanctions-unwarranted-2024-08-27/>

⁵⁶ Merken, Sara, Lawyers in Walmart Lawsuit admit AI 'hallucinated' case citations. Reuters (Feb. 11, 2025)

<https://www.reuters.com/legal/legalindustry/lawyers-walmart-lawsuit-admit-ai-hallucinated-case-citations-2025-02-10/>

⁵⁷ Ambrogi, Bob, AI Hallucinations Strike Again: Two More Cases Where Lawyers Face Judicial Wrath for Fake Citations. LawSites: Tracking Technology and Innovation for the Legal Profession (May 14, 2025)

<https://www.lawnext.com/2025/05/ai-hallucinations-strike-again-two-more-cases-where-lawyers-face-judicial-wrath-for-fake-citations.html>

⁵⁸ Id.



gender or socio-economic thus impacting the administration of justice in litigations.^{59 60}

Both of these concerns can and will affect the impartiality of the trial court as, like in the previous discussion, AI bias and discrimination happens due to the AI analyzing data that contains biases towards certain socio-economic, racial or religious groups because historical cases have the respondents of said groups as being in the wrong side of the law and thus when producing recommendations and predictions may affect the impartiality of the court.⁶¹ And as for AI hallucinations, when a trial court discovered that the jurisprudence of a counsel is fictitious, this can result in delays to the proceedings or even outright lose the case of the respondent counsel's client due to the negligence of their counsel using AI in legal research and not being practicing diligence on whether its results were correct or faulty.⁶²

Moving on, there are issues of Transparency and Accountability. In the legal profession, accountability is essential as the decision of court can and will affect an individual's life for better or worse. To leave such decision to an AI, it may not always be clear how or why such decision is reached as it basis its decision on the data provided thus if said decision's basis is unclear, who shall be held accountable? The AI? Or the court that used said AI to come up with its decision? As the examples have shown, AI is still far from achieving the level of decision-making to solely leave it to their artificial discretion.⁶³

And lastly AI, while efficient and effective in the tasks assigned to it, it is still a cold and an emotionless set of computer algorithms and programming, clinical, lacking empathy and ethical discretion in the handling of cases as seen with the examples cited.⁶⁴ The AI "judges" used by Estonia and China follow the rule of law and from the data provided by litigants (oral testimonies, written testimonies) to draw their recommendation and predictions. It is on its face is fair and neutral, not influenced by the irrationality of human emotions yet it does so without factoring cultural context and general common knowledge a

⁵⁹ Id.

⁶⁰ Abu Nasser, Besan S. ET AL, Implications and Applications of Artificial Intelligence in the Legal Domain. Vol. 7, Issue 12 International Journal of Academic Information System Research (IJAISR) 18 – 25 (Dec. 2023)

⁶¹ Id.

⁶² Id.

⁶³ Id.

⁶⁴ Id.



human would understand and know, the AI only has what it was programmed to search, analyze and produce the results.⁶⁵

While it cannot be understated how much AIs are still far from perfect in their operations, the examples should not underscore how much said AI systems have improved the performance of these foreign judiciaries.

B. BENEFITS

Onwards with the benefits, to cite once more the Chinese and Estonian smart courts, using AI in the courtrooms have helped to reduce the judges' workload as said AI systems are able to take in and analyze data of the pending case to provide recommendations and predictions of likely outcomes based on previous court rulings and decisions of similar case more effectively and efficiently than a judge or their legal research teams.⁶⁶ This in turn allows the judges to focus on more complex cases.⁶⁷ Such use fulfills and upholds the Individual's Right to a Speedy Disposition of their cases⁶⁸ and Right to a Speedy Trial.⁶⁹

And besides the courts of law, law firms and lawyers in general are able to serve their clients more effectively as thru AI tools and systems its reduces the time and effort required in conducting legal research (the search for legal provisions, jurisprudence, etc.), drafting of documents (resolutions, pleadings and contracts), among others, thus allowing the counsels to cut time consumption and resource use, to efficiently deliver quality services to their clients.⁷⁰ ⁷¹ Furthermore, clients can also seek said AIs for legal counsel and advises without the hassle of looking for a lawyer to seek the same or without wasting the time of their counsel with simple and repetitive tasks required of their case.⁷²

⁶⁵ Papagianneas, Straton & Junius, Nino, Fairness and Justice through automation in China's smart courts. Vol. 51 Computer Law & Security Review. ScienceDirect (November 2023)
<https://www.sciencedirect.com/science/article/pii/S0267364923001073>

⁶⁶ Peng, Junlin & Xiang, Wen, The Rise of Smart Courts in China: Opportunities and Challenges to the Judiciary in a Digital Age. No. 9 Naveiñ Reet: Nordic Journal of Law and Social Research (NNJLSR) 345 – 372 (2019) <https://tidsskrift.dk/nnjlsr/article/download/122167/169417/255409>

⁶⁷ Id.

⁶⁸ Const (1987), art. III, § 14 (Phil.).

⁶⁹ 1997 Revised Rules of Criminal Procedure, § 115, A.M. No. 00-5-03-SC as amended (Phil.).

⁷⁰ Serrano Farah Law LP, Artificial Intelligence in the Law Industry. (Jan. 23, 2024)
<https://gableslawfirm.com/2024/01/artificial-intelligence-in-the-law-industry/>

⁷¹ Thomas Reuters, Artificial Intelligence: How AI is transforming the legal profession (2025). (Jan. 16, 2025)
<https://www.reuters.com/legal/transactional/lawyer-who-used-flawed-ai-case-citations-says-sanctions-unwarranted-2024-08-27/>

⁷² Id.



C. WHAT CAN BE DRAWN FROM ALL THIS?

Taking in both the downsides and benefits of the recent developments and progress made by foreign judiciaries in integrating Artificial Intelligence into their legal systems, it gives credence to Chief Justice Gesmundo to rightfully stress that AI should support judicial efficiency but never replace the human elements of justice⁷³. It does not erase the fact, the integration of AI systems is necessary to lift some of the burdens of the Philippine legal system. Although, Legal AI systems have advanced significantly since their pilot stages in the early 2010s, they are still far from achieving complete and flawless reliability in their performances as envisioned by their makers. Instead, the foreign examples shows that the integration of AI can help to improve the efficiency of already overworked and clogged judicial system and lessen the burdens placed on members of the judiciary to resolve docketed cases and serve their clients in a timely and less cost consuming manner, and at the same time, there are risks, ethical issues with violations of individual rights (the right to privacy, right to presumption of innocence, right to a speedy, impartial and fair public court, among others) and practical concerns when the AI, taking in data and creates, unintentionally, biased and discriminatory results or even outright false legal citations in the judicial proceedings.

The risks are present without a doubt but all technologies have risks when they were introduced, there is no exemption with emerging AI technologies. As the foreign legal systems have shown, what matters is: a) the creation and effectivity of legal framework to provide the guidelines and standards of using AI technology in the judiciary as what had been accomplished in some countries and still being debated in others; and most importantly, b) how we use the continually evolving AI technology in the law profession, as much as we blame the technology, in the end it is the law practitioner using AI that bears the consequences of faulty results delivered, hence, the exercise of diligence and careful approach must be taken, if not greater than ever, when using AI tools and systems in the pursuit of justice.⁷⁴

⁷³ Id.

⁷⁴ Lee, Hannah Louise, *The Legal Outlook of AI in the Philippines*. Digest Ph (Dec. 13, 2024) <https://www.digest.ph/blog/the-legal-outlook-of-ai-in-the-philippines>



Conclusion

In conclusion, the integration of Artificial Intelligence to the Philippine judiciary is necessary in order to provide efficiency to the judicial proceedings, to reduce the numbers of docketed cases, reduce the cost and to alleviate the delivery of prayed for relief but it must be approached with caution and care for the administration of justice as the likelihood of violating the constitutional rights of the individual and committing mistakes against litigants, by unintentional bias, discrimination or even faulty citation, remains ever so present. To avoid such; first, there must be a legal framework of guidelines and standards in effect in order to regulate the use and creation of AI systems; and second, the application and use must be done wisely and with diligence in order for the individual constitutional right to speedy and impartial trial to be upheld and exercised through using AI as it cannot be the replacement but a needed tool for the human presiding judges of the court and law practitioners of the nation to use in their duty for the pursuit and administration of justice.



Bibliography

Constitution

1987 Constitution of the Philippines, art. III, § 3 (Phil.).

1987 Constitution of the Philippines, art. III, § 6 (Phil.).

1987 Constitution of the Philippines, art. III, § 14 (Phil.)

Statutes

1997 Revised Rules of Criminal Procedure, § 115, A.M. No. 00-5-03-SC as amended (Phil.).

Data Privacy Act of 2012, Rep. Act. No. 10173 (Phil.)

Intellectual Property Code of the Philippines, Rep. Act No. 8293 (Phil.).

Jurisprudence

Wadsworth v. Walmart Inc. LCC, No. 2:23 – CV – 118 – KHR (2025) (US)
<https://caselaw.findlaw.com/court/us-dis-crt-d-wyo/117003959.html>

Wadsworth v. Walmart Inc., No. 2:33 – CV- 118 – KHR (US District Court of for the District of Wyoming, 2025),
<https://www.law.buffalo.edu/content/dam/law/content/cle/25Mar04-materials-3.pdf>

House Bill

House Bill No. 7396, or the Act Promoting the Development and Regulation of AI in the Philippines,
<https://issuances-library.senate.gov.ph/bills/house-bill-no-7396-19th-congress>

Online Sources

Abu Nasser, Besan S., ET AL, Implications and Applications of Artificial Intelligence in the Legal Domain. Vol. 7, Issue 12 International Journal of Academic Information System Research (IJAIRS) 18 – 25 (Dec. 2023),

Ambrogi, Bob, AI Hallucinations Strike Again: Two More Cases Where Lawyers Face Judicial Wrath for Fake Citations. LawSites: Tracking Technology and Innovation for the Legal Profession (May 14, 2025),



Journal for Law Advocacy
Volume 5, Year 2025-2026

<https://www.lawnext.com/2025/05/ai-hallucinations-strike-again-two-more-cases-where-lawyers-face-judicial-wrath-for-fake-citations.html>

Beltran, Richard Henrick I., & Tacandong, Ma. Samira C., Regulation of Artificial Intelligence in the Philippines. Villaraza & Angangco the Firm (April 18, 2023), <https://www.thefirmva.com/updates.do?id=27394>

Cabaluna, Cedrick, How Artificial Intelligence (AI) is Shaping the Legal Industry in the Philippines. Lexagle (May 27, 2025), <https://www.lexagle.com/blog-en-sg/ai-legal-industry-philippines>

Cantero, Marta Gamito & Gentile, Giulia, Algorithms, Rule of Law, and the Future of Justice: Implications in the Estonian Justice System. Issue 2023/27 School of Transnational Governance, European University Institute (Oct 31, 2023), https://papers.ssrn.com/sol3/papers.cfm?abstract_id=4618760

Chilingirov, Spas, Japan APPI Cross Border Transfer: Steps to Comply. Captain Compliance (May 13, 2024), <https://captaincompliance.com/education/japan-appi-cross-border-transfer/>

Chinese Business Law Journal, AI in courts paves way for efficiency, consistency in China, Law dot Asia (May 14, 2018), <https://law.asia/ai-in-courts-paves-way-for-efficiency-consistency-in-china/>

Copeland, B.J, Alan Turing: British mathematician and logician. Britannica (June 22, 2025), <https://www.britannica.com/biography/Alan-Turing>

Cousineau, Claire, Smart Courts and the Push for Technological Innovation in China's Judicial System. Center for Strategic and International Studies (CSIS) (April 15, 2021), <https://www.csis.org/blogs/new-perspectives-asia/smart-courts-and-push-technological-innovation-chinas-judicial-system>

Couture, Robert J., The Impact of Artificial Intelligence on Law Firms' Business Models. Center on Legal Profession, Harvard Law School (February 25, 2025), <https://clp.law.harvard.edu/knowledge-hub/insights/the-impact-of-artificial-intelligence-on-law-law-firms-business-models/>

Dolidze, Tatia, The Evolving Role of Artificial Intelligence in Legal Education and Research. Vol. 11 No. 33 Law and World (2025), <https://lawandworld.ge/index.php/law/article/view/677>



Journal for Law Advocacy
Volume 5, Year 2025-2026

Greig, Bruce, Robot Mediators? A short review of SmartSettle One. Bruce Greig Civil & Commercial Mediator (Oct. 7, 2020), <https://www.brucegreigmediator.com/post/robot-mediators-a-short-review-of-smartsettle-one>

International Business Machines Corporation, What are AI Hallucinations? (Sept. 1, 2023), <https://www.ibm.com/think/topics/ai-hallucinations>

Katz, Danny, Japan's Approach to Legal AI: What US Attorneys Miss While They're Too Busy Panicking. LinkedIn Corporation (Mar. 6, 2025), <https://www.linkedin.com/pulse/japans-approach-legal-ai-what-us-attorneys-miss-while-danny-katz-mrrce/>

Kumar, Anil & Navya, , Artificial Intelligence (AI) And The Future of Law, Vol. 05, Issue 01 International Journal of Progressive Research In Engineering Management And Science (IJPREMS), 1134 – 1146 (January 2025), https://www.ijprems.com/uploadedfiles/paper/issue_1_january_2025/38263/final/fin_ijprems1737371419.pdf

Lee, Hannah Louise, The Legal Outlook of AI in the Philippines. Digest Ph (Dec. 13, 2024), <https://www.digest.ph/blog/the-legal-outlook-of-ai-in-the-philippines>

Lin, Clare, Four ways AI is shaking up Singapore's Legal Practice. GovInsider (Jun. 5, 2025), <https://govinsider.asia/intl-en/article/four-ways-ai-is-shaking-up-singapores-legal-practice>

Merken, Sara, AI 'hallucinations' in court papers spell trouble for lawyers. Reuters (Feb. 19, 2025), <https://www.reuters.com/technology/artificial-intelligence/ai-hallucinations-court-papers-spell-trouble-lawyers-2025-02-18/>

Merken, Sara, Lawyers in Walmart Lawsuit admit AI 'hallucinated' case citations. Reuters (Feb. 11, 2025), <https://www.reuters.com/legal/legalindustry/lawyers-walmart-lawsuit-admit-ai-hallucinated-case-citations-2025-02-10/>

Merken, Sara, Lawyer who used flawed AI case citations say sanctions unwarranted in whistleblower case. Reuters (Aug. 28, 2024), <https://www.reuters.com/legal/transactional/lawyer-who-used-flawed-ai-case-citations-says-sanctions-unwarranted-2024-08-27/>



Journal for Law Advocacy
Volume 5, Year 2025-2026

Misr University for Science and Technology, How AI is being used in the Legal Field Today, MUST University (n.d), <https://mustedu.com/how-ai-is-being-used-in-the-legal-field-today/>

Ministry of Justice and Digital Affairs, Estonia does not develop AI Judge. Republic of Estonia (Jan. 16, 2022), <https://www.justdigi.ee/en/news/estonia-does-not-develop-ai-judge>

National Aeronautics and Space Administration, What is Artificial Intelligence? (2024, May 13), <https://www.nasa.gov/what-is-artificial-intelligence/>

Nayak, Rohit, Singapore's forward thinking approach to AI Regulation. Diligent (Aug. 20, 2024), <https://www.diligent.com/resources/blog/Singapore-AI-regulation>

Office of Justice Programs, A Brief History of Artificial Intelligence, US Department of Justice (2018, September 30), <https://nij.ojp.gov/topics/articles/brief-history-artificial-intelligence>

Omaar, Hodan. How innovative is China in AI? Information Technology & Innovation Foundation (ITIF) (Aug 26, 2024), <https://itif.org/publications/2024/08/26/how-innovative-is-china-in-ai/>

Papagiannenas, Straton & Junius, Nino, Fairness and Justice through automation in China's smart courts. Vol. 51 Computer Law & Security Review. ScienceDirect (November 2023), <https://www.sciencedirect.com/science/article/pii/S0267364923001073>

Peng, Junlin & Xiang, Wen, The Rise of Smart Courts in China: Opportunities and Challenges to the Judiciary in a Digital Age. No. 9 Naveiñ Reet: Nordic Journal of Law and Social Research (NNJLSR) 345 – 372 (2019), <https://tidsskrift.dk/nnjsr/article/download/122167/169417/255409>

Personal Data Protection Commission Singapore, Singapore's Approach to AI Governance. (2020), <https://www.pdpc.gov.sg/help-and-resources/2020/01/model-ai-governance-framework>

Pilving, Ivo & Mikiver. Monika, A Kratt as an Administrative Body: Algorithmic Decisions and Principles of Administrative Law. The Supreme Court of Estonia (2019), <https://aastaraamat.riigikohus.ee/en/a-kratt-as-an-administrative-body-algorithmic-decisions-and-principles-of-administrative-law/>



Journal for Law Advocacy
Volume 5, Year 2025-2026

Reiling, Dory & Papagianneas, Straton, Lessons from China's Smart Court Reform. Volume: 16 Issue:1 International Journal for Court Administration (IACA Journal) (2025), <https://iacajournal.org/articles/10.36745/ijca.679>

Rochoa, Cinara & Carvalho, João, Artificial Intelligence in the Judiciary: Uses and Threats. Department of Information System, University of Minho, Portugal (2022),
https://www.academia.edu/102387942/Artificial_Intelligence_in_the_Judiciary_Uses_and_Threats

Ross, Graham, Smart Settlement: an opportunity for mediators. Internet for Lawyers Newsletter. (March 29, 2019),
<https://www.infolaw.co.uk/newsletter/2019/03/smart-settlement-opportunity-mediators/>

Serrano Farah Law LP, Artificial Intelligence in the Law Industry. (Jan. 23, 2024),
<https://gableslawfirm.com/2024/01/artificial-intelligence-in-the-law-industry/>

Shi, Changqing, Sourdin, Tania & Li, Bin, The Smart Court – A New Pathway to Justice in China? Vol. 12 Issue 1 International Journal for Court Administration (IACA) (March 11, 2021), <https://iacajournal.org/articles/10.36745/ijca.367>

Stryker, Cole. & Kavlakoglu, Eda, What is Artificial Intelligence (AI)? International Business Machines Corporation (Aug. 9, 2024),
<https://www.ibm.com/think/topics/artificial-intelligence>

Supreme Court of the Philippines. SC to Establish AI Governance Framework for the Judiciary (2024, November 11),
<https://sc.judiciary.gov.ph/sc-to-establish-ai-governance-framework-for-the-judiciary/#:~:text=To%20this%20end%2C%20the%20Court,%2Dand%20second%2Dlevel%20courts.>

Thomas Reuters, Artificial Intelligence: How AI is transforming the legal profession (2025). (Jan. 16, 2025),
<https://www.reuters.com/legal/transactional/lawyer-who-used-flawed-ai-case-citations-says-sanctions-unwarranted-2024-08-27/>

Thomson Reuters, Ethical AI for Lawyers in Singapore: Key responsibilities. (Jun. 23, 2024),
<https://insight.thomsonreuters.com/sea/legal/posts/ethical-ai-for-lawyers-in-singapore-key-responsibilities>



Journal for Law Advocacy
Volume 5, Year 2025-2026

Tung, Nguyen Thanh, Courts: Building smart courts in Vietnam. Vietnam Law and Legal Reform (Jan 31, 2025),
<https://vietnamlawmagazine.vn/building-smart-courts-in-vietnam-73527.html>

Vasdani, Tara, From Estonian AI Judges to robot mediators in Canada, UK, the Lawyer's Daily, LexisNexis (June 13, 2019),
<https://www.lexisnexis.ca/en-ca/ihc/2019-06/from-estonian-ai-judges-to-robotmediators-in-canada-uk.page>

Wang, Nyu & Tian, Michael Yuan, 'Intelligent Justice': AI Implementation in China's Legal System. ResearchGate (May 22, 2024),
https://www.researchgate.net/publication/358318071_'Intelligent_Justice'_AI_Implementations_in_China's_Legal_Systems

White & Case LLP, AI Watch: Global Regulatory Tracker – Singapore. (May 13, 2024),
<https://www.whitecase.com/insight-our-thinking/ai-watch-global-regulatory-tracker-singapore>



AI chatbots as a Hallucinogenic Epidemic Towards the Practice of Law;

An ethical inquiry on the right of use of AI chatbots.

Lei Justine P. Labrador

INTRODUCTION

Ethics, by nature, is a concept that delimits, restricts, and determines the actions of professionals to ensure accountability and impose that the good prevails—it does not concern itself with what is most practical or most efficient alone, but rather with what is right and proper. To put it in the words of philosophers like Socrates, Plato, Aristotle, and those who came to develop and adapt their philosophies, ethics is a science of moral principles.¹ Ethics is a moral principle that constitutes something more than the individual and personal set of standards.²

In the context of the Philippines and the Legal Profession, ethics in the practice of law is regulated by AM 22-09-01-SC, more commonly known as the Code of Professional Responsibility and Accountability or CPRA.³ The aforementioned was recently amended last April 11, 2023, after 34 years since the Code of Professional Responsibility or CPR in 1988.⁴ Whereby, it now defines ethics as an ‘experiential manifestation of moral standards.’⁵ Of note in the amendment is that CPRA is now divided into ‘Canons’ in contrast to its previous iteration of being divided into ‘Chapters’, or statutes which are divided by ‘Articles’. The change is rather poetic and with purpose, given that the etymology of the word ‘Canon’ is from Ecclesiastical laws as distinguished from ‘Chapter’ or ‘Article’, which comes from Human law.⁶ The change is likely due to the framework of CPRA shifting from its duty-based framework to a value-centered structure; one that now seeks to not only limit the ethics in the practice of law to merely duty but also to the very core foundation of lawyers

¹ ATrain Education, *Ethics and the Law*, in *Ethics for Professional Case Managers* (online ed., 2025), <https://www.atrainceu.com/content/4-ethics-and-law>.

² Peter Singer, *Ethics (Moral Philosophy)*, *Encyclopædia Britannica* (last updated July 11, 2025), <https://www.britannica.com/topic/ethics-philosophy>.

³ A.M. No. 22-09-01-SC, *Code of Professional Responsibility and Accountability*.

⁴ *Infra* note 7

⁵ *Supra* note 3

⁶ Ladislav M. Örsy & Peter J. Huizing, *Canon Law*, *Encyclopædia Britannica* (last updated June 16, 2025), <https://www.britannica.com/topic/canon-law>.



via the values it seeks to impose and one that the canons are named for: independence, propriety, fidelity, competence, diligence, equality, and accountability.⁷

To highlight the shift from a duty-based framework to a value-based structure, a distinction is needed to see the rationale in the change of CPR to CPRA. Duty-Based framework is focused on the duty itself, questions of morality directly related to the moral obligation and actions in relation to their responsibility to the practice.⁸ Hence in that respect, CPR was focused primarily on the ethics of the lawyers to their duty.

In contrast, Value-Based Ethics is focused on the question of “what is good” beyond the practice alone; it seeks to impose values fundamental to the core of a person, important to the organization.⁹ Therefore, CPRA has an encompassing hold over the actions of a lawyer beyond their duty, highlighting the pursuit of the concept of noble values and positive public perception of those in the legal profession, both in practice and in private.

DELIMITATION OF TOPIC

Among the seven values, this article highlights the value of propriety, competence, and diligence, seen in Canon II and Canon IV.¹⁰ Propriety is the quality of lawyers to be seen as well-mannered and proper in their conduct and/or speech.¹¹ Competence is the quality of sufficient knowledge, judgment, skill, or strength.¹² Diligence is the quality expected to be given in the attention and care legally required or expected of an individual.¹³ The focus on these

⁷ “Justice Gaerlan: CPRA Signals Rebirth of Legal Community”, Supreme Court of the Philippines Public Information Office (Feb. 20, 2024), <https://sc.judiciary.gov.ph/justice-gaerlan-cpra-signals-rebirth-of-legal-community/>.

⁸ BBC, *Duty-Based Ethics*, BBC Ethics (n.d.), https://www.bbc.co.uk/ethics/introduction/duty_1.shtml.

⁹ Michael Segon & Christopher Booth, *Values-Based Approach to Ethical Culture: A Case Study*, in *Ethics, Values and Civil Society* (M. Schwartz & H. Harris eds., Res. in Ethical Issues in Orgs. Vol. 9, 2013) 93–118, [https://doi.org/10.1108/S1529-2096\(2013\)0000009011](https://doi.org/10.1108/S1529-2096(2013)0000009011).

¹⁰ Supra note 3

¹¹ “Propriety,” Merriam-Webster.com Dictionary (last updated July 11, 2025), <https://www.merriam-webster.com/dictionary/propriety>.

¹² “Competence,” Merriam-Webster.com Dictionary (last updated July 16, 2025), <https://www.merriam-webster.com/dictionary/competence>.

¹³ “Diligence,” Merriam-Webster.com Dictionary (last updated July 19, 2025), <https://www.merriam-webster.com/dictionary/diligence>.



three values is in the fact that the utilization of AI-Chatbots directly affects the public perception and the work of those in the practice of law.¹⁴

This article is limited to the use of artificial intelligence-powered chatbots in the practice of law. The core question is how this new technology can be ethically integrated into the practice. The question is being raised due to the increasing influence of AI through the medium of chatbots in our everyday activities and functions.¹⁵ Fundamentally, with how it should be ethically integrated in the practice.

BODY

Contrary to common belief, Chatbots are not new. It has existed and has been used as early as the 1960s.¹⁶ However, its first iterations are rather limited in their use and function— it was not until the late 1980s that Artificial Intelligence (AI) was integrated into the domain of chatbots, whereafter it would continue to be developed together.¹⁷ The great shift is in the integration of virtual assistants, which is the amalgamation of chatbots, AI, media, and the internet as seen via Google Assistant, Siri, Cortana; it felt inevitable to be exposed to these forms of technology which have penetrated personal life, especially around 2016 when its development and exposure had grown exponentially.¹⁸ Finally, around the year of 2022, the spike in the development of chatbots from 2016 has resulted in its product being available for public use and experimentation through applications such as ChatGPT, Alpha.ai, Studio.ai, and others of the like.¹⁹

The issue with the growth and use of these chatbots is their dependence. The public availability of chatbots has resulted in their widespread use and practice among people. Whereby it has now reached a

¹⁴ Infra note 25, 31

¹⁵ Himanshu Bansal & Rizwan Khan, *A Review Paper on Human Computer Interaction*, 8 *Int'l J. Adv. Research in Comp. Sci. & Software Eng'g* 53 (Apr. 2018), https://www.researchgate.net/publication/325534924_A_Review_Paper_on_Human_Computer_Interaction.

¹⁶ Eleni Adamopoulou & Lefteris Moussiades, *Chatbots: History, Technology, and Applications*, 2 *Machine Learning with Applications* 100006 (2020), <https://www.sciencedirect.com/science/article/pii/S2666827020300062>, <https://pubmed.ncbi.nlm.nih.gov/38948488/>.

¹⁷ id.

¹⁸ id.

¹⁹ Wilson K.O. Wong, *The Sudden Disruptive Rise of Generative Artificial Intelligence? An Evaluation of Their Impact on Higher Education and the Global Workplace*, 10 *J. of Open Innovation: Technology, Market, and Complexity* 37 (Feb. 29, 2024), <https://www.sciencedirect.com/science/article/pii/S2199853124000726>.



point where some papers have allegedly concluded that there is virtually no qualitative difference between AI work and human work in creative tasks.²⁰ The use and growth of these chatbots, in itself, are not a danger, nor is it ethically wrong. Its use is generally beneficial for its summative and research capabilities for tasks. The danger lies when it is depended upon in some professional practice; those were dependency and compliance threaten life, liberty, and/or property. The emphasis on how these tools should be used is in their definition as a tool and assistant; it is merely meant to be a valuable assistant in the process.²¹

Currently, there are no cases that involve the use of AI in relation to the practice of law in the Philippines. However, in the international scene, a myriad of scandals of AI use in the practice of law have been broadcasted on social media because of the concerning ways that these lawyers have utilized AI and its generative ability.

In Utah, United States of America, 2025, a lawyer was punished for filing a case brief for an appeal using ‘precedents’ that do not exist.²² The article covering the news now calls this an example of a mishap referred to as ‘AI Hallucinations.’²³ An ‘AI hallucination’ is one where AI provides misinformation or non-existent information to the user.²⁴

In the United Kingdom, in 2025, their High Court has noticed an influx of AI use in pleadings, and thus warns attorneys to check carefully the accuracy of their research as it has serious implications for the administration of justice and public confidence in the justice system.²⁵ The stern warning was due to a recent case in their country involving a 90 million pound lawsuit where a lawyer submitted a pleading which cited over 18 nonexistent cases.²⁶

²⁰Jennifer Haase & Peter H. P. Hanel, *Artificial Muses: Generative Artificial Intelligence Chatbots Have Risen to Human-Level Creativity*, 33 *Journal of Creativity* 100066 (Dec. 2023), <https://www.sciencedirect.com/science/article/pii/S2713374523000250>.

²¹ Id.

²² Bryan Schott, *Lawyer Punished for Filing Brief with Fake Cases from ChatGPT*, Salt Lake Tribune (May 29, 2025), <https://www.sltrib.com/news/politics/2025/05/29/lawyer-punished-filing-brief-with/>.

²³ Id.

²⁴ IBM, *What Are AI Hallucinations?*, IBM Think (Sept. 1, 2023), <https://www.ibm.com/think/topics/ai-hallucinations>. [wsj.com](https://www.wsj.com)+15 [ibm.com](https://www.ibm.com)+15 [ibm.com](https://www.ibm.com)+15

²⁵ Jill Lawless, *UK Judge Warns of Risk to Justice After Lawyers Cited Fake AI-Generated Cases in Court*, Associated Press (June 7, 2025), <https://www.apnews.com/article/uk-courts-fake-ai-cases-46013a78d78dc869bdfd6b42579411cb>.

²⁶ Id.



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In Canada, 2025, in a case involving matrimonial applications, a lawyer was found by the judge to have submitted a ‘factum’ and oral submission that had non-existent cases.²⁷ The greater issue is that in the said case, the counsel was unaware that their submitted pleadings were AI-generated; when asked by the court who should be accountable, the blame was shifted to their clerk.²⁸

In general, as illustrated above, the issue with the AI chatbots concerning their ethics in law practice is not in their use but rather in the inducement and temptation of complacency and dependency. The majority of cases involving AI blunders are avoidable and preventable— it simply requires greater competence and diligence to avoid the issue altogether. A difficult factor to mitigate in the use of AI-chatbots is propriety, one that strikes the public perception, lawyers using AI for their pleadings, research, and oratory may strike distrust in the confidence of lawyers and their reliability.

The confounding question here is whether or not the use of AI by a lawyer in their legal practice should be disclosed or not. Logically, the answer should be yes if it was material in manufacturing the work; however, when it was used with fact-checking and other diligence, it becomes complicated as to the determination of whether the work is still made by AI. The dilemma here is similar to the Ship of Theseus. The Ship of Theseus is a philosophical dilemma where an object that has had all of its components replaced, yet remains fundamentally the same object.²⁹ The relevance here is when a lawyer, per se, uses an AI chatbot for research and does due diligence to fact check and revise, is it still AI-generated, or was it merely used as a tool, would they then need to declare it as AI-generated or not? The point here is, when should lawyers hold themselves accountable for any blunders caused by AI, what is the reckoning of AI dependence and generation for the public to be informed.

Returning to the Philippine setting and its stance on AI. Although no jurisprudence nor amendment on AI, the Philippine Supreme Court is not against the incorporation of AI in the practice of law. The current Chief Justice,

²⁷ “Fake Legal Authorities – AI Hallucination or Professional Misconduct?”, JD Supra (May 13, 2025), <https://www.jdsupra.com/legalnews/fake-legal-authorities-ai-hallucination-9402850/>.

²⁸ id

²⁹ Noah Levin, *Ship of Theseus*, in *Philosophical Thought: An Introduction to Philosophy* (Heather Wilburn & Jamie Holmes eds., Tulsa Community College Press 2020), <https://open.library.okstate.edu/introphilosophy/chapter/ship-of-theseus/>.



before a convention of legal researchers in Zamboanga City, hopes that AI-enabled tech can improve the legal research capabilities of the courts, very openly aiming to have the same technology as 'Chat-GPT' for the Philippine courts to use.³⁰ However, this does not mean that the court has no reservations on the matter. The chief justice during the 19th Conference of Chief Justices of Asia and the Pacific in Kuala Lumpur, Malaysia on Oct. 12, 2024, acknowledged that AI has significant potential but warns of its reliance due to its lack of the human elements of justice.³¹

Further, as of the moment, it would appear that due to the lack of controversy, the court is taking a 'free market' approach to the use of AI in the practice of law. During a tech summit in 2024, another member of the Supreme Court stated that "The only way to truly immerse the legal profession in the use of artificial intelligence ... would be to test its limits while revising as we go along to keep up. The key idea to keep in mind is the responsible use of AI and other recent innovations, as there is much to be realized in terms of their potential and drawbacks." ³² However, such statements would not be without their reservations, whereby the justice would continue to caution in dependence, misinformation, and other drawbacks that AI may cause in its proliferation; resulting in a negative effect towards the administration of justice.³³

As stated, although currently there are no cases yet in the Philippines relating to AI-chatbots and the practice of law; based on the foreign controversies and the recently amended CPRA. When the time comes, perhaps the recent amendment may be utilized to construe whether or not the use is proper or not. For example, under Canon II, Responsible Use of Social Media, specifically sections 36-38, must logically be construed as a supplementary means towards ethical AI. ³⁴ The rationale being social media reaches a wide audience, and thus a lawyer spreading misinformation is already bad enough

³⁰ Benjamin Pulta, SC Eyes Wider Role for Artificial Intelligence in Legal Research, Philippine News Agency (Feb. 17, 2023), <https://www.pna.gov.ph/articles/1195476>.

³¹ Benjamin Pulta, *Gesmundo Warns Against Overreliance on AI in Judicial Processes*, Philippine News Agency (Oct. 14, 2024), <https://www.pna.gov.ph/articles/1235519>.

³² "Despite Risks, Legal System Should Keep Abreast With AI Developments," Supreme Court of the Philippines Public Information Office (Feb. 20, 2024), <https://sc.judiciary.gov.ph/saj-leonen-despite-risks-legal-system-should-keep-abreast-with-ai-developments/>.

³³ id

³⁴ Supra note 3



for public perception; even worse if such information was produced by AI. However, due to the development of AI to the point of difficulty in dissemination, it must not be sanctioned with such severity. Diligence is a complicated discussion that requires more thought and introspection. Under the current CPRA, use of AI-Chatbots may likely be regulated with Canon IV sections 1, 4,5, and 10; all of which involve not merely public perception and spread of misinformation but rather strikes to jeopardize a client's right to life, liberty, and/or property.³⁵ If AI were used haphazardly and with a grave lack of due diligence in cases mandated by Canon IV to be embodied with the value of competence and diligence, in such cases, accountability must be observed at a higher level of respect.

CONCLUSION

Due to the novelty of AI-Chatbots used in the practice of law, and the liberal stand of the court in use as of the moment, time can only tell how AI shall be ethically interwoven in the practice of law in the Philippines.³⁶ Internationally, however, a number of scandals involving unethical practices of AI now raised clamor for its regulation or at least a guideline for its proper use.³⁷ The center of controversy is in the concept of AI hallucinations, where AI-powered chatbots generate misinformation or non-existent ones.³⁸ Whereby the said controversy, on paper, could be regulated by guidelines or rules that ensure accountability of lawyers to be diligent and competent in the pursuit of justice and public confidence.

In any case, the right to utilize a novel technology demands acceptance in order to not be stubborn in the face of a great change, unable to adapt or utilize technology only to be left behind, clinging to impractical practices. However, said right to use must not be an unbridled license to be used as an excuse for sloth or sheer incompetence— such must be used as a tool to ensure diligent and competent work, to ensure justice is best upheld to the height of one's abilities with AI as the supporting tool. It is not prudent to reject novel technology, nor is it prudent to be dependent on one.

³⁵ Supra note 3

³⁶ Supra note 31

³⁷ Supra note 22, 25, 27

³⁸ Supra 24



Bibliography

Laws

A.M. No. 22-09-01-SC, *Code of Professional Responsibility and Accountability*.

Government Articles

Benjamin Pulta, *Gesmundo Warns Against Overreliance on AI in Judicial Processes*, *Philippine News Agency* (Oct. 14, 2024), <https://www.pna.gov.ph/articles/1235519>.

Benjamin Pulta, *SC Eyes Wider Role for Artificial Intelligence in Legal Research*, *Philippine News Agency* (Feb. 17, 2023), <https://www.pna.gov.ph/articles/1195476>.

“Despite Risks, Legal System Should Keep Abreast With AI Developments,” *Supreme Court of the Philippines Public Information Office* (Feb. 20, 2024), <https://sc.judiciary.gov.ph/saj-leonen-despite-risks-legal-system-should-keep-abreast-with-ai-developments/>.

“Justice Gaerlan: CPRA Signals Rebirth of Legal Community”, *Supreme Court of the Philippines Public Information Office* (Feb. 20, 2024), <https://sc.judiciary.gov.ph/justice-gaerlan-cpra-signals-rebirth-of-legal-community/>.

Journals

Eleni Adamopoulou & Lefteris Moussiades, *Chatbots: History, Technology, and Applications*, 2 *Machine Learning with Applications* 100006 (2020), <https://www.sciencedirect.com/science/article/pii/S2666827020300062pmc.ncbi.nlm.nih.gov+8researchgate.net+8scribd.com+8>.

Himanshu Bansal & Rizwan Khan, *A Review Paper on Human Computer Interaction*, 8 *Int’l J. Adv. Research in Comp. Sci. & Software Eng’g* 53 (Apr. 2018), https://www.researchgate.net/publication/325534924_A_Review_Paper_on_Human_Computer_Interaction.

Himanshu Bansal & Rizwan Khan, *A Review Paper on Human Computer Interaction*, 8 *Int’l J. Adv. Research in Comp. Sci. & Software Eng’g* 53 (Apr. 2018), https://www.researchgate.net/publication/325534924_A_Review_Paper_on_Human_Computer_Interaction.



Jennifer Haase & Peter H. P. Hanel, *Artificial Muses: Generative Artificial Intelligence Chatbots Have Risen to Human-Level Creativity*, 33 *Journal of Creativity* 100066 (Dec.2023), <https://www.sciencedirect.com/science/article/pii/S2713374523000250>.

Michael Segon & Christopher Booth, *Values-Based Approach to Ethical Culture: A Case Study*, in *Ethics, Values and Civil Society* (M. Schwartz & H. Harris eds., Res. in Ethical Issues in Orgs. Vol. 9, 2013) 93–118, [https://doi.org/10.1108/S1529-2096\(2013\)0000009011](https://doi.org/10.1108/S1529-2096(2013)0000009011).

Wilson K.O.Wong, *The Sudden Disruptive Rise of Generative Artificial Intelligence? An Evaluation of Their Impact on Higher Education and the Global Workplace*, 10 *J. of Open Innovation: Technology, Market, and Complexity* 37 (Feb.29, 2024), <https://www.sciencedirect.com/science/article/pii/S2199853124000726>.

Encyclopedias and Dictionary

BBC, *Duty-Based Ethics*, BBC *Ethics* (n.d.), https://www.bbc.co.uk/ethics/introduction/duty_1.shtml.

Ladislav M. Örsy & Peter J. Huizing, Canon Law, *Encyclopædia Britannica* (last updated June 16, 2025), <https://www.britannica.com/topic/canon-law>.

Peter Singer, *Ethics (Moral Philosophy)*, *Encyclopædia Britannica* (last updated July 11, 2025), <https://www.britannica.com/topic/ethics-philosophy>

“Competence,” Merriam-Webster.com Dictionary (last updated July 16, 2025), <https://www.merriam-webster.com/dictionary/competence>.

“Diligence,” Merriam-Webster.com Dictionary (last updated July 19, 2025), <https://www.merriam-webster.com/dictionary/diligence>.

“Propriety,” Merriam-Webster.com Dictionary (last updated July 11, 2025), <https://www.merriam-webster.com/dictionary/propriety>.



Journal for Law Advocacy
Volume 5, Year 2025-2026

Articles

ATrain Education, *Ethics and the Law*, in *Ethics for Professional Case Managers* (online ed., 2025), <https://www.etrainceu.com/content/4-ethics-and-law>.

Bryan Schott, *Lawyer Punished for Filing Brief with Fake Cases from ChatGPT*, *Salt Lake Tribune* (May 29, 2025), <https://www.sltrib.com/news/politics/2025/05/29/lawyer-punished-filing-brief-with/>.

IBM, *What Are AI Hallucinations?*, *IBM Think* (Sept. 1, 2023), <https://www.ibm.com/think/topics/ai-hallucinations>.
[wsj.com+15ibm.com+15ibm.com+15](https://www.wsj.com+15ibm.com+15ibm.com+15)

Jill Lawless, *UK Judge Warns of Risk to Justice After Lawyers Cited Fake AI-Generated Cases in Court*, *Associated Press* (June 7, 2025), <https://www.apnews.com/article/uk-courts-fake-ai-cases-46013a78d78dc869bdf6b42579411cb>.

Noah Levin, *Ship of Theseus*, in *Philosophical Thought: An Introduction to Philosophy* (Heather Wilburn & Jamie Holmes eds., Tulsa Community College Press 2020), <https://open.library.okstate.edu/introphilosophy/chapter/ship-of-theseus/>.

"Fake Legal Authorities – AI Hallucination or Professional Misconduct?", *JD Supra* (May 13, 2025), <https://www.jdsupra.com/legalnews/fake-legal-authorities-ai-hallucination-9402850/>.



Machine learning algorithms: paradoxical adjuvants for determining bail and making decisions?

Enrique Z. Trespeces¹

Introduction

One thing that challenges judges is how they made decisions before trials when artificial intelligence was not yet ubiquitous. These pretrial decisions help people get out of jail while waiting for their trial, and they have to believe the idea that everyone is innocent until proven guilty. But it is hard to know if someone will break the law or commit another crime while they are waiting for trial. The whole idea is that rules and judicial standards are too vague, leaving trial judges with a lot or less power to make sapient bail determinations and decisions. This can lead to unfair and inaccurate bail determinations and decisions that may undermine judicial process. Basically, trial judges decide how risky someone is based on things like missed hearings or trials, or if they are going to reoffend while they are waiting for trial. However, these assessments are not based on any real numbers or statistical data, which can make them less reliable as one literature suggests (Morin-Martel 2023). Trial judges in court often rely on a general rule or their own hunch gavel-to-gavel.

In the context of the digital transformation of the Philippine judiciary, there is a need to create a framework that uses machine learning algorithms to assist judges in fair and accurate bail determinations and decisions.

Evolution of Philippine bail system

Let us first explore the history of our bail system. The Philippines has a long history, dating back to the Spanish colonial era. In those days, a criminal trial started with a complaint filed by the prosecution. Once the complaint was made, a process called a “sumario” began. During this time, the lawyers involved in the case conducted their own investigations and built up evidence for both sides. In essence, the sumario was like a preliminary inquiry that happened before the defendant was officially charged. Sometimes, the sumario could take years, as the defendant was still in prison. If the penalty for

¹ LEAP FF; Presiding Branch 10, Municipal Trial Court in Cities, Iloilo City.



the crime was prison correccional or more than six months, there was no bail system in place. After the sumario, the trial would finally begin, and the defendant would remain in prison.

When the Americans took control, Major-General Otis created General Orders No. 58, also known as the Criminal Procedure for the Philippines. He then gathered skilled lawyers and justices who were familiar with Spanish laws to draft a new set of rules. The Code came into effect on May 15, 1900. One important part of the Code was the introduction of the writ of habeas corpus, a right guaranteed in the U.S. Constitution. This allowed people to challenge their detention or imprisonment and be released if it was illegal. (Rossabi 1997)

The 1935 Constitution laid the groundwork for bail.² People can be released on bail before a conviction is announced, as long as they have enough surety. But this does not apply if they are charged with a capital offense and there is strong evidence against them. Basically, it makes sure bail is not too high, so people are not stuck in jail waiting for their trial. This rule was also put in place in 1973.³ But the 1987 Constitution,⁴ for the first time, provided provisional release on recognizance, subject to an enabling law.⁵

The bail process in the Philippines has evolved gradually since Otis' General Orders No. 58. After the end of American colonization on July 4, 1946, the criminal procedure underwent several revisions: the 1964 Rules of Court, the 1985 Rules on Criminal Procedure, the 1988 Rules on Criminal Procedure, and the 2000 Revised Rules of Criminal Procedure, as amended. Under these adaptable procedures, any grant or denial of bail depends on the potential penalties.

Debate over bail algorithm

To address the judicial quagmire, many jurisdictional courts now deploy algorithmic risk assessment tools to aid judges in weighing these risks. They use computer programs or machine learning algorithms to help them determine and decide who gets bail. Its use has spread to 60 jurisdictional courts across the United States (Fine and Marsh 2024). These tools look at a

² Const. (1987), art.III, §16 (Phil.).

³ Const. (1973), art. IV, §18 (Phil.).

⁴ Const. (1987) art. III, §13 (Phil.).

⁵ Recognizance Act of 2012, Rep. Act. No. 10389 (Mar. 14, 2013) (Phil), elibrary.judiciary.gov.ph.



lot of things about the defendant, like their criminal history, job history, mental health history, where they live, and other important details. Then, the trial judge determines and decides how risky the defendant is and whether they should be released on bail.⁶ Our jurisdictional courts, however, do not use machine learning algorithms for risk assessment to date or expect to anytime soon.

Untangling artificial intelligence, machine learning, and algorithms can be spiny. Technological jargons are even more complex than legal terms. Artificial intelligence is a set of technologies that gives computers the capability to solve problems and do things that usually need human brains or help.⁷ While machine learning is a set of different ways to teach computers to learn on their own, so they can get better and better at what they do over time.⁸ Machine learning is like mimicking the human brain. An algorithm, on the other hand, is a special mathematical formula that tells software what to do with data.⁹ The good thing about algorithms is that they are really good at predicting things in real time where accuracy depends on the quality and volume of data. They could help predict if someone will flee or get into trouble again. These predictions could help judges decide how much bail to set.

Is machine learning algorithm a double-barreled assessment tool?

There are four relevant streams of literature on machine learning algorithms used in bail decisions. These studies all share a common theme — they support the relational theory of procedural justice. This theory emphasizes fairness in the process rather than the legal result (Tyler 1990). Here are a few interesting findings:

1. The judicial process itself has inherent value, not just the outcomes. (Waldron 2011).
2. People value fairness in the process more than getting the right legal result. These factors include respect, trustworthiness, neutrality, and voice (Meyerson et al. 2020).

⁶ Brook Hopkins and Colin Doyle, *The Pathways of Pretrial Reform*, 57 ABA JUDGES' J. 31 (2018).

⁷ James E. Baker, Laurie N. Hobart. Matthew Mittelsteadt, *An Introduction to Artificial Intelligence for Federal Judges*, www.fjc.gov.

⁸ Id.

⁹ James E. Baker, Laurie N. Hobart. Matthew Mittelsteadt, *An Introduction to Artificial Intelligence for Federal Judges*, www.fjc.gov.



3. Even if a defendant gets the right legal result, if the procedure was not fair, it could hurt their self-esteem and make them less likely to follow the law (Sorral 2020).
4. Machine learning algorithms can work well with “trustworthiness” and “voice” as criteria; judges can make their decisions more trustworthy by using machine learning as a tool, as long as they have control over the final bail decisions; if there is a conflict between how accurate the algorithm is and how transparent it is, the judge, the human reasoner, could give more weight to “algorithmic accuracy” over transparency; and future use of a Judicial Assistance System or JAS as a support tool on bail decisions can achieve a “more actual and rich trustworthiness towards defendants” (Morin-Martel 2023).

One thing that comes out of these literatures is the fairness in the process, especially the “trustworthiness” component (sincerity of decision makers) and “voice” component (individual’s opportunity of expression of views) (Meyerson et al. 2020).

In the context of Philippine bail practices, impacted individuals indeed are more concerned about the reason behind the application’s denial rather than the outcome itself. Filipinos possess an innate sensitivity (De Leon, Jr. 2011). They would always air or share their concerns with the court or someone else. The fairness of the process is therefore their paramount concern, not the outcome. Trust is the fundamental principle upon which fairness is built. Without it, impacted individuals may perceive a sense of deprivation and a violation of their rights.

Despite the marvels of algorithms, some legal scholars are worried that the factors considered in some algorithm models are limited, assumption-based, less accurate, and heighten biases such as diversity issues, raising concerns about their trustworthiness (Morin-Martel 2023).

Proponents of machine learning algorithms used in bail assessments face two major constitutional hurdles: due process and equal protection. Machine learning algorithms’ “black boxes” raise distinct due process and equal protection concerns when parties are not permitted to examine an algorithm’s parameters and weights. Another literature cautions that when designing artificial intelligence systems, it is crucial to think about the specific



situation in which they will be used, experts in the relevant field should be consulted, and black boxes should not be used to make decisions that involve liberty or legal rights, like in criminal cases (Meltzer 2022). Machine learning companies might not share the secret code behind their algorithms, so impacted individuals cannot test and question them. Question after question lingers.¹⁰

- May a defendant meaningfully challenge the logic of an algorithm if the source code is kept from them? Is it enough for them to have access only to the inputs and outputs the algorithm processes and generates but not the decisional framework it uses?
- May a defendant meaningfully challenge an algorithmic risk assessment without access to its training, testing, and real-world-use data?
- If the algorithm uses machine-learning, and no one, not even the developer, understands its “analysis,” can courts ensure due process of law?
- How many courts test algorithms for accuracy, especially when they predict future (i.e., unrealized) human behavior?

Algorithms, which contain and produce social and other biases, raise another equal protection concerns. MTI Technology Review is sounding an alarm bell — “[u]sing historical data to train risk assessment tools could mean that machines are copying the mistakes of the past”.¹¹

Additionally, “overfitting” is another potential equal protection issue. Overfitting is a phenomenon where a machine learning model becomes overly proficient in the data it has been trained on, failing to adequately address variations or uncertainties. Consequently, biased results may emerge. The machine learning model should possess sufficient flexibility to accurately interpret data that it has not previously encountered, in so doing mitigating the occurrence of this phenomenon. If not, it will raise equal protection concerns (Baker et al. 2022).

¹⁰ James E. Baker, Laurie N. Hobart, Matthew Mittelsteadt, *An Introduction to Artificial Intelligence for Federal Judges*, www.fjc.gov.

¹¹ Karen Hao, *AI Is Sending People to Jail—and Getting It Wrong*, MIT Tech. Rev. (Jan. 21, 2019), <https://www.technologyreview.com/s/612775/algorithms-criminal-justice-ai/>.



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Although all these concerns are subject to debate, they may still cause a sense of unease among individuals, particularly those who are technophobic. Despite these technicalities and constitutional hurdles, there are promising machine learning algorithms that may come along and fine-tune these concerns towards increased reliability.

Judges as gatekeepers

Judges play a crucial role in machine learning algorithms' adaptation. First, they serve as the guardians of the law, safeguarding fundamental principles such as the Bill of Rights, established regulations, and evidentiary standards. They become indispensable gatekeepers of algorithmic risk assessment tools. Second, as potential algorithm users, they decide whether to trust algorithm results for bail, among other things. They have to believe that machine learning algorithms can only “predict, not conclude” (Baker et. al. 2023). One literature suggests that public trust in artificial intelligence can be influenced by the judges' trust in the artificial intelligence use. Judges' embrace of artificial intelligence can influence public opinion and acceptance of artificial intelligence (Fine and Marsh 2024). In other words, the public tends to place greater trust in bail algorithms when judges utilize them.

Closing thoughts

In conclusion, three compelling arguments were presented. First, bail machine learning algorithms have both positive and negative consequences, making them a paradoxical algorithmic assessment tool. While we acknowledge the progress made in technology, it is crucial to recognize that certain fundamental rights may need to be compromised to fully harness the benefits of technology. The shibboleth win some, lose some might just apply to this situation. Despite these concerns, there are compelling reasons to anticipate the emergence of promising machine learning algorithms that may address these concerns and ultimately strike a harmonious balance between fundamental rights and technological breakthroughs.

Second, to obtain fair and accurate bail assessments, it is crucial to integrate trust value into consideration, given the unique and sensitive perspective of Filipinos towards processes. If we use a bail algorithm like the one shown here, it should help prevent unfair and inaccurate bail



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determinations and decisions. This is something that courts and algorithm providers should profoundly consider.

And third, it is crucial to clarify that machine learning algorithms are not intended to supplant human judges. Algorithms should only be used as adjuvants to bail determinations and decisions. In the event of conflict, judges' determinations and decisions should be the final authority. As illustrated in this context, judges assume dual roles within the realm of artificial intelligence, primarily serving as guardians of the law and fairness in the process.

As courts gradually embrace artificial intelligence, Supreme Court Chief Justice Alexander G. Gesmundo cautioned on over-applications of artificial intelligence, emphasizing that "courts should still be populated with human judges if we are to expect that empathy and compassion would still go into the consideration of granting equitable remedies."¹² Indeed, judges should be human beings, and we should never replace them.

¹² Chief Justice Alexander G. Gesmundo, AI Can Assist Judges. But Should Never Replace Human Elements of Justice (Oct. 13, 2024), <http://sc.judiciary.gov.ph>.



Bibliography

Baker, J. Hobart L. and Mittelsteadt, M, 2023. "An Introduction to Artificial Intelligence for Federal Judges." www.fjc.gov.

Brook Hopkins and Colin Doyle, 2018. "The Pathways of Pretrial Reform", 57 ABA JUDGES' J. 31.

De Leon, Jr. F, 2011. "In Focus: Beyond the Dona Victorina Syndrome." ncca.gov.ph.

Fine, A. and Marsh, S., 2024. "Judicial leadership matters (yet again): the association between judge and public trust for artificial intelligence in courts." *Discover Artificial Intelligence*, 4(1), p.44.

Meltzer, A.C., 2022. "When an algorithm violates the law: Deconstructing a study supposedly showing that an artificial intelligence algorithm makes better bail decisions than do judges". *Syracuse J. Sci. & Tech. L.*, 38, p.3.

Meyerson, D., Mackenzie, C. and MacDermott, T., 2021. "Procedural justice and relational theory: Empirical, philosophical, and legal perspectives" (p. 284). Taylor & Francis.

Morin-Martel, A., 2024. "Machine learning in bail decisions and judges' trustworthiness. *Ai & Society*", 39(4), pp.2033-2044.

Rossabi, A., 1997. "The colonial roots of criminal procedure in the Philippines." *Colum. J. Asian L.*, 11, p.175.

Sorial S (2020). "Legal legitimacy and the relevance of participatory procedures". *Proced Just Relation Theory*. [https:// doi. org/ 10. 4324/ 97804 29317 248-9](https://doi.org/10.4324/9780429317248-9)

Tyler, T.R., 1989. "The psychology of procedural justice: A test of the group-value model. *Journal of personality and social psychology*", 57(5), p.830.

Waldron J (2011). "The rule of law and the importance of procedure". *vNOMOS: Am Soc Pol Legal Phil* 50:3.

*"Freedom of expression is not absolute, nor is it an "unbridled license that gives immunity for every possible use of language and prevents the punishment of those who abuse this freedom."
-Justice Puno in Chavez v Gonzales*



Articles on
FREEDOM OF SPEECH



Freedom of Expression and Opinion in the Digital Age: A Double-Edged Sword

Kenneth R. Caspe

Introduction

Freedom of expression is a fundamental human right enshrined in international legal instruments, including Article 19 of the International Covenant on Civil and Political Rights (ICCPR), which guarantees the right to "seek, receive and impart information and ideas of all kinds, regardless of frontiers."¹ This right forms the backbone of democratic societies, enabling civic participation, accountability, and social discourse. However, the advent of digital technologies, especially the rise of social media, has redefined the terrain upon which this right is exercised, creating both unprecedented opportunities and emerging threats. In the digital age, the power to express is democratized, but so too is the power to manipulate, misinform, and harm.

This paper examines the evolving landscape of freedom of expression in the digital age, highlighting its dual nature as both an enabler of liberty and a platform for abuse. It critically analyzes the benefits and perils of digital expression, considers the challenges posed to legal and regulatory frameworks, and offers recommendations for striking a balance between free speech and public interest.

The Evolution of Free Expression in a Digital Context

Traditionally, freedom of expression was mediated through newspapers, public forums, and broadcast channel platforms controlled by editorial oversight and legal accountability. The rise of the internet disrupted this model, lowering barriers to entry, and transforming every user into a potential publisher. Social media platforms like Facebook, X (formerly Twitter), TikTok, and YouTube enable real-time sharing of information across borders. According to the 2023 Digital Report, over 5.16 billion people approximately 64% of the world's population use the internet, a staggering amplification of the global voice.²

This democratization has empowered marginalized groups to tell their stories, hold power to account, and mobilize social movements. #MeToo, #BlackLivesMatter illustrates how digital speech can challenge oppressive systems and reshape public consciousness. In the Philippines, the #JunkTerrorBill, #StoptheKillingsPH #MassTestingNowPH movement showed

¹ *International Covenant on Civil and Political Rights* art. 19, Dec. 16, 1966, 999 U.N.T.S. 171.

² We Are Social & Hootsuite, Digital 2023: Global Overview Report, <https://datareportal.com/reports/digital-2023-global-overview-report>.



how youth and civil society used digital platforms to oppose perceived threats to civil liberties and public interest.³

However, this expanded space also facilitated new risks, including the rise of disinformation, hate speech, cyberbullying, trolling, and the spread of extremist ideologies. The line between opinion and manipulation has become increasingly blurred, calling for nuanced regulatory approaches.

Legal Protections and Limitations

The right to free expression is not absolute. Article 19(3) of the ICCPR allows restrictions on freedom of expression, provided, they are “provided by law” and “necessary for respect of the rights or reputations of others,” or “for the protection of national security or of public order, or of public health or morals.”⁴

In the Philippines, freedom of expression is enshrined under Article III, Section 4 of the 1987 Constitution which states, “No law shall be passed abridging the freedom of speech, of expression, or of the press...”⁵ Yet, jurisprudence acknowledges exceptions: libel, obscenity, and incitement to violence among them. In *Chavez v. Gonzales*, the Supreme Court held that prior restraint is unconstitutional except in cases of clear and present danger.⁶

The digital era complicates this and poses a question on who should regulate online content – states, platforms, or the users themselves? How do we determine when speech crosses the line from protected to punishable? These questions remain legally and ethically fraught.

The Double-Edged Nature of Digital Expression

1. Empowerment and Accessibility

The digital space has lowered entry barriers for participation in public discourse. Content creation and consumption are decentralized. An activist in Mindanao, for instance, can now reach an audience anywhere in the world. The ability to speak truth to power, organize collective action, or simply express identity is now more accessible than ever.

Moreover, digital platforms have enabled “counter-speech” against mainstream narratives. This is crucial in countries with historical repression or media capture, where traditional outlets may fail to reflect diverse perspectives. Citizen journalism thrives in these spaces, offering real-time, raw documentation of events.

³ Jodesz Gavilan, #JunkTerrorBill: Netizens protest against anti-terror bill, *Rappler* (June 3, 2020), <https://www.rappler.com/nation/261896-junk-terror-bill-online-protest>.

⁴ ICCPR, *supra* note 1, art. 19(3).

⁵ CONST. (1987), art. III, § 4 (Phil.).

⁶ *Chavez v. Gonzales*, G.R. No. 168338, Feb. 15, 2008, 545 SCRA 441 (Phil.).



2. Weaponization and Harm

However, the same tools that empower also enable harm. Disinformation campaigns, whether state-sponsored or commercially motivated, have the power to mislead electorates, distort public debate, and incite violence. In the Philippines, fake news has shaped election narratives, often to the detriment of historical truth and public trust.⁷

Online abuse is rampant. Women, LGBTQ+ individuals, and journalists are frequent targets of trolling and harassment. The digital space's anonymity emboldens perpetrators, often without consequence. In *Disini v. Secretary of Justice*, the Philippine Supreme Court upheld the constitutionality of certain provisions of the Cybercrime Prevention Act of 2012, including those on cyberlibel, but warned that such laws must not chill legitimate expression.⁸

3. Surveillance and Chilling Effects

The digital age also facilitates state surveillance. Governments increasingly monitor online activities, using anti-terror, cybersecurity, or national security laws to justify censorship. The case of *Gamboa v. Chan* revealed how online speech, particularly satire, can be wrongly penalized, infringing on legitimate expression.⁹

Surveillance and data harvesting practices by both governments and corporations create a chilling effect on speech. Users may self-censor out of fear, thereby undermining the very essence of free expression.

4. Platform Governance and Private Power

Social media companies wield enormous influence over digital expression. They set community standards, moderate content, and determine algorithmic visibility. While these platforms argue they are neutral hosts, their decisions often reflect commercial interests, political pressure, or opaque moderation systems.

The 2021 takedown of former U.S. President Donald Trump's accounts after the Capitol insurrection sparked global debate on private censorship versus public interest. If platforms can silence even world leaders, what protections exist for the average citizen?

⁷Jonathan Corpus Ong & Jason Vincent Cabañes, Architects of Networked Disinformation, <https://newtontechfordev.com/wp-content/uploads/2018/02/ARCHITECTS-OF-NETWORKED-DISINFORMATION-FULL-REPORT.pdf>.

⁸ *Disini v. Secretary of Justice*, G.R. No. 203335, Feb. 11, 2014, 710 SCRA 1 (Phil.).

⁹ *Gamboa v. Chan*, G.R. No. 193636, July 24, 2012, 676 SCRA 679 (Phil.).



The lack of transparency and accountability in content moderation calls for regulatory oversight. However, overregulation may risk stifling innovation or entrenching corporate monopolies. The challenge lies in crafting laws that promote responsible platform governance without curbing lawful expression.

5. Regulatory Approaches and Global Trends

Around the world, states are experimenting with legal frameworks to address digital speech: The European Union's Digital Services Act (DSA) imposes obligations on platforms to moderate harmful content while upholding free expression.

Germany's Network Enforcement Act (NetzDG) requires platforms to take down illegal content within 24 hours. In contrast, some states use digital regulation as a guise for repression. The vague provisions of anti-fake news laws in countries like Russia or Myanmar have been used to silence dissent. In the Philippines, the Cybercrime Prevention Act of 2012 and the Anti-Terrorism Act of 2020 have raised concerns for potential overreach. The latter's broad definition of terrorism and surveillance powers may encroach on civil liberties, including online expression.¹⁰

Recommendations:

The digital age demands a recalibration of our understanding and protection of free speech. These are some proposed strategies:

Legislative Precision and Safeguards

Laws regulating digital speech must be narrowly tailored and should be specific, with clear definitions to avoid abuse. Judicial oversight can mitigate misuse. Therefore, Courts should continue to uphold proportionality and necessity in restrictions.

Platform Accountability and Transparency

Social media companies must implement transparent moderation policies and appeal mechanisms. Algorithmic transparency especially regarding content ranking and takedowns should be mandated by law. User data protection and privacy must also be prioritized.

Digital Literacy and Resilience

Empowering users with critical thinking skills is essential. Government, schools, and society should collaborate on digital literacy programs, teaching users to discern credible sources, identify manipulation, and report abuse.

¹⁰Anti-Terrorism Act of 2020, Republic Act No. 11479 (2020) (Phil.).



Multi-Stakeholder Governance

Governance should not be left solely to the state or platforms. A multi-stakeholder model involving governments, tech companies, civil society, and independent bodies can ensure balanced and participatory regulation.

Conclusion

Freedom of expression remains a cornerstone of democratic life, but its digital reconfiguration poses complex challenges. The digital age has liberated voices and disrupted power hierarchies, yet it has also unleashed new forms of harm and control. As this paper has shown, freedom of expression in the digital age is indeed a double-edged sword.

To safeguard this right, law and policy must also evolve in line also with technology. This means, defending expression while addressing digital harms, holding platforms accountable without stifling innovation, and empowering users without abdicating oversight. Ultimately, the goal must be to preserve a digital public sphere that is free, fair, and inclusive, a place where expression serves democracy, not undermines it.

In this era where a single click can build movements or break reputations, freedom of expression has become both a sanctuary and a battlefield. What was once a shield for truth has now become a terrain where facts and falsehoods wrestle in plain sight, and where silence can be as dangerous as speech.

The digital age has not diminished the value of free expression, it has multiplied its stakes. Every post, every shared idea, is a thread in the vast tapestry of our collective conscience. But if we are not vigilant, those posts may unravel into chaos, woven instead by the loudest voices, not the wisest ones.

We must ask ourselves: Are we using our freedoms to enlighten or to enrage? To disseminate truth or peddle fake news? The right to speak freely must never become a license to wound, to deceive, or to silence others in return.

The future of freedom of expression lies not just in defending the right to speak, but in nurturing the wisdom to speak with purpose, to listen, and the courage to draw the line where harm begins. Only then can we ensure that our voices, though free, still echo with truth, dignity, and hope.



Bibliography

Laws

CONST. (1987), art. III, § 4 (Phil.) (Bill of Rights).

Anti-Terrorism Act of 2020, Republic Act No. 11479 (2020) (Phil.).

International Covenant on Civil and Political Rights, art. 19, Dec. 16, 1966, 999 U.N.T.S. 171.

Online Sources

Jodesz Gavilan, “#JunkTerrorBill: Netizens Protest Against Anti-Terror Bill,” Rappler (June 3, 2020), <https://www.rappler.com/nation/261896-junk-terror-bill-online-protest>.

Jonathan Corpus Ong & Jason Vincent Cabañes, Architects of Networked Disinformation: Behind the Scenes of Troll Accounts and Fake News Production in the Philippines, (Feb. 2018), <https://newtontechfordev.com/wp-content/uploads/2018/02/ARCHITECTS-OF-NETWORKED-DISINFORMATION-FULL-REPORT.pdf>.

We Are Social & Hootsuite, Digital 2023: Global Overview Report, <https://datareportal.com/reports/digital-2023-global-overview-report>.

Jurisprudence

Chavez v. Gonzales, G.R. No. 168338, Feb. 15, 2008, 545 SCRA 441 (Phil.).

Disini v. Secretary of Justice, G.R. No. 203335, Feb. 11, 2014, 710 SCRA 1 (Phil.).

Gamboa v. Chan, G.R. No. 193636, July 24, 2012, 676 SCRA 679 (Phil.).



The Dragging Feet towards Drag and Queer Rights: Democratizing Expressions, Dissent, and Social Media Activism

Paul Gabriel T. Barranco

Social media has expanded the range of possibilities for the citizenry to exercise their rights enshrined under the 1987 Constitution. In the digital revolution, views on democracy and social media are now considered mutually inclusive, where these significantly impact discourses and beliefs between the body politic and the government.¹ This afforded elevation to different marginalized sectors and institutions to collectively rally for their rights, demand for accountability, and call for social justice.

Over the years, social media have impacted the domain of legal advocacy, paving the way to reshape and democratize expression, public opinion, and access to justice.² Status quo provides sectoral groups like the LGBTQIA+ community the opportunity to maximize their calls and grievances or simply express their creativity and queerness in different social media platforms such as Facebook, Twitter/X, Instagram, and a lot more. At large, while the struggle of the queer community persists on physical grounds towards the attainment of genuine freedom of expression, this struggle migrates to a relatively wider space on social media, posing a threat to how the community exercises its rights to expression and its collective voices in the plight to recognition and protection from discrimination.

LGBTQIA++ Voices in Society and Social Media

Various studies find that members of the LGBTQIA+ Community are prone to greater threats of stigma and discrimination in different sectors such as employment, health care, and education which is attributable to the disparity of opportunities that exist for better living conditions, in relation to the mental and physical well-being of cisgender persons.³ The Bill of Rights under the 1987

¹ Wike, Richard, Silver Laura, Fetterolf, Janell, Huang, Christine, Austin, Sarah, Clancy, Lura, and Gubbala, Sneha, *Views of social media and its impacts on society*, (December 6, 2022), <https://www.pewresearch.org/global/2022/12/06/views-of-social-media-and-its-impacts-on-society-in-advanced-economies-2022/>

² Kyomugisha, Asiimwe, *The Impact of Social Media on Legal Advocacy*, (December 2024), https://www.researchgate.net/publication/387437388_The_Impact_of_Social_Media_on_Legal_Advocacy

³ Delos Reyes, Rod Charlie and Blanco, Mark André, *Anti-Discrimination Bill based on SOGIE: An Occupational Justice Perspective*, (February 2022), socialhealthjournal.ust.edu.ph/wp-content/uploads/2022/02/Anti-Discrimination-Bill-based-on-SOGIE-An-Occupational-Justice-Perspective.pdf



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Constitution contemplates equal protection under the laws, and its State Policy underscores the imperative of upholding human dignity and the full respect of human rights.⁴ At present, there are no existing laws in the Philippines that protect members of the queer community from discrimination, where the status of the institutionalization of the SOGIE Equality Bill suffers a roadblock which continues to be of heavy debate in Congress. The lack of a national policy enabling the protection of these people belonging in the LGBTQIA+ sector from duress remains an imperative that should be addressed, notwithstanding the long line of abuse and discrimination that these individuals have experienced, resulting in a violation of their human rights.⁵

While this situation exists as a reality for a majority that belong to the community, efforts to drive action in institutionalizing the enactment of the SOGIE Equality bill continue to emerge in different on-site and online platforms. The plight of the LGBTQIA+ Community in the Philippines have since grown and emerged in different areas, one of which are social media sites, that has since become a primary means of expression due to its range and accessibility. Moreso after the pandemic era, the purpose of social media has expanded from a simple means of communication to growing into an independent society of people connected by technology. This imparted an opportunity to further the calls for sustainable measures in different fields including the government and the law.

These calls are exercised by means of activism that not only grants the opportunity but also strengthens queer voices for dialogue and action. Social media activism as an act, does not only solidify a community by making their struggles be heard, but reframing the dimensions of their political self and values, thereby fusing complex political identities.⁶ More than consolidating a community bound by struggle, the act of engaging and interacting in such a community can already be considered as an exercise of one's freedom of expression. Recognizably, while social media allows a more transparent movement, it also has the tendency to become an echo chamber for selected

⁴ 1987 Constitution.

⁵ Philippine Commission on Women, Women's Priority Legislative Agenda, *Enacting a Law Prohibiting Discrimination based on Sexual Orientation, Gender Identity, and Expression (SOGIE)*, (2019), <https://pcw.gov.ph/assets/files/2019/10/PCW-WPLA-PB-08-Enacting-the-Anti-Discrimination-based-on-SOGIE-Act-AEB.pdf>

⁶ Barassi V, *Social Media Activism, Self-Representation and the Construction of Political Biographies in Routledge Companion to Media and Activism*, (2018), https://research.gold.ac.uk/id/eprint/23736/3/V.Barassi%20Media%20Activism_Routledge%20Companion.pdf



audiences.⁷ Nonetheless, it remains to be significant, especially in the Philippine setting, given the narrow opportunities to be heard amidst the culture of misinformation and fear.

The age of digitalization functions positively and negatively in the exercise of one's constitutional guarantee of the freedom of expression. This has affected a variety of dimensions when it comes to a person's constitutional rights, especially the freedom of expression and the right to privacy.⁸ Statutes such as RA 10175 or the Cybercrime Prevention Act of 2012, have been criticized by some women-led movements, raising an issue of how the law penalizes women for expressing themselves and celebrating their agencies in the digital realm.⁹ Thus, there remains to be wall to the degree of liberality enjoyed by people online, conceding to the standard that not all rights are absolute. Relating this to the migration of the founding voices of Queer activism in the Philippines to the online realm, the struggle to freely speak and be heard remains to be in a state of volatility, considering the opinions that contain the queer struggle in plain black and white.

As a means of dissent, Queer activism on social media spaces allows itself to be a discourse in popular culture, positioning narratives to be an important point of conversation, not just a tokenistic trend in these social media sites. This act manifests itself in a variety of ways: from sharing meaningful articles, writing down and posting video content, and the annual celebration of pride, which is a display of society's collective interest in attaining equity for members of the LGBTQIA++ Community. Arguably, while these social media websites offer a preview for the queer community to achieve silver linings, it is not without risks considering the prevailing struggle on fake news and red tagging.

The threats to freedom of expression continue to be rampant on social media. In the Philippines, reports show that state authorities through various agencies, such as the NTF-ELCAC, poses risks to various dissenting voices, tagging them as "terrorists" that bolsters red tagging incidents that are already looming online.¹⁰ This, notwithstanding the mental and physical anguish that it

⁷ Murthy, Dhiraj, *Introduction to Social Media, Activism, and Organizations*, (2018), journals.sagepub.com/doi/pdf/10.1177/2056305117750716

⁸ Universal Periodic Review, *HUMAN RIGHTS AND THE PHILIPPINE DIGITAL ENVIRONMENT*, (2016), https://upr-info.org/sites/default/files/documents/2017-04/js11_upr27_phl_e_main.pdf

⁹ *Id.*

¹⁰ Amnesty International, *Philippines: Authorities increasingly using Facebook to stifle young activists' right to freedom of expression and protest*, (2014),



causes to different Filipinos, stands as an existing threat to democracy and people's fundamental rights to freedom of speech. Taken vis a vis queer activism, exacerbates the struggles that the LGBTQIA+ community already experiences. The lack of a national policy against discrimination for the queer community already presents a threat to security, all the with how social media, as an accessible means to express oneself positions itself in status quo, renders a chilling effect to the voices of those who identify as queer.

The material conditions and facts existing in status quo is central in policy development and governance as they form part of the issues that need to be addressed by the government. As a first step, discourses that shape public opinion raises the chances of a circumstance or event that to be recognized, prioritized, and institutionalized by the three main branches of the government. At present, while there has already been attempts to amplify the rights of the LGTBQ+ Community, the SOGIESC Equality Bill, its latest version being lobbied as the "Anti-Discrimination on the Basis of Sexual Orientation, Gender Identity and Expression," remains to be dormant for almost two decades, after being first introduced in the 11th Congress by the late Senator Miriam Defensor Santiago.¹¹ Despite of these movements, the passage of the SOGIESC Equality Bill remains untouched where it became a source of discussion of different LGTBQIA+ Rights movements, universities, and advocacy-based organizations. Collectively, as these issues continue to take up space in social media spaces, incubates the need for immediate legislative action to recognize the rights of the people under this sector.

Queer Voices and the Freedom of Expression online

Recently, one of the most pressing issues revolving around the LGBTQIA+ Community in the Philippines is the case concerning Amadeus Fernando Pagente, a drag artist who performs as Pura Luka Vega. The drag artist garnered criticism from different religious groups, after social media netizens found that she used the religious Catholic Song, "Ama Namin" in one of her performances while being dressed up in drag as the black nazarene, posted and circulated in various social media websites. This escalated into a criminal case for violations of Article 201, Section (2)(b)(3) and (2)(3)(5) of the Revised Penal Code for Immoral doctrines, Obscene Publications and

<https://www.amnesty.org/en/latest/news/2024/10/philippines-authorities-using-facebook-to-red-tag-young-activists/>

¹¹ Abad, Michelle, *TIMELINE: SOGIE equality in the Philippines*, (August 28, 2019), <https://www.rappler.com/newsbreak/iq/238593-timeline-sogie-equality-philippines/>



Exhibitions, and Indecent Shows in relation to RA 10175. The case of Pura Luka received multiple backlashes showing a divide of opinions from LGTQIA+ support groups and religiously inclined movements, labelling the act as blasphemous. However, despite these, on a decision dated June 10, 2024, the RTC Branch 184 of Manila, acquitted Drag Artist Pura Luka Vega for the acts accused due to the failure of the prosecution to establish guilt beyond reasonable doubt.¹²

The RTC in this interesting case, interpreted the contentions of the parties by centralizing on the issue of whether the acts of Pagente, taken as a whole, in the exercise of her freedom of expression as a drag artist, constitutes a crime under the meaning of the Revised Penal Code, specifically Article 201 which is the crime alleged. Ruling on the negative, the court's *ratio decidendi* rested on the analysis of the defense of Pagente, where it recognized drag as a form of art and expression that falls squarely under the protected freedom of speech, but moreover emphasizing that while this remains under a veil of protection, considering that it is but one's freedom to expression, a balance should be stricken as to the limits of such constitutional freedom, given that it is not absolute, granting further that the prosecution's failure to establish guilt from Pagente's end, raises an iota of doubt of her guilt.¹³

This raises the question: *where does the queer and trans voice stand online?*

The case of *People v. Pagente* opens a multitude of issues in the appreciation of one's constitutional rights in the online space. But however, it also reinforces the plight of the queer struggle, putting into question of how one is able to marry the need to prioritize the rights of people belonging to the marginalized sector and in the limits to exercising one's freedom to express. True, that constitutional rights may be subject to regulation and certain limitations, but what also holds truth is the fact that in the struggle towards liberating the third sex, it is imperative that binary ideals and traditions are often challenged, recognizing that the core of the issue also rested on the bounds of one's exercise of the freedom to speech.

This case reinforces the continued struggles of the queer community as members of the marginalized sector and the significance of their freedom of expression, by whatever means they deem expression to be, as an imperative to concretize their space in society. What remains relevant in this discussion vis

¹² *People v. Pagente*, Criminal Case No. R-MNL-23-06927-CR, (June 10, 2025) (Phil)

¹³ *Id.*



a vis the digital evolution is the analysis of how freedom of expression in social media either exacerbates or elevates the struggles that are experienced by various communities in status quo. While the court recognizes Pagente's freedom to express her faith and beliefs through drag, it also asserted how mutual respect, and due consideration should be of paramount importance in exercising these constitutionally guaranteed freedoms. One's access to social media spaces already opens a window of opportunity to share their views and opinions free from scrutiny, but subject to adherence to community guidelines and policies. Ultimately, no person should be castigated for expressing their views and opinions, for as long as this does not cause danger or harm to the public.

Arguably, in *People v. Pagente*, while one of the main contentions raised is the immoral act of portraying drag suggesting an offense to religious feelings, taken as a whole, subjects itself only to a proportionate subject of the devotees of the black Nazarene, which lacks substantial basis in its application of tests and jurisprudence¹⁴; what is more sensational in the RTC's decision, is its ability to recognize that what may be deemed immoral and indecent in this case, is an expression of self and art, which is and should be recognized, this being a long standing tradition of queer and trans Filipinos. While the case continues to open a door of discussion, it clarified further that further safeguards bounded by mutual respect should be made by all actors involved in the case.

The Pura Effect

The case of Pura Luka Vega remains as a controversial discussion in various social media sites. This has collectively shaped an opinion that has divided different Filipinos of different backgrounds. The recent RTC decision in the case of *Pagente v. People*, significantly places online queer expression at a critical position.

While it gained support from its social media base including the organic queer community, it also attracted hate speech from those who form dissenting opinions. These reactions form a consciousness on the current state of the queer community's freedom to express oneself and the freedom to express their beliefs, greatly presenting the need to further democratize social media platforms to encourage open and critical communication. While there are some laws that ought to create safeguards for people online, they may function as

¹⁴ *Id at 5*



double-edged swords. This entails the need to have basic human rights protection for people belonging to the LGBTQIA+ Community to genuinely protect them from discrimination and abuse whether online or offline.

This, notwithstanding the shared traditional Filipino values of the binary male and female, calls not only for protected speech, but freedom to celebrate speech and expression, not to position oneself in a pedestal, but to actively promote and reclaim the liberty that is guaranteed by the highest law of the land.

To a certain effect, the case of *People v. Pagente* opens the possibility of harmonizing rights that are positioned at polar ends, that is of queer rights and religious rights.¹⁵ This question further expands itself in further understanding of how communities in social media sites respond to certain controversies, that either empowers or challenges them at large.

Towards cementing the Queer's Freedom of Expression

The collective struggle of the LGBTQIA+ community online does not only concern itself with the struggles of the queer community but also intersects to the greater struggle of gender equity. In a society built upon patriarchal standards, queer expressions should be protected and democratized, queers being human beings, having the basic human right to freedom of speech and expression.

The exercise of one's freedom of expression is a gateway to democratizing speech and communication to enable the realization of the rights that are owed to people belonging to the marginalized sector. Social media as a platform, has proven its influences on different regions in the country and even the world. All these demonstrates how it may be used as a weapon for positive social change, that takes form of different social media campaigns, such as the Trans Lives Matter movement and the #MeToo or a machinery for destruction, manifesting itself in fake news, misinformation, and hate speech online. Thus, the right to one's freedom of expression should be safeguarded as speech informs the collective, shapes public opinion, and solidifies movements.

¹⁵ Eufemio, Joanna, Taroma, Ricci Krizzane, *Rainbow or Relic: Drawing the Line Between Freedom of Religion vs. LGBTQIA+ Freedom of Expression*, (May 2024), https://www.researchgate.net/publication/381584454_Rainbow_or_Rellic_Drawing_the_Line_Between_Freedom_of_Religion_vs_LGBTQIA_Freedom_of_Expression/citation/download



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To this date, the fabric of queer reality should only weave a strong tapestry in social media spaces given that it is not a mere privilege but a right. The freedom of expression places itself in a continuum to emancipate the third sex from the double standards imposed by hegemonic forces in society.

Bibliography

Constitution

1987 Constitution.

Jurisprudence

People v. Pagente, Criminal Case No. R-MNL-23-06927-CR, (June 10, 2025) (Phil)

Government Article

Philippine Commission on Women, Women's Priority Legislative Agenda, Enacting a Law Prohibiting Discrimination based on Sexual Orientation, Gender Identity, and Expression (SOGIE), (2019), <https://pcw.gov.ph/assets/files/2019/10/PCW-WPLA-PB-08-Enacting-the-Anti-Discrimination-based-on-SOGIE-Act-AEB.pdf>

Journals

Barassi V, Social Media Activism, Self-Representation and the Construction of Political Biographies in Routledge Companion to Media and Activism, (2018), https://research.gold.ac.uk/id/eprint/23736/3/V.Barassi%20Media%20Activism_Routledge%20Companion.pdf

Delos Reyes, Rod Charlie and Blanco, Mark André, Anti-Discrimination Bill based on SOGIE: An Occupational Justice Perspective, (February 2022), socialhealthjournal.ust.edu.ph/wp-content/uploads/2022/02/Anti-Discrimination-Bill-based-on-SOGIE-An-Occupational-Justice-Perspective.pdf

Eufemio, Joanna, Taroma, Ricci Krizzane, Rainbow or Relic: Drawing the Line Between Freedom of Religion vs. LGBTQIA+ Freedom of Expression, (May 2024), https://www.researchgate.net/publication/381584454_Rainbow_or_Relic_Drawing_the_Line_Between_Freedom_of_Religion_vs_LGBTQIA_Freedom_of_Expression/citation/download



Journal for Law Advocacy
Volume 5, Year 2025-2026

Kyomugisha, Asiimwe, The Impact of Social Media on Legal Advocacy, (December 2024), https://www.researchgate.net/publication/387437388_The_Impact_of_Social_Media_on_Legal_Advocacy

Murthy, Dhiraj, Introduction to Social Media, Activism, and Organizations, (2018), journals.sagepub.com/doi/pdf/10.1177/2056305117750716
Universal Periodic Review, HUMAN RIGHTS AND THE PHILIPPINE DIGITAL ENVIRONMENT, (2016), https://upr-info.org/sites/default/files/documents/2017-04/js11_upr27_phl_e_main.pdf

Wike, Richard, Silver Laura, Fetterolf, Janell, Huang, Christine, Austin, Sarah, Clancy, Lura, and Gubbala, Sneha, Views of social media and its impacts on society, (December 6, 2022), <https://www.pewresearch.org/global/2022/12/06/views-of-social-media-and-its-impacts-on-society-in-advanced-economies-2022/>

Articles

Abad, Michelle, TIMELINE: SOGIE equality in the Philippines, (August 28, 2019), <https://www.rappler.com/newsbreak/iq/238593-timeline-sogie-equality-philippines/>

Amnesty International, Philippines: Authorities increasingly using Facebook to stifle young activists' right to freedom of expression and protest, (2014), <https://www.amnesty.org/en/latest/news/2024/10/philippines-authorities-using-facebook-to-red-tag-young-activists/>

"AI, especially Generative AI, has opened new horizons on many different levels, including enhancing research in healthcare and scientific discovery, but also raises troubling questions on its possible repercussions on humanity's openness to truth and beauty, on our distinctive ability to grasp and process reality."
-Pope Leo XIV



Articles on
RELIGION



Digital Faith: Opportunities and Challenges in Freedom of Religion in The Philippines' AI Generation

Marie Therese Portia D. Vergara

Artificial intelligence (AI) is set to emerge as the main force behind transformation. Essentially, AI involves computer systems capable of handling sophisticated tasks typically requiring human intelligence such as: reasoning, making decisions, and creating. Furthermore, AI's evolution has brought about many targeted advantages in every sector. Because artificial intelligence performs best with optimized data, ensuring data quality is now critically important. However, to innovate responsibly with this data, the AI systems must be trustworthy, meaning they need to be ethical, fair, and sustainable in their design and use.¹

At present, the rapid development of artificial intelligence has reached even the different religious sectors in the Philippines. While the 1987 Constitution guarantees the freedom of religion as outlined in Article III, Section 5,² the intersection of these two areas presents both opportunities for religious communities and challenges to religious freedom.

Ministries today face a growing demand for inclusive communication that reaches everyone. To meet this need, they require a varied set of tools to ensure their message is accessible to a wider audience. AI can significantly broaden the reach, accessibility, and inclusivity of religious teachings across the globe. By promoting and enhancing personal spiritual growth through applications that provide daily devotions, bible verses, and meditations. Such accessible and often personalized content directly to users' devices empowers individuals to engage with their faith more regularly and deeply, fostering a more consistent and enriched journey of spiritual development. It can facilitate the worldwide spread of spiritual messages through translations of sermons, help with the creation of religious content, and enhance the experience of online worship.³

¹ SAS: Data and AI Solutions, *Artificial Intelligence: what it is and why it matters*, https://www.sas.com/en_ph/insights/analytics/what-is-artificial-intelligence.html

² The 1987 Constitution of The Republic of The Philippines. <https://lawphil.net/consti/cons1987.html>

³ *The Role of AI In Enhancing Church Accessibility and Inclusion*, Aberdeen Broadcast Services



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One of AI's major advantages is its ability to take existing content and adapt it for different formats or audiences. For ministries, this means AI can be a powerful tool to transform written sermon transcripts into engaging blog posts or meaningful devotional readings. It can also help condense longer messages into concise social media snippets, perfect for sharing. Furthermore, AI offers the ability to tailor teaching materials to suit diverse age groups or different learning preferences, making spiritual education more accessible and impactful for everyone.⁴

It is also important to recognize its limitations. When an AI algorithm is trained using data that doesn't fully represent diverse groups, its results will inevitably carry those same biases. If an AI algorithm displays bias, catering more to a particular religion, this would present discrimination towards other religions leading to exclusion in some services. This bias might appear to stem from flawed algorithms or issues with how data is gathered and filtered. However, the root cause often lies in the unacknowledged biases of the development team itself. If these biases, already present in the training datasets, aren't properly addressed, the AI could end up producing distorted interpretations of religious teachings. This, in turn, risks reinforcing harmful stereotypes and making it harder for different faiths to truly understand each other.⁵ Consequently, this could violate their fundamental rights to non-discrimination and equal protection as they practice their religious freedom.

Another significant risk is the ability of AI to be manipulated. Artificial intelligence has a broad training approach that enables generative AI to provide insights and generate content that reflects a more accurate and diverse picture of global religious practices and the state of religious freedom. Users interacting with these AI models can ask questions and receive information, that may be suppressed in their own countries, thus gaining access to a wider understanding of religious issues.⁶ However, if these religious contents are tampered with using artificial intelligence, it could rapidly spread misinformation, or promote fake sermons, messages, or other content

⁴ The Malphurs Group, *Good AI vs. Bad AI: Ethical Ways for Churches to Use Artificial Intelligence*, <https://malphursgroup.com/good-ai-vs-bad-ai-ethical-ways-for-churches-to-use-artificial-intelligence/?hl=en-PH>

⁵ Zhang et al. (2025, May 5). *Cognitive bias in generative AI influences religious education*. National Library of Medicine, <https://pmc.ncbi.nlm.nih.gov/articles/PMC12053680/?hl=en-PH>

⁶ Abdelnour, K. (2024). *Generative AI: A double-edged sword for religious freedom and human rights*. <https://www.irfoundtable.org/intern-insights-blog/generative-ai>



that appears to come from a legitimate religious authority. This deceptive content has the potential to spark conflict between different religious groups and severely mislead individuals in their faith.

Given AI's powerful capabilities, there's a significant risk that the data it collects could be leveraged in ways that are detrimental to its users. AI systems collect data from various sources, many of which involve collecting data from consumers without their knowledge or consent. This extensive collection often includes personal information about a person that can be linked either directly or indirectly back to them. Such identifiable data can encompass a wide range of details, from an individual's full name and physical address to their date of birth and many other pieces of information that, when combined, can uniquely identify them.⁷ The accumulation of such personal data by AI systems, often obtained without express consent, constitutes a direct infringement upon individuals' fundamental right to privacy.

When people become aware or even suspect that their deeply held religious beliefs, practices, or affiliations are under constant surveillance and analysis by these advanced technological systems, it inevitably fosters a profound sense of apprehension. This fear of being monitored can, in turn, create a chilling effect on their willingness to openly express their faith. They might hesitate to engage in public acts of worship, participate in religious discussions online, or even voice their spiritual convictions privately, out of concern that such expressions could be recorded, profiled, or potentially used against them. This atmosphere of surveillance can thus subtly, yet powerfully, suppress the vibrant exercise of religious freedom, forcing individuals to self-censor their spiritual lives to avoid perceived scrutiny or potential adverse consequences.

Moreover, due to AI's convenience, it can create dependence or over-reliance. This excessive dependence on artificial intelligence for deeply personal aspects of faith, such as receiving spiritual guidance, interpreting profound scripture, or even engaging in worship, presents a significant concern. Such over-reliance carries the risk of fundamentally diminishing the very essence of religious experience, particularly its crucial personal, communal, and human interactions, which are universally acknowledged as central to the authenticity of most, if not all, religious traditions. This raises

⁷ Osano (January 2025), *AI and Data Privacy: Exploring the privacy risks in the era of artificial intelligence*, <https://www.osano.com/articles/ai-and-data-privacy?hl=en-PH>



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profound questions regarding the genuine exercise of one's religious profession. In an individual's spiritual journey, the very nature of their faith practice could be fundamentally altered due to varied circumstances. These practices of faith include their understanding of divine texts or their participation in sacred rituals. Such are reshaped when these practices increasingly become filtered, mediated, or even dictated by complex algorithms rather than springing from their own deeply held personal conviction, internal reflection, and active communal engagement with fellow believers. This shift could potentially lead to a less authentic, more detached form of religious expression, challenging the traditional ways in which faith is lived, shared, and nurtured within human communities.

In summary, while Artificial Intelligence presents powerful new tools that hold significant promise for enriching religious practices and strengthening community bonds across the Philippines, its remarkably swift and expansive development brings with it a crucial responsibility. This rapid progress makes it absolutely essential for us to establish and implement proactive ethical guidelines and robust legal frameworks. The primary purpose of these frameworks is to ensure that AI technologies are always developed and used in a manner that genuinely respects and actively upholds the fundamental constitutional guarantee of religious freedom, which is enshrined in the Philippine Constitution. Without such careful foresight and clear regulations, there is a distinct risk that AI, despite its potential benefits, could inadvertently or even deliberately become a mechanism that undermines or infringes upon this vital right. Therefore, a balanced and thoughtful approach is paramount to harness AI's potential while safeguarding deeply held liberties.



Bibliography

Constitution

The 1987 Constitution of The Republic of The Philippines.

Articles

Abdelnour, K. (2024). Generative AI: A double-edged sword for religious freedom and human rights.

<https://www.irfroundtable.org/intern-insights-blog/generative-ai>

Osano (January 2025), AI and Data Privacy: Exploring the privacy risks in the era of artificial intelligence,

<https://www.osano.com/articles/ai-and-data-privacy?hl=en-PH>

SAS: Data and AI Solutions, Artificial Intelligence: what it is and why it matters,

https://www.sas.com/en_ph/insights/analytics/what-is-artificial-intelligence.html

The Malphurs Group, Good AI vs. Bad AI: Ethical Ways for Churches to Use Artificial Intelligence,

<https://malphursgroup.com/good-ai-vs-bad-ai-ethical-ways-for-churches-to-use-artificial-intelligence/?hl=en-PH>

The Role of AI In Enhancing Church Accessibility and Inclusion, Aberdeen Broadcast Services

Zhang et al. (2025, May 5). Cognitive bias in generative AI influences religious education. National Library of Medicine,

<https://pmc.ncbi.nlm.nih.gov/articles/PMC12053680/?hl=en-PH>



“God Is With Us, Even on the Internet”

The Role of AI Chatbots in the Right to Freedom of Religious Expression

Emmanuelle Anne V. Besonia

Introduction

The fabric of traditional and typical Filipino experience involves the threads of religiosity; it has been the long-standing image of the country of being strong in faith. No matter which religion it may be, the Filipino believer often incorporates the practices of their beliefs into their everyday lives. For the average Catholic this can manifest as having the routine of praying before every meal or attending mass every Sunday, to name a few. The tight fusion of religion into the lives of people feeds the peculiar interest in discovering the relationship between freedom of religious expression and the rising prominence of modern society that is reliant on technological advancements.

In this modern day and age, technology is as omnipresent and omniscient as religious deities, this is to say not only is it present in every aspect of our lives but also now possesses endless knowledge that even the human mind cannot easily contain and immediately comprehend. The era of Artificial Intelligence (AI) is emerging in recent years, in particular the AI Chatbots have been gaining popularity for its convenience and efficiency. The question that emerges then is *what happens when modern technology crashes into the life of the believer?* The unique tapestry of religion and technology emerges which gives birth to the utilization of tech to express such beliefs, as such Artificial Intelligence in particular has been a popular tool that people can use as a means to express their faith.

The moral and spiritual function of AI is unprecedented and is unexplored by the field of law, especially in the Philippines. However it is this undeniable gap that should pique our interest into the possible legal implications of the role of AI, specifically chatbots, in the constitutional right of Filipinos in expressing their religious beliefs and opinions.



The Rise of Artificial Intelligence

The prevalence of technology is undeniable in the current age as it has deeply embedded itself in the everyday lives of your average person with the purpose of making tasks efficient. The weight of daily activities have lessened for the human to carry as the machine has taken on the burden of executing the labor. Human society has gone from physically playing their favorite artist on their phone to a simple “Hey Siri, play me a song”; people have gone from manually figuring out the best way to avoid traffic to having an application that directs you to the fastest route possible. This efficiency is what allows Artificial Intelligence to prosper and become omnipresent in today’s society.

The beauty of Artificial Intelligence (AI) lies in the fact that a machine built on intricate codes of data, is able to mimic human intelligence so that it may perform certain tasks it was programmed to do. The main purpose of AI is to study the human mind through algorithms so that it may imitate the ability to think, learn, problem-solve, and believe in concepts that are rooted in the knowledge of humans.¹ The popular examples of AI are in the form of virtual assistants such as Siri programmed by Apple and Alexa by Amazon. However, the technology is not merely used for dictating a computer to do routine tasks or errands for you, but can even be utilized to mimic human interactions. The other form of AI that is presently gaining traction and criticism is called chatbot, and these are computer programs that aim to stimulate human conversations.² Among the progressive versions of a chatbot is popularly known to be ChatGPT, a generative AI assistant that is known for its flexibility, and it operates through the use of a few prompts from the user to achieve outputs such as essays, drawings, codes, and actual casual conversations with the AI.³

In the seemingly infinite possibilities that one can make use of AI Chatbots, the expression of faith is not an exemption. The impact of AI has crept into Religion that faith-based programs have been growing with the

¹ Rituraj Mahato, *Artificial Intelligence, What is it?*, The Outcomes of Best Practices in Classroom Research. 197, 197 (2022).

² IBM, *Artificial Intelligence: What is a chatbot?*, <https://www.ibm.com/think/topics/chatbots> (last visited October 31, 2025)

³ Barbara Pazur, *What is ChatGPT? Everything you need to know about the AI chatbot*, Cnet (May 14, 2025), <https://www.cnet.com/tech/services-and-software/what-is-chatgpt-everything-you-need-to-know-about-the-ai-chatbot/>



purpose of providing spiritual comfort and guidance to the believer. An example of this AI Chatbot is the application called “Text with Jesus” that allows its users to ask questions about Joseph, Mary, Jesus, and other figures of Christianity. This marks a new function of AI, which is the ability to possess a sense of moral authority as it becomes a tool for feeding people spiritual guidance in times of doubt. The appeal of such chatbots is that when humans are faced with the difficult questions of life the Godbots can provide answers⁴ with just one click of their thumbs.

The Intersection of Law and AI chatbots

The interesting question now lies in how such advancement of technology impacts the field of the legal system. In the reality of current society, we are painted a picture of humans living their lives with the aid of machines to the point where it is impossible to see a person without a smart device—from their phones, watches, eyeglasses, and even cars. As things stand, people are surrounded by AI that it is almost impossible to live a day without coming into contact with such technology, thus it is imperative that we question what the possible legal implications this era of technology brings to the table.

To put things in perspective, the ongoing case of *Garcia v. Character Technologies, Inc.* is an example of the intersection of technology and the law. The plaintiff, Megan Garcia, the mother of the 14 year old Sewell who killed himself, is suing the owner of a famous chatbot platform, Character Technologies, Inc. The said platform, *character.ai*, was used by Sewell obsessively; he was communicating often with the chatbot that there were conversations about his plans on taking his own life. His mother argues to the court that the AI preyed on her son’s existing depression and encouraged him to go through with his plans after seeing the texts exchanged between the two: the chatbot, at one point, had asked Sewell if he had devised the plans to kill himself, the latter admitted that he did but was unsure if it would work or cause him great pain, to that the former replied with “that’s not a reason not to go through with it”.⁵

⁴ Michigan News, *Are you there, AI? It’s me, God*, University of Michigan (October 04, 2023), <https://news.umich.edu/are-you-there-ai-its-me-god/>

⁵ Blake Montgomery, *Mother says AI chatbot led her son to kill himself in lawsuit against its maker*, The Guardian (October 23, 2024), <https://www.theguardian.com/technology/2024/oct/23/character-ai-chatbot-sewell-setzer-death>



The American court has allowed the case of Megan Garcia to proceed on various claims for torts, wrongful death, and the violation of Florida Deceptive and Unfair Trade Practices Act, while her claims on intentional emotional distress were rejected.⁶ The point is, the case only introduces us to the question of how much liability can we place on AI chatbots when involved in legal cases. This only cements the fact that from this day forward, more issues can arise where humans are demanding justice from acts of AI; that society is currently evolving into the technological future people have always pictured it to be, and so our legal system must anticipate the legal implications of the undeniable intersection between the two.

The Right to Religion and the role of AI

Article III, Section 5 of the 1987 Constitution states that “*no law shall be made respecting an establishment of religion, or prohibiting the free exercise thereof. The free exercise and enjoyment of religious profession and worship, without discrimination or preference, shall forever be allowed. No religious test shall be required for the exercise of civil or political rights.*”⁷ The Constitution ensures that every Filipino citizen is afforded the right to have and hold religious beliefs, and that they are able to exercise as such the practices involved in their religion. In the era of technological advancement, we start to ponder how the exercise of such right is manifested, specifically through the persisting presence of Artificial Intelligence that is starting to influence the different aspects of human life and experience. With the rise of AI chatbots such as *Text with Jesus*, we start to wonder if it can constitute as a practice and expression of religious belief.

Current jurisprudence already establishes what is considered to be a religious practice—*Estrada v. Escritor* held that religion is defined by religious belief and conduct rooted in such beliefs, and that any act is considered as the latter when it is sincerely done in obedience to the religious belief.⁸ Going off with that definition, it can be considered then for religious AI Chatbots to be an

⁶ Rob Harkavy, *AI wrongful death lawsuit to proceed in Florida*, ICLG News (May 22, 2025), https://iclg.com/news/22623-ai-wrongful-death-lawsuit-to-proceed-in-florida?utm_source=chatgpt.com

⁷ CONST. (1987), art. III, §5 (Phil.).

⁸ *Estrada v. Escritor*, A.M. No. P-02-1651, (August 04, 2003) (Phil.).



exercise of religious practice by Filipino Citizens, so long as it is done so in good faith. However, one might wonder how exactly an AI chatbot can constitute as a practice of religion? The experience of devout Catholics like Michael Bulawan and Aiene Molina are prominent examples, where the former uses AI chatbots to seek comfort from AI by asking it to help break down bible passages to him, and the latter utilizes AI chatbot to explain bible verses whenever she is unable to attend Sunday church activities.⁹ In this day and age, AI chatbots are present in the lives of Filipinos as it is a source of comfort and strength for their faith. Such usage of AI is a clear display of religious practice that has evolved from its traditional application. This phenomenon is not limited to the Philippines as even the oldest church of Switzerland has adapted to the presence of AI by installing “*Deus in Machina*” the AI Jesus that engages in conversation with hundreds of believers coming to see him and asking for advice.¹⁰ The emergence of this contemporary application of what can constitute as a practice of religion must be noted as it involves the constitutional right of the Filipino citizens.

Regulation through Laws

The fields of technology and of the law undeniably intersect with one another, however given that the legal liability of tech such as AI is novel, its possible legal implications of AI in the human experience still lack the proper scholarly and legal exploration. American jurisprudence has shown to us that it is possible for AI chatbots to be sued for the role it played in the suicide of a teenager¹¹, it gave us a peek into the possible scenarios wherein AI may face the legal justice system. While it does introduce to us this possibility, much is still left unknown in the realm of AI and jurisprudence, but we may learn from what we already know to prepare ourselves for what may come in the future. The best way to face the world of tomorrow is to equip the legal system with the proper tools in applying the law to AI.

⁹ Ronaldo Reyes, *Filipino Catholics finds joy, comfort in AI in strengthening faith*, Sunstar (May 21, 2024), https://www.sunstar.com.ph/tacloban/filipino-catholics-find-joy-comfort-in-ai-in-strengthening-faith#google_vignette

¹⁰ Brian Cheng, *‘Deus in Machina’: Swiss church installs AI Jesus to connect the digital and divine*, NBC News (December 06, 2024), <https://www.nbcnews.com/news/world/deus-machina-swiss-church-installs-ai-jesus-connect-digital-divine-rcna182973>

¹¹ Montgomery, *Supra* note 5



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While Article III, Section 5 of the 1987 Constitution provides the Free Exercise Clause which affords protection to the right of an individual to hold their religious beliefs and convictions, and thus prohibits the state from questioning such beliefs, it is not absolute as per the benevolent-neutrality principle which provides that state may allow for exceptions when upholding its role in protecting the fundamental right of religious freedom.¹² Thus, while the constitution prohibits the government from interfering in the use of AI chatbots as a means to express religious beliefs, it may, however, regulate when harm and hate arise from the use of such technology.

In terms of harm arising from the use of AI chatbots for religious purposes, what is meant here is the presence of ill-intent in the utilization of the technology, exploitation being a prime example. This refers to when AI chatbots are being used to take advantage of an individual's religious belief and cause harm to their emotional or even financial standing, case in point the American case of the teenager who was further pushed by the AI chatbot to take his own life.¹³ On the other hand, hate can arise when AI chatbots are utilized to spread animosity, particularly about another religion, on the guise of being the words of the deity they believe in. Harm and hate are important to avoid in the rising popularity of AI chatbots in society, so that in instances where an individual is subjected to them, accountability can be easily identified and consequences can be served.

Conclusion

When the public safety, order, and rights of others are being infringed upon, the state is able to intervene on issues involving religion, so long as it does not violate the separation of the church and state, that is to say it does not deliberately align and promote a religion and remains neutral. In the case of AI chatbots and religion, regulation must be considered, especially on the liability that the owners of such AI programs in instances that it violates the rights of the citizens during their pursuit of religious expression. Legislation then must be established that protects Filipino citizens while exercising their right to religious expression through AI, specifically via chatbots. It is only the duty of the state to protect such rights, and amidst the contemporary issue of

¹² *Supra* note 8

¹³ Montgomery, *Supra* note 5



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Artificial Intelligence, we must be prepared in facing such challenges. Religious expression and practice has become advanced, and it is only natural for the state to keep up with the changing times, that is to say legislation must be made with the purpose of addressing new issues.

In the pursuit of religious comfort and guidance, it is unsurprising that people have looked towards AI in providing them an efficient solution because with just a click of a finger they can access religious relief from the glare of their phones at home. While it may be currently deemed as an unconventional practice, sooner or later it would become as normal as having a watch that you can talk to. Thus, it is imperative that the state should address the elephant in the room, the legal implications of such religious practice, and form the proper remedies so that the life and liberty of Filipinos are not put in jeopardy while in the exercise of their religious beliefs and convictions.

Bibliography

Constitution

1987 Constitution of the Philippines, art. III, §5 (Phil.).

Jurisprudence

Estrada v. Escritor, A.M. No. P-02-1651, (August 04, 2003) (Phil.).

https://lawphil.net/judjuris/juri2003/aug2003/am_p_02_1651_2003.html

Garcia v. Character Technologies, Inc. et al., 6:2024cv01903, (M.D.Fla. October 22, 2024).

Online Source

Barbara Pazur, *What is ChatGPT? Everything you need to know about the AI chatbot*, Cnet (May 14, 2025),

<https://www.cnet.com/tech/services-and-software/what-is-chatgpt-everything-you-need-to-know-about-the-ai-chatbot/>

Blake Montgomery, *Mother says AI chatbot led her son to kill himself in lawsuit against its maker*, The Guardian (October 23, 2024),

<https://www.theguardian.com/technology/2024/oct/23/character-ai-chatbot-sewell-setzer-death>



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Brian Cheng, *'Deus in Machina': Swiss church installs AI Jesus to connect the digital and divine*, NBC News (December 06, 2024),
<https://www.nbcnews.com/news/world/deus-machina-swiss-church-installs-ai-jesus-connect-digital-divine-rcna182973>

IBM, *Artificial Intelligence: What is a chatbot?*,
<https://www.ibm.com/think/topics/chatbots> (last visited October 31, 2025)

Michigan News, *Are you there, AI? It's me, God*, University of Michigan (October 04, 2023), <https://news.umich.edu/are-you-there-ai-its-me-god/>

Rituraj Mahato, *Artificial Intelligence, What is it?*, The Outcomes of Best Practices in Classroom Research. 197, 197 (2022).
https://www.researchgate.net/publication/361023979_ARTIFICIAL_INTELLIGENCE_WHAT_IS_IT

Rob Harkavy, *AI wrongful death lawsuit to proceed in Florida*, ICLG News (May 22, 2025),
https://iclg.com/news/22623-ai-wrongful-death-lawsuit-to-proceed-in-florida?utm_source=chatgpt.com

Ronaldo Reyes, *Filipino Catholics find joy, comfort in AI in strengthening faith*, Sunstar (May 21, 2024),
https://www.sunstar.com.ph/tacloban/filipino-catholics-find-joy-comfort-in-ai-in-strengthening-faith#google_vignette



Articles on

ARBITRATION & MOOT COURT



AI AND THE LAW:

THE CROSSROADS OF THIS VUCA SOCIETY

By: Atty. Mary Christine S.C. Florete

I served as a volunteer arbitrator in the latest edition of the Willem C. Vis East Moot Competition in the first week of April 2025, prior to the original competition in Vienna, Austria. Suppose there was one notable feature of both sister competitions. In that case, it's the fact that Jus Mundi supports the moot by providing arbitrators, coaches, and mooters free access to the legal research version of Jus Mundi.

Jus Mundi is a legal technology company that provides a smart research engine for international law and arbitration. It is a lesser-known competitor to LexisNexis and Westlaw. But for the arbitration community, it is much more of a byword than its next competitor, Wolters Kluwer. Its headquarters are located in both the posh cities of Paris and New York.

Jus Mundi, together with its competitors, aims to provide a comprehensive legal database containing a vast collection of legal treaties on International Arbitration, Public International Law, treaties, arbitral awards of institutions and ad hoc arbitrations, judgments, procedural orders, and even pleadings. To up the ante, Jus Mundi has partnered with the International Chamber of Commerce to provide its publications and publicized awards. Partnerships were also forged with the International Bar Association, the International Center for Dispute Resolution, among others, to provide users with unprecedented access to arbitration awards, case documents, and institutional practice notes. It has rolled out Jus Connect, a professional networking platform for all arbitration practitioners to connect and conduct due diligence among its members. The professional networking platform is nearly akin to a social network site like Facebook or LinkedIn, only that its members are vetted or pre-screened arbitration practitioners like counsels, arbitrators and tribunal secretaries.

And with the foray of Generative Artificial Intelligence, which we call Gen-AI for short, Jus Mundi now introduces "Jus AI". The rise of globalization, geopolitical tensions, and intricate supply chains has created interconnected economies in which one part of the world sneezes, and the other part sneezes in response. Disruptions or revolutions can cascade rapidly across sectors of this planet. Its effects cascade as quickly as legacies vanish at the bat of an eyelash.

Hence, the term VUCA was born. VUCA stands for Volatility, Uncertainty, Complexity, and Ambiguity, representing the increasingly dynamic and unpredictable environment in which individuals and organizations operate. VUCA has routinely posed significant challenges to leaders who navigate



uncertainties, especially when the organization involved is perceived to be a top-tier institution in their field.

VUCA has the potential to erode that competitive advantage for those institutions that are not vigilant. And the legal profession, together with its institutions, is not exempt. AI, when read together with VUCA, transforms our field's operational processes. AI automates at such speed that it reduces the need for manpower at unprecedented rates.

The consensus among thought leaders is that lawyers who strategically leverage AI will do better in the long run than those legal professionals who vehemently resist this development. We have seen this in history: what happens to companies that refuse innovations. Generative AI does not only answer inquiries similar to those of anyone who googles research ideas to sound like an expert. AI automates several mundane tasks that would ordinarily be painstaking and time-consuming. Generative AI tools, when maximized to their capacity, can streamline processes leading to enhanced efficiency, accuracy, and strategic decision-making spanning a significant number of legal tasks.

Among the key features that lead to enhanced efficiency are the following:

- Time-Savings on Repetitive Tasks: This is particularly evident in tasks like document review, where AI can process and analyze vast quantities of legal documents far more quickly than human counterparts, identifying relevant information and patterns([Wang, 2025](#)).
- Trimming Errors: By automating data extraction and analysis, AI significantly reduces the potential for human error in tasks such as due diligence and contract review, ensuring greater accuracy in legal proceedings([Bauer et al., 2025](#)).
- Improved Legal Research: AI algorithms can meticulously review documents for inconsistencies or omissions, significantly reducing human error in contracts and legal briefs([“Augmenting Legal Expertise: The Role of AI in Enhancing Human Capabilities in Legal Services,” 2025](#)).
- Better Automated Workflows: AI-powered platforms can automate the routing of documents, scheduling of appointments, and management of deadlines, streamlining administrative burdens for legal professionals ([Jaiswal, 2024](#)).
- Predictive Analytics: AI can integrate with existing legal tech to create seamless, automated sequences for tasks such as drafting standard legal documents, managing case files, and scheduling, thereby freeing up legal professionals for more complex analytical work.



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The key features translate to better value delivery and a competitive advantage within the industry. Last 1 April 2025, this author attended a Jus Mundi, a legal technology company, event held at the Hong Kong International Arbitration Centre (“HKIAC”). Jus Mundi leads a discussion on how artificial intelligence is not merely a tool but a transformative force capable of reshaping legal practice by automating routine tasks and improving overall productivity.

AI-powered solutions can streamline processes such as document review, legal research, and contract analysis, thereby enabling legal professionals to allocate their efforts to more complex, high-value intellectual endeavors([Weichbroth, 2025](#)). This augmentation of human capabilities, rather than outright replacement, underscores a paradigm shift in which AI serves as a powerful assistant, enhancing the precision and breadth of legal analysis while freeing up practitioners for tasks requiring creative and social intelligence([Artiaga and Jomilla, 2025](#); [“Augmenting Legal Expertise: The Role of AI in Enhancing Human Capabilities in Legal Services,” 2025](#)).

GenAI is indeed transformative, enhancing efficiency, accuracy, and strategic decision-making in legal tasks that were unimaginable when this author began her legal career. For example, the application of AI in document analysis and review significantly reduces the time and error-proneness associated with traditional manual methods, allowing swift scanning and analysis of extensive legal documents, contracts, and agreements to identify pertinent information, potential risks, and compliance issues([Jaiswal, 2024](#); [Madaoui, 2024](#)).

AI is reshaping the law on all fronts, from education to the courtroom. New teaching methodologies, pedagogy and curriculum adjustments are indeed needed to prepare students for an AI-integrated legal environment. This includes fostering critical thinking skills necessary to evaluate AI outputs, manage biases, and address ethical considerations such as "hallucinations" in AI-generated content ([G and Nair, 2024](#)).

Furthermore, integrating AI tools into legal education curricula enables future lawyers to develop technical literacy and critical thinking skills essential for navigating the data-driven legal marketplace ([“The Evolving Role of Artificial Intelligence in Legal Education and Research,” 2025](#)).

Shirley Tung and the rest of the panelists had underscored that AI has the potential to accelerate learning and career advancement for students and early-career legal practitioners. In the middle of the discussion, the panelists explained in detail that instead of doing the rigorous and time-consuming activity of documentation and compiling legal research, junior associates can perform the tasks the equivalent of a junior partner. This transformation is particularly evident in law case analysis, where AI systems can create



immersive, interactive learning environments, guiding students through interdisciplinary and cross-cultural perspectives ([Wang, Xu and Xu, 2024](#)).

That said, the discussion highlighted that the future legal landscape will require lawyers proficient in both the law and adept at collaborating with intelligent machines. Certain positions, like paralegals, were said to disappear in the near future, as this can be performed by bots. New positions will emerge, however. These positions are related to technology, such as prompt engineers or specialists, and their emergence will be seen in the bigger law firms. These emerging roles underscore a critical shift in legal practice, demanding a workforce capable of leveraging AI for sophisticated legal analysis and strategic problem-solving rather than rote tasks ([Tung et al., 2025](#)).

This evolution necessitates a re-evaluation of current legal education paradigms, pushing for curricula that not only instill traditional legal principles but also cultivate technological fluency and ethical reasoning concerning AI applications ([G and Nair, 2024](#); "[The Evolving Role of Artificial Intelligence in Legal Education and Research](#)," 2025).

But this is not to say that GenAI is foolproof. It does have its fair share of challenges and limitations that educators and practitioners must address critically ([Yu, 2023](#)). There are ethical considerations and practical difficulties that come with integrating AI into arbitration and legal education. There were questions about how much arbitrators can delegate to AI tools within their mandate to decide a case. The principle of party autonomy allows parties to choose an arbitrator because of his qualifications. The parties' power to select an arbitrator is based on consent. Consent is the bedrock of arbitration. When an arbitrator delegates the power vested in him by virtue of the parties' agreement, questions arise about the enforceability of the final arbitral award it issues. This ethical dilemma is further complicated by concerns regarding data privacy, algorithmic bias, and the potential for AI systems to "hallucinate" or generate inaccurate legal information, which could undermine the integrity of arbitral proceedings ([Wilinski and Durbas, 2023](#); [Khurramov et al., 2025](#)).

The inherent "black box" nature of many AI tools further exacerbates these concerns, making it challenging to scrutinize the precise mechanisms by which AI arrives at its conclusions and hindering the provision of transparent justifications for decisions ([Bauer et al., 2025](#)). Algorithmic bias in Large Language Models (LLMs) poses a significant challenge, as these models may perpetuate and amplify biases embedded in their training data, potentially leading to unfair or discriminatory outcomes in legal analysis and decision-making ([Bauer et al., 2025](#)). This results in the generation of plausible but inaccurate information. The challenge with LLMs is the limited availability of accurate training data for specialized arbitration AI tools due to the confidentiality of proceedings.



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There is no turning back from AI. The rise of legal tech companies such as Jus Mundi, Kluwer Arbitration, and other platforms offering sophisticated AI-powered arbitration tools signals a paradigm shift in the legal industry, necessitating continuous adaptation and innovation from legal professionals ([Tung et al., 2025](#)).

The integration of AI, especially in international arbitration, introduces novel ethical dilemmas concerning transparency, data security, and the potential for AI-generated content to influence critical legal decisions ([Quiroga, 2023](#); [Gómez, 2024](#)). This paradigm shift necessitates a rigorous examination of how AI tools are vetted and whether they possess sufficient privacy and security standards to protect sensitive arbitral data ([Bauer et al., 2025](#)).

Furthermore, the "black box" nature of advanced AI models presents a significant hurdle for ensuring due process and the ability to challenge AI-driven outcomes, as the reasoning behind their conclusions often remains opaque to human review ([Vy, 2023](#)).

A valuable resource in this regard is the *Guidelines on the Use of AI in Arbitration* promulgated by the Chartered Institute of Arbitrators ([Bauer et al., 2025](#)). This document frames artificial intelligence as a pivotal instrument that augments efficiency, precision, and strategic discernment in legal practice. Amid the Volatile, Uncertain, Complex, and Ambiguous milieu, legal professionals must remain attuned to this emergent technology, exercising vigilance to avert the erosion of competitive advantages and cultivating acumen to address novel challenges. Accordingly, CI Arb has formulated a comprehensive guideline to navigate these exigencies within dispute resolution contexts ([Bauer et al., 2025](#)).

The VUCA world, characterized by Volatility, Uncertainty, Complexity, and Ambiguity, poses significant challenges across industries, and the legal profession is no exception. This environment demands vigilance against the erosion of competitive advantage and the ability to navigate novel challenges proactively ([Kruger and Barkhuizen, 2024](#)). The rapid emergence and integration of AI tools, while offering unprecedented efficiencies, exacerbate the problems brought about by VUCA, creating a "pacing problem" where technological advancements outpace the corresponding development of legal and ethical frameworks.

CI Arb astutely recognizes the pressing imperative for clear guidance and delivers a pioneering response to AI's profound ethical and practical challenges—including algorithmic bias, transparency deficits, data security risks, and the risk of generating inaccurate outputs. However, the guidelines themselves acknowledge ongoing hurdles like the "black box" nature of AI tools, which impedes human oversight, scrutiny of decision mechanisms, and



the provision of transparent justifications, potentially risking due process and award enforceability ([Bauer et al., 2025](#)).

As such, the Chartered Institute of Arbitrators' Guideline on the Use of AI in Arbitration provides essential direction for dispute resolvers, parties, and their representatives, enabling them to harness AI's benefits while mitigating risks to procedural integrity and the enforceability of awards ([Bauer et al., 2025](#)).

The CIArb AI Guideline aims to provide direction for all participants in arbitration – including dispute resolvers, parties, and their representatives – to harness AI's benefits while safeguarding the integrity of the process, procedural rights, and the enforceability of awards ([Bauer et al., 2025](#)). This guideline is not a manual for specific AI tools but rather a set of principles that acknowledge the rapid evolution of technology and the ongoing demand for increased professional efficiency ([Bauer et al., 2025](#)).

Here are the following key principles outlined in the Chartered Institute of Arbitrators' Guideline on the Use of AI in Arbitration ([Bauer et al., 2025](#)):

1. Maintaining Human Responsibility and Independent Judgment

While Generative AI automates tasks and improves research, the CIArb Guideline strongly emphasizes that participants "shall not be freed of its personal obligation to independently analyse the facts, the applicable law, and the evidence" ([Bauer et al., 2025](#)). This directly reinforces your point about avoiding reliance on AI to "sound like an expert" without true understanding. For arbitrators, specifically, the guideline states they "should not relinquish their decision-making powers to AI but may use AI to support more accurate and efficient processing of submitted information, always ensuring independent judgment" ([Bauer et al., 2025](#)). This means AI should augment, not replace, human intellect and responsibility.

2. Verification of AI-Generated Output

A critical aspect of using AI responsibly, especially Generative AI, is the need for rigorous verification. The CIArb Guideline mandates that participants "shall not rely on AI-generated output without having independently verified the relevant sources and accuracy of the obtained outputs" ([Bauer et al., 2025](#)). This guideline directly addresses the "Trimming Errors" feature you mentioned, underscoring that while AI can reduce errors, the ultimate responsibility for accuracy rests with the legal professional. Arbitrators are also advised to "independently verify the accuracy and correctness of information obtained through AI" ([Bauer et al., 2025](#)).



3. No Delegation of Decision-Making to AI

The discussion in your article about AI transforming roles and requiring prompt engineering must be balanced with the understanding that AI is a tool, not a decision-maker. The CIArb Guideline explicitly states that participants "shall not delegate any decision-making responsibilities to the AI Tool and assume paternity and responsibility for the relevant output" ([Bauer et al., 2025](#)). Similarly, arbitrators must "assume responsibility for all aspects of an award, regardless of any use of AI to assist with the decision-making process" ([Bauer et al., 2025](#)). This principle is vital for maintaining accountability and the ethical framework of legal practice.

4. Preserving the Integrity of the Arbitration Process

The overarching concern is that AI tools should not compromise the fundamental principles of justice. The CIArb Guideline warns that participants "shall not use AI Tools in a way that may affect the integrity of the arbitration and/or the validity and enforcement of the resulting award" ([Bauer et al., 2025](#)). This aligns with your article's concern about maintaining competitive advantage and avoiding the erosion of institutional standing in a VUCA world.

5. Transparency in AI Use

While the CIArb Guideline outlines various aspects, transparency over the use of AI by arbitrators is explicitly mentioned ([Bauer et al., 2025](#)). Although not elaborated upon in the provided excerpts, the inclusion of "Transparency over use of AI by arbitrators" as a distinct section within the guideline suggests that disclosure and openness about AI integration are crucial for maintaining trust and fairness in arbitral proceedings.

The guideline also emphasizes the importance of understanding the specific limitations and potential biases inherent in different AI models to ensure their appropriate and ethical application in complex legal contexts.

The discourse on the impact of Generative AI in the legal community and how practices will transform the landscape within a few years. In fact, it has been highlighted that AI has been rapidly evolving even as its key speakers spoke pointing out that Jus Mundi is at the forefront of this technological transformation. This includes expediting workflows, enhancing organizational agility, and mitigating risks inherent in legal practice ([Biloslavo et al., 2024](#)). The integration of AI, therefore, not only streamlines processes but also aims to improve the overall efficiency, accuracy, and consistency of legal research and case analysis in international arbitration ([Malhoutra and Ahmad, 2022](#); [Rauch, 2025](#)).

To review the Jus Mundi event attended by the author, the event focused on "AI & Arbitration: From Classroom to Courtroom - Vis East Edition."



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The discussions were not mainly about the Vis East Moot of the current year. It was rather an insightful scrutiny by a panel that explores the multifaceted impact of Generative AI. The lineup of speakers who led the event was nevertheless stellar. The panel was led by the following: Sherlin Tung (Partner, Withersworldwide), Olga Boltenko (Barrister, Prince's Chambers; Adjunct Assoc. Prof., UHK), Elizabeth Ebelechukwu Arubalueze (Trainee, HSF), Clémence Prevost (Director of Legal Publications, Jus Mundi). The panel discussions were moderated by Alefiyah Shipchandler (Counsel, HKIAC).

Sherlin Tung, a Partner at Withersworldwide, was one of the notable though leaders. She possesses extensive experience in international disputes and was the director for the Vis East Moot held in Hong Kong. On the other hand, Olga Boltenko is an Adjunct Associate Professor of the University of Hong Kong while being a specialist in Investor-State disputes and Commercial Arbitration. A younger representative of lawyers was also part of the panel in the person of Elizabeth Ebelechukwu Arubalueze, a Trainee at Herbert Smith Freehills, and Paula Eiben-Działoszyńska, a Vis Moot Coach and Legal Consultant.

It was pointed out that Generative AI not only touches on industry but also cascades into legal education on all fronts—whether they are advanced Master of Laws (LL.M) programs or the basic Juris Doctor (JD) degrees.

More than anything, there is no question among the panel that this transformation will render traditional legal roles as obsolete, and new ones will foray into the scene. A concept that is now reiterated, that everyone must have in order to fully leverage Generative AI, is prompt engineering. As artificial intelligence relies on algorithms, or a detailed step-by-step instruction for the purposes of fulfilling a specific task, it is essential that the user provide specific, simple language.

The legal profession stands at an undeniable crossroads, where the forces of a Volatile, Uncertain, Complex, and Ambiguous world converge with the transformative power of Artificial Intelligence. As this article has demonstrated, AI—particularly Generative AI—is not merely an incremental technological advancement; rather, it represents a paradigm shift that redefines operational processes, promises unparalleled efficiencies, and demands a fundamental rethinking of legal education and practice. By automating mundane tasks, significantly reducing errors, improving legal research, and enabling predictive analytics, AI tools are poised to enhance value delivery and confer a significant competitive advantage on those who embrace them strategically. ([“Augmenting Legal Expertise: The Role of AI in Enhancing Human Capabilities in Legal Services,” 2025](#)). This transformative potential, however, necessitates a careful consideration of its ethical implications and the development of robust frameworks to ensure responsible deployment and to mitigate associated risks within the legal domain ([Brownsword, 2025](#)).



The discourse on the impact of Generative AI in the legal community and how practices will transform the landscape within a few years. In fact, it has been highlighted that AI has been rapidly evolving even as its key speakers spoke pointing out that Jus Mundi is at the forefront of this technological transformation. This includes expediting workflows, enhancing organizational agility, and mitigating risks inherent in legal practice ([Biloslavo et al., 2024](#)).

Bibliography

- Artiaga, J.P.M. and Jomilla, F.E. (2025) "Will Artificial Intelligence Replace Lawyers in the Philippines?," *SSRN Electronic Journal* [Preprint]. doi:10.2139/ssrn.5044266.
- "Augmenting Legal Expertise: The Role of AI in Enhancing Human Capabilities in Legal Services" (2025) *Communications of the IIMA*, 22(1). doi:10.58729/1941-6687.1459.
- Bauer, C. et al. (2025) "Guideline on the Use of AI in Arbitration."
- Biloslavo, R. et al. (2024) "Artificial intelligence (AI) and strategic planning process within VUCA environments: a research agenda and guidelines," *Management Decision* [Preprint]. doi:10.1108/md-10-2023-1944.
- Brownsword, R. (2025) "Generative AI and the Rule of Law," in *Oxford University Press eBooks*. Oxford University Press. doi:10.1093/oxfordhb/9780198940272.013.0013.
- G, A.P. and Nair, V. (2024) "Integrating Generative AI into Legal Education: From Casebooks to Code, Opportunities and Challenges," *Law Technology and Humans*, 6(3), p. 60. doi:10.5204/lthj.3640.
- Gómez, K.F. (2024) "Artificial Intelligence in Investor State Dispute Settlement: A New World of Ethical Challenges for Legal Stakeholders?" doi:10.2139/ssrn.4920249.
- Jaiswal, K. (2024) "The Impact of Artificial Intelligence on Legal Practice and Ethics," *International Journal for Research in Applied Science and Engineering Technology*, 12(4), p. 3351. doi:10.22214/ijraset.2024.60648.
- Khurramov, A.J. et al. (2025) "Artificial Intelligence in Education: Analysis and Assessment of Legal Knowledge Using AI Tools," *Qubahan Academic Journal*, 5(3), p. 264. doi:10.48161/qaj.v5n3a2022.
- Kruger, B. and Barkhuizen, N. (2024) "The work role identity in flux of professional staff in a VUCA environment," *SA Journal of Industrial Psychology*, 50. doi:10.4102/sajip.v50i0.2181.



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- Madaoui, N. (2024) "The Impact of Artificial Intelligence on Legal Systems: Challenges and Opportunities," *Problems of Legality*, 1(164), p. 285. doi:10.21564/2414-990x.164.289266.
- Malhoutra, A. and Ahmad, F. (2022) "ARTIFICIAL INTELLIGENCE AND INTERNATIONAL ARBITRATION," *Novos Estudos Jurídicos*, 27(2), p. 258. doi:10.14210/nej.v27n2.p258-281.
- Quiroga, M.G. (2023) "La inteligencia artificial en el arbitraje internacional 2.0. Oportunidades y desafíos en un futuro que ya es presente," *CUADERNOS DE DERECHO TRANSNACIONAL*, 15(2), p. 516. doi:10.20318/cdt.2023.8067.
- Rauch, T.M. (2025) "AI in IA: To What Extent and Capacity Can Artificial Intelligence Assist in International Arbitration Procedures and Proceedings?," *SSRN Electronic Journal* [Preprint]. doi:10.2139/ssrn.5100706.
- "The Evolving Role of Artificial Intelligence in Legal Education and Research" (2025) *Law and World*, 11(1), p. 92. doi:10.36475/11.1.7.
- Tung, S. et al. (2025) "AI & Arbitration: From Classroom to Courtroom – Analyzing Jus Mundi's Vis East Initiative and its Impact on the Future of Legal Practice."
- Vy, N.N.T. (2023) "AI Implementation in ODR: A Game-Changer or a Troublemaker of Data Protection," *Vietnamese Journal of Legal Sciences*, 8(1), p. 1. doi:10.2478/vjls-2023-0001.
- Wang, W., Xu, Zhilang and Xu, Zichun (2024) "Changes and challenges of legal education in the era of generative artificial intelligence: Chinese experience," *Journal of Infrastructure Policy and Development*, 8(8), p. 5600. doi:10.24294/jipd.v8i8.5600.
- Wang, Y. (2025) "Ai in Legal Tech: Automating Document Review and Legal Research." doi:10.2139/ssrn.5195526.
- Weichbroth, P. (2025) "AI and the Law: Evaluating ChatGPT's Performance in Legal Classification." doi:10.48550/ARXIV.2502.12193.
- Wilinski, P. and Durbas, M. (2023) "International Commercial Arbitration and Technology - An Authors' Interview with Generative Artificial Intelligence," *SSRN Electronic Journal* [Preprint]. doi:10.2139/ssrn.4586473.
- Yu, Y. (2023) "Discussion on the Reform of Higher Legal Education in China Based on the Application and Limitation of Artificial Intelligence in Law Represented by ChatGPT," *Journal of Education Humanities and Social Sciences*, 14, p. 220. doi:10.54097/ehss.v14i.8840.



Moot Court: Turning Theoretical Knowledge into Real-World Skills

By Angeline Acantilado

Moot court, is an ancient English conclave of “freemen of a shire,” has evolved into a skill development exercise for law students, where hypothetical cases are debated. In contemporary legal education, mooting has become an indispensable component of the curriculum, serving as a preparatory mechanism for legal training of aspiring members of the legal profession. The West Visayas State University, College of Law, dedicated to promoting legal training extends its profound support to the Vox Populi Moot and Debate Circle. The organization actively participates in moot court and debate competitions annually. Notably, in October of this year, Vox Populi successfully claimed the title of Champion for the University of Cebu and Konrad Adenauer Stiftung (UC-KAS) International Environmental Law Moot Court Competition in Cebu City against 26 participating teams.

The UC-KAS team was composed of law students Emalyn Punzalan from JD-2B, and Faith Montalban and Yan Germinanda from JD-4A. Montalban and Germinanda earned the award as third and first Best Oralists in the Preliminary Rounds, respectively. Mentored by Prosecutor Federic Lois Regencia, Faith Montalban shared her formula for success in mooting, despite challenging review subjects: thorough preparation, gratitude to teammates and Prosecutor Regencia, and deep reflection on the impact of each mooting journey.





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JOSE GIAN KARLO B. FARROL is the incumbent Executive of the Board of Editors of the WVSU Journal for Law Advocacy. He is currently a second year Juris Doctor student and a Certified Law Student Practitioner (Level 1).

He graduated with a degree in Bachelor of Arts in Political Science from the College of Arts and Sciences, WVSU. He had served as Secretary General of the Political Science Student Org. Inc. He was elected during the 2023 Barangay and SK Elections and is currently serving as incumbent Sangguniang Kabataan Kagawad of Brgy. Zone 1, Santa Barbara. He has also been elected as the incumbent secretary of the WVSU COL Law Student Council for the Academic Year of 2025 - 2026.



LEI JUSTINE P. LABRADOR, the Associate Executive Editor of the WVSU Journal for Law Advocacy. He is currently a second year Juris Doctor student and a Certified Law Student Practitioner (Level 1).

He is a graduate of the Bachelor of Arts in Political Science from West Visayas State University. He is currently a member of Vox Populi, presides as an Associate Justice of the WVSU Student Court, and was the former Prime Minister of the WVSU-Forensic League in his undergraduate.



MARY ROSE M. GERBOLINGA is the executive contribution editor of the WVSU Journal for Law Advocacy. She is currently a second year Juris Doctor student and a Certified Law Student Practitioner (Level 1).

She graduated from University of the Philippines Visayas with a degree in Bachelor of Arts in Political Science. She is currently the Prime Minister of Vox Populi Moot and Debate Circle of the WVSU College of Law.



ALLEN DAVE F. EVIDENTE is a Contributing Editor of the WVSU Journal for Law Advocacy. He is currently a second year Juris Doctor Student and a Certified Law Student Practitioner (Level 1).

He graduated from the University of Asia and the Pacific with a degree in Bachelor of Arts in Political Economy as a Full Merit Scholar. At present, he is a debater and mooter of the WVSU Vox Populi Moot and Debate Circle, and an active member of the WVSU Bar Operations. Beyond law school, he is an active volunteer of the Philippine Red Cross and a loving fur dad to his dogs, Timmy, Lucas, Chito, and Nala.



EXECUTIVE EDITORS



PAUL GABRIEL T. BARRANCO is a Contributing Editor of the WVSU Journal for Law Advocacy. He is currently a second year Juris Doctor student and a Certified Law Student Practitioner (Level 1).

He obtained his degree from the University of the Philippines Visayas where he took up Bachelor of Arts in Literature. At present, he is the Chairperson of the WVSU Law Student Council, a Mooter of the Vox Populi Moot and Debate Circle, and an active member of the WVSU Bar Operations. More than his memberships, Paul is an advocate of Good Governance and Queer Rights



SELWYN G. NAVARRETE is a Contributing Editor of the WVSU Journal for Law Advocacy. He is currently a second year Juris Doctor student and a Certified Law Student Practitioner (Level 1).

He graduated from the University of the Philippines Visayas with a Bachelor of Science in Business Administration, major in Marketing. He was formerly the creatives and publication officer of the UPV Marketing Society Incorporated and Marketing Head for Advertising Conference 2019.



AIRA KAYE C. CAPILASTIQUE is the Contributing Editor of the WVSU Journal for Law Advocacy. She is currently a second year Juris Doctor student and a Certified Law Student Practitioner (Level 1).

She graduated from the University of the Philippines Visayas with a degree in Bachelor of Arts in Political Science. She is a member of the WVSU Vox Populi Moot and Debate Circle. Beyond law school, she served as the President of Leon Parish Youth Ministry since 2022 - a church-based organization devoted in honing the youth through theater and arts and was included as a semi-finalist in the TAYO20 Awards in the whole Philippines.



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FELICE MARIE P. NAFARRETE is an Apprentice Editor and Layout Artist of the WVSU Journal for Law Advocacy. She is currently a first-year Juris Doctor student.

She graduated from the University of the Philippines - Visayas with a Bachelor of Arts degree in Communication and Media Studies. She is also a member of the Vox Populi Moot and Debate Circle of the WVSU College of Law and serves as a first-year batch representative in the WVSU Law Student Council.

X



ANGELINE S. ACANTILADO is an Apprentice Editor of the WVSU Journal for Law Advocacy. Presently, she is a first year student taking up her Bachelor of Laws.

She graduated from West Visayas State University with a degree in Political Science, where she also used to be an editorial staff under Forum Dimensions, its official student publication. She is currently a member of Vox Populi Debate and Moot Circle and the COL Student Council Class Representative for JD-1A.

X



ELMO V. ADOR JR is an Apprentice Editor of the WVSU Journal for Law Advocacy. He is currently a first-year Juris Doctor student.

He attended the Philippine Military Academy and graduated with a degree in Bachelor of Arts in Journalism. He currently serves as the Public Information Officer of the WVSU Law Student Council.



EDITORIAL APPRENTICES



EMMANUELLE ANNE V. BESONIA is an Apprentice Editor of the WVSU Journal for Law Advocacy. She is currently a first-year Juris Doctor student.

She is a graduate of the Bachelor of Arts (Sociology-Psychology) from the University of the Philippines Visayas. She currently serves as the Business Manager of the WVSU COL Student Council, a member of Vox Populi, and a liaison officer at the Iloilo City Government.



JOSE EMILIO LUIS T. COMBATIR, is an Apprentice Editor of the WVSU Journal for Law Advocacy. He is currently a first-year Juris Doctor student.

He is a graduate of the Bachelor of Arts in Political Science from West Visayas State University, currently serving as an Associate Justice of the WVSU Student Court, and a member of the Vox Populi.



JOHN PATRICK S. PALQUIRAN is an Apprentice Editor of the WVSU Journal for Law Advocacy. He is currently a first-year Juris Doctor student.

He holds a Bachelor's degree in Political Science from West Visayas State University and he is presently serving as an Associate Justice of the WVSU Student Court and is an active member of Vox Populi.



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Luna St. La Paz, Iloilo City
col_journal@wvsu.edu.ph

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WEST VISAYAS STATE UNIVERSITY - COLLEGE OF LAW
LUNA ST., LAPAZ, ILOILO CITY
col_journal@wvsu.edu.ph